

Farm, Food, and National Security Act of 2026

H.R. 7567 - Engrossed in House (passed 2026-04-30)

Every-word analyst review: a cross-cutting analysis followed by verbatim section-by-section notes for all 12 titles (460 sections). Source: GovInfo BILLS-119hr7567eh.

Prepared for Dr. Ian Helfrich - WorldScope

The 2026 Farm Bill, read in full: a cross-cutting analysis

Document analyzed: *Farm, Food, and National Security Act of 2026* - H.R. 7567, Engrossed-in-House (as passed) text, dated April 30, 2026 (GovInfo package BILLS-119hr7567eh). Passed the House 224-200. CBO scored the underlying bill at roughly \$390 billion over the budget window. Reauthorizes USDA programs through FY2031.

Method. The full engrossed text (~141,000 words) was split into its 12 statutory titles (460 sections) and each title was read in full, section by section, by a dedicated analyst that produced verbatim structured notes (see notes/). This document synthesizes those 12 note-sets. Every dollar figure, acreage cap, and date below traces to a specific section captured in the notes; section citations are given inline.

At a glance - the bill in six charts

(Figures are regenerated from the notes by tools/build_farmbill_figures.py. The first two are tallied directly from the analysts' Type: tags across all 460 sections; the rest are transcribed from the cited sections.)

Anatomy. Twelve titles, 460 sections, ~133k words of operative text. Research (VII), Conservation (II), Rural Development (VI), Forestry (VIII), and Miscellaneous (XII) carry the bulk of the sections.

Anatomy of the bill — 460 sections, ~133k words of operative text

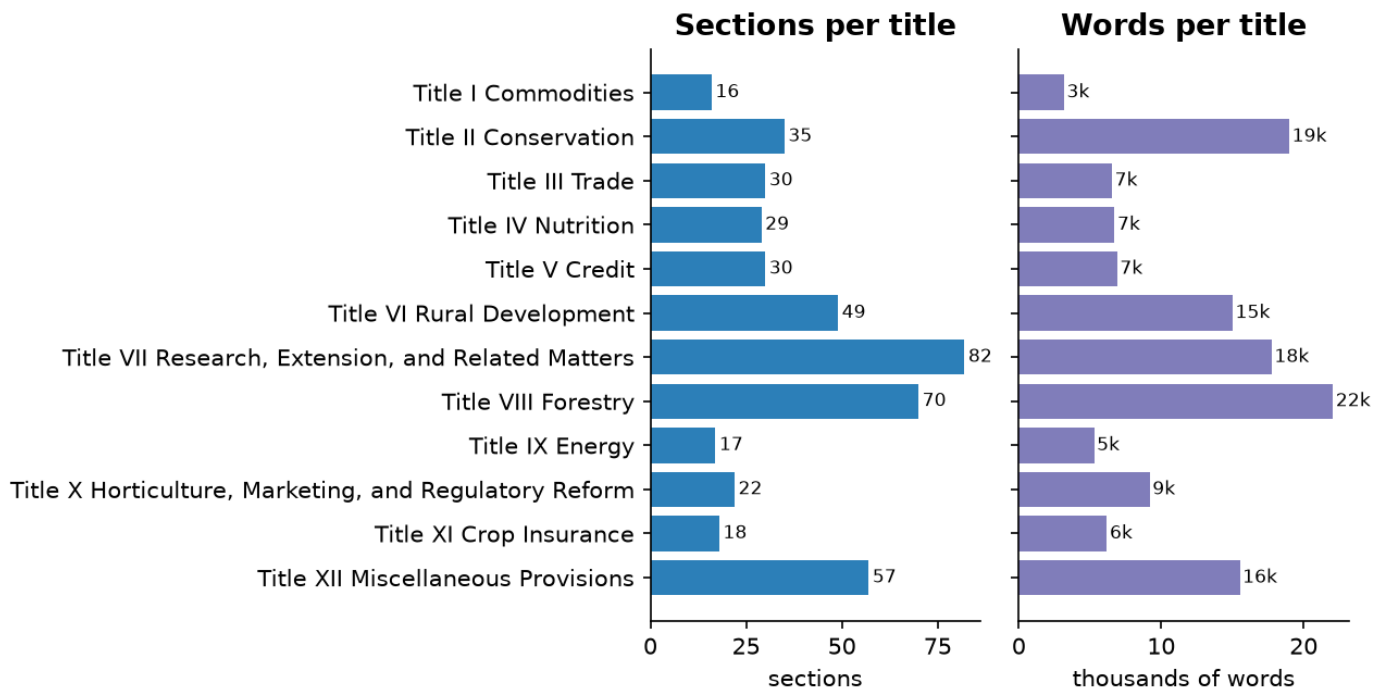


Figure: Anatomy of the bill: sections and words per title

What the bill does. Across all 460 sections, REFORM (233) and EXTEND (166) dominate, with 152 genuinely NEW provisions and only 16 repeals - this is a policy-and-reauthorization vehicle, not a clean-sheet rewrite. But the *mix varies sharply by title*: Forestry (VIII) is the most NEW-heavy (new authorities and categorical exclusions), Research (VII) is overwhelmingly EXTEND (reauthorize-and-move-on), and Crop Insurance (XI) leans on STUDY mandates.

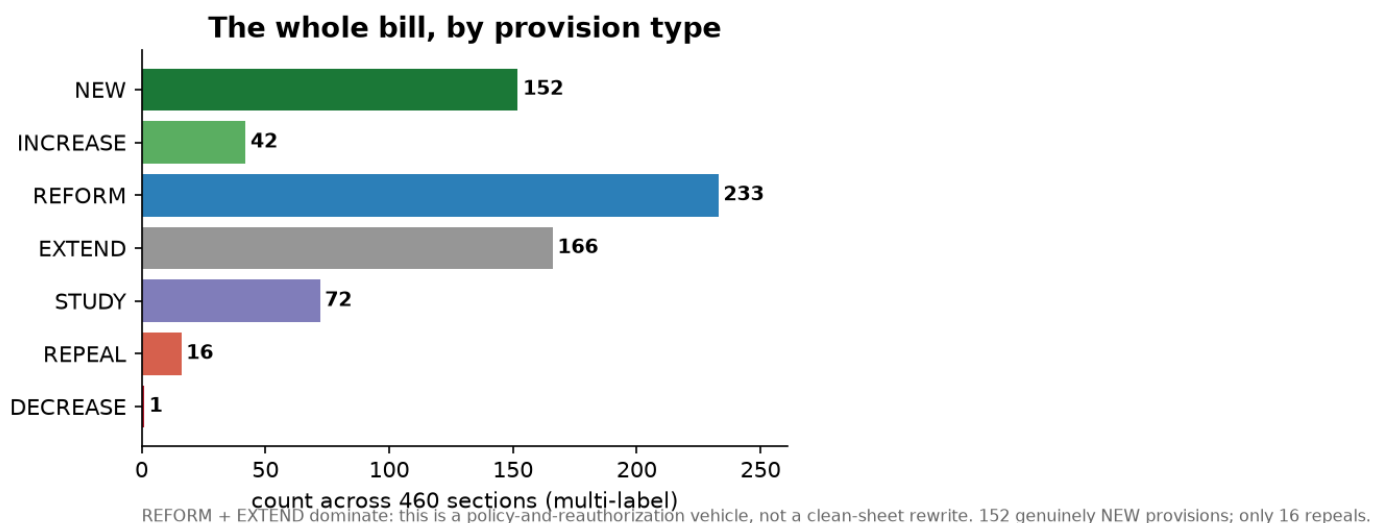


Figure: Overall provision-type distribution

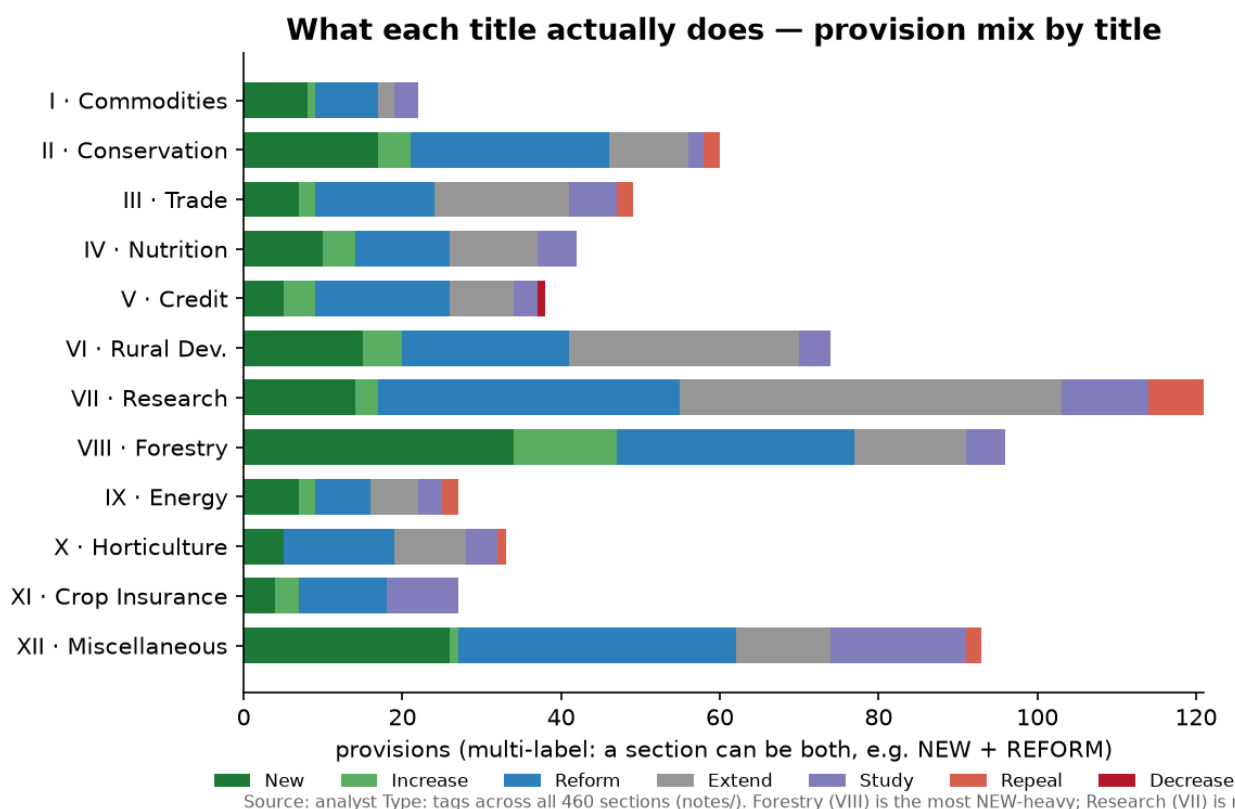
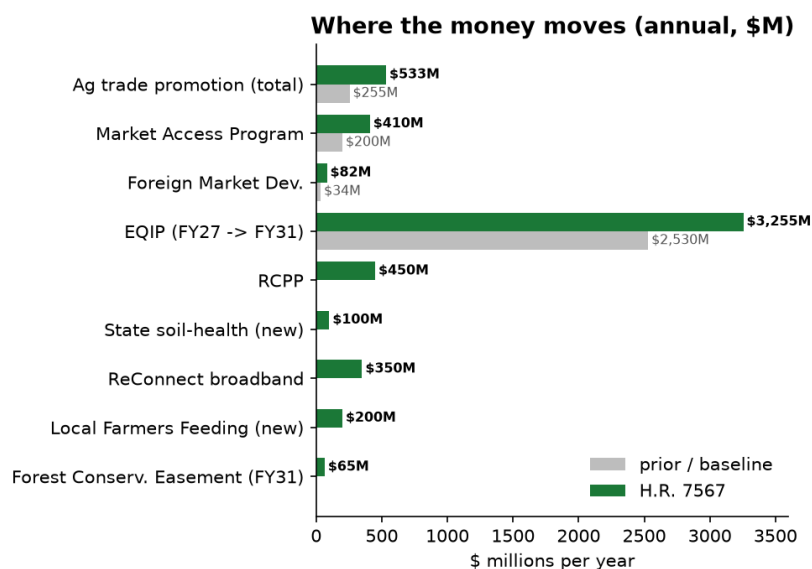


Figure: Provision mix by title

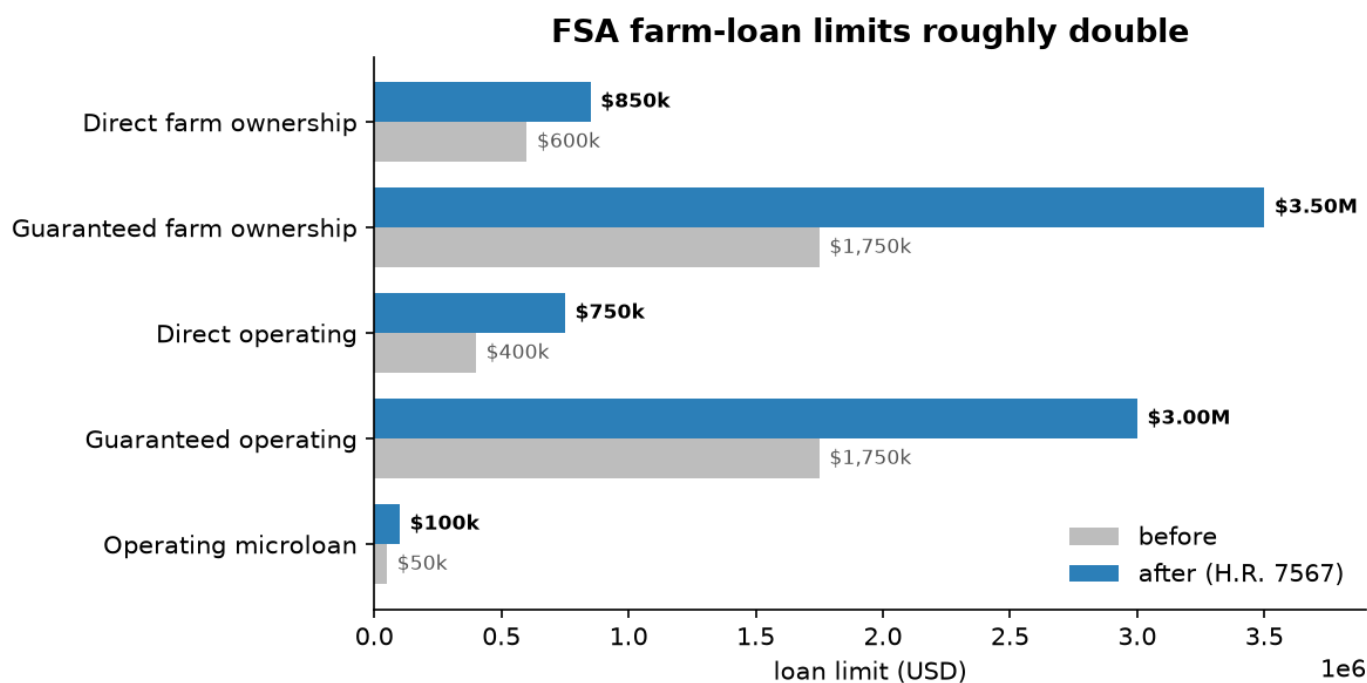
Where the money moves. The biggest affirmative dollar moves are trade promotion (MAP/FMD, near-doubled), the EQIP ramp to \$3.255B by FY31, and a set of newly-funded conservation, broadband, and local-food lines.



Sources: Title III §3201 (trade); Title II §§2501/2303/2701 (conservation); Title VI §6201 (broadband); Title IV §4306 (local food). '0' = newly created/named line.

Figure: Where the money moves, annual \$M

Farm credit. FSA loan limits roughly double across the board, with indexing rebased from input prices to land values.



Source: Title V (Credit), §§5105/5202/5203. Indexing also rebased from input prices to land values (§5106).

Figure: FSA farm-loan limits before/after

Forestry. The bill's most environmentally consequential numbers: three existing NEPA categorical exclusions tripled from 3,000 to 10,000 acres, plus new CEs.

Forestry: NEPA categorical-exclusion caps expand sharply

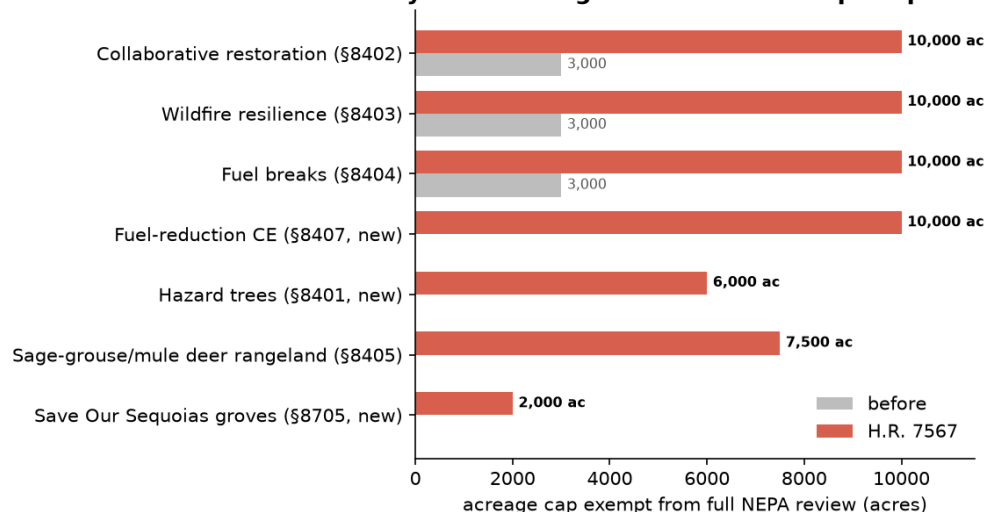


Figure: Forestry NEPA categorical-exclusion acreage caps

Two things the charts can't show

The reconciliation split - why the "farm bill" looks thin where you'd expect it to be thick:

Farm-bill function | Where it was actually decided | In H.R. 7567?

SNAP benefit levels, work requirements, Thrifty Food Plan | 2025 reconciliation (P.L. 119-21) | No - only administrative/integrity tweaks

Commodity reference prices, PLC/ARC, base acres | 2025 reconciliation (P.L. 119-21) | No - absent from Title I

Conservation, credit, trade, forestry, rural dev, research, energy, horticulture, crop insurance, misc. | This bill | Yes - the policy reauthorization

The national-security throughline - the same handful of statutory hooks recur across nine titles:

Mechanism | Where | Target

Foreign-adversary farmland ban + AFIDA overhaul + USDA on CFIUS | XII §§12301-12306 | PRC/Russia/DPRK/Iran land buyers

"Foreign entity of concern" component/supplier screen (CHIPS Act defn.) | IX §9012 (solar), VI §6302 (precision-ag), X §10006 (GE microbes)

| China-linked supply chains

Research-collaboration ban with countries of concern | VII §§7608, 7614 | China/Russia ag research

Trade enforcement (WTO vs. India; EU "common names"; Argentine beef) | III §§3202, 3311, 3402 | EU GIs, India, Argentina

Buy-American 95% + China/Russia poultry & seafood ban | IV §4302 | imported school-meal inputs

Food/ag critical-infrastructure risk assessments + IC detailees | XII §12201 | domestic resilience

1. The single most important framing fact: this is the ***second half*** of a two-part farm bill

The biggest analytical key to this document is what is missing from it.

A normal farm bill's center of gravity is Title I (Commodities) - reference prices, Price Loss Coverage / Agricultural Risk Coverage, base acres, marketing loan rates - and Title IV (Nutrition/SNAP). In this bill, both of those titles are unusually hollow on exactly those marquee items:

- Title I contains no reference prices and no PLC/ARC/base-acre/marketing-loan changes at all (notes/00). It is instead a disaster-and-dairy title.

- Title IV contains none of the SNAP changes that dominated the political debate - no Thrifty Food Plan cost-neutrality cap, no ABAWD/work-requirement expansion, no broad-based-categorical-eligibility or immigrant-eligibility restriction, no state cost-share of benefits, no SNAP-Ed cut (notes/03). Its substance is administrative integrity plus several ***expansions***.

That is not an accident or an omission in the text. The commodity reference-price increases and the SNAP cuts were already

enacted separately in the 2025 budget-reconciliation law (P.L. 119-21), whose agriculture title made the changes to nutrition assistance and farm income support that are normally the heart of a farm bill. H.R. 7567 is therefore best understood as the "skinny" reauthorization of everything reconciliation could not or did not carry - the policy (non-mandatory-money) provisions and the titles outside reconciliation's reach.

Why this matters for reading the bill: the politically explosive money fights (SNAP, commodity supports) are *done elsewhere*. What remains in H.R. 7567 is where this Congress put its discretionary policy priorities - and those priorities cluster, overwhelmingly, around three themes: national security, trade expansion, and deregulation of land/resource management. The name of the Act is the tell.

2. "National Security" is a literal, pervasive organizing principle - not branding

Prior farm bills are not titled "...and National Security." This one is, and the phrase pays off in concrete provisions threaded through nine of the twelve titles. This is the most genuinely novel feature of the 2026 bill relative to its predecessors.

Foreign ownership of U.S. farmland (Title XII, Subtitle C - the densest cluster):

- AFIDA overhaul: new civil-penalty tiers for false filings ($\geq 5\%$ - $\leq 25\%$ of value), public naming of penalized filers, and AFIDA?CFIUS information-sharing (§12301).
- A new SES "Chief of Operations of Investigative Actions" - effectively a counterintelligence office for agricultural land - coordinating with DOJ/FBI/DHS/Treasury/NSC (§12303).
- A consolidated foreign-land-ownership database (§12304), repealing the 2023 appropriations-rider version.
- USDA seated on CFIUS for ag-land/ag-biotech/ag-industry transactions, with mandatory referral of PRC/DPRK/Russia/Iran deals (§12305).
- An outright presidential-directed ban on purchases of ag land by foreign adversaries and state sponsors of terrorism and anyone "affiliated with" them (§12306).

"Foreign adversary / foreign entity of concern / trusted supplier" screens (all keyed to the CHIPS Act of 2022 definitions, 42 U.S.C. 19237) appear on:

- precision-agriculture interconnectivity standards (Title VI §6302),
- USDA funding for solar components - no funding if the panel components are made by a foreign entity of concern (Title IX §9012(e)),
- the GE-microorganism interstate-movement pilot - applicants tied to a "country of concern" are barred (Title X §10006),
- USDA research collaboration - a flat prohibition on vertebrate-animal research conducted in or with China, Russia, or other countries of concern (Title VII §7614), plus CHIPS-Act research-security compliance on all new interagency R&D MOUs (§7608).

Trade as economic statecraft (Title III):

- A statutorily-directed WTO dispute against India's minimum price supports (§3311),
- the "common names" fight against EU geographical indications - Congress enumerates the generic terms (parmesan, feta, prosciutto, chablis, IPA...) U.S. exporters may use and orders USTR/USDA to defend them (§3202),
- defensive postures on seasonal produce imports (§3203), USMCA modification impacts (§3401), and expanded Argentine beef imports (§3402).

Supply-chain / homeland-security hardening:

- USDA Office of Homeland Security gets biennial food-and-agriculture critical-infrastructure risk assessments and authority to detail intelligence-community personnel (Title XII §12201).
- School meals must be $\geq 95\%$ domestic, with a hard ban on poultry and seafood from China or Russia (Title IV §4302).
- A presidential "priority objective" to strengthen domestic production of food-ingredient commodities (read as sugar-industry protective; Title I §1010).

The throughline: agriculture is reframed as critical infrastructure and a vector of great-power competition (chiefly with China). This is the bill's distinctive ideological signature.

3. Where the money actually moves

Because the big mandatory commodity/SNAP money was set in reconciliation, the affirmative spending *in this bill* is concentrated in a handful of places. The clearest increases:

Area | Move | Section

Ag trade promotion | Total Ag Trade Act funding \$255M -> \$533M/yr (FY28+); MAP floor ~\$200M -> ~\$410M, FMD ~\$34.5M -> ~\$82M - the largest sustained MAP/FMD increase in decades | III §3201

Conservation (EQIP) | EQIP ramps \$2.53B (FY27) -> \$3.255B (FY31); RCPP fixed \$450M/yr; new \$100M/yr State/Tribal soil-health grants; new Forest Conservation Easement Program \$25M->\$65M/yr; feral-swine control permanent at \$150M | II §2501, §2303, §2701, §2402

Farm credit (FSA loan limits) | Direct farm-ownership \$600k->\$850k; guaranteed FO \$1.75M->\$3.5M; direct operating \$400k->\$750k; guaranteed OL \$1.75M->\$3M; microloans \$50k->\$100k; indexing rebased to land values | V §5105, §5202, §5203, §5106

Rural broadband | ReConnect made permanent at \$350M/yr, speed floor raised 25/3 -> 50/25 Mbps | VI §6201

Specialty-crop disaster | New permanent Specialty Crop Emergency Assistance Framework, payment floor "not less than \$900,000" for farming-dominant entities | I §1003

Local food purchasing | New Local Farmers Feeding Our Communities program, \$200M/yr FY27-31 (~\$1B), LFPA-style | IV §4306

Crop insurance | Major expansion of subsidized products (oilseeds/pulses/sugar/blueberries revenue, wine-grape smoke, mushrooms...), and beginning-farmer premium assistance extended to veterans (eligibility 5->10 yrs) | XI §11014, §11007

Smaller but notable new authorizations: heirs'-property legal services \$60M/yr (V §5109), dairy nutrition incentives \$20M->\$50M and HFFI \$125M->\$135M (IV §4305, §4307), \$50M/yr tree-planting (IX §9017), \$30M/yr specialty-crop mechanization within SCRI (VII §7305), \$7.5M/yr organic-transition research (VII §7213).

The few hard cuts/repeals are small and surgical: an \$18M rescission of unobligated biorefinery balances (IX §9003); repeal of three small energy/education programs (Biodiesel Fuel Education, Carbon Utilization & Biogas Education - IX §9006/§9010); a freeze of crop-insurance A&O reimbursement at 2026 levels, a real-terms decline for insurers over time (XI §11009). There is no broad austerity in this text - the austerity, to the extent it exists in the 2025-26 farm-policy package, lives in the reconciliation law.

4. Deregulation of land, forests, and chemicals is the second-strongest theme - and it lives *outside* the conservation title

Title II (Conservation) is, somewhat surprisingly, not where the environmental fights are. It is a fairly conventional 5-year reauthorization that even *adds* programs (soil health, forest easements, wildlife-corridor cost-share) and, notably, contains no rescission or rollback of Inflation Reduction Act conservation money anywhere in its text (notes/01). The deregulatory energy is instead concentrated in Forestry (VIII), Horticulture/Regulatory Reform (X), and Miscellaneous (XII):

Forestry (Title VIII) - the most environmentally consequential title:

- NEPA categorical exclusions tripled from 3,000 to 10,000 acres for collaborative restoration (§8402), wildfire resilience (§8403), and fuel breaks (§8404); a new fuel-reduction CE up to 10,000 acres (§8407); a new hazard-tree CE at 6,000 acres (§8401).
- ESA Section 7 carve-outs: no required reconsultation on Forest Service/BLM land-use plans when new species are listed or new information emerges, "notwithstanding any other provision of law" (§8411); a new electric-utility ROW CE that is exempt from ESA §7 and the National Historic Preservation Act entirely (§8406); communications-use facilities fully exempt from NEPA/NHPA (§8509).
- A statutory congressional "emergency" declared for 7 years across named Sierra Nevada forests and three national parks (Save Our Sequoias Act, §8705), with its own NEPA CE and stewardship-contracting pushed into the parks (§8710).
- \$220M in mill loan guarantees explicitly tied to expanding timber/vegetation removal near federal land (§8421); no-appraisal timber disposal in "extreme risk" events (§8416).

Pesticides / biotech (Title X, Regulatory Reform):

- Plant biostimulants, nutritional chemicals, and gene-pool-derived plant-incorporated protectants exempted from FIFRA (§10201);
- USDA and a mandatory economic-cost analysis inserted into EPA's pesticide risk-mitigation and ESA decisions (§10202-§10204);
- a Paperwork Reduction Act waiver for the pesticide-use survey (§10211);
- a 5-year safe harbor stripping courts of authority to enjoin aerial wildfire-retardant discharges under the Clean Water Act (§10212).

Miscellaneous (Title XII):

- Farm equipment exempted from Clean Air Act nonroad-engine standards (§12422);
- Forest biomass legislatively declared carbon-neutral (GHG/carbon intensity "not greater than zero") for USDA purposes (§12409).

One striking counter-current: Title IX (Energy) restricts USDA funding for ground-mounted solar that converts farmland (§9012), with acreage thresholds, conservation-plan and full-repayment requirements, and the foreign-component ban. This is deregulation's mirror image - a *new* federal restriction - but it fits the bill's logic perfectly: it protects farmland *and* targets Chinese solar supply chains, pushing toward agrivoltaic co-location over conversion. Renewable energy is welcomed only when it neither displaces production nor depends on adversary supply chains.

5. Modernization signature: "precision agriculture" everywhere

If national security is the bill's geopolitics, precision agriculture is its industrial policy. The term is freshly defined and then deliberately embedded across titles:

- Conservation: defined in statute, made a state-determined high-priority practice, with EQIP/CSP cost-share up to 90% (II §2001, §2202, §2302).
- Research: built into AGARDA (lifespan extended 5->13 yrs), the rebuilt Centers of Excellence (min. centers 3->8), AFRI, a \$30M/yr SCRI mechanization-and-automation carve-out, and the DOD research MOU (VII §7125, §7208, §7305, §7503, §7608).
- Credit: new beneficiary category for conservation loans to adopt precision-ag tech (V §5104).
- Rural development: USDA-NIST-FCC interconnectivity standards with the foreign-adversary screen (VI §6302).

Pair this with the new USDA Office of Biotechnology Policy (X §10213), the GE-microorganism pilot (X §10006), the Agricultural Innovation Corps (VII §7609), and SAF mainstreaming (IX §9001/§9013), and the bill's modernization posture is coherent: subsidize automation and ag-tech, build the standards and offices to govern it, and wall it off from China.

6. Constituency map: who wins, who loses

Clear winners

- Specialty-crop / fruit-and-vegetable growers - the bill's most-favored constituency: new permanent disaster framework with \$900k+ floors (I), crop-insurance product expansion + advisory committee (XI), specialty-crop mechanization research (VII), block-grant no-match rule (X), import-defense working group (III).
- Agricultural exporters - MAP/FMD roughly doubled; aggressive trade enforcement (III).
- Larger and land-buying farm operations - FSA loan limits roughly doubled; land-value indexing (V).
- Timber industry / Forest Service operations / electric utilities - NEPA/ESA/NHPA relief, mill loan guarantees (VIII).
- Dairy - permanent-law suspension, indemnity/promotion extensions, processing-cost data, whole milk in schools, \$50M dairy incentives (I, IV, XII).
- 1890 land-grant (HBCU) and 1994 Tribal institutions - funding floors raised 20%->40% / 30%->40% with match enforcement (VII §7110/§7114/§7508) - a notable bipartisan-equity win embedded in a Republican-led bill.
- Veterans entering agriculture - crop-insurance assistance (XI), "Armed to Farm" (VI), education grants (VII).
- Domestic solar-component makers, biotech firms with multiple sites, SAF feedstock growers, animal-welfare advocates (greyhound-racing ban, research-animal adoption - XII).
- Tobacco - restored to CCC eligibility (I §1012), a symbolic reversal.

Clear losers / disfavored

- ESA-listed species and the NEPA/judicial-review process (VIII, X).
- China and Russia - barred across farmland, research, solar supply chains, and school-meal sourcing.
- States with animal-welfare production mandates - Prop 12 / Question 3 style laws preempted for slaughter livestock and dairy (XII §12006) - though eggs are pointedly excluded, narrowing the preemption.
- USAID - loses Food for Peace administration wholesale to USDA (III §3101).
- Crop-insurance companies (AIPs) on the A&O freeze (XI §11009); EU geographical-indication holders (III §3202); Argentine beef and Indian price-support regimes (III).

- Community-based / school-based beginning-farmer training orgs - FOTO priorities reoriented toward farm-business-management (VII §7210).

Notable equity threads that survive despite the bill's politics: heirs'-property legal services and relending (V §5109, VII §7610, XII §12404), socially-disadvantaged/underserved targeting across conservation and rural-development priority language, the revived Commission on Farm Transitions explicitly studying barriers for women and historically underserved farmers (XII §12401), and a National Appeals Division burden-of-proof shift onto the agency that helps all producer-appellants (XII §12203).

7. Culture-and-process markers worth flagging

- Dietary Guidelines overhaul (IV §4308): moves to a 10-year cycle, adds APA rulemaking and an Independent Advisory Board, and - most pointedly - an "exclusion list" barring the guidelines from considering socioeconomic status, race, religion, ethnicity, culture, taxation, food labeling, or agricultural production practices. This is a quietly significant, ideologically-loaded process reform with downstream effect on every federal feeding program keyed to the DGA.

- Administrative centralization in USDA: Food for Peace pulled from USAID (III); FCA declared the "sole and independent regulator" of the Farm Credit System with an express-override clause (V §5504); new Offices of Seafood (XII §12419, extending FSA "farmer" loans to commercial fishing - §12420) and Biotechnology Policy (X §10213).

- Government-shutdown continuity: commodity and sugar loan servicing deemed Antideficiency-Act "safety of life/property" functions (I §1008); circuit-rider and other programs given lapse-in-appropriations continuity (VI §6402).

- A flood of new reports/studies/working groups - dozens, on everything from shrimp trade to NASS modernization to 1944-Water-Treaty losses in Texas and Arizona. Many are placeholders for future legislating; a few (e.g., the organic risk-based-oversight study, X §10109) come with delegated rulemaking authority to act on the findings.

- Drafting quality: the engrossed text carries several visible errors the analysts flagged - a "9081"/"9801" U.S.C. miscite (I §1002), a greyhound-penalty cross-reference to "paragraphs (1) through (5)" where only (1)-(4) exist (XII §12008), and header typos ("United Sates," VII §7611). Minor, but real, and worth noting in any authoritative read.

8. Bottom line

H.R. 7567 as passed is not the sweeping safety-net rewrite the "farm bill" label implies - that work was largely done in 2025 reconciliation. What the House actually passed on April 30, 2026 is a policy-and-modernization vehicle organized around national-security competition with China, a major expansion of agricultural trade promotion, deregulation of forest and chemical management, and a tech-forward "precision agriculture" industrial policy - with the traditional commodity and nutrition machinery merely extended through FY2031 rather than reopened.

Read in context, the document's center of gravity has shifted from the historic farm-bill axis (commodity supports ? SNAP) toward a new axis (food-system security ? export expansion ? resource-management deregulation). Whether that shift survives the Senate - which had not acted as of this writing (mid-June 2026) and where the Food-for-Peace transfer, the Prop-12 preemption, the forestry ESA/NEPA waivers, and the Dietary Guidelines exclusion list are all plausible flashpoints - is the open question. But as a statement of the House majority's agricultural priorities, the title says it plainly: farm, food, and national security, in that increasingly inseparable order.

Per-title verbatim notes supporting every claim above are in notes/. Source text and the title-by-title split are in source/. Generated from the engrossed text BILLS-119hr7567eh (GovInfo).

Title I - Commodities - Notes

Title-level summary

This version of Title I (Sec. 1001-1016) is unusually narrow: it does not contain the headline reference-price/PLC/ARC reauthorization or payment-limit increases one normally associates with a Farm Bill commodity title. Instead it concentrates on (a) extending permanent-law suspension and several dairy authorities from 2023 through 2031 (FY2031 reauthorization through-line), (b) a major build-out of disaster assistance - overhauling the Tree Assistance Program (TAP), creating a new Specialty Crop Emergency Assistance Framework (new sec. 196A) with payment limits "not less than \$900,000" for farming-dominant entities, and authorizing block grants for uncovered natural-disaster losses, and (c) numerous administrative/processing reforms (loan servicing during shutdowns, electronic disaster forms, mandatory dairy processing-cost reporting). Notable money/policy moves: the \$900,000 specialty-crop payment floor; restoration of tobacco as a CCC agricultural commodity; expansion of storage-facility loans to propane and a study on fertilizer storage; and revised evidence standards for Mexican wolf livestock depredation. Several provisions carry sunsets (TAP initial-payment authority sunsets Sept. 30, 2035). NOTE: This source file for "Title I - Commodities" appears to omit the traditional PLC/ARC reference-price sections; if those exist in the full bill they are not present in this excerpt - no reference prices for covered commodities appear anywhere in the text.

Section-by-section

Sec. 1001 - Suspension of permanent price support authority

- Does: Extends the suspension of permanent (1938/1949 Act) price-support authority by changing the end year from 2023 to 2031 wherever "2023" appears.
- Amends: Sec. 1602 of the Agricultural Act of 2014 (7 U.S.C. 9092).
- Numbers: Year change 2023 -> 2031.
- Dates: Reauthorization through 2031.
- Type: EXTEND
- Affected: All commodity programs; prevents reversion to permanent-law parity pricing ("dairy cliff"). USDA must administer current programs through 2031.
- Flag: Routine but essential - averts the "dairy cliff"/permanent-law reversion.

Sec. 1002 - Tree assistance program

- Does: Overhauls TAP. (a) Broadens definitions - adds "or biennial" after "annual" and "or pest" after "insect" (covers biennial crops and pest losses). (b) Rewrites the economic-viability standard: strikes existing clauses (i)/(ii) and replaces the eligibility trigger so assistance goes to orchardists/nursery growers who "planted trees for commercial purposes but lost the trees or the trees no longer produce an economically viable crop as a result of a natural disaster." (c) Conforms cross-references ("and (5)" -> ", (5), (6), and (7)"). (d) Adds new para (6) Timing requirements - recipient must complete replacement/rehab within 2 years of approval (or longer if needed for tree survival); new para (7) Alternatives in replanting - may replant with alternative variety, stand density, or location, but cost-share is capped at the amount they'd have received replanting the lost variety/density/location. (e) Adds new para (8) Deadline for notice - Secretary must approve/deny and notify within 120 days. (f) Adds new para (9) Initial payments - grower may opt for an upfront payment equal to fair market value of estimated costs before incurring them, with reconciliation/repayment of overpayments; authority sunsets Sept. 30, 2035.
- Amends: Sec. 1501(e) of the Agricultural Act of 2014 (7 U.S.C. 9081(e)) - specifically (e)(1), (e)(2)(A), (e)(3), and adds (e)(6)-(e)(9). NOTE: subsection (e) text in (d) and (e) cites both "7 U.S.C. 9081(e)" and an apparent typo "7 U.S.C. 9801(e)"; the correct cite is 9081(e).
- Numbers: 2-year completion deadline; 120-day application-decision deadline; initial payment = fair market value of estimated costs; cost-share caps on alternatives.
- Dates: Initial-payment authority sunset September 30, 2035.
- Type: REFORM / NEW / EXPAND
- Affected: Orchardists and nursery tree growers (win - faster decisions, upfront cash, replanting flexibility, pest/biennial coverage). USDA/FSA must meet new deadlines.
- Flag: 120-day decision deadline and optional upfront payments are grower-friendly; sunset 2035 limits the initial-payment

feature.

Sec. 1003 - Specialty crop emergency assistance framework

- Does: Creates a brand-new standing framework (new sec. 196A) directing the Secretary to provide direct assistance to specialty-crop producers hurt by an "adverse event (including an economic crisis or market disruption)." Payment = producer's prior-year (or multi-year average) specialty-crop sales x a Secretary-set payment factor. Secretary must account for the higher value of specialty crops, greater input costs, and diverse legal entity structures. Sets payment limits: generally capped at the Food Security Act sec. 1001(b) limit, BUT for a person/entity whose average gross income is $\geq 75\%$ from farming/ranching/silviculture, the standard cap does NOT apply and the Secretary sets the max - "except such amount may not be less than \$900,000." Applies FSA notification/eligibility/denial rules (sec. 1001A(a), 1001B, 1001C). Conforming payment-limit amendments add "or 196A" after "section 196."
- Amends: New freestanding provision inserted into the Federal Agriculture Improvement and Reform Act of 1996 after sec. 196 (7 U.S.C. 7333), as new sec. 196A; cross-references Food Security Act of 1985 sec. 1001/1001A/1001B/1001C/1001D (7 U.S.C. 1308 et seq.); amends sec. 1001D(b)(2)(E) and (b)(4)(A)(i)(II) of the Food Security Act of 1985 (7 U.S.C. 1308-3a(b)).
- Numbers: Payment factor (Secretary-set); 75% AGI-from-farming threshold; payment floor not less than \$900,000 for farming-dominant entities; standard cap = 7 U.S.C. 1308(b) as adjusted under 1308(i).
- Dates: No sunset stated; applies per "crop year."
- Type: NEW
- Affected: Specialty-crop producers (winners). Large, farming-dominant entities benefit most from the \$900,000+ floor. USDA must build the framework.
- Flag: Politically salient - a NEW permanent disaster/market-disruption program for specialty crops with a very high (\$900,000 floor) payment cap for farming-dominant entities; reporters would lead with this.

Sec. 1004 - Assistance in the form of block grants

- Does: Adds new sec. 1502 allowing the Secretary, when additional funds are made available after enactment for "covered losses," to deliver that assistance as block grants. "Covered losses" = losses of revenue, quality, or production of crops, trees, bushes, vines, poultry or livestock from a natural disaster, for which no other federal assistance is available. Clerical amendment adds sec. 1502 to the table of contents.
- Amends: Subtitle E of title I of the Agricultural Act of 2014 (7 U.S.C. 9081 et seq.) - adds new sec. 1502; conforming table-of-contents amendment.
- Numbers: None specified (block-grant amounts depend on funds appropriated).
- Dates: Applies to funds made available after enactment.
- Type: NEW
- Affected: States/USDA (block-grant administration); producers with otherwise-uncovered disaster losses.
- Flag: Gives USDA discretion to route future ad-hoc disaster money through block grants rather than direct programs.

Sec. 1005 - Dairy-related extensions

- Does: Three dairy extensions. (a) Forward pricing - strikes subsection (e) of the dairy forward-pricing program (removes a sunset/limitation, effectively continuing the program). (b) Dairy Indemnity Program - extends from 2023 to 2031. (c) Dairy promotion and research - extends from 2023 to 2031.
- Amends: (a) Sec. 1502 of the Food, Conservation, and Energy Act of 2008 (7 U.S.C. 8772); (b) Sec. 3 of Public Law 90-484 (7 U.S.C. 4553); (c) Sec. 113(e)(2) of the Dairy Production Stabilization Act of 1983 (7 U.S.C. 4504(e)(2)).
- Numbers: 2023 -> 2031.
- Dates: Reauthorization through 2031.
- Type: EXTEND
- Affected: Dairy producers and handlers.
- Flag: - (routine extensions).

Sec. 1006 - Mandatory reporting of dairy product processing costs

- Does: Adds a new mandatory reporting requirement: each manufacturer already required to report on a product must also report production cost and product yield information for all products processed in the same facility/facilities. Amends headings from "Electronic reporting" to "Reporting" and narrows certain cross-references to subparagraphs (A) and (B) of subsection (b)(1).

Adds new para (3) requiring the Secretary to publish a report on dairy processing costs within 2 years of enactment and every 2 years thereafter. Redesignates old subsection (e) as (f) and adds new subsection (e) exempting Secretary's actions under the section from review under Executive Order 12866 (regulatory review).

- Amends: Sec. 273 of the Agricultural Marketing Act of 1946 (7 U.S.C. 1637b).
- Numbers: Report within 2 years, then every 2 years.
- Dates: First report not later than 2 years after enactment of the paragraph; biennial thereafter.
- Type: NEW / REFORM / STUDY-OR-REPORT
- Affected: Dairy product manufacturers (new reporting burden); informs Federal Milk Marketing Order make-allowance debates.
- Flag: Notable - collects make-allowance/processing-cost data (relevant to FMMO reform) and exempts USDA's actions here from EO 12866 review.

Sec. 1007 - Dairy reports

- Does: Changes the dairy promotion-program reporting cadence/deadline: replaces the existing "Not later than..." annual report language with a per-calendar-year report due not later than 18 months after the last day of each calendar year beginning after enactment of the 2026 Act.
- Amends: Para (4) of sec. 301 of the Dairy Production Stabilization Act of 1983 (7 U.S.C. 4514).
- Numbers: Report due within 18 months of calendar-year end.
- Dates: Applies to each calendar year beginning after enactment of the 2026 Act.
- Type: REFORM / STUDY-OR-REPORT
- Affected: USDA reporting obligation; dairy checkoff oversight.
- Flag: -

Sec. 1008 - Processing of certain loans

- Does: Provides that servicing of (a) marketing assistance loans (sec. 1201) and (b) sugar program loans is "deemed" to be services for emergencies involving the safety of human life or protection of property under 31 U.S.C. 1342 - i.e., USDA can continue servicing these loans during a lapse in appropriations (government shutdown).
- Amends: (a) Sec. 1204 of the Agricultural Act of 2014 (7 U.S.C. 9034) - adds new (j); (b) Sec. 156(d) of the Federal Agriculture Improvement and Reform Act of 1996 (7 U.S.C. 7272(d)) - adds new (4).
- Numbers: References 31 U.S.C. 1342 (Antideficiency Act exception).
- Dates: None.
- Type: NEW / REFORM
- Affected: Producers with marketing assistance loans and sugar loans (continuity during shutdowns); USDA staff.
- Flag: Notable - uses the Antideficiency Act "safety of human life/property" exception to keep commodity loan servicing running during shutdowns.

Sec. 1009 - Storage facility loans

- Does: Expands the Farm Storage Facility Loan program to authorize loans to producers to construct or upgrade storage facilities for propane primarily used for agricultural production (propane defined per 7 CFR 4279.2 as in effect on enactment). Restructures the statute to a list format (producers; and propane-storage producers).
- Amends: Sec. 1614(a) of the Food, Conservation, and Energy Act of 2008 (7 U.S.C. 8789(a)).
- Numbers: None.
- Dates: None.
- Type: NEW / EXPAND
- Affected: Producers needing on-farm propane storage (e.g., grain drying, heating).
- Flag: Notable expansion of storage-loan eligibility to fuel (propane), not just commodities.

Sec. 1010 - Strengthening domestic food production supply chains

- Does: Adds new sec. 1302 making the "preservation and strengthening" of domestic production of in-subtitle agricultural commodities - specifically commodities from which a food ingredient that serves an important function in the domestic food supply chain is derived - a "priority objective of the President" for any federal policy/rule/guidance affecting those programs. Clerical amendment adds sec. 1302 to the table of contents.
- Amends: Subtitle C of title I of the Agricultural Act of 2014 (Public Law 113-79) - adds new sec. 1302; conforming

table-of-contents amendment.

- Numbers: None.
- Dates: None.
- Type: NEW (policy statement)
- Affected: Sugar/other Subtitle C commodity producers; sets a presidential policy priority (commonly read as protective of the domestic sugar industry).
- Flag: Notable - a "priority objective of the President" policy directive; widely interpreted as a sugar-industry protection.

Sec. 1011 - Regulations

- Does: Updates rulemaking/administration authority to use a defined "covered provision of law." (a) Replaces a long enumerated list in sec. 1601(c)(2) with "a covered provision of law" and adds a new definition (4) covering: this title + secs. 11003 and 11017; title I of the 2018 Act and its amendments + sec. 10109 of that Act; and title I of the Farm, Food, and National Security Act of 2026 and its amendments. (b) Updates loan-implementation authority (sec. 1614(d)) similarly, defining "covered provision of law" (subtitles B/C and amendments; 2018 Act subtitles B/C amendments except assistance under secs. 1207(c) and 1208; sec. 156 of the 1996 Act/7 U.S.C. 7272) and "repayment provisions."
- Amends: Sec. 1601(c) of the Agricultural Act of 2014 (7 U.S.C. 9091(c)); Sec. 1614(d) of the Agricultural Act of 2014 (7 U.S.C. 9097(d)). (References secs. 11003, 11017, 10109, 1207(c), 1208, and sec. 156 of the 1996 Act / 7 U.S.C. 7272.)
- Numbers: None.
- Dates: None.
- Type: REFORM (technical/conforming)
- Affected: USDA rulemaking authority (extends expedited/specified rulemaking and implementation authority to the 2026 title's provisions).
- Flag: Extends streamlined-rulemaking authority to the new 2026 commodity provisions.

Sec. 1012 - Restoration of tobacco as agricultural commodity in Commodity Credit Corporation Charter Act

- Does: Strikes "(other than tobacco)" wherever it appears in the CCC Charter Act, restoring tobacco's status as an agricultural commodity for CCC purposes.
- Amends: Sec. 5 of the Commodity Credit Corporation Charter Act (15 U.S.C. 714c).
- Numbers: None.
- Dates: None.
- Type: REFORM / restore (effectively reverses a prior exclusion)
- Affected: Tobacco - newly eligible for the range of CCC commodity activities.
- Flag: Politically salient - restores tobacco to CCC eligibility decades after it was excluded.

Sec. 1013 - Study on storage facility loans for on-farm fertilizer storage

- Does: Directs the Secretary to study the feasibility of providing storage-facility loans for on-farm fertilizer storage, including data on the market (number of farms with such facilities, availability and producer demand), producer access to financing, and a comparison of commercial vs. USDA loan rates/terms. Report due within 1 year of enactment to the House Agriculture Committee and Senate Agriculture, Nutrition, and Forestry Committee.
- Amends: New freestanding provision.
- Numbers: None (report 1 year).
- Dates: Report not later than 1 year after enactment.
- Type: STUDY-OR-REPORT
- Affected: USDA (must study); potentially future fertilizer-storage loan eligibility.
- Flag: - (pairs with the propane-storage expansion in Sec. 1009).

Sec. 1014 - Electronic forms for covered disaster assistance programs

- Does: Requires the Secretary, as soon as practicable after enactment and in addition to paper forms, to make online electronic enrollment forms available for "covered disaster assistance programs." Defines those as each program under sec. 1501 of the 2014 Act (7 U.S.C. 9081) and the emergency conservation program under title IV of the Agricultural Credit Act of 1978 (16 U.S.C. 2201 et seq.).

- Amends: New freestanding provision (references 7 U.S.C. 9081 and 16 U.S.C. 2201 et seq.).
- Numbers: None.
- Dates: As soon as practicable after enactment.
- Type: NEW / REFORM (administrative modernization)
- Affected: Producers (easier online enrollment); USDA/FSA IT.
- Flag: -

Sec. 1015 - Dairy business innovation initiatives

- Does: Increases the number of dairy business innovation initiatives by changing "3" to "4" in two places.
- Amends: Sec. 12513 of the Agriculture Improvement Act of 2018 (7 U.S.C. 1632d) - subsections (b) and (g)(1)(A).
- Numbers: 3 -> 4 (initiatives).
- Dates: None.
- Type: INCREASE
- Affected: Dairy businesses/regional DBI centers (one additional initiative).
- Flag: -

Sec. 1016 - Revision of evidence standards for livestock indemnity payments for losses by Mexican wolves

- Does: Within 180 days of enactment, the Secretary must accept proof of death that does not rely predominantly on subcutaneous hemorrhaging when determining livestock depredation losses caused by Mexican wolves under the Livestock Indemnity Program.
- Amends: References para (1)(A) of sec. 1501(b) of the Agricultural Act of 2014 (7 U.S.C. 9081(b)); operates as a freestanding directive.
- Numbers: 180 days.
- Dates: Within 180 days of enactment.
- Type: REFORM
- Affected: Ranchers in Mexican wolf range (Southwest) - easier to qualify for indemnity payments.
- Flag: Politically salient regionally - eases evidence burden for Mexican-wolf (an endangered species) livestock depredation claims.

Cross-cutting flags for this title

- No reference prices / no PLC or ARC provisions appear in this file. Despite being labeled "Title I - Commodities," the text (Sec. 1001-1016) contains NO statutory reference prices for covered commodities and NO PLC/ARC/base-acre/marketing-loan-rate changes. If the bill sets reference prices elsewhere, they are not in this excerpt. (Ambiguity flagged per instructions.)
- NEW permanent program - Specialty Crop Emergency Assistance Framework (Sec. 1003, new sec. 196A): payments = prior-sales x Secretary-set factor; payment cap floor "not less than \$900,000" for entities deriving $\geq 75\%$ of AGI from farming/ranching/silviculture. The marquee provision a national reporter would lead with.
- Payment limits: \$900,000 minimum cap for farming-dominant specialty-crop entities (Sec. 1003); otherwise tied to Food Security Act sec. 1001(b)/7 U.S.C. 1308 limits, as adjusted.
- Reauthorizations to 2031 (FY2031): permanent price-support suspension (Sec. 1001), Dairy Indemnity Program (Sec. 1005(b)), dairy promotion/research (Sec. 1005(c)) - all 2023 -> 2031.
- Tree Assistance Program overhaul (Sec. 1002): 120-day decision deadline, optional upfront/initial payments (sunset Sept. 30, 2035), replanting flexibility (alternative variety/density/location), pest and biennial-crop coverage.
- NEW block-grant authority (Sec. 1004, new sec. 1502) for natural-disaster losses not covered by other federal law.
- Tobacco restored to CCC (Sec. 1012) - strikes "(other than tobacco)" from the CCC Charter Act.
- Storage facility loans expanded to propane (Sec. 1009) + study on fertilizer storage loans (Sec. 1013).
- Shutdown continuity (Sec. 1008): marketing assistance and sugar loan servicing deemed Antideficiency Act "life/property" emergency services (31 U.S.C. 1342).
- Dairy processing-cost reporting (Sec. 1006): new mandatory cost/yield reporting + biennial public report; USDA actions exempted from EO 12866 review - relevant to Federal Milk Marketing Order make-allowance debate.
- Mexican wolf depredation evidence standard eased (Sec. 1016) - 180-day deadline; regionally controversial.
- "Priority objective of the President" policy statement (Sec. 1010) to strengthen domestic food production supply chains - read as

sugar-industry protective.

- Sunsets to watch: TAP initial-payment authority terminates Sept. 30, 2035 (Sec. 1002).

- Drafting note: Sec. 1002(e) cites "7 U.S.C. 9801(e)" once where context requires "9081(e)" - apparent typo in the source text.

Title II - Conservation - Notes

Title-level summary

Title II reauthorizes the major Food Security Act of 1985 (FSA) conservation programs through FY2031, with the dominant through-line being a standard 5-year extension (mostly "striking 2023 and inserting 2031" / "2019 through 2023" -> "2027 through 2031") plus three substantive policy themes: (1) embedding "precision agriculture" as a defined, prioritized, and cost-share-enhanced category across EQIP and CSP (payments up to 90% of cost); (2) a sweeping new emphasis on "wildlife habitat connectivity" / wildlife migration corridors woven through EQIP, CSP, RCPP, and general administration; and (3) major structural easement reform - creating a brand-new standalone Forest Conservation Easement Program (FCEP) as new subtitle I of title XII (absorbing and repealing the Healthy Forests Reserve Program), which bumps the legacy Regional Conservation Partnership Program (RCPP) to subtitle J. Notable new money: CSP/CRP/EQIP CCC funding is restated with EQIP rising to \$2.53B (FY27) -> \$3.255B (FY31), RCPP set at \$450M/yr, the new FCEP funded \$25M -> \$65M/yr, a new \$100M/yr State/Tribal soil-health grant program, feral swine control extended at \$150M (FY25-31), and a new EQIP Southern Border Initiative. ACEP is reformed with new wetland easement stewardship payments (up to 100% of costs), a 25% "lower cost-share" easement option, and an AGI exemption for easement compensation. The source text (an FSA reauthorization vehicle) contains no rescission, redirection, or rollback of Inflation Reduction Act (IRA) conservation funds - IRA is never mentioned in this title; all funding cited is Commodity Credit Corporation (CCC) farm-bill baseline money.

Section-by-section

Sec. 2001 - Definitions

- Does: Adds new statutory definitions to the FSA conservation title: "precision agriculture," "precision agriculture technology" (with a 12-item list of qualifying technologies A-L: GPS/geospatial mapping, satellite/aerial imagery, yield monitors, soil mapping, sensors, IoT/telematics, data/analytics software, connectivity, GPS guidance/auto-steer, variable-rate/section control, immersive technologies, and a catch-all), and "wildlife habitat connectivity." Conforms cross-references (subtitles A-I -> A-J to accommodate new FCEP subtitle), updates "Indian tribe/Indian Tribe" terminology, and renumbers paragraphs.
- Amends: FSA §1201(a) (16 U.S.C. 3801(a)).
- Numbers: -
- Dates: -
- Type: NEW (definitions) / REFORM
- Affected: Sets up precision-ag and wildlife-connectivity priorities used throughout the title; producers and equipment vendors benefit.
- Flag: "Precision agriculture technology" definition is broad and vendor-friendly; new through-line for the whole title.

Sec. 2002 - Mitigation banking

- Does: Reauthorizes the wetland mitigation banking appropriations authorization.
- Amends: FSA §1222(k)(1)(B) (16 U.S.C. 3822(k)(1)(B)).
- Numbers: Authorizes \$5,000,000 for each of FY2027-2031.
- Dates: FY2027-2031.
- Type: EXTEND
- Affected: Producers using mitigation banking for swampbuster compliance.
- Flag: -

Sec. 2101 - Conservation reserve (CRP)

- Does: Reauthorizes CRP through FY2031 across multiple subsections: general authority, eligible-land cropping-history reference dates updated to the 2026 Act and to Sept. 30, 2025/2026, max-acreage enrollment cap extended through FY2031, grasslands authority extended, State enrollment rates updated to FY2026-2031. Rewrites the continuous-enrollment minimum-acreage floor and adds "State acres for wildlife enhancement" (SAFE) land as a category eligible for continuous enrollment.
- Amends: FSA §1231(a), (b)(1)(B), (b)(7)(A), (d)(1)(E), (d)(2)(A)(ii)(III), (d)(4), (d)(6)(B), (d)(6)(A)(i) (16 U.S.C. 3831).

- Numbers: Continuous-enrollment floor: Secretary shall maintain not fewer than 8,600,000 acres by Sept. 30, 2031. (Note: the overall CRP statutory acreage cap in §1231(d)(1)(E) is extended, not changed, by this section - the existing 27 million-acre cap is carried forward by extending its applicability "through 2031.")
- Dates: FY2023-2031 (max acreage), FY2026-2031 (State rates), Sept. 30, 2031 (continuous-enrollment floor), Sept. 30, 2025/2026 (eligible-land reference dates).
- Type: EXTEND / REFORM
- Affected: CRP-enrolled landowners; wildlife/grassland enrollees; SAFE initiative participants gain continuous-enrollment access.
- Flag: CRP acreage cap is extended (not raised); continuous-enrollment 8.6M-acre floor preserved.

Sec. 2102 - Farmable wetland program

- Does: Reauthorizes the farmable wetland program through FY2031.
- Amends: FSA §1231B(a)(1) (16 U.S.C. 3831b(a)(1)).
- Numbers: -
- Dates: through FY2031.
- Type: EXTEND
- Affected: CRP wetland enrollees.
- Flag: -

Sec. 2201 - Definitions (EQIP)

- Does: Expands EQIP definitions: adds "composting practices" to the structural/land-management practice definition, and adds adoption of precision-ag practices and acquisition of precision-ag technology to the "planning" element of conservation-planning assistance.
- Amends: FSA §1240A(6) (16 U.S.C. 3839aa-1(6)).
- Numbers: -
- Dates: -
- Type: REFORM / NEW (composting, precision ag)
- Affected: EQIP applicants pursuing composting or precision ag.
- Flag: -

Sec. 2202 - Establishment and administration (EQIP)

- Does: Multiple EQIP reforms. (a) Adds wildlife habitat connectivity to foregone-income payment eligibility; clarifies producers receiving EQIP payments may also receive a Consolidated Farm and Rural Development Act §304 loan/guarantee for the same practice/land, with written notice; renames and expands "high-priority practices" to "state-determined high-priority" and adds two new qualifying categories: wildlife habitat/connectivity/migration corridors, and increased carbon sequestration / reduced GHG (methane, nitrous oxide). Adds increased payments for precision agriculture practices up to 90% of costs (new para (8)). Adds cost-share payments for grassland enrolled in CRP for wildlife-corridor purposes (new para (9)), with anti-double-dipping limitation. (b) Extends EQIP funding allocation authority through FY2031. (c) Adds precision-ag adoption/technology to water-conservation/irrigation-efficiency practices. (d) Raises the organic-production EQIP payment cap. (e) Adds precision ag to conservation incentive contracts. (f) Creates a new Southern Border Initiative (new subsec (k)): payments to producers to repair "covered damage" (damage to ag land or farming infrastructure) on "covered land" (counties at/near the southern border); 1-year contract term.
- Amends: FSA §1240B(d)(3)(F), (d)(6), (d)(7), (d)(8) new, (d)(9) new, (f)(1), (h)(1), (i)(3)(A)(ii), (j)(2)(A)(i), (k) new (16 U.S.C. 3839aa-2).
- Numbers: Precision-ag payments up to 90% of costs. Organic-production payment cap raised from \$140,000 (FY2019-2023) to \$200,000 (FY2027-2031). Southern Border Initiative contract term 1 year.
- Dates: FY2027-2031 (organic cap); through FY2031 (funding allocation).
- Type: REFORM / INCREASE / NEW (Southern Border Initiative, precision-ag payments, grassland wildlife-corridor cost-share)
- Affected: EQIP producers; precision-ag and organic producers win; southern-border-county producers gain new payment stream; carbon/GHG and wildlife-corridor practices elevated.
- Flag: New Southern Border Initiative is notable/novel; 90% precision-ag cost-share is unusually high vs. normal EQIP cost-share.

Sec. 2203 - Limitation on payments (EQIP)

- Does: Extends the EQIP payment-limitation period.
- Amends: FSA §1240G (16 U.S.C. 3839aa-7).
- Numbers: Existing per-person/entity EQIP payment limit carried forward (period FY2019-2023 -> FY2027-2031).
- Dates: FY2027-2031.
- Type: EXTEND
- Affected: EQIP recipients.
- Flag: -

Sec. 2204 - Conservation innovation grants and payments (CIG)

- Does: Rewrites CIG competitive-grant authority to expressly include grants for new/innovative technologies that may be incorporated into conservation practice standards; adds precision-ag practices/technologies to eligible projects; adds perennial production systems (agroforestry, perennial forages/grain crops) to on-farm conservation innovation trials; expands reporting/database to include both management and structural practices and data to evaluate new/emerging technologies, tied to the streamlined practice-standard process under §1242(h)(3).
- Amends: FSA §1240H(a), (c)(1)(B)(i), (d)(2)(A) (16 U.S.C. 3839aa-8).
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: CIG grantees; precision-ag and perennial-systems innovators.
- Flag: -

Sec. 2205 - Conservation activities defined

- Does: Adds "composting practices" to the list of conservation activities (after agricultural drainage management systems).
- Amends: FSA §1240I(2)(B)(i) (16 U.S.C. 3839aa-21(2)(B)(i)).
- Numbers: -
- Dates: -
- Type: REFORM / NEW (composting)
- Affected: Producers doing composting.
- Flag: -

Sec. 2301 - Conservation stewardship program (CSP)

- Does: Adds new CSP cost-share payments for grassland enrolled in CRP (§1231(d)(2)(A)) of ecological significance, for wildlife-corridor purposes (planning, design, materials, equipment, installation, labor, management, maintenance, training). Includes anti-double-dipping limitation and an explicit clause preserving emergency grazing and haying access on CRP grassland acres (no wildlife priority may prevent/alter emergency grazing/haying).
- Amends: FSA §1240J(b) (16 U.S.C. 3839aa-22(b)), adding new para (3).
- Numbers: -
- Dates: -
- Type: NEW / REFORM
- Affected: CSP participants with CRP grassland; grazing/haying interests protected.
- Flag: Explicit protection of emergency grazing/haying against wildlife-corridor priorities (politically notable).

Sec. 2302 - Duties of the Secretary (CSP)

- Does: Adds precision-ag costs (planning/adopting precision-ag conservation activities and acquiring precision-ag technology) to CSP stewardship payments. Establishes a minimum annual CSP payment of \$4,000 (new para (6)). Adds "precision agriculture" to supplemental payments for resource-conserving crop rotations and advanced grazing management (heading and operative text). Extends CSP payment-limitation period.
- Amends: FSA §1240L(c), (d), (f) (16 U.S.C. 3839aa-24).
- Numbers: Minimum annual CSP payment \$4,000. Payment limitation period FY2019-2023 -> FY2027-2031.
- Dates: FY2027-2031 (payment limitations).

- Type: REFORM / INCREASE (new minimum payment) / EXTEND
- Affected: CSP participants; small CSP contracts benefit from \$4,000 floor; precision-ag adopters.
- Flag: New \$4,000 minimum payment floor.

Sec. 2303 - State assistance for soil health (NEW program)

- Does: Creates a brand-new §1240L-2 grant program: USDA shall make grants to eligible States and eligible Indian Tribes to improve soil health on ag land through State/Tribal soil-health programs (broadly consistent with NRCS soil-health principles). Defines eligible State/Tribe (must implement a soil-health program and meet performance measures). Sets application, supplement-not-supplant assurance, Tribal opt-in to State applications, audit/review, and noncompliance disqualification (1+ years).
- Amends: New §1240L-2 added to subchapter B of chapter 4 of subtitle D of title XII FSA (16 U.S.C. 3839aa-21 et seq.) - freestanding new section.
- Numbers: Grant cap = lower of \$5,000,000 OR (50% of State program cost / 75% of Tribal program cost). \$100,000,000 available each FY2027-2031 (of funds for the subchapter). Admin caps: USDA ≤3%; State/Tribe ≤7% of granted funds. Grant term 1 year, annually renewable.
- Dates: FY2027-2031.
- Type: NEW
- Affected: State agencies and Indian Tribes running soil-health programs.
- Flag: New \$100M/yr program; notable new mandatory-style funding for soil health.

Sec. 2401 - Conservation of private grazing land

- Does: Reauthorizes the private grazing land conservation program through FY2031.
- Amends: FSA §1240M(e) (16 U.S.C. 3839bb).
- Numbers: -
- Dates: through FY2031.
- Type: EXTEND
- Affected: Grazing-land operators.
- Flag: -

Sec. 2402 - Feral swine eradication and control program (NEW permanent program)

- Does: Codifies the feral swine eradication and control program as new FSA §1240N (previously a pilot under the 2018 Act). Secretary shall study/assess damage, develop eradication/control and restoration methods, and provide financial assistance to producers in "threatened areas." Requires NRCS-APHIS coordination via State technical committees. Sets cost-sharing, land-grant university partnership requirements, and definitions. Repeals the 2018 Act pilot (§2408) and its table-of-contents item.
- Amends: New FSA §1240N (16 U.S.C. 3839bb et seq.); repeals §2408 of the Agriculture Improvement Act of 2018 (7 U.S.C. 8351 note).
- Numbers: Federal cost share ≤75%. Mandatory CCC funding: \$75M (FY2019-2023), \$15M (FY2024), \$150M (FY2025-2031). Distribution: 40% to NRCS, 60% to APHIS. Admin expenses ≤10%.
- Dates: FY2025-2031 (new mandatory funding window).
- Type: NEW (permanent program) / REPEAL (2018 pilot) / EXTEND (funding)
- Affected: Producers in feral-swine-threatened areas; NRCS, APHIS, land-grant universities.
- Flag: Pilot converted to permanent program with \$150M for FY25-31.

Sec. 2403 - Watershed Protection and Flood Prevention Act

- Does: Adds technical/financial assistance for "remedial actions" on completed watershed works of improvement (abnormal deterioration, design deficiency, service-life mismatch, or storm damage beyond design). Adds a streamlining mandate (reduce regulatory barriers, streamline coordination, maximize State conservationist decision authority, prioritize local-organization agreements). Rewrites the data-collection/transparency section (publicly available national and State-by-State data; protects individual landowner privacy). Raises the rehabilitation cost-share from 65% to 90% and exempts rehabilitation projects from the 20%-agricultural-benefit requirement and §4(5). Extends rehabilitation funding authority through FY2031.
- Amends: Watershed Protection and Flood Prevention Act §3(a), §3 (new (c),(d)), §13, §14(b), §14(h)(2)(E) (16 U.S.C. 1003, 1010, 1012).

- Numbers: Rehabilitation cost-share 65% -> 90%; 20%-agricultural-benefit threshold exempted for rehab projects; funding extended through 2031.
- Dates: through FY2031.
- Type: INCREASE / REFORM / EXTEND
- Affected: Local sponsors of watershed/flood-control works; dam rehabilitation gains higher federal share.
- Flag: 65%->90% rehabilitation cost-share jump is notable.

Sec. 2404 - Emergency conservation program (ECP)

- Does: Expands ECP advance-payment options: up to 75% advance for replacement/rehabilitation, up to 50% advance for repair (based on fair market value). Allows fencing repair/replacement to use new/emerging technology if no cost increase. Clarifies that qualifying wildfires include non-naturally-caused fires (including federally caused fires) if damage spread by natural causes.
- Amends: Agricultural Credit Act of 1978 §401 (16 U.S.C. 2201).
- Numbers: Advance payments: up to 75% (replacement/rehab), up to 50% (repair).
- Dates: -
- Type: REFORM
- Affected: Disaster-affected producers; those with federally-caused-wildfire damage gain eligibility.
- Flag: Federally-caused-wildfire eligibility is notable.

Sec. 2405 - Emergency watershed program (EWP)

- Does: Adds floodplain-easement restoration, maintenance/enhancement, contracts/agreements (with landowners, States, NGOs, Tribes), and compatible-use authority (hunting/fishing, managed timber harvest, water management, periodic haying/grazing) for EWP floodplain easements. Authorizes restoration above the minimum needed if in the watershed's long-term interest. Adds pre-agreement cost provisions: within 180 days, Secretary identifies pre-agreement-eligible measures and a State-level request procedure; pre-agreement costs count toward sponsor contribution; sponsor assumes risk; no obligation to enter an agreement.
- Amends: Agricultural Credit Act of 1978 §403(b), §403 (new (c),(d)) (16 U.S.C. 2203).
- Numbers: -
- Dates: Pre-agreement measures list/procedure due within 180 days of enactment.
- Type: REFORM / NEW (pre-agreement costs, compatible uses)
- Affected: State/local/Tribal EWP sponsors; floodplain-easement landowners.
- Flag: -

Sec. 2406 - National agriculture flood vulnerability study

- Does: Requires a national agriculture flood vulnerability report (via Conservation Effects Assessment Project) on flood risk to ag lands: economic crop/livestock loss analysis, downstream mitigation effects, federal/state flood-risk data, and current/recommended conservation practices and initiatives.
- Amends: New freestanding provision.
- Numbers: -
- Dates: Report due within 2 years of enactment to House and Senate Ag Committees.
- Type: STUDY-OR-REPORT
- Affected: USDA (must produce); ag-flood-policy stakeholders.
- Flag: -

Sec. 2407 - Study on environmental benefits of winter wheat as a cover crop

- Does: Requires NRCS Chief to submit to the House Ag Committee a study on environmental benefits of using winter wheat as a cover crop, including use as a cover crop removed during harvest.
- Amends: New freestanding provision.
- Numbers: -
- Dates: No explicit deadline stated.
- Type: STUDY-OR-REPORT
- Affected: USDA/NRCS; winter-wheat cover-crop interests.
- Flag: Report goes only to House Ag Committee (not Senate).

Sec. 2501 - Commodity Credit Corporation (CCC funding)

- Does: Restates and reauthorizes CCC funding for the conservation programs (ACEP, CSP, etc.) through FY2027-2031; sets specific annual EQIP funding amounts; adds CCC funding lines for the new Forest Conservation Easement Program (subtitle I) and RCPP (subtitle J); updates regional-equity and public-private-partnership cross-references (subtitle I->J); extends the program-enrollment report and conservation-standards requirements; adds a new mandate that composting be designated by regulation as a conservation practice and activity (with a definition requiring a net GHG reduction for off-farm organic-waste sourcing, in consultation with EPA).
- Amends: FSA §1241(a)(1), (a)(3)(A), (a)(5) new, (a)(6) new, (e)(1), (f), (i), (j) (16 U.S.C. 3841).
- Numbers: EQIP (§1241(a)(3)(A)): \$2,530,000,000 (FY27); \$2,730,000,000 (FY28); \$3,130,000,000 (FY29); \$3,175,000,000 (FY30); \$3,255,000,000 (FY31). Forest Conservation Easement Program (new (5)): \$25M (FY27); \$50M (FY28); \$50M (FY29); \$50M (FY30); \$65M (FY31). RCPP (new (6)): \$450,000,000 for each of FY27-31.
- Dates: FY2027-2031.
- Type: EXTEND / INCREASE / NEW (FCEP & RCPP funding lines, composting rule)
- Affected: All CCC-funded conservation programs; EQIP gets the largest single funding stream (~\$2.5B-\$3.3B/yr); FCEP and RCPP newly funded by name.
- Flag: Key money section. EQIP ramps to \$3.255B by FY31; RCPP fixed at \$450M/yr; FCEP \$25M->\$65M/yr. (Note: ACEP/CSP amounts are carried via the (a)(1) extension and §1241(a) clauses rather than restated dollar figures in this excerpt.)

Sec. 2502 - Delivery of technical assistance

- Does: Major rewrite of technical-assistance delivery. Adds definitions for "non-Federal certifying entity" and "farmer-to-farmer network." Broadens third-party provider eligibility (commercial, nonprofit, State/local govt, other federal agencies, private sector). Creates a non-Federal certifying-entity system (USDA approval process within 180 days; 60-day decision on applications; eligibility based on capacity/experience/expertise). Sets timely-decision deadlines (Secretary 30 days; registry inclusion 10 days after notice). Establishes a streamlined certification for providers with relevant professional certifications. Sets payment amounts (capped at USDA's own cost of providing assistance directly), transparency reporting, soil-health-planning emphasis. Adds NRCS direct-hire authority. Adds provisions on addressing barriers to wildlife habitat connectivity (incorporate nonstructural methods like virtual fencing into practice standards). Adds a new farmer-to-farmer network assistance program (cooperative agreements with nonprofits, networks, Tribes, local govts, higher-ed, States; prioritizes historically underserved/high-poverty farmers; subawards; language assistance; reporting in 4 years).
- Amends: FSA §1242(a), (b), (d), (e), (f), and new (j), (k), (l) (16 U.S.C. 3842).
- Numbers: Deadlines: 180-day approval process; 60-day application decision; 30-day Secretary certification; 10-day registry inclusion; reports/updates at 1 year. Payment cap = USDA's own direct-delivery cost.
- Dates: Within 180 days / 1 year of enactment (various); farmer-to-farmer report within 4 years.
- Type: REFORM / NEW (non-Federal certifying entities, farmer-to-farmer networks, NRCS direct-hire, virtual fencing)
- Affected: Third-party technical service providers; States/Tribes/nonprofits; underserved farmers; NRCS hiring.
- Flag: NRCS direct-hire authority and virtual-fencing standards are notable; large structural TA overhaul.

Sec. 2503 - Administrative requirements for conservation programs

- Does: Updates cross-references (subtitle I->J) for tenant protections. Reforms county acreage limitations: caps county enrollment at 25% of cropland in CRP plus wetland reserve easements (§1265C), and tightens a soil-class reference (classes IV -> classes III). Reforms the practice-cost/payment-rate review process (annual review of actual practice costs/rates by State, account for cost variability, monitor significant variability, adopt State technical committee recommendations). Adds a mandate to update payment rates under existing contracts to reflect current practice costs. Reforms source-water protection (State source-water coordinators; public annual report and interactive map). Adds new authority to encourage habitat connectivity and wildlife corridors across all conservation programs.
- Amends: FSA §1244(d), (f), (j), (n), and new (q) (16 U.S.C. 3844).
- Numbers: County enrollment cap 25% of cropland (CRP + wetland reserve easements); soil class IV -> III.
- Dates: Beginning on date of enactment (source-water public info).
- Type: REFORM / NEW (wildlife-corridor encouragement, contract rate updates)
- Affected: Producers in heavily-enrolled counties; producers under existing contracts (payment-rate updates); source-water/community water systems.
- Flag: Existing-contract payment-rate update mandate is notable for cost implications.

Sec. 2601 - Definitions (ACEP)

- Does: Amends ACEP definitions: strikes a paragraph, renumbers, and rewrites the eligible-land clause re: land subject to a pending offer to purchase an agricultural land easement from an eligible entity.
- Amends: FSA §1265A (16 U.S.C. 3865a).
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: ACEP applicants/eligible entities.
- Flag: -

Sec. 2602 - Agricultural land easements (ACEP-ALE)

- Does: Reforms agricultural land easement cost-share. Sets Federal share $\leq 65\%$ of fair market value (FMV) of the easement (determined via USPAP, areawide market analysis, or industry-approved method); $\leq 90\%$ for socially disadvantaged farmers/ranchers ($\geq 50\%$ ownership); $\leq 75\%$ for grassland of special environmental significance. Requires non-Federal share to equal the remainder. Adds a new "Lower cost-share option": an eligible entity may take a Federal share $\leq 25\%$ without a Secretary right-of-enforcement (using its own terms/conditions), but must provide cash resources $\geq 50\%$ of FMV and retain its own right of enforcement. Allows separate (pooled) ranking of socially-disadvantaged applicants. Rewrites agreement terms (Secretary right of enforcement narrowed; inspection only on missed monitoring reports or articulable belief of violation, with notice; transfer-to-different-entity right if entity dissolves/becomes ineligible). Reforms certification of eligible entities (reduces certain thresholds 10 $\rightarrow$ 5; new certification pathway for entities that acquired ≥ 10 easements and met responsibilities; adds annual quality easement-review process with waiver for demonstrated compliance).
- Amends: FSA §1265B(a), (b)(2), (b)(3), (b)(4), (b)(5) (16 U.S.C. 3865b).
- Numbers: Federal share $\leq 65\%$ (general), $\leq 90\%$ (socially disadvantaged $\geq 50\%$ owner), $\leq 75\%$ (special grassland); lower cost-share option Federal share $\leq 25\%$ with $\geq 50\%$ FMV cash from entity; certification thresholds 10 $\rightarrow$ 5; new pathway requires ≥ 10 prior easements.
- Dates: -
- Type: REFORM / NEW (lower cost-share option, easement quality review)
- Affected: ACEP eligible entities (land trusts); socially disadvantaged landowners; grassland owners.
- Flag: New 25% lower-cost-share / no-Secretary-enforcement option is notable structural change.

Sec. 2603 - Wetland reserve easements (ACEP-WRE)

- Does: Adds socially-disadvantaged farmers/ranchers to a wetland-easement priority and allows pooled ranking of their offers. Creates a new easement stewardship financial-assistance regime: USDA shall fund repair, necessary maintenance, and enhancement per wetland reserve easement plans; regularly assess maintenance/management needs; create/update a stewardship strategy; establish a 5-year schedule; pay up to 100% of eligible costs; report to Ag Committees within 2 years. Broadens "technical assistance" to "assistance" and allows contracts/agreements with federal/state/local agencies, NGOs, Tribes, private entities for restoration/maintenance. Reserves $\geq 15\%$ of section funds for the wetland reserve enhancement option.
- Amends: FSA §1265C(b), (c), (d) new, (e), (f) (16 U.S.C. 3865c).
- Numbers: Stewardship payments up to 100% of eligible costs; 5-year schedule; report in 2 years; $\geq 15\%$ of funds reserved for wetland reserve enhancement option.
- Dates: Report within 2 years of enactment.
- Type: NEW (stewardship payments) / REFORM
- Affected: Wetland reserve easement landowners; socially disadvantaged farmers; restoration contractors/NGOs.
- Flag: New 100%-cost stewardship payments and 15% set-aside are notable.

Sec. 2604 - Administration (ACEP)

- Does: Rewrites ACEP modification/exchange authority (modification allowed if it supports long-term ag viability, results in equal/increased conservation values, consistent with original intent and program purposes, in public interest; no payment increase except to add acreage; modification not a "major Federal action" under NEPA §102(2)(C)). Adds exchange criteria. Adds de minimis adjustments authority for eligible entities (typo corrections, legal-description fixes, interest transfers, building-envelope/access changes, temporary work areas). Authorizes eligible-entity modification of easement terms if consistent

with Secretary minimums. Adds an adjusted gross income (AGI) exemption: the §1001D(b)(1) AGI limit does not apply to ACEP payments; and easement-acquisition compensation is excluded from AGI calculation for landowners.

- Amends: FSA §1265D(c), new (f) (16 U.S.C. 3865d); §1001D(b) (7 U.S.C. 1308-3a(b)).
- Numbers: -
- Dates: -
- Type: REFORM / NEW (AGI exemption, de minimis adjustments)
- Affected: ACEP easement landowners (high-income landowners gain AGI-exemption benefit); eligible entities.
- Flag: NEPA categorical treatment of modifications and AGI exemption for easement compensation are notable.

Sec. 2701 - Forest conservation easement program (NEW PROGRAM - subtitle I)

- Does: Creates a brand-new Forest Conservation Easement Program (FCEP) as new subtitle I of title XII FSA (§§1267-1267D), redesignating the old subtitle I (RCPP) as subtitle J. FCEP conserves/restores forest land via conservation easements, with two tracks: (a) Forest land easements - cost-share to eligible entities to buy easements on working forest land (Federal share 50%, up to 75% for forests of special environmental significance or socially disadvantaged forest landowners); permanent or max-State-duration easements; agreements 3-5 years; allows landowner-retained working forest use, forest management plans, and (conditionally) subsurface mineral development (no surface mining). (b) Forest reserve easements - conveyed to the Secretary for species at risk; permanent, 30-year, or max-State-duration easements (and 30-year contracts for Tribal land); ≤10% of annual funds for 30-year easements; compensation = FMV difference (permanent) or 50-75% thereof (other); financial assistance up to 100% (permanent) or 50-75% (other) of eligible restoration costs, capped at \$500,000 per easement/contract; ESA safe-harbor assurances. Administration mirrors ACEP (subordination/modification/exchange/termination, ineligible land, 90-day congressional notice before termination). Absorbs Healthy Forests Reserve Program land.
- Amends: New subtitle I (§§1267-1267D) added to title XII FSA (16 U.S.C. 3801 et seq.); redesignates old subtitle I (16 U.S.C. 3871 et seq.) as subtitle J.
- Numbers: Forest land easement Federal share 50% (up to 75% exception); forest reserve compensation 50-75% of permanent value for non-permanent; financial assistance up to 100% (permanent) / 50-75% (other); ≤10% of funds for 30-year easements; \$500,000 per-easement financial-assistance cap. (Program-level funding provided via §1241(a)(5): \$25M->\$65M/yr FY27-31, per Sec. 2501.)
- Dates: -
- Type: NEW (program creation) / REFORM (structural reorganization)
- Affected: Private forest landowners; Indian Tribes; land trusts/eligible entities; at-risk species.
- Flag: Major new standalone forest easement program absorbing HFRP; bumps RCPP to subtitle J.

Sec. 2702 - Healthy Forests Reserve Program (REPEAL)

- Does: Repeals title V of the Healthy Forests Restoration Act of 2003 (the HFRP) and conforms its table of contents. Preserves validity of existing HFRP contracts/agreements/easements and required payments/TA. Allows prior-year (FY2019-2025) CCC funds and new FCEP funds to be used to continue existing HFRP contracts (no payment increase via modification).
- Amends: Repeals title V of Healthy Forests Restoration Act of 2003 (16 U.S.C. 6571 et seq.); conforms its table of contents.
- Numbers: Prior-year funds FY2019-2025 preserved for legacy contracts.
- Dates: FY2019-2025 (prior-year funds).
- Type: REPEAL / EXTEND (transitional)
- Affected: Existing HFRP participants (rolled into FCEP); future forest-easement applicants.
- Flag: HFRP repealed and folded into the new FCEP.

Sec. 2801 - Establishment and purposes (RCPP)

- Does: Rewrites the RCPP purpose clause re: addressing natural-resource concerns on a regional/watershed scale, expressly including soil conservation/protection/restoration, water (including drinking water/groundwater), flooding/drought mitigation and flood resiliency, and conservation of wildlife/agricultural land/related resources.
- Amends: FSA §1271(b)(2) (16 U.S.C. 3871(b)(2)).
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: RCPP partners and producers.

- Flag: -

Sec. 2802 - Definitions (RCPP)

- Does: Updates the RCPP "covered program" definition to reference the new Forest Conservation Easement Program (subtitle I).
- Amends: FSA §1271A(1) (16 U.S.C. 3871a(1)).
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: RCPP partners; FCEP becomes an RCPP covered program.
- Flag: -

Sec. 2803 - Regional conservation partnerships (RCPP)

- Does: Rewrites RCPP partnership-agreement authority: streamlines agreement execution (within 180 days of application selection), limits agreement contents, and creates a process for requesting waivers/adjustments to covered-program requirements (per §1271E(f)). Adds a duty to make payments to partners within 30 days of a payment request. Updates application contents to include waiver/adjustment requests.
- Amends: FSA §1271B(a), (d), (e)(3) (16 U.S.C. 3871b).
- Numbers: Agreement within 180 days; payment within 30 days of request.
- Dates: -
- Type: REFORM
- Affected: RCPP eligible partners (faster agreements and payments).
- Flag: -

Sec. 2804 - Assistance to producers (RCPP)

- Does: Requires that, under §1271B(c)(2), not less than 50% of overall project costs of a partnership agreement be provided in direct funding.
- Amends: FSA §1271C(d)(3) (16 U.S.C. 3871c(d)(3)).
- Numbers: >=50% of overall project costs in direct funding.
- Dates: -
- Type: REFORM
- Affected: RCPP partners/producers.
- Flag: -

Sec. 2805 - Funding (RCPP)

- Does: Restructures RCPP funding allocation: strikes old subsections (a) and (b), redesignates (c)/(d)/(e) as (a)/(b)/(c), ties funding to §1241(a)(6) (the new \$450M/yr line). Caps administrative reimbursement to eligible partners at 10% (unreimbursed admin counts toward partner contribution). Rewrites technical-assistance provisions: identify total TA funds and partner share; allow reimbursement/advancement of partner TA costs; limit USDA TA costs to those necessary; single simplified reimbursement process; encourage third-party TA providers.
- Amends: FSA §1271D (16 U.S.C. 3871d).
- Numbers: Admin reimbursement <=10% of project funds; funding tied to §1241(a)(6) = \$450M/yr FY27-31.
- Dates: FY2027-2031 (via cross-reference).
- Type: REFORM
- Affected: RCPP partners.
- Flag: -

Sec. 2806 - Administration (RCPP)

- Does: Requires the Secretary to "make publicly available and" report (transparency). Adds new §1271E(f) "Consistency with covered program requirements": Secretary ensures program-contract terms are consistent with the covered program but may adjust regulatory requirements to simplify or reflect local circumstances (cannot adjust statutory requirements - appeals, payment limits, conservation compliance). Allows waiver of certain ACEP land-eligibility clauses; applies certified-entity authorities; for EQIP in States without significant irrigation history, bars considering prior irrigation history for land eligibility.

- Amends: FSA §1271E(b), new (f) (16 U.S.C. 3871e).
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: RCPP partners; producers in non-irrigated States.
- Flag: Regulatory-adjustment/waiver authority is notable for flexibility.

Sec. 2807 - Critical conservation areas (RCPP)

- Does: Adds restoration/enhancement of wildlife habitat connectivity and wildlife migration corridors to critical-conservation-area criteria. Updates a funding cross-reference (§1271D(d)(2) -> §1271D(a)(2)). Requires the Secretary to include the Columbia Basin project area in the Western Waters Region Critical Conservation Area.
- Amends: FSA §1271F(a)(2)(C), (b) (16 U.S.C. 3871f); plus a freestanding directive re: Columbia Basin.
- Numbers: -
- Dates: -
- Type: REFORM / NEW (Columbia Basin inclusion)
- Affected: Western Waters Region CCA participants; Columbia Basin project area.
- Flag: Earmark-style inclusion of the Columbia Basin project area is notable. ("Wester Waters Region" appears to be a typo for "Western Waters Region" in the source.)

Cross-cutting flags for this title

- CRP acreage caps (Sec. 2101): Existing CRP statutory acreage cap is *extended* through FY2031 (not raised). Continuous-enrollment floor preserved at not fewer than 8,600,000 acres by Sept. 30, 2031. SAFE-initiative land newly eligible for continuous enrollment. County enrollment cap stays at 25% of cropland (CRP + wetland reserve easements) per Sec. 2503.
- EQIP (Sec. 2201-2205, 2501): Funded at \$2.53B (FY27) rising to \$3.255B (FY31) per Sec. 2501. New precision-ag cost-share up to 90%; new Southern Border Initiative; new grassland wildlife-corridor cost-share; carbon/GHG and wildlife-corridor added as state-determined high-priority practices; organic payment cap \$140K -> \$200K.
- CSP (Sec. 2301-2302, 2501): New \$4,000 minimum annual payment; precision-ag added to supplemental payments; new CRP-grassland wildlife-corridor cost-share with emergency grazing/haying protection.
- ACEP (Sec. 2601-2604, 2501): New 25% lower cost-share / no-Secretary-enforcement ALE option; Federal share ≤65% general (≤90% socially disadvantaged, ≤75% special grassland); new wetland easement stewardship payments up to 100% of costs with ≥15% funds reserved for wetland reserve enhancement; new AGI exemption for easement compensation; de minimis adjustment authority; NEPA carve-out for modifications.
- RCPP (Sec. 2801-2807, 2501): Bumped from subtitle I to subtitle J; funded at \$450M/yr FY27-31; streamlined agreements (180 days) and payments (30 days); ≥50% direct-funding requirement; new regulatory-adjustment/waiver authority; wildlife-connectivity added to critical conservation areas; Columbia Basin project area added to Western Waters Region CCA.
- NEW programs: (1) State assistance for soil health - \$100M/yr FY27-31 grants to States/Tribes (Sec. 2303); (2) Forest Conservation Easement Program (FCEP) - new subtitle I, \$25M->\$65M/yr FY27-31, absorbing HFRP (Sec. 2701/2501); (3) EQIP Southern Border Initiative (Sec. 2202); (4) Feral swine eradication program made permanent, \$150M FY25-31 (Sec. 2402); (5) Farmer-to-farmer network assistance and non-Federal certifying entity TA systems plus NRCS direct-hire authority (Sec. 2502).
- REPEALS: Healthy Forests Reserve Program (title V, Healthy Forests Restoration Act of 2003) repealed and folded into FCEP (Sec. 2702); 2018 Act feral-swine pilot (§2408) repealed (Sec. 2402).
- IRA conservation funds: No mention of the Inflation Reduction Act anywhere in Title II. There is NO rescission, redirection, or rollover of IRA conservation money into the farm-bill baseline within this title's text. All funding cited is Commodity Credit Corporation (CCC) farm-bill mandatory money or program appropriations. (If IRA rescission/rollover occurs in this bill, it is not located in Title II as provided.)
- Through-line themes: "Precision agriculture" (defined, prioritized, up to 90% cost-share across EQIP/CSP); "wildlife habitat connectivity / migration corridors" (woven across EQIP, CSP, RCPP, general admin); composting newly designated a conservation practice/activity; streamlining of technical assistance, practice standards, and easement administration.

Title III - Trade - Notes

Title-level summary

Title III reauthorizes U.S. agricultural trade and international food aid programs through FY2031 and makes one structural change of major significance: it transfers administration of the Food for Peace Act (Public Law 480 / Title II emergency and development food aid) from the USAID Administrator to the Secretary of Agriculture, with assets, liabilities, contracts, and rulemaking authority all moving to USDA. It substantially boosts and restructures trade-promotion funding under the Agricultural Trade Act of 1978, raising mandatory CCC funding to \$500M (FY2027) and \$533M (FY2028-2031), with specified floors for the Market Access Program (MAP) and Foreign Market Development (FMD) cooperator program. It contains a high-profile "common names" provision protecting U.S. use of generic food/wine/beer terms (parmesan, feta, etc.) in foreign markets, new national-security/enforcement task forces (including a directive aimed at India's minimum price supports), and Sense-of-Congress language opposing expanded Argentine beef imports. It reauthorizes Food for Progress, McGovern-Dole, the Bill Emerson Humanitarian Trust, the Farmer-to-Farmer program, the Global Crop Diversity Trust, and other programs through FY2031. New mandatory set-asides include \$200M/year for ready-to-use therapeutic foods to address child wasting and \$15M/year for the International Food Relief Partnership.

Section-by-section

Sec. 3101 - Transfer of authorities to the Secretary of Agriculture

- Does: Transfers Food for Peace Act administration from the USAID Administrator to the Secretary of Agriculture. Strikes "(to be implemented by the Administrator)" and inserts "(to be implemented by the Secretary)" in Sec. 201. Conforming amendments replace "Administrator" with "Secretary" throughout Secs. 202, 203, 205, 207, 208 and Title III. Strikes the "Administrator" definition (old para (1)) in Sec. 402 and redesignates paras (2)-(9) as (1)-(8). Strikes "or the Administrator, as appropriate" language in Secs. 403-404. Repeals Sec. 405 (Consultation). Adds new Title VII (Secs. 701-704): transfers USAID assets/liabilities/contracts/grants/loans/licenses (pursuant to authority on/after Jan 1, 2026) to USDA; transfers other statutory authorities; directs the Secretary to promulgate/amend rules (including interim final rules) to effectuate the transfer; requires the Secretary to consult with the Secretary of State.
- Amends: Food for Peace Act, Secs. 201, 202, 203, 205, 207, 208 (7 U.S.C. 1721, 1722, 1723, 1725, 1726a, 1726b); Title III (7 U.S.C. 1727 et seq.); Secs. 402, 403, 404, 405 (7 U.S.C. 1732, 1733, 1734, 1735); adds new Title VII to 7 U.S.C. 1691 et seq.
- Numbers: -
- Dates: Asset transfer applies to authority exercised on/after January 1, 2026; effective on enactment.
- Type: REFORM (major structural reorganization)
- Affected: USDA gains administration of food aid (winner); USAID loses it (loser); NGOs/implementers must deal with USDA. State Dept retained in a consultative role only.
- Flag: Notable/controversial - moves Food for Peace out of USAID entirely; consolidates international food aid under USDA, a long-debated reorganization.

Sec. 3102 - Food aid quality assurance

- Does: Amends Sec. 202 - limits a cross-reference to "this Act"; inserts "assistance, including in the form of" before "agricultural commodities"; swaps "Agency for International Development" -> "Department of Agriculture" and "Agency" -> "Department"; adds NGOs (as determined by the Secretary) as eligible recipients; adds a NEW limitation: not more than 50% of Title II funds in each fiscal year may be used for expenses other than procurement of U.S.-grown commodities and ocean transportation; extends authorization date from 2023 to 2031.
- Amends: Food for Peace Act Sec. 202 (7 U.S.C. 1722).
- Numbers: 50% cap on non-procurement/non-ocean-transport expenses.
- Dates: Reauthorized through 2031.
- Type: REFORM / EXTEND
- Affected: U.S. commodity producers and U.S.-flag ocean shippers (winners - protects in-kind/transport share); cash-based/local-procurement approaches constrained.
- Flag: Notable - 50% floor protecting U.S. commodity procurement and ocean shipping.

Sec. 3103 - Repeal of minimum levels of assistance

- Does: Repeals Sec. 204 (minimum levels of assistance).
- Amends: Food for Peace Act Sec. 204 (7 U.S.C. 1724) - REPEALED.
- Numbers: -
- Dates: -
- Type: REPEAL
- Affected: Removes statutory minimum tonnage/assistance floors; gives Secretary more discretion (potential loser: aid-volume advocates).
- Flag: Notable - eliminates a long-standing minimum-assistance guarantee.

Sec. 3104 - Food aid consultative group

- Does: Amends Sec. 205 membership: replaces the USAID Under Secretary reference with "the Secretary of State"; swaps "Agency for International Development"->"Department of Agriculture" and "Agency"->"Secretary"; extends sunset from December 31, 2023 to December 31, 2031.
- Amends: Food for Peace Act Sec. 205 (7 U.S.C. 1725).
- Numbers: -
- Dates: Extended to December 31, 2031.
- Type: EXTEND / REFORM
- Affected: Consultative group membership realigned to USDA/State.
- Flag: -

Sec. 3105 - Issuance of regulations; oversight, monitoring, and evaluation

- Does: Amends Sec. 207 - updates statutory reference from the Agriculture Improvement Act of 2018 to the Farm, Food, and National Security Act of 2026; strikes "in consultation with the Secretary" language (now that USDA is the lead); extends 2023 dates to 2031.
- Amends: Food for Peace Act Sec. 207 (7 U.S.C. 1726a).
- Numbers: -
- Dates: Extended to 2031.
- Type: EXTEND / conforming REFORM
- Affected: -
- Flag: -

Sec. 3106 - International food relief partnership

- Does: Rewrites Sec. 208(f) to require not less than \$15,000,000 per fiscal year (FY2027-2031) from Title II funds for the International Food Relief Partnership, to remain available until expended, in addition to other amounts.
- Amends: Food for Peace Act Sec. 208(f) (7 U.S.C. 1726b(f)).
- Numbers: Not less than \$15,000,000/year.
- Dates: FY2027 through FY2031.
- Type: NEW funding floor / INCREASE
- Affected: International food relief partner organizations (winners).
- Flag: -

Sec. 3107 - Use of Commodity Credit Corporation

- Does: Rewrites Sec. 406(b): for commodities under Titles II and III, the CCC may pay all associated and incidental costs of such commodities.
- Amends: Food for Peace Act Sec. 406(b) (7 U.S.C. 1736).
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: Broadens CCC cost coverage for food aid commodities.
- Flag: -

Sec. 3108 - Pre-positioning of agricultural commodities and annual report regarding food aid programs and activities

- Does: Amends Sec. 407 - rewrites subsec. (c)(1) so the Secretary transfers/arranges transportation/makes available commodities under Titles II and III; replaces Administrator/Agency references with Secretary; extends 2023 dates to 2031; strikes "or the Administrator, as appropriate"; rewrites annual report requirement (subsec. (f)(1)) so the Secretary reports to Congress by April 1 each fiscal year on each program/activity from the prior FY; restructures report contents (strikes subpara (I); rewrites (H) on funds to eligible organizations including transportation/admin cost detail; redesignates (E)-(H) as (F)-(I)); adds NEW report element (E): assessment of activities targeting women and girls and their impact; strikes subsec. (f)(3).
- Amends: Food for Peace Act Sec. 407 (7 U.S.C. 1736a).
- Numbers: -
- Dates: Annual report due April 1 each FY; reauthorized through 2031.
- Type: REFORM / STUDY-OR-REPORT / EXTEND
- Affected: Implementers must report transport/admin cost breakdowns; new women-and-girls assessment requirement.
- Flag: Notable - adds women-and-girls impact assessment to mandatory reporting.

Sec. 3109 - Deadline for agreements to finance sales or to provide other assistance

- Does: Extends Sec. 408 deadline from 2023 to 2031.
- Amends: Food for Peace Act Sec. 408 (7 U.S.C. 1736b).
- Numbers: -
- Dates: Extended to 2031.
- Type: EXTEND
- Affected: -
- Flag: -

Sec. 3110 - Minimum level of nonemergency food assistance

- Does: Extends Sec. 412(e)(1) date from 2023 to 2031; adds NEW subsec. (f) setting a minimum funding level to address child wasting: for each of FY2027-2031, not less than \$200,000,000 of Title II emergency food assistance funds must be spent on procurement and distribution of ready-to-use therapeutic foods (RUTFs). Applies only if (A) the most recent WHO/World Bank/UNICEF Joint Child Malnutrition Estimates report child wasting >5% in children under 5, AND (B) total Title II program funding exceeds \$1,200,000,000 that FY. Rule of construction preserves Secretary's broader RUTF authority.
- Amends: Food for Peace Act Sec. 412 (7 U.S.C. 1736f).
- Numbers: Not less than \$200,000,000/year for RUTFs; trigger thresholds: >5% child wasting; >\$1.2 billion total Title II funding.
- Dates: FY2027-2031; reauthorized through 2031.
- Type: NEW funding set-aside / EXTEND
- Affected: RUTF manufacturers and child-nutrition aid programs (winners), conditioned on triggers.
- Flag: Notable - conditional \$200M/year RUTF earmark tied to global malnutrition data.

Sec. 3111 - Termination date for micronutrient fortification programs

- Does: Amends Sec. 415 - strikes "Administrator, in consultation with the" (and comma after "Secretary"), making the Secretary the lead; extends subsec. (c) date from 2023 to 2031.
- Amends: Food for Peace Act Sec. 415 (7 U.S.C. 1736g-2).
- Numbers: -
- Dates: Extended to 2031.
- Type: EXTEND / conforming REFORM
- Affected: -
- Flag: -

Sec. 3112 - John Ogonowski and Doug Bereuter farmer-to-farmer program

- Does: Extends program authorization dates from 2023 to 2031 (each place); replaces "Administrator of the Agency for International Development" with "Secretary" in subsec. (f)(1).
- Amends: Food for Peace Act Sec. 501 (7 U.S.C. 1737).

- Numbers: -
- Dates: Extended to 2031.
- Type: EXTEND / conforming REFORM
- Affected: Farmer-to-Farmer volunteer technical-assistance program continued under USDA.
- Flag: -

Sec. 3113 - Food for Peace Act administration

- Does: NEW freestanding authority: during FY2026-2031 the Secretary may use Foreign Agricultural Service salaries-and-expenses funds (including funds already obligated as of enactment) to pay USDA administrative expenses of implementing the Food for Peace Act; allows carryover of unexpended balances into the following FY for FY2026-2031.
- Amends: New freestanding provision (administrative authority tied to the FFP Act as amended by this subtitle).
- Numbers: -
- Dates: FY2026 through FY2031.
- Type: NEW
- Affected: USDA/FAS (funds administration of transferred food aid programs).
- Flag: Notable - funds USDA's takeover of food aid administration out of FAS S&E.

Sec. 3201 - Agricultural trade promotion and facilitation

- Does: (a) Adds new para (4) to FMD cooperator program (Sec. 203(c)): Secretary shall contract with eligible trade orgs / supply-chain nonprofits for needs assessments, training, and technical assistance to improve foreign-market infrastructure (cold chain, ports, etc.) protecting U.S. commodities - capped at not more than \$1,500,000 (FY2027) and not more than \$5,000,000 (FY2028 and each FY thereafter). (b) Rewrites Sec. 203(e)(7) into a detailed biennial report (Secretary + USTR) on U.S. specialty-crop competitiveness covering foreign tariffs/quotas, nontariff/SPS barriers, food-safety differences, Sec. 301 actions, WTO actions, public/advisory-committee comment, machine-readable form; defines appropriate committees (House Ag & Ways and Means; Senate Ag, Nutrition, & Forestry and Finance). (c) Restructures and increases Sec. 203(f) mandatory CCC funding: FY2026 \$255,000,000; FY2027 \$500,000,000; FY2028-2031 \$533,000,000/year (to remain available until expended). Sets program floors - MAP (clause (i)): \$200M (FY2026), \$400M (FY2027), \$410M (FY2028-2031); FMD (clause (ii)): \$34.5M (FY2026), \$70.5M (FY2027), \$82M (FY2028-2031); clause (iii) emerging markets not more than \$8M (FY2026 & 2027), \$16M (FY2028-2031); clause (iv) (TASC/CCC) \$9M (FY2026), \$18M (FY2027-2031); clause (v)(I) specialty crops \$3.5M (FY2026 & 2027), \$7M (FY2028-2031). (d) Repeals Sec. 718 of the FY1999 Ag Appropriations Act (P.L. 105-277; 7 U.S.C. 5623 note) and Sec. 10602 of P.L. 119-21 (7 U.S.C. 5623a).
- Amends: Agricultural Trade Act of 1978 Sec. 203(c), (e)(7), (f) (7 U.S.C. 5623); repeals 7 U.S.C. 5623 note and 7 U.S.C. 5623a.
- Numbers: Total funding \$255M (FY26) -> \$500M (FY27) -> \$533M (FY28-31). MAP floor up to \$410M; FMD floor up to \$82M; infrastructure TA cap \$1.5M/\$5M; plus emerging markets, TASC, specialty crop sub-floors as above.
- Dates: FY2026 through FY2031.
- Type: INCREASE / REFORM / STUDY-OR-REPORT / REPEAL
- Affected: MAP and FMD participants, specialty-crop and commodity exporter groups (major winners); foreign-market infrastructure nonprofits (new winner).
- Flag: Notable - roughly doubles trade-promotion funding to \$533M/year; MAP roughly doubled to \$410M; first sustained mandatory increase in MAP/FMD in decades.

Sec. 3202 - Preserving foreign markets for goods using common names

- Does: (a) Amends Sec. 102 definitions of the Ag Trade Act of 1978: reorganizes/redesignates paragraphs and inserts a NEW definition of "common name" - a name ordinarily/customarily used for an ag commodity or food product, typically on packaging/label, including wine varietal/traditional terms (but excluding listed appellations of origin), consistent with Codex standards. Provides an extensive ENUMERATED list of common names for foods (e.g., asiago, brie, bologna, cheddar, chevre, feta, fontina, gorgonzola, gouda, gruyere, havarti, munster, parmesan, pecorino, prosciutto, provolone, ricotta, romano, swiss, etc.), wine (grape varietal terms, TTB-approved designations, nonvarietal descriptors like chateau/tawny/vintage), and beer (pale ale, IPA, porter, stout, pilsener, lager, etc.). Lets the Secretary consider dictionaries, standards (incl. Codex), and customary use; rule of construction lets Secretary recognize additional common names. Adds new clause (vii) treating prohibition/disallowance of a recognized common name as a covered "barrier." (b) Adds new Sec. 303 to Title III: Secretary coordinates with USTR to secure U.S. producers'/exporters' right to use common names in foreign markets via bilateral/plurilateral/multilateral agreements, MOUs,

or letter exchanges; requires twice-annual joint briefing to House Ag & Ways and Means and Senate Ag and Finance committees.

- Amends: Agricultural Trade Act of 1978 Sec. 102 (7 U.S.C. 5602); adds Sec. 303 to Title III (7 U.S.C. 5652 et seq.).

- Numbers: -

- Dates: Twice-annual briefings (no sunset stated).

- Type: NEW / REFORM

- Affected: U.S. cheese, meat, wine, and beer producers/exporters (winners); directly targets EU geographical-indications (GI) restrictions (foreign GI holders are the implicit losers).

- Flag: Notable/controversial - codifies the "common names" fight against EU GIs; statutorily lists generic terms the U.S. will defend.

Sec. 3203 - Interagency seasonal and perishable fruits and vegetable working group

- Does: Adds new Sec. 418 creating an interagency working group (USDA Under Secretary for Trade and Foreign Ag Affairs, USTR, Commerce, others) to monitor seasonal/perishable fruit and vegetable trade data; consult with the Agricultural Trade Advisory Committee and producers to identify import threats; coordinate on potential trade actions/investigations; and recommend assistance programs to the Secretary.

- Amends: Agricultural Trade Act of 1978, Subtitle B of Title IV (7 U.S.C. 5671 et seq.) - adds Sec. 418.

- Numbers: -

- Dates: -

- Type: NEW (working group)

- Affected: Domestic seasonal/perishable produce growers (esp. Southeast - tomatoes, berries, peppers) seeking import relief (winners); importers (potential losers).

- Flag: Notable - aimed at seasonal produce import surges (Mexico/USMCA tension).

Sec. 3301 - Growing American food exports

- Does: Extends authorization (subsec. (d)) from 2023 to 2031.

- Amends: Food, Agriculture, Conservation, and Trade Act of 1990 Sec. 1543A (7 U.S.C. 5679).

- Numbers: -

- Dates: Extended to 2031.

- Type: EXTEND

- Affected: -

- Flag: -

Sec. 3302 - Food for Progress Act of 1985

- Does: Amends Sec. 1110 - requires the Secretary to "annually enter into two or more" agreements with "two or more eligible entities" (was "enter into"); extends 2023 dates to 2031 in subsecs. (f)(3), (g), (k), (l)(1); narrows program framing by striking "Humanitarian or" in heading of (l)(4) (-> "Development") and striking "humanitarian and" in (m)(2); updates committee name from "International Relations" to "Foreign Affairs" in (n)(2)(C).

- Amends: Food Security Act of 1985 Sec. 1110 (Food for Progress Act of 1985; 7 U.S.C. 1736o).

- Numbers: Minimum of two or more agreements/entities annually.

- Dates: Extended to 2031.

- Type: EXTEND / REFORM

- Affected: Food for Progress implementers; reorients program toward development (away from humanitarian framing).

- Flag: Notable - shifts Food for Progress emphasis from humanitarian toward development.

Sec. 3303 - Bill Emerson Humanitarian Trust Act

- Does: Amends Sec. 302 - extends 2023 dates to 2031 in (b)(2)(B)(i) and (h)(1); replaces "Administrator" with "Secretary" in (c)(1)(C); strikes (c)(1)(D); inserts "by the Secretary" after "reimbursed" in (f)(2)(A); in (h)(2) strikes 2026 and inserts 2031.

- Amends: Bill Emerson Humanitarian Trust Act Sec. 302 (7 U.S.C. 1736f-1).

- Numbers: -

- Dates: Extended to 2031.

- Type: EXTEND / conforming REFORM

- Affected: Emergency food reserve administration moves to Secretary.
- Flag: -

Sec. 3304 - Promotion of agricultural exports to emerging markets

- Does: Extends authorization from 2023 to 2031.
- Amends: Food, Agriculture, Conservation, and Trade Act of 1990 Sec. 1542(a) (7 U.S.C. 5622 note; P.L. 101-624).
- Numbers: -
- Dates: Extended to 2031.
- Type: EXTEND
- Affected: Emerging Markets Program participants.
- Flag: -

Sec. 3305 - International agricultural education fellowship program

- Does: Amends Sec. 3307 of the 2018 farm bill - updates funding authorization years from "2019 through 2023" to "2027 through 2031"; redesignates subsec. (g) as (h); adds NEW subsec. (g) on program continuity: Secretary shall, to the max extent practicable, run the fellowship in each host country for not fewer than 3 consecutive years and ensure multiyear contracts to outside organizations.
- Amends: Agriculture Improvement Act of 2018 Sec. 3307 (7 U.S.C. 3295).
- Numbers: Min. 3 consecutive years per host country.
- Dates: FY2027 through FY2031.
- Type: EXTEND / REFORM
- Affected: International agricultural education fellows and implementing orgs.
- Flag: -

Sec. 3306 - International agriculture cultural immersion and exchange program

- Does: Adds NEW Sec. 3313 to Title III of the 2018 farm bill establishing the International Agriculture Cultural Immersion and Exchange Program. Eligible candidates: U.S. residents aged 19-30 with ag/food/nutrition experience, willing to live 2-6 months in host countries. Secretary places U.S. candidates abroad with host families and reciprocally hosts foreign residents in the U.S. Purposes: develop globally minded U.S. citizens and strengthen ag/food trade. Administered via cooperative agreement with a nonprofit experienced in international cultural exchange/host-family placement; priority to a nonprofit with an MOU dated on/after Jan 1, 2019; nonprofit must provide equal non-Federal matching funds. Authorizes \$10,000,000 per FY for FY2027-2031.
- Amends: Agriculture Improvement Act of 2018, Title III (P.L. 115-334) - adds Sec. 3313 (+ conforming table of contents).
- Numbers: Authorization \$10,000,000/year; equal non-Federal match required; ages 19-30; 2-6 months.
- Dates: FY2027 through FY2031.
- Type: NEW
- Affected: Youth exchange participants; a specific nonprofit (priority via 2019 MOU) is favored.
- Flag: Notable - priority clause favoring a nonprofit with a pre-2019 MOU effectively earmarks the administering org.

Sec. 3307 - International food security technical assistance

- Does: Extends authorization (subsec. (f)) from 2023 to 2031.
- Amends: Food, Agriculture, Conservation, and Trade Act of 1990 Sec. 1543B(f).
- Numbers: -
- Dates: Extended to 2031.
- Type: EXTEND
- Affected: -
- Flag: -

Sec. 3308 - McGovern-Dole International Food for Education and Child Nutrition Program

- Does: Amends Sec. 3107 - in (c)(2)(B)(ii) inserts "or lower middle" before "income" (expanding eligible countries to lower-middle-income); updates committee name "International Relations"->"Foreign Affairs" in (h)(2); extends (l)(2) date from 2023 to 2031; in (l)(4) changes the micronutrient-fortified/administrative carve-out from "not more than 10 percent" to "not less than 8 percent, but not more than 15 percent."

- Amends: Farm Security and Rural Investment Act of 2002 Sec. 3107 (7 U.S.C. 1736o-1).
- Numbers: Carve-out floor/ceiling changed to 8%-15% (was max 10%).
- Dates: Extended to 2031.
- Type: EXTEND / REFORM
- Affected: McGovern-Dole school-feeding implementers; expands eligible countries to lower-middle-income; raises permissible support-cost share.
- Flag: Notable - broadens country eligibility and adjusts cost-share band.

Sec. 3309 - Global crop diversity trust

- Does: Amends Sec. 3202 of the 2008 farm bill - rewrites (b)(1) capping the aggregate Federal contribution to the Trust at not more than 33 percent of total contributions from all sources for FY2027-2031; in (b)(2) inserts "under this section" and extends 2023->2031; in (c) changes "fiscal years 2014 through 2023" to "fiscal years 2023 through 2031."
- Amends: Food, Conservation, and Energy Act of 2008 Sec. 3202 (22 U.S.C. 2220a note; P.L. 110-246).
- Numbers: Federal contribution capped at 33% of total.
- Dates: FY2027-2031 (cap); extended to 2031.
- Type: EXTEND / REFORM
- Affected: Global Crop Diversity Trust (seed-bank funding) - limits U.S. share.
- Flag: -

Sec. 3310 - Local and regional food aid procurement projects

- Does: Extends authorization (subsec. (e)(1)) from 2023 to 2031.
- Amends: Food, Conservation, and Energy Act of 2008 Sec. 3206(e)(1) (7 U.S.C. 1726c(e)(1)).
- Numbers: -
- Dates: Extended to 2031.
- Type: EXTEND
- Affected: Local/regional procurement (LRP) program continued.
- Flag: -

Sec. 3311 - Agricultural trade enforcement task force

- Does: NEW freestanding provision: within 30 days of enactment the President shall establish the Agricultural Trade Enforcement Task Force to identify WTO-vulnerable trade barriers to U.S. ag exports, develop/implement enforcement strategy, identify co-complainant trading partners, and report quarterly to Congress. Members from FAS, USTR, and other agencies (with ag-trade/enforcement expertise). Reports: within 90 days of enactment and quarterly thereafter, covering identified barriers, justification, dispute progress, and WTO case status. Initial report must include a plan to file a WTO dispute-settlement consultation request addressing India's minimum price supports - with co-complainant identification, specific claims, and a timeline to request consultations and (if India does not give assurances within the window) request a panel not later than 60 days after the consultation request. USTR and USDA shall brief Congress.
- Amends: New freestanding provision.
- Numbers: -
- Dates: Task Force established <=30 days after enactment; initial report <=90 days, then quarterly; panel request <=60 days after consultation request (if no Indian assurances).
- Type: NEW / STUDY-OR-REPORT (enforcement)
- Affected: U.S. ag exporters (winner); India explicitly targeted over minimum price supports (loser); USTR/FAS must act.
- Flag: Notable/controversial - statutorily directs a WTO challenge to India's minimum price supports.

Sec. 3312 - Report on international shrimp trade

- Does: Directs the Comptroller General (GAO) to submit, within 180 days of enactment, a report on policy options to boost domestic shrimp competitiveness - analyzing the Secretary's authority over shrimp/seafood, producers' access to financial support, interagency coordination on tariffs/market access/nontariff barriers, and trade/legal barriers vulnerable to WTO or trade-agreement dispute settlement. Defines committees (House Ag and Energy & Commerce; Senate Ag and HELP).
- Amends: New freestanding provision.
- Numbers: -

- Dates: Report due <=180 days after enactment.
- Type: STUDY-OR-REPORT
- Affected: Domestic shrimp/seafood producers (Gulf states).
- Flag: -

Sec. 3401 - Report on modifications to USMCA

- Does: Requires the Secretary (with USTR), before July 1, 2026, to submit and publicly release a report on how any expected or implemented modification/revocation of any part of USMCA will affect import/export of covered agricultural commodities - including effects on prices (short/long-term, consumer food prices, input costs, regional/sector variation) and farm revenue/profitability (net farm income, debt-to-asset ratios, sector-specific effects, farm-size effects, exports/market access/competitiveness, rural employment). Defines committees (House Ag, Ways and Means, Foreign Affairs; Senate Ag, Finance, Foreign Relations) and "covered agricultural commodity" (per 7 U.S.C. 5602(1)).
- Amends: New freestanding provision (USMCA defined per 19 U.S.C. 4502(9)).
- Numbers: -
- Dates: Report due before July 1, 2026.
- Type: STUDY-OR-REPORT
- Affected: USDA/USTR must report; signals congressional concern over USMCA renegotiation impacts on ag.
- Flag: Notable - tied to anticipated USMCA modification/revocation.

Sec. 3402 - Sense of Congress and report on Argentine beef imports

- Does: Sense of Congress opposing trade agreements (including the U.S.-Argentina Agreement on Reciprocal Trade and Investment) that let Argentina export fresh/frozen beef into the U.S. under expanded quotas, calling such imports detrimental to domestic ranchers/cattle markets and a consumer-safety concern. Requires the Secretary and USTR to jointly report within 180 days after the U.S. signs any formal trade agreement with Argentina changing beef tariff-rate quotas/duties, covering consumer sentiment, cattle prices, beef prices, herd size, and rancher expansion sentiment. Defines committees (House Ag, Ways and Means, Foreign Affairs; Senate Ag, Finance, Foreign Relations).
- Amends: New freestanding provision.
- Numbers: -
- Dates: Report due <=180 days after signing any qualifying U.S.-Argentina agreement.
- Type: STUDY-OR-REPORT / Sense of Congress
- Affected: U.S. cattle ranchers/producers (winners - protectionist stance); Argentine beef exporters (losers).
- Flag: Notable/controversial - explicit opposition to expanded Argentine beef imports / the U.S.-Argentina reciprocal trade agreement.

Cross-cutting flags for this title

- Major institutional shift: Food for Peace administration moves wholesale from USAID to USDA (Secs. 3101-3113), including asset/liability/contract transfer, new rulemaking authority, and FAS-funded administration. State Dept relegated to consultation. This recurs as the "Administrator -> Secretary" swap across nearly every Subtitle A and several Subtitle C sections.
- Trade-promotion funding sharply increased and made permanent-floor: Sec. 3201 raises total Ag Trade Act funding to \$533M/year by FY2028 (from \$255M baseline) with hard floors - MAP up to \$410M, FMD up to \$82M - the most significant MAP/FMD increase in decades, plus new foreign-market infrastructure technical assistance.
- National-security / foreign-adversary and enforcement posture: Sec. 3311 directs a WTO challenge to India's minimum price supports; Sec. 3203 targets seasonal-produce import surges; Sec. 3401 (USMCA) and Sec. 3402 (Argentine beef) reflect defensive trade posture. Note: no explicit foreign-adversary farmland/ownership provision appears in this title (those typically sit elsewhere in the bill).
- Common names / EU-GI fight codified: Sec. 3202 enumerates generic food, wine, and beer names the U.S. will defend and mandates USTR/USDA negotiations and briefings - a direct counter to EU geographical-indications restrictions.
- Consistent reauthorization horizon: Nearly every program extended from 2023 to 2031 (FY2031), matching the bill's FY2031 reauthorization frame.
- New mandatory set-asides: \$200M/year RUTFs for child wasting (conditional triggers; Sec. 3110); \$15M/year International Food Relief Partnership (Sec. 3106); \$10M/year youth ag exchange program (Sec. 3306).
- Earmark-style favoritism: Sec. 3306 priority clause favors a nonprofit holding a pre-2019 MOU; Sec. 3201 directs infrastructure

TA to specific nonprofit types.

- Reorientation away from "humanitarian" framing: Food for Progress (Sec. 3302) strips "humanitarian" language in favor of "development."
- Reporting burden: Multiple new mandated reports - specialty-crop competitiveness biennial report, shrimp trade GAO report, USMCA impact report, Argentine beef report, quarterly enforcement task force reports, women-and-girls food-aid assessment.

Title IV - Nutrition - Notes

Title-level summary

Title IV reauthorizes SNAP and related nutrition/commodity programs of the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.) and allied statutes through FY2031 (the recurring amendment pattern is "striking 2023 and inserting 2031"). The title is organized in three subtitles: A (Supplemental Nutrition Assistance Program, Secs. 4101-4115), B (Commodity Distribution Programs, Secs. 4201-4204), and C (Miscellaneous, Secs. 4301-4310). Substantive SNAP changes are mostly administrative/program-integrity in nature: contractor staffing flexibility tied to a 6% payment error-rate trigger (Sec. 4103), full reporting of all identified payment errors (Sec. 4105), permanent SNAP online purchasing (Sec. 4111), EBT card security rulemaking (Sec. 4108), and several eligible-food expansions (animal protein incentive, hot rotisserie chicken). Subtitles B and C reauthorize and in several cases expand commodity, senior farmers' market, TEFAP, CSFP, Gus Schumacher (GusNIP), dairy nutrition incentives, and healthy-food-financing programs, and create new freestanding programs (Local Farmers Feeding Our Communities, CSFP home-delivery pilot, Tribal self-determination CSFP demonstration). A high-profile non-SNAP reform restructures the Dietary Guidelines process (Sec. 4308). IMPORTANT - see cross-cutting flags: this engrossed text does NOT contain Thrifty Food Plan cost-neutrality language, ABAWD/work-requirement age expansions, restrictions on broad-based categorical eligibility or immigrant eligibility, state cost-sharing of SNAP benefit dollars, or SNAP-Ed cuts. The error-rate provisions here are administrative (staffing triggers, reporting), not benefit cost-share triggers.

Section-by-section

Sec. 4101 - Declaration of policy

- Does: Adds new declaration-of-policy language stating SNAP supports prevention of diet-related chronic disease (obesity, diabetes, hypertension, heart disease, cancer), disability, premature death, unsustainable health care costs, and "undermining of military readiness"; directs the Secretary to administer SNAP to provide participants, "especially children," access to a variety of foods for optimal health. Inserts "(a)" before "It" and adds new subsections (b) and (c).
- Amends: Section 2 of the Food and Nutrition Act of 2008 (7 U.S.C. 2011).
- Numbers: Lists 5 diet-related chronic diseases.
- Dates: -
- Type: REFORM (declaratory/policy; non-operative on eligibility).
- Affected: Sets interpretive policy framing for SNAP administration; no direct beneficiary impact.
- Flag: Notable - frames SNAP around chronic-disease prevention and "military readiness," language that supports later food-restriction/healthy-food arguments.

Sec. 4102 - Prohibited fees

- Does: Makes permanent the prohibition on certain SNAP fees by removing the sunset phrasing. Strikes "Effective through fiscal year 2023, neither" and inserts "Neither."
- Amends: Section 7(h)(13)(B) (7 U.S.C. 2016(h)(13)(B)).
- Numbers: -
- Dates: Removes the FY2023 cutoff (makes permanent).
- Type: EXTEND (makes permanent).
- Affected: SNAP recipients (fee protection continues); EBT processors/retailers.
- Flag: -

Sec. 4103 - SNAP staffing flexibility

- Does: Adds new subsection (y) allowing a State agency, notwithstanding §11(e)(6)(B), to contract out SNAP certification or any other State-agency function, subject to conditions: contract cannot incentivize delay/denial of eligibility, and contractor must have no direct/indirect financial interest in an approved retail store. Authorizes use when: (A) State cannot timely process applications (pandemics/health emergencies, seasonal workforce cycles, temporary staffing shortages, weather/natural disasters); (B) the State's payment error rate (per §16) is ≥ 6 percent on most recent USDA data; or (C) the State sees an increase in applications. Requires consistency with 5 CFR 900.603 principles and a "blended workforce" that does not supplant merit-based personnel.

Requires State notification to the Secretary; Secretary must post notification publicly within 10 days. Such contracting is not a "major change" under §11(a)(4). Requires an annual report to House/Senate Ag committees. For temporary staffing shortages, authority expires when the application backlog is eliminated, cannot override collective bargaining agreements/MOUs, and expires when the error rate (per §16) is < 6 percent.

- Amends: Section 11 (7 U.S.C. 2020), adding subsection (y).
- Numbers: Payment error-rate trigger 6 percent ($\geq 6\%$ to use authority; expires for temp shortages when $< 6\%$); public posting within 10 days.
- Dates: Annual report; no sunset stated.
- Type: REFORM / NEW authority.
- Affected: States (gain contracting flexibility, esp. high-error-rate states); public/private contractors; state merit employees (protected by anti-supplant/CBA clauses); applicants (anti-delay/anti-denial safeguards).
- Flag: Notable - ties contractor authority to a 6% payment error-rate threshold. NOTE: this is an administrative error-rate trigger for staffing, not a state benefit cost-share trigger.

Sec. 4104 - Updates to administrative processes for SNAP retailers

- Does: Tightens retailer compliance trigger by requiring a failure "on two consecutive occasions within a 3-year period" before the relevant action applies. Inserts ", on two consecutive occasions within a 3-year-period," after "does not meet" in the 2nd sentence.
- Amends: Section 9(d) (Food and Nutrition Act of 2008).
- Numbers: Two consecutive occasions within a 3-year period.
- Dates: -
- Type: REFORM (retailer-friendly; raises threshold for action).
- Affected: SNAP-authorized retail food stores.
- Flag: -

Sec. 4105 - Report on all identified payment errors

- Does: Requires the Secretary to include ALL identified payment errors - including small errors under §(c)(1)(A)(ii), regardless of dollar amount - in a supplemental section of the annual SNAP payment error rate measurement report. Rule of construction: this reporting does not alter the tolerance level for excluding small errors. Redesignates paragraph (9) as (10) and inserts new paragraph (9).
- Amends: Section 16(c) (7 U.S.C. 2025(c)).
- Numbers: Small-error tolerance under (1)(A)(ii) preserved (unchanged); all errors "regardless of dollar amount" reported.
- Dates: Annual report.
- Type: STUDY-OR-REPORT (transparency).
- Affected: USDA/FNS, states (transparency on error rates).
- Flag: Notable - surfaces below-tolerance errors publicly; relevant to error-rate politics but explicitly does NOT change the tolerance/calculation.

Sec. 4106 - Authorization of appropriations

- Does: Reauthorizes SNAP appropriations through FY2031. Strikes "2023" and inserts "2031" in the 1st sentence of §18(a)(1).
- Amends: Section 18(a)(1) (7 U.S.C. 2027(a)(1)).
- Numbers: -
- Dates: FY2031.
- Type: EXTEND (core SNAP reauthorization).
- Affected: Entire SNAP program / recipients / states.
- Flag: - (Note: source text shows an unbalanced quote - "2031 - a likely OCR/transcription artifact; substance is FY2031.)

Sec. 4107 - Retail food store and recipient trafficking

- Does: Reauthorizes anti-trafficking funding/authority through FY2031. Strikes "2023" and inserts "2031."
- Amends: Section 29(c)(1) (7 U.S.C. 2036b).
- Numbers: -
- Dates: FY2031.

- Type: EXTEND.
- Affected: USDA program-integrity efforts; retailers.
- Flag: -

Sec. 4108 - EBT card security regulations

- Does: Directs the Secretary, not later than 6 months after enactment, to promulgate (as a proposed rule, via notice-and-comment) regulations to enhance EBT Card security measures.
- Amends: New freestanding provision (references definition in §3(i); 7 U.S.C. 2012(i)).
- Numbers: -
- Dates: Proposed rule within 6 months of enactment.
- Type: NEW (rulemaking mandate).
- Affected: USDA, states, EBT processors, recipients (anti-skimming/theft protection).
- Flag: Notable - responds to EBT theft/skimming concerns.

Sec. 4109 - Report on SNAP administrative expenses

- Does: Directs the Comptroller General (GAO), within 12 months of enactment, to report to House/Senate Ag committees on (1) causes of state variation in SNAP administrative costs and factors driving increases, and (2) recommendations to improve USDA/Congressional oversight of administrative costs.
- Amends: New freestanding provision (GAO study).
- Numbers: -
- Dates: Report within 12 months of enactment.
- Type: STUDY-OR-REPORT.
- Affected: GAO, USDA, states.
- Flag: -

Sec. 4110 - Animal protein an eligible incentive food

- Does: Adds "animal protein" to the list of foods eligible under the SNAP incentive provision. Inserts "animal protein," after "whole grain,".
- Amends: Section 9(j)(1)(B) (7 U.S.C. 2018(j)(1)(B)).
- Numbers: -
- Dates: -
- Type: REFORM / INCREASE (expands eligible incentive foods).
- Affected: Recipients, retailers, incentive-program operators; animal-protein producers.
- Flag: -

Sec. 4111 - Permanent authority for SNAP online purchasing

- Does: Adds new subsection (l) making SNAP online purchasing a permanent nationwide program (transitioning from pilot/demonstration). Secretary must begin transition within 120 days of the subsection's effective date; issue regulations/guidance (program integrity, consumer protections, equitable rural access) within 2 years; establish formal stakeholder consultation (state agencies, authorized retailers, EBT processors, consumer advocates) incorporating lessons from 2014-2025 operations; and submit a report to House/Senate Ag committees within 120 days describing the consultation process.
- Amends: Section 7 (7 U.S.C. 2016), adding subsection (l).
- Numbers: -
- Dates: Transition begins within 120 days; regulations within 2 years; report within 120 days of effective date; references 2014-2025 pilot period.
- Type: NEW / EXTEND (permanent program).
- Affected: Recipients (esp. rural), online/authorized retailers, EBT processors, states.
- Flag: Notable - permanent nationwide online purchasing.

Sec. 4112 - Emergency food assistance programs

- Does: (a) Reauthorizes TEFAP emergency food program infrastructure grants through FY2031 (strikes 2023, inserts 2031 in §209(d) of the Emergency Food Assistance Act of 1983, 7 U.S.C. 7511a(d)). (b) Reauthorizes availability of commodities for

TEFAP through FY2031 (§27(a)(1), 7 U.S.C. 2036(a)(1)). (c) Adds new §214(c)(3): at a State agency's request, the Secretary may allow the State to use not more than 20 percent of its allocated commodity cost to order through the DoD Fresh Fruit and Vegetable Program.

- Amends: Emergency Food Assistance Act of 1983 §§209(d), 214(c) (7 U.S.C. 7511a(d), 7515(c)); Food and Nutrition Act §27(a)(1) (7 U.S.C. 2036(a)(1)).
- Numbers: 20 percent DoD Fresh purchasing option.
- Dates: FY2031.
- Type: EXTEND + NEW option.
- Affected: Food banks/TEFAP, states, fruit/vegetable suppliers via DoD Fresh.
- Flag: -

Sec. 4113 - Food distribution program on Indian reservations

- Does: Reauthorizes FDPIR through FY2031. Strikes "2023" and inserts "2031."
- Amends: Section 4(b)(6)(E) (7 U.S.C. 2013(b)(6)(E)).
- Numbers: -
- Dates: FY2031.
- Type: EXTEND.
- Affected: Tribal recipients/organizations (FDPIR).
- Flag: -

Sec. 4114 - SNAP eligible hot rotisserie chicken

- Does: Makes hot rotisserie chicken eligible for purchase with SNAP benefits (an exception to the general hot-foods exclusion). Inserts "hot rotisserie chicken and" before "those authorized"; strikes "clauses" and inserts "paragraphs"; strikes "of this subsection."
- Amends: Section 3(k)(1) (7 U.S.C. 2012(k)(1)).
- Numbers: -
- Dates: -
- Type: REFORM / INCREASE (expands eligible hot foods).
- Affected: Recipients, retailers/grocers selling rotisserie chicken.
- Flag: Notable - carve-out from the longstanding hot-prepared-food prohibition.

Sec. 4115 - Foods eligible for purchase with SNAP benefits

- Does: Within 120 days after conclusion of all USDA demonstration projects on the statutory definition of "food" eligible for SNAP purchase, the Secretary must report to House/Senate Ag committees on feasibility, implementation, and effectiveness of those projects, including legislative recommendations to change the definition.
- Amends: New freestanding provision (report).
- Numbers: -
- Dates: Report within 120 days after demonstration projects conclude.
- Type: STUDY-OR-REPORT.
- Affected: USDA, Congress, recipients/retailers (potential future restrictions/expansions of eligible foods).
- Flag: Notable - sets up potential future restrictions on what SNAP can buy (e.g., "junk food" waiver debates).

Sec. 4201 - Commodity distribution program

- Does: (a) Reauthorizes/expands the Seniors Farmers' Market Nutrition Program: in §4402(a) strikes "2008 through 2023" and inserts "2027 through 2031"; in §4402(b)(1) adds eligible commodities - strikes "and herbs" and inserts "herbs, maple syrup, and tree nuts (including shelled tree nuts)." (b) Reauthorizes the §4(a) appropriations of the Agriculture and Consumer Protection Act of 1973 through FY2031 (strikes 2023, inserts 2031).
- Amends: §4402 of Farm Security and Rural Investment Act of 2002 (7 U.S.C. 3007); §4(a) of Agriculture and Consumer Protection Act of 1973 (7 U.S.C. 612c note).
- Numbers: -

- Dates: FY2027-FY2031 (SFMNP authority); FY2031 (appropriations).
- Type: EXTEND + REFORM (expands eligible commodities).
- Affected: Low-income seniors; farmers' market vendors; maple syrup and tree nut producers (newly eligible).
- Flag: -

Sec. 4202 - Commodity supplemental food program

- Does: Reauthorizes CSFP through FY2031 (multiple "2023"->"2031" strikes in §5(a)(1), (a)(2)(B), (d)(2)). Adds new subsection (n): a CSFP delivery pilot program awarding competitive grants to State agencies (or to State agencies on behalf of eligible entities) to increase low-income elderly access to commodities via home delivery. Max grant per State = lesser of [greater of (caseload x 60) or \$10,000] or \$4,000,000. Grant uses: transportation/distribution (incl. third-party), staffing, outreach. Priority to entities serving rural participants. Reporting to the Secretary within 180 days of fiscal year-end and annually until funds expended. Authorizes \$10,000,000 per fiscal year FY2027-FY2031, to remain available until expended.
- Amends: Section 5 of the Agriculture and Consumer Protection Act of 1973 (7 U.S.C. 612c note; Pub. L. 93-86).
- Numbers: Caseload x 60; floor \$10,000; cap \$4,000,000; appropriation \$10,000,000/yr FY2027-2031.
- Dates: FY2031 reauthorization; FY2027-2031 pilot funding; 180-day reporting.
- Type: EXTEND + NEW (home-delivery pilot).
- Affected: Low-income elderly (esp. rural), state/local CSFP agencies, third-party delivery providers.
- Flag: -

Sec. 4203 - Distribution of surplus commodities to special nutrition projects

- Does: Reauthorizes through FY2031. Strikes "2023" and inserts "2031."
- Amends: Section 1114(a)(2)(A) of the Agriculture and Food Act of 1981 (7 U.S.C. 1431e(2)(A)).
- Numbers: -
- Dates: FY2031.
- Type: EXTEND.
- Affected: Special nutrition projects receiving surplus commodities.
- Flag: -

Sec. 4204 - CSFP demonstration project for Tribal organizations

- Does: Directs the Secretary (subject to appropriations) to establish a demonstration project under which 1+ Tribal organizations may enter self-determination contracts to purchase agricultural commodities under CSFP for their Indian reservation. Requires Tribal consultation on process/criteria; selection criteria include successful FDPIR administration under §4(b)(2)(B), capacity to purchase, and other criteria (in consultation with Interior and Tribes). Procured commodities must be domestically produced, not materially increase the food package vs. the CSFP Guide Rate, be of similar/higher nutritional value or have Tribal significance, and meet other criteria. Annual report to House/Senate Ag committees beginning 1 year after funds appropriated. (b) Directs the Secretary to appoint an existing USDA office to administer Tribal self-determination contracts (awarding FNS nutrition-program self-determination contracts; hiring contract officers/program staff).
- Amends: New freestanding provision (references Agriculture and Consumer Protection Act of 1973 §4 (7 U.S.C. 612c note; Pub. L. 93-86); Food and Nutrition Act §§3, 4 (7 U.S.C. 2012, 2013); Indian Self-Determination and Education Assistance Act §4 (25 U.S.C. 5304)).
- Numbers: Authorizes \$1,000,000 (to remain available until expended) for the project; \$1,200,000 per fiscal year FY2027-FY2031 for USDA contract officer/program staff salaries and benefits.
- Dates: FY2027-2031 staffing funding; annual report from 1 year after appropriation.
- Type: NEW (Tribal self-determination demonstration).
- Affected: Tribal organizations/recipients, USDA/FNS, Interior.
- Flag: Notable - extends Tribal self-determination contracting (FDPIR-style "638" model) into CSFP.

Sec. 4301 - Purchase of fresh fruits and vegetables for distribution to schools and service institutions

- Does: Reauthorizes through FY2031. Strikes "2023" and inserts "2031."

- Amends: Section 10603(b) of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 612c-4(b)).
- Numbers: -
- Dates: FY2031.
- Type: EXTEND.
- Affected: Schools/service institutions, produce suppliers (DoD Fresh-linked).
- Flag: -

Sec. 4302 - Buy American requirements for certain school meals

- Does: Rewrites §12(n)(2)(A) of the NSLA to require school food authorities (SFAs) to purchase at least 95 percent domestic products/commodities in each AMS-designated food purchase category (subject to clause (ii) and subpara (B)). Domestically unavailable products on a Secretary-issued list (updated within 6 months of enactment and every 2 years thereafter) are excluded from the calculation. Limits waiver authority: except for listed domestically-unavailable items, the Secretary may not waive or make accommodations. Prohibits SFAs from purchasing raw or processed poultry products or seafood imported from the People's Republic of China or the Russian Federation. Applies beginning the first day of the first school year after enactment.
- Amends: Section 12(n)(2)(A) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1760(n)(2)(A)).
- Numbers: 95 percent domestic per category; list updated within 6 months then every 2 years.
- Dates: Effective first day of first school year after enactment.
- Type: REFORM (tightens Buy American; new China/Russia import ban).
- Affected: School food authorities, domestic vs. foreign suppliers; importers of Chinese/Russian poultry and seafood (barred).
- Flag: Notable/controversial - hard 95% domestic floor with sharply limited waivers; explicit China/Russia poultry & seafood prohibition.

Sec. 4303 - Reauthorization of the Gus Schumacher Nutrition Incentive Program (GusNIP)

- Does: Reauthorizes and amends GusNIP. Rewrites Federal-share provision: Federal share generally not to exceed 50 percent of total activity cost (except as provided), with a waiver for persistent-poverty areas - counties where, over the preceding 30-year period, ≥ 20 percent of population lived in poverty (per decennial censuses and SAIPE), or census tracts with a ≥ 20 percent poverty rate over the preceding 30 years (per ACS 5-year data). Adds new eligible-project clause (ix): increase year-round availability of incentives by offering "all forms of fruits or vegetables" (redesignates former (ix)/(x) as (x)/(xi)). In subsection (c), strikes "fresh fruits and vegetables" and inserts "all forms of fruits, vegetables, and legumes" each place it appears. Reauthorizes through FY2031 (subsection (f)(1) and (f)(3): "2023"->"2031").
- Amends: Section 4405 of the Food, Conservation, and Energy Act of 2008 (7 U.S.C. 7517).
- Numbers: Federal share ≤ 50 percent; persistent-poverty thresholds ≥ 20 percent over 30-year period.
- Dates: FY2031.
- Type: EXTEND + REFORM (broadens to all forms of fruits/vegetables/legumes; adds poverty-area cost-share waiver).
- Affected: Incentive-program operators, recipients, fruit/vegetable/legume producers; persistent-poverty communities.
- Flag: -

Sec. 4304 - Food loss and waste reduction liaison annual report

- Does: Converts the Food Loss and Waste Reduction Liaison report into an annual report and expands required contents. Inserts "Annual" into heading; inserts "and annually thereafter,;" adds new required elements: (C) description of each project/activity; (D) summary of cooperative agreements under subsection (c); (E) detailed account of how the Secretary avoided/managed market disruption; (F) summary of coordinated activities with EPA and FDA.
- Amends: Section 224(e)(2) of the Department of Agriculture Reorganization Act of 1994 (7 U.S.C. 6924(e)(2)).
- Numbers: -
- Dates: Annual.
- Type: STUDY-OR-REPORT (expanded recurring reporting).
- Affected: USDA, EPA, FDA coordination.
- Flag: -

Sec. 4305 - Dairy nutrition incentives projects

- Does: Renames the program from "Healthy fluid milk incentives" to "Dairy Nutrition" (heading and "each place it appears"). Rewrites definitions (subsection (a)) to add "covered dairy products" = cheese (pasteurized cow's milk, good protein source, sold

as block/chunk/shred/slice/stick/string/snack-size) and yogurt or other cultured dairy product (pasteurized cow's milk, good protein source, limited added sugars); retains "fluid milk" definition. Extends incentives to cover "covered dairy products" in addition to fluid milk (subsections (b), (c)(3)). Increases authorization in subsection (e)(1) from \$20,000,000 to \$50,000,000.

- Amends: Section 4208 of the Agriculture Improvement Act of 2018 (7 U.S.C. 2026a).

- Numbers: Authorization increased \$20,000,000 -> \$50,000,000.

- Dates: -

- Type: INCREASE + REFORM (program scope expanded to cheese/yogurt).

- Affected: Recipients, dairy producers (milk, cheese, yogurt), retailers.

- Flag: -

Sec. 4306 - Local Farmers Feeding Our Communities program

- Does: Establishes a new program: the Secretary enters noncompetitive cooperative agreements with eligible entities (state agency/commission/department responsible for ag, procurement, food distribution, emergency response, etc.) to support covered local producers, distribute fresh/nutritious foods, and strengthen local/regional food systems. Funds used to purchase unprocessed/minimally processed local foods (seafood, meat, milk/dairy, eggs, produce, poultry) from covered producers; at least 25 percent of total annual purchase value must come from small/mid-size producers, beginning, or veteran farmers/ranchers; technical assistance; distribution to (incl. nonprofit) organizations. Limits: not more than 15 percent of an entity's funds for administrative expenses + TA, and not less than 50 percent of that amount must go to TA. Allocation: 10 percent to Tribal Governments (by Secretary's formula); of the remainder, 1 percent to each State (non-Tribal); then remaining funds via the §214 TEFAP formula. Authorizes \$200,000,000 per fiscal year FY2027-FY2031.

- Amends: New freestanding provision (references §2501 of FACT Act of 1990 (7 U.S.C. 2279); §§214 of Emergency Food Assistance Act of 1983 (7 U.S.C. 7515); §343(a) Consolidated Farm and Rural Development Act).

- Numbers: >=25 percent from small/mid/beginning/veteran producers; <=15 percent admin+TA; >=50 percent of that for TA; 10 percent Tribal; 1 percent per State; covered producer within boundaries or <=400 miles; mid-size producer GCFI >=\$350,000 and <\$999,999; small-size <\$350,000; appropriation \$200,000,000/yr FY2027-2031.

- Dates: FY2027-2031.

- Type: NEW (LFPA-style local food purchasing program).

- Affected: Local/small/mid/beginning/veteran/Tribal producers, food banks/nonprofits, state agencies.

- Flag: Notable - large new (\$1B over 5 yrs) local-food purchasing program (codifies an LFPA-like model).

Sec. 4307 - Healthy Food Financing Initiative

- Does: Increases HFFI authorization. Strikes "\$125,000,000" and inserts "\$135,000,000."

- Amends: Section 243(d) of the Department of Agriculture Reorganization Act of 1994 (7 U.S.C. 6953(d)).

- Numbers: \$125,000,000 -> \$135,000,000.

- Dates: -

- Type: INCREASE.

- Affected: Healthy food retailers/financing in underserved areas.

- Flag: -

Sec. 4308 - Dietary guidelines

- Does: Restructures the Dietary Guidelines for Americans process. Changes frequency from "At least every five years" to "Beginning with the 2030 report and at least every 10 years thereafter," and applies APA §553 rulemaking to each report. Rewrites the evidentiary standard: guidelines must be based on "significant scientific agreement" via "evidence-based review" (defined), be current, derive from questions generated by an Independent Advisory Board, address high-priority concerns, achieve nutritional adequacy, include info for chronic-disease populations, and be "affordable, available, and accessible." Adds: more-frequent publication option; 90-day advance notification to Senate Ag/HELP and House Ag/Energy & Commerce committees with justification; establishment of an Independent Advisory Board (4-8 members; 4 appointed by Secretaries, 2 of whom non-federal; up to 1 per relevant committee by ranking minority-party member; nutrition/food-science expertise) that submits scientific questions within 1 year then disbands. Adds an "Exclusion" barring guidance on topics not relevant to dietary guidance (taxation, social welfare policy, Federal feeding-program purchases, food/ag production practices, food labeling, socioeconomic status, race, religion, ethnicity, culture, nutrition regulations). Adds "evidence-based review" definition (totality of evidence, standardized rating methods, external nongovernment peer review), strength-of-evidence ratings (incl. Healthy Eating

Index impact), and transparency requirements (advisory members as special government employees, OGE Form 450 financial disclosure, 10-year funding/affiliation reporting, public disclosure within 30 days, conflict-of-interest management plan). (b) The 2025 Dietary Guidelines remain controlling until the first report under the amended section.

- Amends: Section 301(a) of the National Nutrition Monitoring and Related Research Act of 1990 (7 U.S.C. 5341(a)).
- Numbers: Frequency every 10 years (from 5); Board 4-8 members; 90-day notice; 30-day disclosure publication; 10-year affiliation lookback.
- Dates: "Beginning with the 2030 report"; 2025 DGA controlling until first new report.
- Type: REFORM (major restructuring) + STUDY/PROCESS.
- Affected: USDA/HHS, Dietary Guidelines Advisory Committee, nutrition-science community, Congress; downstream effects on all federal feeding programs that key off the DGA.
- Flag: Notable/controversial - moves DGA to a 10-year cycle, adds APA rulemaking, an Independent Advisory Board, and a broad "exclusion" list (bars consideration of socioeconomic status, race, culture, ag production practices, food labeling, taxation, etc.) in the guidelines.

Sec. 4309 - Fresh fruits and vegetables categorization

- Does: Directs the Secretary (with HHS) to develop a "low-risk classification" for fresh fruits, vegetables, and other foods typically consumed raw/minimally processed, and update nutrition/food-safety/preparation regulations and guidelines for child care providers accordingly. In developing it, consider limited foodborne-illness risk, best practices (incl. handwashing-sink access) that don't obstruct access, and existing barriers privileging packaged/processed foods. Requires interagency coordination so state regulations reflect the classification and protect child care providers from penalties for serving compliant foods. States that fail to comply "may have funds withheld."
- Amends: New freestanding provision (USDA + HHS coordination).
- Numbers: -
- Dates: -
- Type: REFORM / NEW (child-care food-safety classification).
- Affected: Child care providers, USDA/HHS, states (potential fund withholding for noncompliance).
- Flag: Notable - includes a state fund-withholding compliance mechanism.

Sec. 4310 - Promoting Access to Local Agriculture

- Does: (a) Directs the Secretary to create a streamlined application process for direct-marketing farmers/ranchers to become vendors across "covered nutrition programs" (SNAP; Senior FMNP; WIC incl. its FMNP; GusNIP as practicable) - either a single application or an information-sharing system that prequalifies approved vendors across programs; report to House/Senate Ag committees within 1 year. Also requires a streamlined benefit-processing process using standardized technology (e.g., single equipment piece or mobile app). (b) Amends §7(f)(2) of the Food and Nutrition Act (7 U.S.C. 2016(f)(2)) by redesignating (C) as (D) and adding new (C): Secretary must ensure equipment/systems made available to certain entities are appropriate, including wireless/mobile processing equipment for farmers markets and direct-to-consumer markets.
- Amends: New freestanding provision (subsection (a)); Section 7(f)(2) (7 U.S.C. 2016(f)(2)) (subsection (b)).
- Numbers: -
- Dates: Report within 1 year of enactment.
- Type: NEW + REFORM (cross-program vendor streamlining).
- Affected: Direct-marketing farmers/ranchers, farmers markets, SNAP/WIC/SFMNP/GusNIP administrators, recipients.
- Flag: -

Cross-cutting flags for this title

- Reauthorization horizon: Core SNAP and most allied programs extended from FY2023 to FY2031 (recurring "2023"->"2031" amendments). Several new/expanded programs funded FY2027-FY2031.
- Error-rate provisions are administrative, NOT a benefit cost-share: The only payment-error-rate thresholds in this title are in Sec. 4103 (6% trigger for contractor staffing flexibility; expires <6% for temporary shortages) and Sec. 4105 (report all identified errors, regardless of dollar amount, without changing the small-error tolerance). There is NO provision in this engrossed Title IV requiring states to share in SNAP benefit costs based on payment error rate, and no increase in the state share of administrative costs tied to error rates.
- ABSENT - Thrifty Food Plan: No section in this title re-evaluates or constrains the Thrifty Food Plan, and no cost-neutrality

requirement on TFP re-evaluation appears. (None of Secs. 4101-4115 touch §3(u)/TFP.)

- ABSENT - ABAWD / work requirements: No expansion of work requirements, no change to ABAWD age ranges, time limits, or exemptions appears anywhere in this title.

- ABSENT - Eligibility restrictions: No provisions restricting SNAP eligibility by immigration status, and no change to broad-based categorical eligibility, appear in this title.

- ABSENT - SNAP-Ed and other cuts: No SNAP-Ed (nutrition education) cut or repeal appears; the title contains no DECREASE/REPEAL of benefit levels or program funding. Direction of substantive changes is generally neutral-to-expansionary (new local-food purchasing, dairy incentive increase \$20M->\$50M, HFFI \$125M->\$135M, new pilots).

- Food-choice / "what SNAP can buy" trajectory: Sec. 4101 (chronic-disease framing), Sec. 4110 (animal protein incentive), Sec. 4114 (hot rotisserie chicken eligible), and Sec. 4115 (report on demonstration projects redefining eligible "food," with legislative recommendations) collectively set up future debate over restricting/expanding eligible SNAP foods - but impose no restriction here.

- Buy American / geopolitical: Sec. 4302 imposes a hard 95% domestic-purchase floor for school meals with narrow waivers and a China/Russia poultry & seafood import ban - the most restriction-heavy provision in the title (school meals, not SNAP).

- Dietary Guidelines overhaul (Sec. 4308): Most consequential non-SNAP reform - 10-year cycle, APA rulemaking, Independent Advisory Board, conflict-of-interest transparency, and a broad "exclusion list" barring consideration of socioeconomic status, race, culture, taxation, ag production practices, and food labeling. Affects all programs keyed to the DGA. 2025 DGA controls in the interim.

- New spending programs: Local Farmers Feeding Our Communities (\$200M/yr FY2027-2031, ~\$1B); CSFP home-delivery pilot (\$10M/yr); Tribal CSFP self-determination demo (\$1M + \$1.2M/yr staffing); dairy incentive increase; HFFI increase.

- State compliance levers: Sec. 4309 ("may have funds withheld" for child-care food-safety noncompliance) is the only fund-withholding mechanism; Sec. 4103 anti-supplant/CBA protections constrain how states use contractor flexibility.

- Transcription note: Sec. 4106 source shows "2031 (unbalanced quote) - an OCR/formatting artifact; substance is reauthorization through FY2031.

Title V - Credit - Notes

Title-level summary

Title V reauthorizes and substantially expands USDA Farm Service Agency (FSA) farm credit programs through FY2031 and makes a sweeping set of changes to the Consolidated Farm and Rural Development Act (ConActR / CONACT, 7 U.S.C. 1921 et seq.) and the Farm Credit Act of 1971 (12 U.S.C. 2001 et seq.). The headline changes are large increases to FSA loan limits: direct farm ownership rises from \$600,000 to \$850,000 and guaranteed farm ownership from \$1,750,000 to \$3,500,000; direct operating rises from \$400,000 to \$750,000 and guaranteed operating from \$1,750,000 to \$3,000,000; and the microloan cap doubles from \$50,000 to \$100,000. It eases eligibility (shifting "a majority" ownership tests to "at least a 50 percent," and accommodating qualified operators, operating-only entities, and embedded entities), shortens the farm-management experience requirement from 3 years to 2, and creates new tools including guaranteed-to-direct loan refinancing, an expedited approval pilot, and heirs'-property legal-services cooperative agreements (\$60M/yr FY2027-2031). It authorizes Farm Credit System (FCS) institutions to finance essential rural community facilities (capped at 15% of outstanding loans) and makes several FCS regulatory and lending-authority changes. A large technical-corrections section (Sec. 5508) modernizes agency references, removes obsolete county-committee roles, and adjusts inventory-property and interest-rate provisions. Most reauthorizations extend sunset dates from 2023 to 2031.

Section-by-section

Sec. 5101 - Persons eligible for real estate loans

- Does: Loosens owner-operator eligibility for direct farm ownership loans. Changes ownership test from "a majority" to "at least a 50 percent." Replaces subparagraphs (A)/(B) of §302(a)(2): (A) deems "qualified operators" (as defined by the Secretary) to meet the operator requirement; (B) allows an operating-only applicant to qualify if one or more owners of the farm real estate owns at least 50% (or other % Secretary sets) of the applicant; (C) deems an embedded entity (or chain of entities) to meet the direct-ownership requirement if at least 75% of total ownership interests is owned, directly or indirectly, by qualified operators.
- Amends: §302(a) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1922(a)).
- Numbers: "at least a 50 percent" (replaces "a majority"); 50% owner threshold for operating-only entities; 75% qualified-operator threshold for embedded entities.
- Dates: -
- Type: REFORM
- Affected: Winners - operating-only entities, entities with complex/embedded ownership structures, qualified operators seeking direct farm ownership loans.
- Flag: Broadens access for entity/operator structures previously excluded by stricter ownership tests.

Sec. 5102 - Experience requirements

- Does: Reduces the farm-management experience requirement for farm ownership loans. Strikes "3 years" -> "2 years" in the eligibility matter; in the alternative-experience provisions strikes "3-year" -> "2-year" and "1 or 2 years" -> "1 year"; adds "or operational" before "responsibilities"; and adds a new catch-all alternative criterion clause (ix): "met any other criteria established by the Secretary."
- Amends: §302(b) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1922(b)).
- Numbers: Experience requirement: 3 years -> 2 years.
- Dates: -
- Type: DECREASE (lowers barrier) / REFORM
- Affected: Winners - beginning farmers and newer operators (less experience needed to qualify); Secretary gains discretion to add alternative criteria.
- Flag: -

Sec. 5103 - Refinancing of indebtedness into direct loans

- Does: Adds new §303(d) directing the Secretary (acting through FSA Administrator), within 1 year of enactment, to issue regulations allowing certain FSA-guaranteed loans to be refinanced into FSA direct loans. Eligibility limited to loans that are:

distressed/nonperforming without positive cash flow at lender's rates/terms; borrower in monetary default and subject to liquidation/foreclosure; with a reasonable chance of operational success; and meeting other taxpayer-protective criteria. Allows cross-program refinancing (guaranteed under one program into direct under another). Resulting direct loans remain subject to the maximum direct-loan limits (incl. §§305 and 313).

- Amends: §303 of the Consolidated Farm and Rural Development Act (7 U.S.C. 1923) - adds new subsection (d).
- Numbers: Subject to §305/§313 direct-loan caps (i.e., \$850,000 FO / \$750,000 OL post-this-title).
- Dates: Regulations within 1 year of enactment.
- Type: NEW
- Affected: Winners - distressed guaranteed-loan borrowers facing foreclosure who can be salvaged; FSA gains a workout tool.
- Flag: New guaranteed-to-direct conversion authority; rulemaking deadline.

Sec. 5104 - Conservation loan and loan guarantee program

- Does: Adds new beneficiary category to conservation loan priorities: producers using loans to adopt precision agriculture practices or acquire precision agriculture technologies, including for participation in EQIP. Reauthorizes the conservation loan and loan guarantee program.
- Amends: §304 of the Consolidated Farm and Rural Development Act (7 U.S.C. 1924) - subsection (d) (adds paragraph (4)) and subsection (h) (extends sunset).
- Numbers: -
- Dates: Authorization extended from 2023 -> 2031.
- Type: EXTEND / REFORM
- Affected: Winners - producers adopting precision agriculture and conservation/EQIP participants.
- Flag: -

Sec. 5105 - Limitations on amount of farm ownership loans

- Does: Raises maximum farm ownership (FO) loan amounts. Direct FO loan ceiling: \$600,000 -> \$850,000. Guaranteed FO loan ceiling: \$1,750,000 -> \$3,500,000. Resets the inflation-adjustment base year from 2019 to 2026.
- Amends: §305(a)(2) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1925(a)(2)).
- Numbers: Direct FO: \$600,000 -> \$850,000. Guaranteed FO: \$1,750,000 -> \$3,500,000 (guaranteed amount doubles). Inflation indexing begins FY2026 (was FY2019).
- Dates: Inflation adjustment "beginning with fiscal year 2026."
- Type: INCREASE
- Affected: Winners - farm purchasers, especially in high-land-value areas; larger operations. Guaranteed lenders (banks/FCS) can write larger guaranteed FO loans.
- Flag: Headline number - guaranteed FO limit doubles to \$3.5M.

Sec. 5106 - Inflation percentage

- Does: Changes the index used to inflation-adjust farm ownership loan limits. Replaces the "Prices Paid By Farmers Index" (12-month period ending July 31) basis with a new basis: the equally-weighted average of per-acre U.S. farm real estate value, per-acre U.S. cropland value, and per-acre U.S. pasture value (from NASS's Agricultural Land Values report), comparing the preceding year to the year immediately preceding it.
- Amends: §305(c) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1925(c)) - paragraphs (1) and (2).
- Numbers: Three components weighted equally (real estate, cropland, pasture per-acre values).
- Dates: -
- Type: REFORM
- Affected: Ties FO loan-limit escalation to land-value appreciation rather than input prices; tends to track real-estate inflation. Affects all future FO borrowers via adjusted caps.
- Flag: Indexing methodology change could materially affect future limit growth.

Sec. 5107 - Authority of Farm Credit System institutions to provide financial support for essential rural community facilities projects

- Does: Adds new §4.18B to the Farm Credit Act of 1971, authorizing Farm Credit Banks, direct lender associations, and banks for cooperatives to make/participate in loans and provide technical and financial assistance for essential community facilities in

rural areas eligible for financing under §306(a) of the ConActR. Only §306(a)-eligible entities may receive assistance. Limits: aggregate financing/assistance under this section may not exceed 15% of the institution's total outstanding loans; institution must first offer an interest in the financing (on reasonable terms) to at least one non-FCS domestic lending institution (other than USDA) and report the offer to the Farm Credit Administration (FCA), giving priority to community banks in the facility's service area. Requires an annual FCA report to House and Senate Agriculture Committees (also posted on FCA website).

- Amends: Farm Credit Act of 1971 - inserts new §4.18B after §4.18A (12 U.S.C. 2206a). References §306(a) ConActR.

- Numbers: Aggregate cap = 15% of total outstanding loans of the institution. Offer to ≥1 non-FCS lender required.

- Dates: Effective October 1, 2026. First FCA report within 1 year of enactment, then annual.

- Type: NEW

- Affected: Winners - FCS institutions (new lending authority); rural communities needing essential community facilities. Mixed - commercial/community banks (offered participation but face new FCS competition); community banks get priority on offered participations.

- Flag: Notable expansion of FCS lending scope into rural community facilities; community-bank offer/priority requirement is a guardrail.

Sec. 5108 - Down payment loan program

- Does: Adjusts the down payment loan program cap calculation. Changes "exceed 45 percent of the least" to "exceed, subject to section 305(a), 45 percent of the lesser"; conforms conjunctions in subparagraphs (A)/(B); and strikes subparagraph (C) (removing one of the prior cap-comparison prongs).

- Amends: §310E(b)(1) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1935(b)(1)).

- Numbers: 45% cap retained; now subject to §305(a) FO limit; reduces comparison from three prongs to two ("lesser" of two).

- Dates: -

- Type: REFORM

- Affected: Beginning and socially disadvantaged farmers using the down payment program (links cap to the raised §305(a) FO limit).

- Flag: -

Sec. 5109 - Heirs property

- Does: (a) Reauthorizes the heirs' property intermediary relending program (2023 -> 2031). (b) Adds new §509 to Title V of the Rural Development Act of 1972, directing the Secretary to enter cooperative agreements with eligible nonprofit entities to provide legal/accounting services at no cost to "underserved heirs" to resolve undivided (fractional/multiple-owner) ownership interests on farmland/forest land - to transition land into or maintain agricultural production and to improve access to USDA programs. Agreements run up to 4 years (extendable if ownership unresolved); require annual progress reports; allow termination for failure to demonstrate success; permit limited service to non-underserved heirs in defined circumstances. Defines "eligible entity," "limited resource heir," and "underserved heir" (limited resource heir; member of a socially disadvantaged group per §2501(a) of the 1990 FACT Act; or a veteran per 38 U.S.C. 101(2)). Requires annual reports to House/Senate Agriculture Committees. Authorizes \$60,000,000 per fiscal year for FY2027-2031. (c) Amends §310I(f) to require the relending-program operations/outcomes report annually (rather than once, 1 year after enactment).

- Amends: §310I(g) (7 U.S.C. 1936c(g)); §310I(f) (7 U.S.C. 1936c(f)); and Title V of the Rural Development Act of 1972 (7 U.S.C. 2661-2669) - new §509.

- Numbers: Authorization \$60,000,000/yr FY2027-2031; cooperative agreements ≤4 years; limited-resource thresholds (income at/below national poverty level for family of 4, or <50% of county median household income over prior 2 years).

- Dates: Relending program reauthorized 2023 -> 2031; appropriations FY2027-2031; annual congressional reports.

- Type: NEW (cooperative-agreement program) / EXTEND (relending) / STUDY-OR-REPORT (annual reports)

- Affected: Winners - underserved heirs (socially disadvantaged groups, veterans, limited-resource heirs) with fractional/heirs' property; nonprofit legal/accounting service providers.

- Flag: Significant equity-oriented provision with dedicated \$60M/yr funding; targets the long-standing heirs'-property barrier to USDA program access.

Sec. 5110 - Prompt approval of loans and loan guarantees

- Does: Replaces §333A(g)(1) with new provisions: requires the Secretary to provide lenders a short, simplified application form for real estate and operating guaranteed loans of not more than \$1,000,000; requires notice of approval/disapproval within 5

business days of a complete application from a Preferred Certified Lender or Certified Lender; and caps the maximum guarantee percentage on such loans at 90% (loans <=\$125,000), 75% (>\$125,000 and <=\$500,000), or 50% (>\$500,000 and <=\$1,000,000). Redesignates old (2)/(3) as (3)/(4) and inserts new paragraph (2) requiring an accelerated application process for Business & Industry (B&I) guaranteed loans to rural entities (§310B(a)(2)(A)) up to \$400,000, extendable to \$600,000 if no significant increased default risk. Strikes subsection (h).

- Amends: §333A of the Consolidated Farm and Rural Development Act (7 U.S.C. 1983a).
- Numbers: Simplified form threshold <=\$1,000,000; 5-business-day notice; guarantee caps 90%/75%/50% tied to \$125,000 / \$500,000 / \$1,000,000 tiers; B&I accelerated process <=\$400,000 (up to \$600,000 if low risk).
- Dates: -
- Type: REFORM (process streamlining)
- Affected: Winners - Preferred/Certified Lenders and their borrowers (faster decisions); rural B&I loan applicants. Note: the new tiered guarantee caps could *reduce* the maximum guarantee % on larger streamlined loans versus standard guarantees.
- Flag: Guarantee-percentage ceilings (esp. 50% on the largest tier) are a notable tradeoff for the expedited track.

Sec. 5111 - Expedited approval pilot program

- Does: Adds new §333E creating a pilot program (begun within 1 year of enactment) for an expedited qualification/approval process for borrowers seeking a direct FO loan or a guaranteed FO loan serviced by a Preferred Certified Lender (§339(d)) for a creditworthy borrower. Directs the Secretary to consider streamlining §339(c)(5) certifications/assessments and §360(b) determinations. Cannot waive substantive requirements other than application-timing requirements. Requires annual report to House/Senate Agriculture Committees. Authority terminates September 30, 2031. Conforming amendments to §346(b)(2) insert "to the extent practicable" qualifiers on certain timing deadlines (April 1 and September 1 of the fiscal year).
- Amends: Subtitle D of the ConActR - new §333E (after §333D, 7 U.S.C. 1983d); conforming amendments to §346(b)(2) (7 U.S.C. 1994(b)(2)).
- Numbers: -
- Dates: Pilot begins within 1 year of enactment; terminates September 30, 2031; annual reports.
- Type: NEW (pilot) / STUDY-OR-REPORT
- Affected: Winners - creditworthy direct/guaranteed FO borrowers and Preferred Certified Lenders.
- Flag: Sunsets 9/30/2031.

Sec. 5201 - Persons eligible for operating loans

- Does: Mirrors Sec. 5101 for operating loans. Changes ownership test from "a majority" to "at least a 50 percent." Restructures §311(a)(2) into "Special rules": (A) deems qualified operators (as defined by Secretary) to meet the operator requirement; (B) covers operating-only entities. Revises the embedded-entity test to require at least 75% of total ownership interests be owned, directly or indirectly, by qualified operators of the farm.
- Amends: §311(a) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1941(a)).
- Numbers: "at least a 50 percent" (was "a majority"); 75% qualified-operator threshold for embedded entities.
- Dates: -
- Type: REFORM
- Affected: Winners - operating-only and embedded-entity applicants; qualified operators seeking operating loans.
- Flag: -

Sec. 5202 - Limitations on amount of operating loans

- Does: Raises maximum operating (OL) loan amounts. Direct OL ceiling: \$400,000 -> \$750,000. Guaranteed OL ceiling: \$1,750,000 -> \$3,000,000. Resets inflation-adjustment base year from 2019 to 2026.
- Amends: §313(a)(1) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1943(a)(1)).
- Numbers: Direct OL: \$400,000 -> \$750,000. Guaranteed OL: \$1,750,000 -> \$3,000,000. Inflation indexing begins FY2026 (was FY2019).
- Dates: Inflation adjustment "beginning with fiscal year 2026."
- Type: INCREASE
- Affected: Winners - operating-loan borrowers (rising input costs); guaranteed lenders.
- Flag: Headline number - direct OL nearly doubles; guaranteed OL up to \$3M.

Sec. 5203 - Limitation on microloan amounts

- Does: Doubles the operating microloan cap.
- Amends: §313(c)(2) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1943(c)(2)).
- Numbers: Microloan cap: \$50,000 -> \$100,000.
- Dates: -
- Type: INCREASE
- Affected: Winners - small, beginning, and socially disadvantaged farmers who rely on microloans.
- Flag: -

Sec. 5204 - Cooperative lending pilot projects

- Does: Reauthorizes the cooperative lending pilot projects.
- Amends: §313(c)(4)(A) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1943(c)(4)(A)).
- Numbers: -
- Dates: Extended 2023 -> 2031.
- Type: EXTEND
- Affected: Cooperative-lending pilot participants.
- Flag: -

Sec. 5301 - Persons eligible for emergency loans

- Does: Reorganizes and loosens emergency (EM) loan eligibility. Re-letters internal cross-references; changes ownership test from "a majority" to "at least a 50 percent"; strikes the 5th sentence; adds new paragraph (2) "Special rules" mirroring the FO/OL pattern - (A) qualified operators meet the operator requirement; (B) operating-only entities qualify if an owner holds $\geq 50\%$ (or other % set by Secretary); (C) embedded entities qualify if $\geq 75\%$ of total ownership interests is owned by qualified operators. Restructures the section opening into new "321. Eligibility for loans / (a) In general / (1) Eligibility requirements."
- Amends: §321 of the Consolidated Farm and Rural Development Act (7 U.S.C. 1961).
- Numbers: "at least a 50 percent" (was "a majority"); 50% owner threshold; 75% embedded-entity threshold.
- Dates: -
- Type: REFORM
- Affected: Winners - emergency-loan applicants structured as operating-only or embedded entities; qualified operators.
- Flag: -

Sec. 5401 - Beginning farmer and rancher individual development accounts pilot program

- Does: Reauthorizes the beginning farmer and rancher individual development accounts (IDA) pilot program.
- Amends: §333B(h) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1983b(h)).
- Numbers: -
- Dates: Extended 2023 -> 2031.
- Type: EXTEND
- Affected: Beginning and socially disadvantaged farmers (IDA matched-savings participants).
- Flag: -

Sec. 5402 - Loan authorization levels

- Does: Reauthorizes FSA loan authorization (program) levels.
- Amends: §346(b)(1) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1994(b)(1)).
- Numbers: -
- Dates: Extended 2023 -> 2031.
- Type: EXTEND
- Affected: All FSA farm-loan program borrowers (sustains program funding authority).
- Flag: -

Sec. 5403 - Loan fund set-asides

- Does: Reauthorizes the loan fund set-asides (targeted funding reserves, including beginning/socially disadvantaged farmer

set-asides).

- Amends: §346(b)(2)(A)(ii)(III) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1994(b)(2)(A)(ii)(III)).
- Numbers: -
- Dates: Extended 2023 -> 2031.
- Type: EXTEND
- Affected: Beginning and socially disadvantaged farmers (targeted set-aside funds).
- Flag: -

Sec. 5404 - Use of additional funds for direct operating microloans under certain conditions

- Does: Reauthorizes authority to use additional funds for direct operating microloans under certain conditions.
- Amends: §346(b)(5)(C) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1994(b)(5)(C)).
- Numbers: -
- Dates: Extended 2023 -> 2031.
- Type: EXTEND
- Affected: Microloan borrowers.
- Flag: -

Sec. 5501 - Extension of credit to businesses providing services to producers or harvesters of aquatic products

- Does: Expands Farm Credit System eligibility to include persons furnishing services directly related to the operating needs of producers or harvesters of aquatic products. Amends FCA §1.9 (adds new paragraph (3) to the eligibility list, redesignating old (3) as (4)); §1.11(c)(1) (adds such persons to authorized purposes for extensions of credit); and §2.4(a) (Production Credit Associations - adds new paragraph (4)).
- Amends: Farm Credit Act of 1971 §1.9 (12 U.S.C. 2017), 1.11(c)(1) (12 U.S.C. 2019(c)(1)), 2.4(a) (12 U.S.C. 2075(a)).
- Numbers: -
- Dates: -
- Type: REFORM (eligibility expansion)
- Affected: Winners - aquaculture/fisheries service businesses gain FCS credit access.
- Flag: -

Sec. 5502 - Export finance authority

- Does: Changes the cap basis for bank-for-cooperatives export finance authority from a capital-based measure to a total-assets measure.
- Amends: Farm Credit Act of 1971 §3.7(b)(2)(A)(i) (12 U.S.C. 2128(b)(2)(A)(i)).
- Numbers: "50 percent of the bank's capital" -> "15 percent of the total assets of the bank" (both occurrences).
- Dates: -
- Type: REFORM
- Affected: Banks for cooperatives (changes - likely expands - permissible export-finance capacity by shifting to a total-assets denominator).
- Flag: Capital-based -> total-assets-based limit; practical effect on capacity depends on bank balance-sheet ratios.

Sec. 5503 - Support for rural water and waste systems

- Does: Restructures FCA §3.7(f) and adds new authority. Redesignates existing paragraphs; defines "rural area" for guaranteed loans by reference to §343(a)(13)(A) of the ConActR; and adds new paragraph (2) authorizing banks for cooperatives to make/participate in loans and provide technical/financial assistance to cooperatives and other public or private entities (except the Federal Government) for installing/maintaining/expanding/improving/operating rural-area facilities for waste processing or disposal (from any source), telecommunication services, and producing electricity (from any source) for the borrower's use or sale.
- Amends: Farm Credit Act of 1971 §3.7(f) (12 U.S.C. 2128(f)); references §343(a)(13)(A) ConActR (7 U.S.C. 1991(a)(13)(A)).
- Numbers: -
- Dates: -
- Type: REFORM (expanded lending authority)

- Affected: Winners - rural cooperatives/entities financing water, waste, telecom, and electricity facilities; banks for cooperatives.
- Flag: -

Sec. 5504 - Farm credit system regulation

- Does: Adds new FCA §4.21 establishing the Farm Credit Administration as the sole and independent regulator of the Farm Credit System for activities subject to the Act; preserves Farm Credit System Insurance Corporation authority; and provides that later-enacted laws/rules do not modify or supersede the FCA's exclusive authority unless they do so expressly.
- Amends: Farm Credit Act of 1971 - inserts new §4.21 after §4.20.
- Numbers: -
- Dates: Effective on date of enactment.
- Type: NEW / REFORM
- Affected: Affirms FCA's exclusive jurisdiction; could limit other regulators' reach over FCS activities; FCSIC authority preserved.
- Flag: Notable - "sole and independent regulator" with express-statement override clause is a jurisdictional/preemption guardrail favoring FCA.

Sec. 5505 - Loan guarantees

- Does: Expands the type of loan guarantees referenced in the secondary-market (Farmer Mac) provisions to include loans guaranteed under §9007(c)(1) of the Farm Security and Rural Investment Act of 2002 (Rural Energy for America Program / REAP).
- Amends: Farm Credit Act of 1971 §8.0(7)(B) (12 U.S.C. 2279aa(7)(B)); references 7 U.S.C. 8107(c)(1).
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: Winners - REAP-guaranteed loan borrowers/lenders (eligible for Farmer Mac secondary-market treatment).
- Flag: -

Sec. 5506 - Standards for qualified loans

- Does: Updates Farmer Mac qualified-loan standards. In §8.8(a)(3) replaces "mortgage investors" with "investors in those types of loans." Replaces §8.8(c) with a new "Qualified loan limitation for single borrowers": the Corporation may not treat a loan secured by agricultural real estate as qualified when the cumulative principal of all loans to a single borrower or related borrowers exceeds 10% of the Corporation's tier 1 capital (as defined by FCA); FCA may set a lower single-borrower concentration limit if needed for safe and sound operation.
- Amends: Farm Credit Act of 1971 §8.8 (12 U.S.C. 2279aa-8).
- Numbers: Single-borrower concentration limit = 10% of tier 1 capital (FCA may set lower).
- Dates: -
- Type: REFORM
- Affected: Farmer Mac (concentration risk limits); large single borrowers/related-borrower groups.
- Flag: Tier 1 capital-based single-borrower limit is a safety-and-soundness measure.

Sec. 5507 - State agricultural mediation programs

- Does: (a) Adds a definition of "State" for the agricultural mediation title (meaning per §2 of the Animal Welfare Act, and including any Indian tribe as defined in §4 of the Indian Self-Determination and Education Assistance Act). (b) Raises the matching-grant cap to States and adds a carryover provision allowing a State to carry over up to 25% of unexpended financial assistance to the next fiscal year without deduction from subsequent assistance. (c) Reauthorizes appropriations.
- Amends: Agricultural Credit Act of 1987 §501 (7 U.S.C. 5101), 502 (7 U.S.C. 5102), 506 (7 U.S.C. 5106).
- Numbers: Matching-grant cap: \$500,000 -> \$700,000; carryover up to 25% of unexpended funds.
- Dates: Appropriations extended 2023 -> 2031.
- Type: INCREASE / EXTEND / REFORM
- Affected: Winners - State agricultural mediation programs (incl. tribes now expressly included); farmers/lenders using mediation.
- Flag: Tribes expressly added to "State" definition.

Sec. 5508 - Technical corrections

- Does: Extensive technical/conforming corrections across the ConActR and Farm Credit Act. Highlights:
 - (a) Eliminates obsolete county-committee references (§§333A, 336, 339, 359); removes county-committee certification of borrower eligibility (FSA staff/borrower-meeting standard instead).
 - (b) Revises loan-assessment requirements (§360(d)(1)) to "periodic review (as determined by the Secretary) of direct and guaranteed loans" (drops mandatory annual review of direct loans).
 - (c) Updates outdated agency references throughout (Farmers Home Administration / Rural Development Administration / Rural Electrification Administration -> Farm Service Agency, Rural Development, Rural Utilities Service) across many sections.
 - (d) Amends §335(c)(1) inventory-property timelines: subparagraph (A) "15" -> "60"; (B)(i) "135" -> "180" and adds "suitable for farming and ranching, as determined by the Secretary"; (C) revises disposition timing (e.g., not later than 60 days after the 180-day period for property not suitable for farming/ranching).
 - (e) Corrects "infeasible inventory property disposition framework" (§§331(b)(1), 335(f)) - strikes certain paragraphs, redesignates, and requires the Secretary to issue regulations ensuring release of funds to each borrower.
 - (f) Replaces "district office" with "District Director" (§333A(a)(2)(B)).
 - (g) Replaces obsolete "Trust Territory of the Pacific Islands" with "the Federated States of Micronesia, the Republic of Palau, and the Republic of the Marshall Islands" (§343(a)(6)).
 - (h) Revises farmer-program-loan definition (§343(a)(10)) to fold in conservation loans (CL under §304) on/after June 18, 2008.
 - (i) Eliminates inconsistency for beginning farmers (§343(a)(11)(C)) - "related to one another by blood or marriage" -> "qualified beginning farmers."
 - (j) Updates provisions to reflect repurposing of conservation loan provisions (§§303(a), 310D).
 - (k) Updates notice method (§353(i)(1)) - "registered or certified mail" -> "any method that provides documentation of delivery."
 - (l) "Soil Conservation Service" -> "Natural Resources Conservation Service" (§306(a)(13)).
 - (m) Clarifies interest-rate requirements (§§307(a)(3)(B), 316(a)(2)): rate "be equal to the interest rate for direct farm ownership loans under this subtitle, not to exceed 5 percent per year."
 - (n) Corrects a heading (§309(h)(6)).
 - (o)-(t) Various deletions of superfluous restrictions, confusing guarantee references, obsolete reporting requirements (§346 subsections (c)/(d) struck), obsolete appeals provisions (replacing §333B references with National Appeals Division / reorganization-act citations), removal of a pilot-project constraint (§333D(a)), and a Farmer Mac heading fix (§8.8(a)(3) "Mortgage loans" -> "Loan quality").
- Amends: Numerous sections of the Consolidated Farm and Rural Development Act (7 U.S.C. 1921 et seq.) and the Farm Credit Act of 1971.
- Numbers: Inventory timelines 15->60 days, 135->180 days, 60 days after 180-day period; interest-rate cap not to exceed 5% per year.
- Dates: June 18, 2008 reference (conservation loan definition).
- Type: REFORM (technical/conforming corrections; some substantive)
- Affected: FSA borrowers (inventory disposition, interest rates, notice methods); modernizes agency nomenclature. Note (b) and (d)/(e) are substantively meaningful, not purely cosmetic.
- Flag: Despite the "technical corrections" label, subsections (b), (d), (e), (m) carry real operational effects (loan reviews, inventory-property disposition, interest-rate parity/cap).

Sec. 5509 - Report on improving creditworthiness of direct and guaranteed loan borrowers

- Does: Requires the Secretary, within 1 year of enactment, to report to House/Senate Agriculture Committees evaluating the feasibility of requiring adoption of certain risk-management practices as a condition for approving certain direct/guaranteed farm loans. Practices to evaluate: hedging/marketing price-or-revenue risk strategies; insurance optimization/coordination; periodic financial reporting/management; cash-management services; integrated monitoring/analytics tools; other risk mitigation; and voluntary lender incentives. Also evaluate feasibility of a certification program identifying loans approved contingent on enhanced risk-management practices. Applies only to operating, production, and working-capital loans for agricultural production - not real estate, rural development, housing, B&I, or other non-operating programs.
- Amends: New freestanding provision (report requirement; not codified).
- Numbers: -
- Dates: Report within 1 year of enactment.
- Type: STUDY-OR-REPORT
- Affected: Potentially operating/production-loan borrowers (future conditions); lenders (voluntary incentives). Study-only at this stage.

- Flag: Foreshadows possible future risk-management conditions on operating loans.

Sec. 5510 - Farm Credit Administration option to examine low-risk Farm Credit System institutions on a 24-month cycle

- Does: Amends FCA examination cadence (§5.19(a)): changes "in no event" to "not," and authorizes FCA, in its sole discretion, to extend the time between mandatory examinations of institutions it deems small, low-risk to not more than 24 months.
- Amends: Farm Credit Act of 1971 §5.19(a) (12 U.S.C. 2254(a)).
- Numbers: Mandatory-exam interval extendable to not more than 24 months for small, low-risk institutions.
- Dates: Effective October 1, 2026.
- Type: REFORM
- Affected: Winners - small, low-risk FCS institutions (reduced exam frequency); FCA gains discretion.
- Flag: Lengthened examination cycle is a deregulatory/relief measure for small institutions.

Cross-cutting flags for this title

- Loan-limit increases are the marquee changes. Direct FO \$600,000->\$850,000; guaranteed FO \$1,750,000->\$3,500,000 (Sec. 5105); direct OL \$400,000->\$750,000; guaranteed OL \$1,750,000->\$3,000,000 (Sec. 5202); microloan \$50,000->\$100,000 (Sec. 5203). Inflation indexing rebased from FY2019 to FY2026, and the index switched from input prices to land values (Sec. 5106) - likely faster future growth in FO caps.
- Eligibility liberalization is systematic. Across FO (5101), OL (5201), and EM (5301) loans, "a majority" ownership test becomes "at least a 50 percent," and new "qualified operator," "operating-only entity" (>=50% owner), and "embedded entity" (>=75% qualified-operator-owned) rules broaden access for complex farm business structures.
- Beginning / socially disadvantaged / underserved farmer support: shorter 2-year experience requirement (5102); reauthorized IDA pilot (5401), loan set-asides (5403), down payment program tied to higher FO cap (5108); and a new, funded heirs'-property legal-services program (\$60M/yr FY2027-2031) targeting socially disadvantaged groups, veterans, and limited-resource heirs (5109).
- Farm Credit System expansions and protections: new authority for essential rural community facilities capped at 15% of outstanding loans (5107); aquaculture-services eligibility (5501); rural water/waste/telecom/electricity financing (5503); export-finance limit rebased to 15% of total assets (5502); FCA established as "sole and independent regulator" with express-override clause (5504); Farmer Mac single-borrower limit set at 10% of tier 1 capital (5506); and a 24-month exam option for small, low-risk institutions (5510).
- Process streamlining with tradeoffs: guaranteed-to-direct refinancing (5103), simplified applications and 5-business-day decisions but tiered guarantee caps of 90%/75%/50% (5110), and an expedited approval pilot sunseting 9/30/2031 (5111).
- Reauthorizations consistently extend sunsets from 2023 -> 2031 (5104, 5109(a), 5204, 5401, 5402, 5403, 5404, 5507(c)).
- "Technical corrections" (5508) contains substantive items - dropping mandatory annual direct-loan review, revised inventory-property disposition timelines (15->60, 135->180 days), and a 5% interest-rate cap parity provision - beyond pure nomenclature updates.
- Two reports/studies: Sec. 5509 (risk-management loan conditions feasibility study, operating loans only) and recurring annual reports (5107, 5109, 5111).
- Effective-date clustering on October 1, 2026 for FCS provisions (5107, 5510); Sec. 5504 effective at enactment.

Title VI - Rural Development - Notes

Title-level summary

Title VI reauthorizes USDA Rural Development programs through FY2031 (most prior authorizations ran through FY2023), with the bulk of dollar authorizations shifted to "fiscal years 2027 through 2031." Its signature reform is a wholesale rewrite of the rural broadband program (Sec. 6201), renaming it the ReConnect Rural Broadband Program, folding the appropriations-rider ReConnect pilot into the permanent Sec. 601 RE Act authority at \$350M/yr, and raising the baseline broadband definition from 25/3 Mbps to 50/25 Mbps. The title is organized into five subtitles: A (rural health - telemedicine/community facilities), B (broadband), C (miscellaneous - energy savings, precision agriculture, food supply chain, meat processing, childcare, innovation center), D (extensive amendments to the Consolidated Farm and Rural Development Act covering water/wastewater, business, and rural health facilities), and E (Rural Electrification Act). New freestanding authorities include meat/poultry processing grants, the Expanding Childcare in Rural America Initiative, the Rural Development Innovation Center, and a Rural Health Care Facility Technical Assistance Program. Numerous "anti-overbuild," affordability, and program-integrity (mapping/validation) provisions are inserted into the broadband programs. Several program-integrity guardrails (fee caps of 3% initial / 0.75% periodic, 30-day disclosure of fee changes) are added across guaranteed-loan programs.

Section-by-section

Sec. 6101 - Prioritizations for distance learning and telemedicine and community facilities program

- Does: Extends the distance learning/telemedicine and community facilities prioritization sunset from 2025 to 2027 (paragraphs (1) and (2)). Broadens the "substance use disorder" set-aside/selection criteria to cover mental health, behavioral health, and maternal health as well; renames headings from "Substance use disorder set-aside/selection" to just "Set-aside/Selection"; adds "at rural health facilities."
- Amends: Section 6101(a) of the Agriculture Improvement Act of 2018 (132 Stat. 4726; P.L. 115-334)
- Numbers: -
- Dates: "2025" -> "2027" (two places)
- Type: EXTEND / REFORM
- Affected: Rural health facilities (mental/behavioral/maternal health providers now eligible for priority); telemedicine applicants.
- Flag: Expands a substance-use-only carve-out into a broad behavioral/maternal-health priority.

Sec. 6102 - Distance learning and telemedicine loans and grants

- Does: Reauthorizes the distance learning/telemedicine loan & grant program; adds 2-year availability window for appropriated funds.
- Amends: Section 2335A of the Food, Agriculture, Conservation, and Trade Act of 1990 (7 U.S.C. 950aaa-5)
- Numbers: \$82,000,000 per fiscal year (unchanged level)
- Dates: "FY2019 through 2023" -> "FY2027 through 2031"; funds remain available 2 fiscal years after appropriation
- Type: EXTEND
- Affected: Telemedicine/distance learning grantees.
- Flag: -

Sec. 6201 - Rural broadband program loans and grants (MAJOR REWRITE - ReConnect)

- Does: Renames the program from "Access to broadband telecommunications services in rural areas" to the ReConnect Rural Broadband Program. Directs the Secretary to establish a program providing grants, loans, and loan guarantees to finance broadband facilities/equipment in rural areas. Sets priority tiers: (1) highest priority to unserved rural communities lacking residential broadband of at least 25 Mbps down / 3 Mbps up; (2) next priority to communities <10,000 population or in geographically underserved/distressed areas (socially vulnerable, persistent poverty county, economically distressed), multi-stakeholder projects (governments, nonprofits, community anchor institutions, private/philanthropic/cooperative entities), or experienced providers (>=5 years). Requires affordability to be considered when determining "unserved." Adds grant agreement of not less than 10 years. Establishes grant-only and combined (single decision) application processes. Sets loan fees: initial

guarantee fee $\leq 3\%$ of guaranteed principal; periodic retention fee $\leq 0.75\%$ of outstanding principal; 30-day public disclosure before fee changes. Expands eligible entities (states/locals, territories, Indian Tribes, co-ops/mutuals, intermunicipal organizations, corporations, LLC/LLPs) and excludes individuals/general partnerships of individuals; permits funding affiliate-owned/operated networks. Raises the build-out application threshold from "not less than 50" to "not less than 75" (percent of unserved households requirement). Raises the minimum broadband service definition from 25/3 to 50/25 Mbps (downstream 25->50, upstream 3->25). Allows the Secretary to raise the minimum service level by up to 50% per year (via 30-day notice/comment) if $< 95\%$ of funds were obligated in the prior 2 rounds. Sets tiered buildout standards by award term: term < 8 yrs = 2x minimum speed; 8- < 14 yrs = 5x minimum; ≥ 14 yrs = 10x minimum. Authorizes appropriations and sunsets/transitions the old pilot.

- Amends: Section 601 of the Rural Electrification Act of 1936 (7 U.S.C. 950bb); sunsets authorities under Sec. 779 of the Consolidated Appropriations Act, 2018 (P.L. 115-141)

- Numbers: Authorization \$350,000,000 for each of FY2027-2031, available until expended. Priority threshold 25/3 Mbps; minimum service raised to 50/25 Mbps; initial guarantee fee $\leq 3\%$; periodic retention fee $\leq 0.75\%$; ≥ 75 (from 50); ≥ 10 -year grant agreement; $\leq 50\%$ annual increase to minimum if $< 95\%$ obligated; build standards 2x/5x/10x; population $< 10,000$; ≥ 5 -year provider experience; transition admin costs $\leq 1\%$ of unobligated pilot balances.

- Dates: "2023" -> "2031" (subsection (k)); rules within 270 days of enactment; biennial review required; pilot sunset 270 days after enactment; consolidation of pilot funds unobligated on/before June 30, 2025.

- Type: REFORM / INCREASE (renamed, permanent \$350M/yr authorization, higher speed standards)

- Affected: Winners - rural ISPs/co-ops, Tribes, unserved rural households, applicants for grant-only/combined awards; community anchor institutions. Losers - providers in already-funded/overbuilt areas; the old ReConnect appropriations pilot (sunset and merged). Secretary must promulgate rules within 270 days.

- Flag: Notable - converts the appropriations-rider ReConnect pilot into permanent statutory authority; substantially raises broadband speed definitions; folds/merges pilot balances; affordability now a factor in "unserved" determinations.

Sec. 6202 - Expansion of middle mile infrastructure into rural areas

- Does: Reauthorizes the middle mile infrastructure program.

- Amends: Section 602(g) of the Rural Electrification Act of 1936 (7 U.S.C. 950bb-1(g))

- Numbers: -

- Dates: "2018 through 2023" -> "2027 through 2031"

- Type: EXTEND

- Affected: Middle-mile infrastructure applicants.

- Flag: -

Sec. 6203 - Innovative broadband advancement program

- Does: Fully rewrites Sec. 603 to establish the Innovative Broadband Advancement Program, providing grants/loans to demonstrate innovative broadband technologies that lower deployment cost and deliver substantially faster speeds in rural areas. Includes (b) terrestrial broadband demonstration projects (must reach at least the maximum project agreement requirements under 601(e)(4); 5-year build-out; priority to multi-entity partnerships and projects serving the most rural entities, replicable, geographically diverse) and (c) satellite broadband demonstration projects (reduce/eliminate cost of satellite broadband equipment for qualified consumers at/below poverty line or essential community facilities in "remote" - ERS frontier/remote ZIP levels 3-4; latency ≤ 250 ms; cost reduction within 1 year; annual eligibility map). Requires annual report to Ag Committees.

- Amends: Section 603 of the Rural Electrification Act of 1936 (7 U.S.C. 950bb-2) - rewritten

- Numbers: Authorization \$10,000,000 for each of FY2027-2031; satellite latency ≤ 250 ms; 25/3 Mbps eligibility-map threshold; 5-year build-out (terrestrial); 1-year cost reduction (satellite).

- Dates: FY2027-2031; eligibility map within 1 year of enactment and annually; report within 1 year and annually.

- Type: NEW/REFORM (rewrites existing Sec. 603)

- Affected: Innovative/terrestrial broadband providers; satellite broadband providers (e.g., LEO services) serving remote low-income consumers.

- Flag: Notable - explicit new satellite broadband subsidy track for remote/poverty-line consumers; 250 ms latency ceiling.

Sec. 6204 - Community connect grants

- Does: Raises population/speed parameters and adds a broadband-speed requirement tied to 601(e)(4)(B)(ii); reauthorizes.

- Amends: Section 604 of the Rural Electrification Act of 1936 (7 U.S.C. 950bb-3)
- Numbers: Subsection (a)(2)(A): "10" -> "25"; (a)(2)(B): "1" -> "3" (Mbps thresholds raised). New requirement to provide speeds >= the project agreement requirements under 601(e)(4)(B)(ii).
- Dates: "2019 through 2023" -> "2027 through 2031"
- Type: EXTEND / INCREASE (raised speed thresholds)
- Affected: Community Connect grant applicants.
- Flag: -

Sec. 6205 - Rate regulation

- Does: Adds new Sec. 607 stating nothing in Title VI authorizes the Secretary to regulate broadband service rates.
- Amends: Title VI of the Rural Electrification Act of 1936 (adds Sec. 607; 7 U.S.C. 950bb-5)
- Numbers: -
- Dates: -
- Type: NEW (limitation)
- Affected: USDA (constrained); broadband providers (protected from rate regulation).
- Flag: Industry-protective clause barring USDA broadband rate regulation.

Sec. 6206 - Public notice, assessments, technical assistance, and reporting requirements

- Does: Amends Sec. 701 heading to add "technical assistance." Requires complete shapefile map in service-territory submissions. Adds a validation step for provider-submitted information (agency determination, submitter response, final non-appealable Secretary determination). Requires eligibility assessment using the FCC map (sec. 802(c)(1)(A) of Communications Act) and the Deployment Locations Map (sec. 60104(b) of IIJA). Replaces subsection (e) with a Broadband Technical Assistance Program (grants to private/nonprofit/public orgs to help rural entities apply for and manage broadband programs; eligible entities include Tribes, governments, higher-ed, 501(c)(3)s, co-ops, corporations, LLCs; priority to experienced providers; national/multi-state applications allowed). Adds (f) Assistance for community broadband mapping (grants <=\$50,000 to collect broadband data; FCC-standard accuracy; data shared with FCC/NTIA; <=1% of subsec. (g) funds). Adds (g) set-aside: not less than 3 but not more than 5 percent of Title VI appropriations for oversight/accountability/this section.
- Amends: Section 701 of the Rural Electrification Act of 1936 (7 U.S.C. 950cc)
- Numbers: Mapping grant cap \$50,000; <=1% of (g) funds for mapping subsection; 3-5% set-aside for oversight.
- Dates: Funds reference FY2027-2031.
- Type: NEW / REFORM (program integrity, technical assistance, mapping)
- Affected: Broadband applicants (more verification); technical-assistance and mapping grantees; FCC/NTIA (data recipients).
- Flag: Notable - adds a non-appealable Secretary validation determination over provider-submitted coverage data; integrates FCC/IIJA maps for eligibility.

Sec. 6207 - Limitation on overbuilding

- Does: Adds new Sec. 608: an area is not "unserved" if an applicant in another Federal or State broadband program has received a funding obligation to offer retail service in the area within the prior 5 years at >=100 Mbps down / 20 Mbps up.
- Amends: Title VI of the Rural Electrification Act of 1936 (adds Sec. 608; 7 U.S.C. 950bb et seq.)
- Numbers: 100/20 Mbps threshold; 5-year lookback.
- Dates: -
- Type: NEW (anti-overbuild limitation)
- Affected: Excludes areas with recent other-program funding from ReConnect eligibility; protects incumbent funded providers.
- Flag: Notable - cross-program anti-overbuild guardrail referencing 100/20 Mbps.

Sec. 6301 - Rural energy savings program

- Does: Expands eligible entities to include Indian Tribes and innovative-financing public/quasi-public/nonprofit entities; requires entities to continue serving rural areas. Redefines "energy efficiency measures" to include cost-effective on/off-grid renewables, energy storage, and replacement of manufactured housing units/large appliances. Adds grants alongside loans: at the election of a loan recipient, the Secretary may provide a grant of <=5% of the loan (or 10% for persistent poverty counties). Adds prioritization for entities serving >=80% rural ratepayers. Sets loan terms (<=20 years; advances amortized <=10 years, with extension authority). Limits: special advances within first 10 years; <=10% of annual budget authority for

manufactured-housing/appliance replacement. Allows loans to any qualified consumer in the service territory regardless of rural status; adds outreach; sets 3-5% of appropriations for outreach/training/TA. Reauthorizes.

- Amends: Section 6407 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8107a)
- Numbers: Grants $\leq 5\%$ ($\leq 10\%$ persistent poverty); $\geq 80\%$ rural ratepayer priority; loan term ≤ 20 yrs; advance amortization ≤ 10 yrs; special advances first 10 yrs; $\leq 10\%$ budget authority for housing/appliance replacement; 3-5% for outreach/TA.
- Dates: "2014 through 2023" -> "2027 through 2031"
- Type: REFORM / INCREASE / EXTEND
- Affected: Rural electric co-ops/utilities, Tribes, qualified consumers (including non-rural within service territory); persistent poverty counties favored.
- Flag: Adds grant component (new spending mechanism) to a previously loan-only program; manufactured housing replacement now eligible.

Sec. 6302 - Promoting precision agriculture

- Does: Directs the Secretary (within 2 years, with NIST and FCC) to develop voluntary, consensus-based, private-sector-led interconnectivity standards for precision agriculture, considering connectivity needs, cybersecurity, advanced wireless (5G+), and AI. Defines "advanced wireless communications technology," "artificial intelligence," "foreign adversary," "precision agriculture," "trusted," and "voluntary consensus standards development organization." Requires GAO study within 1 year of standards and every 2 years for 8 years, with reports to Commerce/Science/Ag committees.
- Amends: New freestanding provision (references sec. 1201 of Food Security Act of 1985; NDAA FY2019 AI definition)
- Numbers: -
- Dates: Standards within 2 years; GAO study within 1 year of standards, every 2 years for 8 years.
- Type: NEW / STUDY-OR-REPORT
- Affected: Precision-ag tech industry, standards bodies; "trusted"/foreign-adversary screening of suppliers; GAO.
- Flag: Notable - "foreign adversary"/"trusted" supplier framing and national-security overlay on ag tech standards.

Sec. 6303 - Food supply chain guaranteed loans

- Does: Adds new subsection (f) to Sec. 310B creating food supply chain capacity and resilience guaranteed loans (B&I guaranteed loans for start-up/expansion of facilities to aggregate, process, manufacture, store, transport, wholesale, or distribute food/ag products/inputs). Caps loan size; allows non-rural facilities under conditions (within 80 miles, rural employment benefit, $\leq 10\%$ of total annual principal). Requires quarterly reports to Congress. Reserves $\leq 5\%$ of subsection (a) funds for FY2025-2029 (reserved until April 1 each year).
- Amends: Section 310B of the Consolidated Farm and Rural Development Act (7 U.S.C. 1932), new subsection (f)
- Numbers: Max loan \$40,000,000; non-rural cap $\leq 10\%$ of annual principal; 80-mile radius; reserve $\leq 5\%$ of (a) funds.
- Dates: Reservation FY2025-2029; reserved until April 1 of each fiscal year; quarterly reports within 30 days of quarter-end.
- Type: NEW
- Affected: Food processors/distributors (including some non-rural facilities serving rural producers).
- Flag: Notable - explicitly permits guaranteeing loans for non-rural facilities; reservation window is FY2025-2029 (not the title's standard 2027-2031).

Sec. 6304 - New, mobile, and expanded meat processing and rendering grants

- Does: Establishes a new freestanding grant program for meat/poultry processing and rendering. Eligible entities include for/nonprofit organizations (incl. small/very small establishments), Tribes, land-grant and non-land-grant colleges, and State ag departments. Purposes: resilient local/regional food systems, expand/diversify processing, increase slaughter access, improve compliance (FMIA/PPIA), reduce entry barriers, support halal/kosher/cultural methods. Grant max \$500,000, term ≤ 3 years, priority to small/very small establishments. Federal share $\leq 90\%$ (grants $\leq \$100,000$) or $\leq 75\%$ (grants $> \$100,000$). Eligible uses include feasibility studies, compliance, humane handling infrastructure, equipment, cold storage. Quarterly reports to Congress.
- Amends: New freestanding provision (references HACCP final rule definitions, FMIA 21 U.S.C. 601, PPIA 21 U.S.C. 451)
- Numbers: Grant max \$500,000; term ≤ 3 yrs; Federal share 90%/75%; authorization \$3,000,000 for each of FY2027-2031.
- Dates: FY2027-2031; quarterly reports within 30 days of quarter-end.
- Type: NEW
- Affected: Small/very-small meat & poultry processors and renderers, Tribes, niche (halal/kosher) processors.

- Flag: -

Sec. 6305 - Expanding Childcare in Rural America Initiative

- Does: Establishes a new Initiative under which, for FY2027-2029, the Secretary gives priority to qualified applicants addressing availability, quality, or cost of childcare in rural areas across four existing programs: essential community facilities loans/grants (306(a)), B&I direct/guaranteed loans (310B(g)), rural microentrepreneur assistance (379E), and intermediary relending (7 U.S.C. 1936b). Requires balanced geographic distribution. Requires evaluation (within 3 years) and report (within 4 years).
- Amends: New freestanding provision (operates through existing CFRDA programs; defines childcare via Child Care and Development Block Grant Act, Head Start Act)
- Numbers: -
- Dates: Priority for FY2027-2029; evaluation within 3 years; report within 4 years of enactment.
- Type: NEW (priority overlay, no new authorization)
- Affected: Rural childcare providers/facilities; applicants to four named RD programs.
- Flag: Notable - "Notwithstanding any other provision of law" priority directive layered on existing programs.

Sec. 6306 - Technical assistance for geographically underserved and distressed areas

- Does: Directs the Secretary (within 1 year) to provide technical assistance and strengthen local capacity (directly or via cooperative agreements) to improve access to RD programs for local partners in geographically underserved/distressed areas. Requires annual public report to Ag Committees. Defines "geographically underserved and distressed area" (rural area that is socially vulnerable, persistent poverty county, economically distressed, or colonia) and "community anchor institution."
- Amends: New freestanding provision (references CFRDA sec. 343(a)(13)(A))
- Numbers: -
- Dates: TA within 1 year; annual report beginning 1 year after enactment.
- Type: NEW / STUDY-OR-REPORT
- Affected: Local governments, co-ops, businesses, community anchor institutions in distressed rural areas; colonias.
- Flag: -

Sec. 6307 - Establishment of the Rural Development Innovation Center

- Does: Adds new Sec. 379J establishing a Rural Development Innovation Center within the RD Mission Areas (RUS, Rural Business-Cooperative Service, Rural Housing Service) to identify inefficiencies/redundancies/barriers, maintain a public stakeholder process, foster partnerships, promote cross-agency collaboration, adopt technology/data systems, and modernize programs. Requires a periodically updated modernization plan and an annual report to Ag Committees.
- Amends: Subtitle D of the Consolidated Farm and Rural Development Act (7 U.S.C. 1981 et seq.), new Sec. 379J
- Numbers: -
- Dates: Annual report.
- Type: NEW
- Affected: USDA Rural Development agencies and applicants (process modernization).
- Flag: -

Sec. 6308 - Rural Health Liaison report

- Does: Adds duty for the Rural Health Liaison to coordinate with NIFA on implementing the Farm and Ranch Stress Assistance Network (sec. 7522 of 2008 Farm Bill). Requires an annual report to Ag Committees on the Liaison's activities.
- Amends: Section 236 of the Department of Agriculture Reorganization Act of 1994 (7 U.S.C. 6946)
- Numbers: -
- Dates: Annual report.
- Type: REFORM / STUDY-OR-REPORT
- Affected: Rural Health Liaison; farm/ranch mental-health stress network.
- Flag: -

Sec. 6401 - Water, waste disposal, and wastewater facility grants

- Does: Reauthorizes water/waste disposal/wastewater facility grants.
- Amends: Section 306(a)(2)(B)(vii) of the CFRDA (7 U.S.C. 1926(a)(2)(B)(vii))

- Numbers: -
- Dates: "2019 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Rural water/wastewater facility grantees.
- Flag: -

Sec. 6402 - Rural water and wastewater circuit rider program

- Does: Rewrites paragraph (22) to continue a national Circuit Rider Program (through RUS) covering all 50 states, territories, and Freely Associated States. Specifies eligible entities (experienced nonprofits with licensed water/wastewater operators), eligible uses (technical assistance - board training, O&M, water treatment, regulatory compliance, cybersecurity; and disaster/recovery assistance - on-site personnel/equipment, emergency response coordination, FEMA coordination, GIS mapping, vulnerability assessments). Allows <=5% of each award for emergency equipment. Sets eligible project areas (<=10,000 inhabitants for TA; <=50,000 for disaster/recovery). Adds continuity-of-essential-activities authority during a lapse in appropriations.
- Amends: Section 306(a)(22) of the CFRDA (7 U.S.C. 1926(a)(22)) - rewritten
- Numbers: Authorization \$25,000,000 for FY2027 through FY2031; <=5% of award for emergency equipment; population thresholds 10,000 (TA) / 50,000 (disaster).
- Dates: FY2027-2031.
- Type: REFORM / EXTEND
- Affected: Rural water/wastewater systems; nonprofit circuit-rider providers; disaster-affected utilities.
- Flag: Notable - explicit cybersecurity TA and authority to continue essential activities during an appropriations lapse using prior unobligated balances.

Sec. 6403 - Zero and low interest loans for distressed water systems

- Does: Adds new paragraph (23) authorizing the Secretary to make 0% or 1% interest loans, forgive principal/interest, modify terms, refinance, or waive fees to promote sustainability of distressed rural water/wastewater systems. Conditions assistance on the applicant receiving financial planning and preparing a long-term plan, or partnering/regionalizing/consolidating. Eligibility limited to systems in socially disadvantaged communities, persistent poverty counties, colonias, distressed tribal areas, or facing economic hardship. Allows designation of a water/wastewater utility provider to apply on behalf of an eligible entity (with safeguards that the loan benefits the residents/area, not the provider).
- Amends: Section 306(a) of the CFRDA (7 U.S.C. 1926(a)), new paragraph (23)
- Numbers: 0% or 1% interest.
- Dates: References section 306C; cross-references new paragraph (24).
- Type: NEW
- Affected: Distressed/disadvantaged rural water systems; encourages regionalization/consolidation.
- Flag: Notable - principal/interest forgiveness and refinancing authority for distressed water systems.

Sec. 6404 - Tribal college and university essential community facilities

- Does: Reauthorizes Tribal college/university essential community facilities.
- Amends: Section 306(a)(25)(C) of the CFRDA (7 U.S.C. 1926(a)(25)(C))
- Numbers: -
- Dates: "2008 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Tribal colleges and universities.
- Flag: -

Sec. 6405 - Emergency and imminent community water assistance grant program

- Does: Reauthorizes emergency/imminent community water assistance grants.
- Amends: Section 306A(i)(2) of the CFRDA (7 U.S.C. 1926a(i)(2))
- Numbers: -
- Dates: "2019 through 2023" -> "2027 through 2031"
- Type: EXTEND

- Affected: Communities facing water emergencies.
- Flag: -

Sec. 6406 - Water systems for rural and native villages in Alaska

- Does: Reauthorizes the Alaska rural/native village water systems program.
- Amends: Section 306D(d)(1) of the CFRDA (7 U.S.C. 1926d(d)(1))
- Numbers: -
- Dates: "2008 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Rural and native Alaskan villages.
- Flag: -

Sec. 6407 - Rural decentralized water systems

- Does: Rewrites Sec. 306E. Grants to private nonprofit recipients to provide loans/subgrants to eligible individuals (household income $\leq 80\%$ of state median nonmetropolitan income) for construction/refurbishing/servicing of individual household water well and decentralized wastewater systems, and for water treatment in contamination cases. Funds qualified water quality testing and technical assistance. Loans: 1% interest, term ≤ 20 years, $\leq \$20,000$ per system. $\leq 10\%$ of grant for testing/TA activities. Priority to applicants with substantial well/wastewater expertise. Reauthorizes.
- Amends: Section 306E of the CFRDA (7 U.S.C. 1926e) - rewritten
- Numbers: Loan 1% interest, ≤ 20 -year term, $\leq \$20,000$ per system; income $\leq 80\%$ of state median nonmetropolitan; $\leq 10\%$ for testing/TA; authorization \$20,000,000 for each of FY2027-2031.
- Dates: FY2027-2031.
- Type: REFORM / EXTEND
- Affected: Low-income rural households with private wells/decentralized wastewater; nonprofit grantees.
- Flag: -

Sec. 6408 - Assistance to rural entities

- Does: Adds precision agriculture definitions to Sec. 310B(a) and adds a new eligible purpose: expanding adoption of precision agriculture practices, including financing acquisition of precision agriculture technology, to promote best practices, reduce costs, and improve the environment.
- Amends: Section 310B(a) of the CFRDA (7 U.S.C. 1932(a)) (references Food Security Act of 1985 sec. 1201)
- Numbers: -
- Dates: -
- Type: REFORM / NEW (eligible purpose)
- Affected: Rural businesses adopting precision agriculture technology.
- Flag: -

Sec. 6409 - Solid waste management grants

- Does: Adds Indian tribes to eligible recipients (alongside governments and related agencies); reauthorizes.
- Amends: Section 310B(b) of the CFRDA (7 U.S.C. 1932(b))
- Numbers: -
- Dates: "2014 through 2023" -> "2027 through 2031"
- Type: EXTEND / REFORM
- Affected: Indian tribes (newly eligible); solid waste grantees.
- Flag: -

Sec. 6410 - Rural business development grants

- Does: Reauthorizes rural business development grants.
- Amends: Section 310B(c)(4)(A) of the CFRDA (7 U.S.C. 1932(c)(4)(A))
- Numbers: -
- Dates: "2014 through 2023" -> "2027 through 2031"
- Type: EXTEND

- Affected: Rural business development grantees.
- Flag: -

Sec. 6411 - Rural cooperative development grants

- Does: Adds definition of "cooperative development." Revises priority targeting from "underserved and economically distressed areas" to "socially vulnerable, underserved, or distressed communities," and standardizes scoring ($\geq 25\%$ threshold with equal priority). Adds award-renewal provision for qualified nonprofit institutions meeting specified conditions. Requires data analysis in the interagency working group report; requires the interagency working group to submit a report to Congress within 180 days and annually. Reauthorizes.
- Amends: Section 310B(e) of the CFRDA (7 U.S.C. 1932(e))
- Numbers: ≥ 25 percent scoring criterion.
- Dates: "2014 through 2023" -> "2027 through 2031"; working group report within 180 days and annually.
- Type: REFORM / EXTEND / STUDY-OR-REPORT
- Affected: Cooperative development centers/nonprofits; socially vulnerable/distressed communities.
- Flag: -

Sec. 6412 - Lender fees in guaranteed loan programs

- Does: Amends Sec. 333 to add fee authority: initial guarantee fee $\leq 3\%$ of guaranteed principal and periodic retention fee $\leq 0.75\%$ of outstanding principal for loans under Sec. 306(a), with 30-day advance public disclosure of fee changes. Strikes old paragraph (7). Conforming amendment rewrites Sec. 310B(g)(5) to impose the same 3%/0.75%/30-day disclosure structure on guaranteed business and industry loans.
- Amends: Section 333 of the CFRDA (7 U.S.C. 1983); conforming amendment to Section 310B(g)(5) (7 U.S.C. 1932(g)(5))
- Numbers: Initial guarantee fee $\leq 3\%$; periodic retention fee $\leq 0.75\%$; 30-day disclosure.
- Dates: -
- Type: REFORM (fee authority/program integrity)
- Affected: Lenders/borrowers in guaranteed loan programs (new fees possible, with disclosure).
- Flag: Notable - standardizes 3%/0.75% fee caps with transparency requirement across RD guaranteed-loan programs (mirrors broadband fee structure in 6201).

Sec. 6413 - Locally or regionally produced agricultural food products

- Does: Reauthorizes the locally/regionally produced agricultural food products provision.
- Amends: Section 310B(g)(9)(B)(iv)(I) of the CFRDA (7 U.S.C. 1932(g)(9)(B)(iv)(I))
- Numbers: -
- Dates: "2008 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Local/regional food enterprises.
- Flag: -

Sec. 6414 - Appropriate technology transfer for rural areas program

- Does: Adds new eligible activity providing training/resources for veterans who are or seek to become agricultural producers, to be known as the Armed to Farm Initiative. Reauthorizes with earmarked amounts.
- Amends: Section 310B(i) of the CFRDA (7 U.S.C. 1932(i)) (references 38 U.S.C. 101(2))
- Numbers: \$3,500,000/yr for activities (A)-(D); \$1,500,000/yr for the Armed to Farm Initiative (paragraph (2)(E)).
- Dates: "2008 through 2023" -> "2027 through 2031"
- Type: REFORM / NEW / EXTEND
- Affected: Veterans entering agriculture; ATTRA program.
- Flag: Notable - new veteran-focused "Armed to Farm Initiative" with a dedicated \$1.5M/yr earmark.

Sec. 6415 - Rural economic area partnership zones

- Does: Reauthorizes REAP zones.
- Amends: Section 310B(j) of the CFRDA (7 U.S.C. 1932(j))
- Numbers: -

- Dates: "2023" -> "2031"
- Type: EXTEND
- Affected: REAP zone communities.
- Flag: -

Sec. 6416 - Intermediary relending program

- Does: Reauthorizes the intermediary relending program.
- Amends: Section 310H(i) of the CFRDA (7 U.S.C. 1936b(i))
- Numbers: -
- Dates: "2014 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Intermediary relending lenders.
- Flag: -

Sec. 6417 - Rural health care facility assistance

- Does: Amends Sec. 342: broadens debt-refinancing authority from "rural hospital" to "eligible health care facility" and from "community" to "area." Adds requirements for the Secretary to provide sustainability assistance and require applicants to receive financial planning and prepare a long-term financial plan; allows waiver of sec. 302(a)(1)(D) requirement if the facility is insolvent. Establishes a new Rural Health Care Facility Technical Assistance Program (TA/training to identify development needs, manage finances, access USDA loan/grant programs; goals include preventing facility closures; continues the prior Rural Hospital Technical Assistance Program). Sets selection priority (RHS/RBCS/RUS borrowers/grantees; HPSA/MUA factors). Requires annual report. Broadly defines "eligible health care facility" (hospital, psychiatric, long-term care, critical access, rural health clinic, religious nonmedical, sole community, rural emergency, home health agency, community health center).
- Amends: Section 342 of the CFRDA (7 U.S.C. 1990a) (references various Social Security Act / Public Health Service Act definitions)
- Numbers: Authorization not more than \$2,000,000 for each of FY2027-2031 for the TA program.
- Dates: FY2027-2031; report within 1 year and annually; amendments take effect on completion of rulemaking.
- Type: NEW / REFORM
- Affected: Rural hospitals and a broad range of rural health facilities; facilities at risk of closure.
- Flag: Notable - expands refinancing eligibility well beyond hospitals; insolvency waiver; new dedicated TA program to prevent rural facility closures.

Sec. 6418 - Prohibition on use of loan or grant for certain purposes

- Does: Rewrites Sec. 363 prohibiting RD loans/grants to drain, dredge, fill, level, or otherwise manipulate a wetland (or impair water flow), except for maintenance of previously converted wetlands or activity commenced before Nov. 29, 1990. Excludes utility lines and projects that obtained/require a Corps of Engineers permit under sec. 10 (Rivers and Harbors Act) or sec. 404 (Clean Water Act).
- Amends: Section 363 of the CFRDA (7 U.S.C. 2006e) - rewritten (references Food Security Act of 1985 sec. 1201(a)(16))
- Numbers: -
- Dates: Pre-Nov. 29, 1990 activity grandfathered.
- Type: REFORM
- Affected: RD loan/grant applicants near wetlands; utility-line and permitted projects exempted.
- Flag: Notable - wetland-protection conditions with explicit exclusions for utility lines and Corps-permitted projects.

Sec. 6419 - Rural Business-Cooperative Service programs technical assistance and training

- Does: Reauthorizes RBCS TA/training.
- Amends: Section 368(d)(1) of the CFRDA (7 U.S.C. 2008c(d)(1))
- Numbers: -
- Dates: "2019 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: RBCS program participants.
- Flag: -

Sec. 6420 - National Rural Development Partnership

- Does: Reauthorizes the National Rural Development Partnership (both subsections).
- Amends: Section 378 of the CFRDA (7 U.S.C. 2008m)
- Numbers: -
- Dates: (g)(1) "2008 through 2023" -> "2027 through 2031"; (h) "2023" -> "2031"
- Type: EXTEND
- Affected: Rural development partnership participants.
- Flag: -

Sec. 6421 - Grants for NOAA weather radio transmitters

- Does: Reauthorizes NOAA weather radio transmitter grants.
- Amends: Section 379B(d) of the CFRDA (7 U.S.C. 2008p(d))
- Numbers: -
- Dates: "2014 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Rural communities lacking weather radio coverage.
- Flag: -

Sec. 6422 - Rural microentrepreneur assistance program

- Does: Raises the maximum microloan from \$50,000 to \$75,000. Changes grant cost-share from "shall not exceed 75 percent" to "may be up to 100 percent," and allows a loan to cover <=50% of renovation/construction/real-estate-improvement costs. Adds a higher matching cap (5%) for microenterprise development organizations serving persistent poverty counties. Reauthorizes.
- Amends: Section 379E of the CFRDA (7 U.S.C. 2008s)
- Numbers: Microloan max \$50,000 -> \$75,000; cost-share up to 100%; loan <=50% of real-estate improvement costs; 5% for persistent poverty county MDOs.
- Dates: "2019 through 2023" -> "2027 through 2031"
- Type: INCREASE / REFORM / EXTEND
- Affected: Rural microentrepreneurs; microenterprise development organizations; persistent poverty counties.
- Flag: Notable - raises loan cap and federal cost-share to as high as 100%.

Sec. 6423 - Health care services

- Does: Reauthorizes rural health care services grants.
- Amends: Section 379G(e) of the CFRDA (7 U.S.C. 2008u(e))
- Numbers: -
- Dates: "2008 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Rural health care services grantees.
- Flag: -

Sec. 6424 - Strategic economic and community development

- Does: Reauthorizes strategic economic and community development.
- Amends: Section 379H(d)(4) of the CFRDA (7 U.S.C. 2008v(d)(4))
- Numbers: -
- Dates: "2019 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Rural communities pursuing regional/strategic development.
- Flag: -

Sec. 6425 - Rural innovation stronger economy (RISE) grant program

- Does: Adds career pathway programs and industry/sector partnerships to the RISE program. Expands eligible consortium members (institutions of higher ed, area career and technical education schools, local workforce development board members).

Adds new definitions ("career pathway," "industry or sector partnership"). Adds program purposes addressing workforce challenges/displacement and targeted skills development. Adds selection criteria (worker displacement, aging workforce, youth migration) and geographic-distribution requirement. Lists target industries for career pathways (telecom/broadband, water/wastewater, electric, forestry/logging, conservation, health/childcare, manufacturing, agribusiness, veterinary, others). Adds reporting on credentials/completions and WIOA employment/earnings outcomes. Reauthorizes.

- Amends: Section 379I of the CFRDA (7 U.S.C. 2008w) (references Higher Education Act, Carl D. Perkins CTE Act, Workforce Innovation and Opportunity Act)
- Numbers: -
- Dates: "2019 through 2023" -> "2027 through 2031"
- Type: REFORM / EXTEND
- Affected: Rural jobs accelerators; workforce/career-pathway training providers; workforce development boards.
- Flag: Notable - significant workforce-development expansion integrating WIOA career pathways into rural innovation grants.

Sec. 6426 - Limitation on rural business investment companies controlled by Farm Credit System institutions

- Does: Raises the limit on RBICs controlled by Farm Credit System institutions from 50 to 75.
- Amends: Section 384J(c) of the CFRDA (7 U.S.C. 2009cc-9(c))
- Numbers: "50" -> "75" (percent limit).
- Dates: -
- Type: REFORM / INCREASE
- Affected: Farm Credit System institutions; rural business investment companies.
- Flag: Notable - raises FCS control threshold for RBICs.

Sec. 6427 - Rural business investment program

- Does: Reauthorizes the rural business investment program.
- Amends: Section 384S of the CFRDA (7 U.S.C. 2009cc-18)
- Numbers: -
- Dates: "2014 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Rural business investment companies/funds.
- Flag: -

Sec. 6428 - Technical corrections

- Does: Strikes "urbanized" and inserts "urban" across seven CFRDA provisions defining "rural area" (sec. 343(a)(13)) and sec. 384I(c)(4)(C).
- Amends: Sections 343(a)(13)(A)(ii), (D)(i)(I), (D)(i)(I)(bb), (D)(i)(II), (E), (F)(i)(II) (7 U.S.C. 1991(a)(13)); Section 384I(c)(4)(C) (7 U.S.C. 2009cc-8(c)(4)(C))
- Numbers: -
- Dates: -
- Type: REFORM (technical/conforming)
- Affected: Rural-area definition (Census terminology alignment).
- Flag: -

Sec. 6429 - Rural water and wastewater technical assistance and training programs

- Does: Restructures Sec. 306(a)(14) to add disaster and recovery assistance as a distinct eligible activity alongside technical assistance and training; redesignates clauses accordingly.
- Amends: Section 306(a)(14) of the CFRDA (7 U.S.C. 1926(a)(14))
- Numbers: -
- Dates: -
- Type: REFORM / NEW (eligible activity)
- Affected: Rural water/wastewater systems needing disaster/recovery help; TA providers.
- Flag: -

Sec. 6501 - Guarantees for bonds and notes issued for utility infrastructure purposes

- Does: Reauthorizes guarantees for bonds/notes for utility infrastructure.
- Amends: Section 313A(f) of the Rural Electrification Act of 1936 (7 U.S.C. 940c-1(f))
- Numbers: -
- Dates: "2023" -> "2031"
- Type: EXTEND
- Affected: Rural utility bond/note issuers (e.g., electric co-ops).
- Flag: -

Sec. 6502 - Extension of the rural economic development loan and grant program

- Does: Rewrites subsection (b) on repayments: for zero-interest loans, the Secretary sets reasonable repayment terms; the Secretary shall not require a letter of credit/guarantee if the borrower assigns a security interest in collateral or makes similar satisfactory arrangements. Reauthorizes.
- Amends: Section 313B of the Rural Electrification Act of 1936 (7 U.S.C. 940c-2)
- Numbers: -
- Dates: (e)(1) "2019 through 2023" -> "2027 through 2031"
- Type: REFORM / EXTEND
- Affected: Rural Economic Development Loan & Grant (REDLG) borrowers (eased letter-of-credit requirement).
- Flag: -

Sec. 6503 - Expansion of 911 access

- Does: Reauthorizes the 911 access expansion program. (Header truncated in source as "Expansion of" / body reads "Expansion of 911 access.")
- Amends: Section 315(d) of the Rural Electrification Act of 1936 (7 U.S.C. 940e(d))
- Numbers: -
- Dates: "2008 through 2023" -> "2027 through 2031"
- Type: EXTEND
- Affected: Rural areas expanding 911 access.
- Flag: -

Cross-cutting flags for this title

- Reauthorization horizon: Most dollar programs shift to FY2027-2031; a handful use other windows - Sec. 6303 food supply chain reservation is FY2025-2029, and Sec. 6305 childcare priority is FY2027-2029. Most sunset-style extensions move single-year dates to "2031."
- ReConnect / broadband overhaul (Subtitle B): Permanent statutory ReConnect program at \$350M/yr (6201); minimum broadband definition raised 25/3 -> 50/25 Mbps; tiered buildout standards (2x/5x/10x by award term); affordability now factors into "unserved"; anti-overbuild guardrail at 100/20 Mbps (6207); new satellite broadband subsidy track with 250 ms latency cap (6203); mandatory shapefile maps and a non-appealable USDA validation determination over provider coverage data (6206); integration of FCC/IIJA maps; rate-regulation prohibition (6205).
- Program-integrity/fee standardization: Identical fee-cap structure (initial guarantee <=3%, periodic retention <=0.75%, 30-day disclosure) appears in both broadband (6201) and CFRDA guaranteed-loan programs (6412), suggesting a deliberate cross-program template.
- Rural health emphasis: Mental/behavioral/maternal health priorities (6101); Rural Health Liaison coordination with farm-stress network (6308); major rural health care facility refinancing + new TA program with \$2M/yr (6417); health care services reauth (6423).
- Water/wastewater package (Subtitle D): Circuit rider rewrite with cybersecurity TA and appropriations-lapse continuity (\$25M/yr, 6402); new 0%/1% distressed-water-system loans with forgiveness/refinancing (6403); decentralized water systems rewrite (\$20M/yr, 6407); disaster/recovery assistance added (6429); plus multiple straight reauthorizations (6401, 6404-6406).
- New freestanding programs: Meat/poultry processing & rendering grants (\$3M/yr, 6304); Expanding Childcare in Rural America Initiative (6305); Rural Development Innovation Center (6307); TA for geographically underserved/distressed areas (6306).
- National-security / supply-chain framing: Precision agriculture standards with "foreign adversary"/"trusted supplier" screening (6302); food supply chain resilience guaranteed loans up to \$40M, including non-rural facilities (6303).

- Equity targeting: Repeated priority language for socially vulnerable communities, persistent poverty counties, economically distressed areas, colonias, and Tribal areas (6201, 6206, 6301, 6306, 6403, 6411, 6422). Persistent poverty counties get enhanced grant/match percentages (6301: 10% vs 5%; 6422: 5% match).
- New eligibility expansions: Indian Tribes added to several programs (6301 rural energy savings, 6409 solid waste); veterans via "Armed to Farm Initiative" with \$1.5M/yr earmark (6414); satellite providers (6203); broad health-facility types (6417).
- Effective-date contingencies: Sec. 6417 amendments take effect only on completion of rulemaking; Sec. 6201 requires rules within 270 days and sunsets the old pilot 270 days post-enactment.
- Source note: Sec. 6503 header is truncated in the source file ("Expansion of") but the operative text is "Expansion of 911 access."

Title VII - Research, Extension, and Related Matters - Notes

Title-level summary

Title VII reauthorizes USDA's research, extension, education, and economics (REE) programs - the bulk of which sit in the National Agricultural Research, Extension, and Teaching Policy Act of 1977 (NARETPA), the Food, Agriculture, Conservation, and Trade Act of 1990 (FACTA), the Agricultural Research, Extension, and Education Reform Act of 1998 (AREERA), and the 2008 farm bill - by extending almost every expiring authorization from FY2023 to FY2031. Beyond the routine reauthorizations, the title delivers several substantive boosts to 1890 land-grant institutions (raising the Evans-Allen/extension funding floors from 20-30% to 40% and tightening state matching enforcement via gubernatorial attestations), expands 1994 Tribal-college equipment authority, and reforms AGARDA, the Centers of Excellence, the Specialty Crop Research Initiative (with a new \$30M/yr mechanization-and-automation carve-out), and the AFRI (Agriculture and Food Research Initiative). It creates new freestanding programs and studies, including a Researching the Transition to Organic grant (\$7.5M/yr), veteran-farmer education grants (\$3M/yr), an Agricultural Innovation Corps, a NASS Modernization Commission, and broad interagency-coordination authority for the Under Secretary for REE (MOUs with DOE, NSF, DOD, HHS). Notable national-security/animal-welfare provisions cap REE research collaboration with China/Russia and other countries of concern and limit painful research on dogs and cats. The title leans heavily on precision agriculture, biosecurity/cybersecurity, aquaculture, and specialty-crop themes throughout.

Section-by-section

Subtitle A - National Agricultural Research, Extension, and Teaching Policy Act of 1977 (NARETPA)

Sec. 7101 - National Agricultural Research, Extension, Education, and Economics (NAREEE) Advisory Board

- Does: Expands board membership from 15 to 16; adds 1 member representing industry/consumer/rural interests of insular areas; reduces a category count from 7 to 3 (subsec (b)(5)); extends authorization.
- Amends: NARETPA §1408 (7 U.S.C. 3123).
- Numbers: 15->16 members; 7->3.
- Dates: Reauth 2023->2031.
- Type: REFORM / EXTEND.
- Affected: Insular areas gain a seat on the NAREEE Advisory Board.
- Flag: -

Sec. 7102 - Specialty crop committee

- Does: Continues implementation of and appoints members to the specialty crop committee (replaces one-time "not later than" startup language with ongoing duty); shifts a reporting/authority point from the executive committee to the Secretary.
- Amends: NARETPA §1408A (7 U.S.C. 3123a).
- Dates: Reauth 2023->2031.
- Type: EXTEND / REFORM.
- Affected: Specialty crop sector; Secretary gains authority previously held by executive committee.
- Flag: -

Sec. 7103 - Veterinary medicine loan repayment

- Does: Rewrites the "veterinarian shortage situation" determination (Secretary *may* consider geographic + practice-area shortages such as food animal medicine, public health, epidemiology, food safety; *shall* develop quantitative short- and long-term shortage-prediction mechanisms and share them with State agencies). Bars disqualifying a vet for also participating in a comparable Federal/State/local program. Requires streamlined application procedures within 1 year of enactment.
- Amends: NARETPA §1415A (7 U.S.C. 3151a).

- Dates: Streamlined procedures within 1 yr of enactment.
- Type: REFORM.
- Affected: Rural/food-animal veterinarians (winners - broader eligibility, no double-program penalty).
- Flag: -

Sec. 7104 - Veterinary services grant program

- Does: Adds new purpose "expand, retain, or attract additional veterinary practices in rural areas"; adds "rural area" definition (from 7 U.S.C. 1991(a)); requires a streamlined application process within 1 year; expands allowable uses to cover starting a new practice or attracting vets - relocation expenses, startup equipment, and housing/living stipends for vet students, interns, externs, fellows, residents, and vet technician students.
- Amends: NARETPA §1415B (7 U.S.C. 3151b).
- Dates: Streamlined process within 1 yr of enactment.
- Type: REFORM / (expanded uses).
- Affected: Rural veterinary practices and vet trainees (winners).
- Flag: -

Sec. 7105 - Grants and fellowships for food and agriculture sciences education

- Does: Reauthorization only.
- Amends: NARETPA §1417(m)(2) (7 U.S.C. 3152(m)(2)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Universities/students.
- Flag: -

Sec. 7106 - Agricultural and food policy research centers

- Does: Reauthorization only.
- Amends: NARETPA §1419A(e) (7 U.S.C. 3155(e)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Policy research centers.
- Flag: -

Sec. 7107 - Education grants to Alaska Native- and Native Hawaiian-serving institutions

- Does: Permits grant terms of more than 1 year up to 5 years (both subsections); reauthorizes.
- Amends: NARETPA §1419B (7 U.S.C. 3156).
- Numbers: Grant term up to 5 years.
- Dates: 2023->2031.
- Type: EXTEND / REFORM.
- Affected: Alaska Native and Native Hawaiian serving institutions (winners - multi-year grants).
- Flag: -

Sec. 7108 - Nutrition education program

- Does: Reauthorization only.
- Amends: NARETPA §1425(g) (7 U.S.C. 3175(g)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Extension/nutrition programs.
- Flag: -

Sec. 7109 - Continuing animal health and disease research programs

- Does: Adds carryover authority (unexpended annual funds may roll to the next fiscal year); reauthorizes.

- Amends: NARETPA §1433 (7 U.S.C. 3195).
- Dates: 2023->2031.
- Type: EXTEND / REFORM.
- Affected: Eligible animal-health research institutions (winners - carryover).
- Flag: -

Sec. 7110 - Extension and agricultural research at 1890 land-grant colleges, including Tuskegee University

- Does: Raises the 1890 EXTENSION funding floor (state-equivalent share under §1444) from 20% to 40%; raises the 1890 RESEARCH (Evans-Allen, §1445) floor from 30% to 40%; renames "research director" to "agricultural research director" and removes "or other officer."
- Amends: NARETPA §1444(a)(2) (7 U.S.C. 3221(a)(2)) and §1445 (7 U.S.C. 3222).
- Numbers: Extension 20%->40%; Research 30%->40%.
- Type: INCREASE / REFORM.
- Affected: 1890 land-grant institutions incl. Tuskegee (major winners - significantly higher guaranteed funding share).
- Flag: NOTABLE - one of the title's most consequential funding changes for 1890s.

Sec. 7111 - Scholarships for students at 1890 Institutions

- Does: Renames the program as the "David A. Scott Scholarship Program for Students at 1890 Institutions"; reauthorizes.
- Amends: NARETPA §1446 (7 U.S.C. 3222a).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: 1890 students.
- Flag: -

Sec. 7112 - Grants to upgrade ag/food sciences facilities at 1890 colleges, incl. Tuskegee

- Does: Reauthorization only.
- Amends: NARETPA §1447(b) (7 U.S.C. 3222b(b)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: 1890 institutions.
- Flag: -

Sec. 7113 - Grants to upgrade facilities/equipment and support tropical/subtropical research at insular-area land-grant colleges

- Does: Reauthorization only.
- Amends: NARETPA §1447B(d) (7 U.S.C. 3222b-2(d)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Insular-area land-grant institutions.
- Flag: -

Sec. 7114 - Matching funds requirement for research and extension at eligible institutions

- Does: Updates the annual matching-determination date to "beginning September 30, 2026, and not later than September 30 of each fiscal year thereafter"; rewrites the state matching-funds requirement so that each state must provide each eligible (1890) institution non-Federal matching funds equal to the amounts provided under §§1444 and 1445.
- Amends: NARETPA §1449 (7 U.S.C. 3222d).
- Dates: Annual cycle starting Sept 30, 2026.
- Type: REFORM.
- Affected: 1890 institutions (protects the match); States (must continue/meet match). Ties to higher 40% floors in §7110.
- Flag: NOTABLE - strengthens 1:1 state match enforcement.

Sec. 7115 - New beginning for Tribal students

- Does: Excludes 1994 Institutions from the "land-grant college or university" reference in (b)(4) (so 1994s are treated separately); strikes paragraph (5); reauthorizes.
- Amends: NARETPA §1450 (7 U.S.C. 3222e).
- Dates: 2023->2031.
- Type: EXTEND / REFORM.
- Affected: Tribal students; 1994 Institutions.
- Flag: -

Sec. 7116 - Education grants for Hispanic-serving institutions

- Does: Reauthorization only.
- Amends: NARETPA §1455(c) (7 U.S.C. 3241(c)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Hispanic-serving institutions.
- Flag: -

Sec. 7117 - Binational agricultural research and development (BARD)

- Does: Clarifies the agreement "as entered into in 1977"; expands BARD beyond "United States and Israel" to "United States, Israel, or other signatories of the Abraham Accords Declaration"; creates a new "BARD Fund Accelerator" program supporting mid-stage (by technology-readiness-level) cooperative research - fast-tracking cooperative research, providing resources/services, management guidance/technical assistance, and advancing projects of mutual interest.
- Amends: NARETPA §1458(e) (7 U.S.C. 3291(e)).
- Type: REFORM / NEW (accelerator).
- Affected: US-Israel and Abraham Accords-signatory researchers (winners - expanded partner pool).
- Flag: NOTABLE - extends binational research to Abraham Accords countries.

Sec. 7118 - Grants and partnerships for international agricultural research, extension, and education

- Does: Rewrites NARETPA §1458A: new definitions ("developing country" via GNI-per-capita test; "eligible institution" = land-grant, non-land-grant college of ag, Hispanic-serving ag college/university, cooperating forestry school; "international partner institution"). Authorizes competitive grants to strengthen US competitiveness/market development and partnerships with international partner institutions (extension exchange, collaborative research on food security/nutrition/forestry/livestock/fisheries, teaching/education, internationalization, an intern program coordinated by NIFA Director + FAS Administrator, and a fellowship program for study at foreign ag colleges). Replaces "covered Institutions" with "eligible institutions"; reauthorizes. Conforming: repeals NARETPA §1459A (7 U.S.C. 3292b).
- Amends: NARETPA §1458A (7 U.S.C. 3292); repeals §1459A (7 U.S.C. 3292b).
- Dates: 2023->2031.
- Type: REFORM / REPEAL (of §1459A).
- Affected: Eligible US institutions; developing-country partner institutions.
- Flag: -

Sec. 7119 - Research equipment grants

- Does: Reauthorization only.
- Amends: NARETPA §1462A(e) (7 U.S.C. 3310a(e)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Research institutions.
- Flag: -

Sec. 7120 - University research

- Does: Reauthorization (both subsections (a) and (b)).
- Amends: NARETPA §1463 (7 U.S.C. 3311).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Universities.
- Flag: -

Sec. 7121 - Extension service

- Does: Reauthorization only.
- Amends: NARETPA §1464 (7 U.S.C. 3312).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Extension services.
- Flag: -

Sec. 7122 - Supplemental and alternative crops

- Does: Reauthorizes (subsecs (a) and (e)(3)); adds a new purpose to examine benefits/opportunities for supplemental and alternative crops, including winter-planted rapeseed and winter-planted canola.
- Amends: NARETPA §1473D (7 U.S.C. 3319d).
- Dates: 2023->2031 (two places).
- Type: EXTEND / REFORM.
- Affected: Rapeseed/canola growers (winners - explicit research focus).
- Flag: -

Sec. 7123 - Grants for community college agriculture and natural resources programs

- Does: Rewrites §1473E: defines "eligible entity" (junior/community college, consortium/alliance of 2-yr public colleges, area career-and-technical-education school offering ag) and "work-based learning"; directs competitive grants for workforce training/education/research/outreach; gives priority to entities coordinating with local ag-industry operator or conservation district for work-based learning; lists allowable uses (ag-industry job programming incl. farm business management, apprenticeships/work-based learning, other workforce-training services); reauthorizes.
- Amends: NARETPA §1473E (7 U.S.C. 3319e).
- Dates: 2023->2031.
- Type: REFORM / EXTEND.
- Affected: Community/junior colleges and area CTE schools (winners).
- Flag: -

Sec. 7124 - Capacity building grants for NLGCA institutions

- Does: Reauthorization only.
- Amends: NARETPA §1473F(b) (7 U.S.C. 3319i(b)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Non-land-grant colleges of agriculture (NLGCA).
- Flag: -

Sec. 7125 - Agriculture Advanced Research and Development Authority (AGARDA)

- Does: Major reform. Adds precision agriculture to equipment scope and defines "precision agriculture" (managing/tracking/reducing crop or livestock production inputs - seed, feed, fertilizer, chemicals, water, time - at heightened spatial/temporal granularity to improve efficiency, reduce waste, maintain environmental quality). Replaces "person"/"qualified person" terminology with "eligible entity" throughout. Broadens covered products/projects ("any other product or project as determined by the Secretary"). Adds new mission purposes: overcoming long-term/high-risk technological barriers for technologies enhancing export competitiveness, environmental sustainability, water conservation, resilience to extreme weather/drought/disease/pests; and enhancing the role of sustainable agriculture in voluntary resilience solutions

(extreme-weather crop impact, drought/soil water-holding capacity, long-term carbon storage, sustainable/biofuel energy, voluntary carbon-sequestering conservation, precision-ag adoption). Requires the Secretary to use the strategic plan to inform AGARDA administration. Extends AGARDA's lifespan from 5 years to 13 years (and the strategic-plan horizon 5-year->13-year). Reauthorizes.

- Amends: NARETPA §1473H (7 U.S.C. 3319k).
- Numbers: AGARDA duration 5 yr->13 yr; plan 5-yr->13-yr.
- Dates: 2023->2031.
- Type: REFORM / EXTEND (significant).
- Affected: Ag-tech researchers/startups, precision-ag developers (winners).
- Flag: NOTABLE - large lifespan extension (5->13 yrs) plus precision-ag definition added.

Sec. 7126 - Aquaculture assistance programs

- Does: Reauthorizes §1477(a)(2). Adds a freestanding study: within 180 days of enactment, the Secretary shall identify locations in the U.S. Virgin Islands and Guam suitable for aquaculture small-business development (assessing water quality, coastal access, infrastructure needs, environmental/regulatory requirements), consulting the Virgin Islands Dept. of Planning and Natural Resources and Guam Dept. of Agriculture.
- Amends: NARETPA §1477(a)(2) (7 U.S.C. 3324(a)(2)) + freestanding study.
- Dates: 2023->2031; study within 180 days.
- Type: EXTEND / STUDY-OR-REPORT.
- Affected: USVI and Guam aquaculture small businesses.
- Flag: Note typo in bill text: "insert" (should be "inserting") at §1477.

Sec. 7127 - Special authorization for biosecurity planning and response

- Does: Reauthorization only.
- Amends: NARETPA §1484(a)(3) (7 U.S.C. 3351(a)(3)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Biosecurity programs.
- Flag: -

Sec. 7128 - Agriculture and food protection grant program

- Does: Renames/rewrites §1485 as the "Agriculture and food protection grant program." Establishes a competitive grant program to support research/extension/education that improves U.S. ability to protect the food and ag system from any chemical, biological, cybersecurity, or bioterrorism attack. Lists uses (ag countermeasure R&D; teaching programs in ag/vet med/allied disciplines for biosecurity and cybersecurity expertise; biosafety/biosecurity facility upgrades; equipment/capital; general response capacity). Lists eligible entities (state ag experiment stations, state ag departments, colleges/universities, university research foundations, other research institutions/orgs, Federal agencies, national laboratories, or groups of 2+). Sets authorization for FY2027-2031. Conforming: repeals chapters 1 and 2 of subtitle B of title XIV of the 2008 farm bill (7 U.S.C. 8912, 8913, 8921, 8922).
- Amends: NARETPA §1485 (7 U.S.C. 3352); repeals 7 U.S.C. 8912, 8913, 8921, 8922.
- Dates: Authorization "for each of fiscal years 2027 through 2031."
- Type: REFORM / REPEAL.
- Affected: Ag-biosecurity/cybersecurity researchers; consolidates legacy 2008 programs.
- Flag: NOTABLE - adds cybersecurity to ag-protection mission; repeals legacy 2008 biosecurity authorities.

Sec. 7129 - Distance education grants for insular areas

- Does: Reauthorization only.
- Amends: NARETPA §1490(f)(2) (7 U.S.C. 3362(f)(2)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Insular-area institutions.
- Flag: -

Sec. 7130 - Resident instruction grants for insular areas

- Does: Reauthorization only.
- Amends: NARETPA §1491(c)(2) (7 U.S.C. 3363(c)(2)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Insular-area institutions.
- Flag: -

Sec. 7131 - Repeals

- Does: Repeals NARETPA §1410 (7 U.S.C. 3125), §1419C (7 U.S.C. 3158), §1447A (7 U.S.C. 3222b-1), and Subtitle M (7 U.S.C. 3331 et seq.).
- Amends: NARETPA - four repeals.
- Type: REPEAL.
- Affected: Programs under the repealed provisions sunset.
- Flag: -

Subtitle B - Food, Agriculture, Conservation, and Trade Act of 1990 (FACTA)

Sec. 7201 - Sustainable agriculture research and education (SARE)

- Does: Reauthorizes four SARE-related sections at once: §1624 (7 U.S.C. 5814), §1627(d) (5821(d)), §1628(f)(2) (5831(f)(2)), §1629(i) (5832(i)).
- Amends: FACTA subtitle B of title XVI.
- Dates: 2023->2031 (all four).
- Type: EXTEND.
- Affected: SARE programs.
- Flag: -

Sec. 7202 - National Genetics Resources Program

- Does: Reauthorization only.
- Amends: FACTA §1635(b)(2) (7 U.S.C. 5844(b)(2)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Genetic-resources program.
- Flag: -

Sec. 7203 - Agricultural genome to phenome initiative

- Does: Reauthorization only.
- Amends: FACTA §1671(g) (7 U.S.C. 5924(g)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Genome-to-phenome researchers.
- Flag: -

Sec. 7204 - High-priority research and extension initiatives

- Does: Restructures §1672's list of authorized high-priority research/extension initiatives - strikes several existing paragraphs ((5),(6),(9),(10),(11),(13),(18)), rennumbers others, and adds "harmful algal blooms" to the macro-algae paragraph. Adds many NEW initiatives: (14) fertilizer and nutrient management; (15) tropical plant health (coffee, macadamia, cacao, plantains/bananas, mangos, vanilla, tropical floriculture/nursery, etc.); (16) biochar research (incl. a national biochar research network); (17) wildfire smoke exposure research on specialty crops (wine grapes, hops, stone fruit, apples); (18) invasive species (spotted lanternfly, navel orangeworm, spotted wing drosophila); (19) microplastics and PFAS on farmland (incl. firefighting foam in biosolids/compost); (20) ag byproducts research; (21) soil health research; (22) white oak research; (23) alternative growing

media research; (24) rangeland research (incl. virtual fencing); (25) specialty-crop mechanization and automation research; (26) biological pest control. Reauthorizes subsecs (e)(5), (f)(5), (g)(1)(B),(2)(B),(3), and redesignated (i). Adds new report (subsec (h)): by Feb 1, 2028, and at least every other year thereafter, the Secretary reports to House/Senate Ag committees on how research/extension activities in subsecs (d)-(f) were carried out, including funding allocated to each initiative (across ARS appropriations, NIFA capacity/infrastructure programs, NIFA competitive programs, and other agencies).

- Amends: FACTA §1672 (7 U.S.C. 5925).
- Dates: Reauths 2023->2031; report by Feb 1, 2028 then biennial.
- Type: REFORM / NEW (initiatives) / STUDY-OR-REPORT.
- Affected: Wide array of commodity/specialty/tropical/forestry/soil interests (winners with new earmarked research lines).
- Flag: NOTABLE - large expansion of high-priority initiative menu; new PFAS/microplastics and biochar lines.

Sec. 7205 - Organic agriculture research and extension initiative (OREI)

- Does: Reauthorizes (subsec (a)); strikes subsection (e) and redesignates (f) as (e); reauthorizes within redesignated (e)(2); strikes paragraph (3) of that subsection.
- Amends: FACTA §1672B (7 U.S.C. 5925b).
- Dates: 2023->2031.
- Type: EXTEND / REFORM.
- Affected: Organic research community.
- Flag: -

Sec. 7206 - Farm business management

- Does: Reauthorization only.
- Amends: FACTA §1672D(d)(2) (7 U.S.C. 5925f(d)(2)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Farm-business-management programs.
- Flag: -

Sec. 7207 - Urban, indoor, and other emerging agricultural production research, education, and extension initiative

- Does: Updates references to tie the initiative to both the Urban Agriculture and Innovative Production Advisory Committee AND the Office of Urban Agriculture and Innovative Production (§222 of USDA Reorg Act); switches "emerging agricultural production" to "emerging agricultural production practices"; adds purposes: (9) managing waste streams to improve environmental footprint; (10) advising land-grant colleges, minority-serving institutions, junior/community colleges, and vocational schools on career and technical education.
- Amends: FACTA §1672E(a) (7 U.S.C. 5925g(a)).
- Type: REFORM.
- Affected: Urban/indoor ag researchers; minority-serving and 2-yr institutions.
- Flag: -

Sec. 7208 - Centers of excellence

- Does: Rewrites §1673. Subsec (a): Secretary shall establish at least one center of excellence per area of focus; eligible host/co-hosts = 1862, 1890, 1994 Institutions, non-land-grant colleges of ag, Hispanic-serving ag colleges/universities, accredited vet-med schools (geographic diversity; one center per institution at a time). Defines duties (reduce duplication, leverage public-private partnerships, training/extension, economic returns to rural communities, rapid response to threats, workforce development, IP/tech-transfer assistance). Lists 15 areas of focus (A-O): aquaculture; beginning farmers/ranchers; biosecurity and cybersecurity; biosystems and ag engineering (incl. precision ag, specialty-crop mechanization/automation); biotechnology; crop production/protection/resilience (incl. fertilizer/crop-protection tools); digital agriculture (incl. AI and remote sensing); farm business/financial management; food quality (PFAS uptake, microplastics in biosolids, reducing inorganic arsenic/lead/cadmium/mercury in food); foreign animal disease; forestry (incl. biochar/pyrolysis); invasive species; livestock and poultry (incl. equines); veterinary medicine (rural large-animal vet shortage); water quality and quantity. Term: 5 years, renewable once for 5 more; construction prohibited. Annual report to Ag committees on projects, funding/sources, participants/shares,

cost-sharing, and tech-transfer/IP actions. Redesignates old subsec (d) as (b); for the *additional* centers under (b), raises the minimum from "not less than 3" to "not less than 8" centers; expands a focus subparagraph to "workforce development, and rural studies" (adds economics, psychology, rural sociology, data sciences); adds nature-based soil-organic-compound solutions; adds (G) forest health/conservation and (H) food safety/bioprocessing/value-added ag focus areas; reauthorizes (b)(3) 2023->2031.

- Amends: FACTA §1673 (7 U.S.C. 5926).
- Numbers: Additional centers "not less than 3"->"not less than 8"; 5-yr terms renewable once.
- Dates: 2023->2031; annual report.
- Type: REFORM / INCREASE (center count) / STUDY-OR-REPORT.
- Affected: Land-grants (1862/1890/1994), Hispanic-serving ag colleges, vet schools, NLGCAs (winners - broader host eligibility and more centers).
- Flag: NOTABLE - major overhaul; 15 codified focus areas + minimum centers raised to 8.

Sec. 7209 - Assistive technology program for farmers with disabilities

- Does: Adds purpose to provide education/support to youth and young adults with disabilities interested in farming/farm-related occupations; reauthorizes.
- Amends: FACTA §1680 (7 U.S.C. 5933).
- Dates: 2023->2031.
- Type: EXTEND / REFORM.
- Affected: Farmers with disabilities; disabled youth (winners).
- Flag: -

Sec. 7210 - Farming opportunities training and outreach (FOTO / BFRDP + 2501)

- Does: Directs the program through the NIFA Director; reauthorizes (c)(2), (d)(1), (l)(2). Shifts emphasis toward farm business management / ongoing economic viability: adds budgeting/business-planning/financial-management training orgs; changes advisory-panel composition language from "peers" to "individuals with demonstrated expertise in farm business management" / "broad representation of the U.S. agriculture industry"; replaces priority for community-based/school-based partnerships with priority for budgeting/business-planning/financial-management programs focused on economic viability; strikes a paragraph and renumbers.
- Amends: FACTA §2501 (7 U.S.C. 2279).
- Dates: 2023->2031 (three places).
- Type: EXTEND / REFORM.
- Affected: Beginning/veteran/socially-disadvantaged farmer training; shift away from community-based/school-based org priority toward farm-business-management focus (potential losers: community-based orgs).
- Flag: NOTABLE - reorients FOTO priorities toward financial/business management.

Sec. 7211 - National Rural Information Center Clearinghouse

- Does: Reauthorization only.
- Amends: FACTA §2381(e) (7 U.S.C. 3125b(e)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Rural info clearinghouse.
- Flag: -

Sec. 7212 - Repeal

- Does: Repeals Subtitle D of title XVI of FACTA (7 U.S.C. 5851 et seq.).
- Amends: FACTA - repeal.
- Type: REPEAL.
- Affected: Programs under repealed subtitle.
- Flag: -

Sec. 7213 - Researching the transition to organic

- Does: NEW freestanding §1674 in FACTA title XVI (after §1673). Authorizes competitive grants (Secretary, in consultation with

NAREEE Advisory Board) for research/education/extension on transitioning nonorganic to organic production - overcoming barriers, documenting effects on ecosystem services (soil health/fertility, GHG mitigation/sequestration, water management, biodiversity, pest management), and developing technologies/metrics. Applies certain grant-administration provisions of the Competitive, Special, and Facilities Research Grant Act (7 U.S.C. 3157(b)). Authorizes \$7,500,000 for FY2027 and each fiscal year thereafter.

- Amends: NEW §1674 of FACTA title XVI (after 7 U.S.C. 5926).
- Numbers: \$7,500,000/yr (FY2027+).
- Type: NEW.
- Affected: Producers transitioning to organic (winners).
- Flag: -

Subtitle C - Agricultural Research, Extension, and Education Reform Act of 1998 (AREERA)

Sec. 7301 - National food safety training, education, extension, outreach, and technical assistance program

- Does: Strikes subsection (d), redesignates (e)-(j) as (d)-(i); reauthorizes redesignated (i).
- Amends: AREERA §405 (7 U.S.C. 7625).
- Dates: 2023->2031.
- Type: EXTEND / REFORM.
- Affected: Food-safety training programs.
- Flag: -

Sec. 7302 - Integrated research, education, and extension competitive grants program

- Does: Reauthorization only.
- Amends: AREERA §406(f) (7 U.S.C. 7626(f)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Integrated-grants recipients.
- Flag: -

Sec. 7303 - Research on wheat/triticale/barley diseases (Fusarium graminearum / Tilletia indica)

- Does: Reauthorization only.
- Amends: AREERA §408(e)(3) (7 U.S.C. 7628(e)(3)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Wheat/barley scab/karnal-bunt researchers.
- Flag: -

Sec. 7304 - Grants for youth organizations

- Does: Reauthorization only.
- Amends: AREERA §410(d)(2) (7 U.S.C. 7630(d)(2)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Youth organizations (e.g., 4-H/FFA-type).
- Flag: -

Sec. 7305 - Specialty Crop Research Initiative (SCRI)

- Does: Amends §412. Adds a matching-funds WAIVER: Secretary may waive the match if results particularly benefit a specific specialty crop but are likely broadly applicable, OR the grant involves a minor commodity + scientifically important research + recipient cannot meet the match. Renumbers/redesignates subsections (k)->(l). Creates a NEW "Specialty crop mechanization and automation research and extension program" (subsec (k)): competitive grants to increase specialty-crop competitiveness via

mechanization/automation - projects creating cost-effective technologies (reduce manual labor; increase efficiency of production/resource management/harvesting/processing/post-harvest/packing), increasing adoption (connectivity, autonomy, reliability, durability, in-field validation, cost-effectiveness; human-capital development), and accelerating automation (prototype development, in-field trials, industry engagement, rapid commercialization). Reserves not less than \$30,000,000 of SCRI funds for each of FY2027-2031 for the new mechanization/automation program (with reallocation of unobligated reserved funds back to the base SCRI). Reauthorizes redesignated (I)(2).

- Amends: AREERA §412 (7 U.S.C. 7632).
- Numbers: >=\$30,000,000/yr reserved (FY2027-2031).
- Dates: 2023->2031.
- Type: REFORM / NEW (mechanization program with carve-out).
- Affected: Specialty-crop growers, ag-automation developers, minor commodities (winners).
- Flag: NOTABLE - \$30M/yr mechanization-and-automation carve-out within SCRI + match waiver.

Sec. 7306 - Agriculture grants for veteran education and training services

- Does: NEW freestanding §414 in AREERA title IV. Competitive grants to establish/enhance farming and ranching opportunities for veterans (as defined in 38 U.S.C. 101(2)). Eligible entities: cooperative extension service, land-grant college/university, non-land-grant college of ag, Hispanic-serving ag college/university, state ag department, nonprofit, community-based org, or combinations. Uses: training/classroom education on farm/ranch business operations and management; develop/identify curriculum; offer workshops/tours/field experiences; other activities to grow veteran participation. Requires non-Federal match of >= the grant amount. Authorizes \$3,000,000 for each of FY2025-2031.
- Amends: NEW §414 of AREERA (after 7 U.S.C. 7624 et seq.).
- Numbers: \$3,000,000/yr (FY2025-2031); 1:1 match.
- Type: NEW.
- Affected: Veteran farmers/ranchers (winners).
- Flag: -

Sec. 7307 - Food Animal Residue Avoidance Database (FARAD) program

- Does: Reauthorization only.
- Amends: AREERA §604(e) (7 U.S.C. 7642(e)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: FARAD program.
- Flag: -

Sec. 7308 - Office of Pest Management Policy

- Does: Reauthorization only.
- Amends: AREERA §614(f)(2) (7 U.S.C. 7653(f)(2)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Office of Pest Management Policy.
- Flag: -

Sec. 7309 - Forestry products advanced utilization research

- Does: Reauthorization only.
- Amends: AREERA §617(f)(1) (7 U.S.C. 7655b(f)(1)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Forest-products research.
- Flag: -

Sec. 7310 - Repeals

- Does: Repeals AREERA §404 (7 U.S.C. 7624) and §411 (7 U.S.C. 7631).

- Amends: AREERA - two repeals.
- Type: REPEAL.
- Affected: Programs under repealed sections.
- Flag: -

Subtitle D - Food, Conservation, and Energy Act of 2008

Sec. 7401 - Grazinglands research laboratory

- Does: Removes the September 30, 2026 sunset on the conveyance/transfer prohibition, making the protection of the Grazinglands Research Laboratory permanent ("beginning on the date of enactment of this Act").
- Amends: 2008 farm bill §7502 (122 Stat. 2019).
- Type: REFORM (permanent protection).
- Affected: Grazinglands Research Laboratory.
- Flag: -

Sec. 7402 - Farm and Ranch Stress Assistance Network (FRSAN)

- Does: Adds crisis hotlines to covered websites; reauthorizes (d); redesignates (f)->(g); adds new subsec (f) allowing grant recipients to establish referral relationships with certified community behavioral health clinics, health centers, rural health clinics, FQHCs, and critical access hospitals. Adds freestanding study (subsec (b)): within 2 years of enactment, the Secretary (with FRSAN regional lead institutions) reports to Congress on availability/usage of mental and tele-mental health care among agricultural professionals (incidence/prevalence of conditions and treatment-seeking; rural availability) and recommendations to improve uptake/access; may consult CMS, SAMHSA, state ag departments, cooperative extension, ERS, and the Office of Rural Development (incl. Rural Health Liaison). Defines farmer/rancher/agricultural professional/mental health condition/tele-mental health care.
- Amends: 2008 farm bill §7522 (7 U.S.C. 5936) + freestanding study.
- Dates: 2023->2031; study/report within 2 years.
- Type: EXTEND / REFORM / STUDY-OR-REPORT.
- Affected: Farmer/rancher mental-health network (winners).
- Flag: -

Sec. 7403 - Sun grant program

- Does: Inserts "bioproduct" terminology (technologies/products); raises the administrative-cost cap from 4 percent to 30 percent (subsec (c)(2)); reauthorizes (g).
- Amends: 2008 farm bill §7526 (7 U.S.C. 8114).
- Numbers: Admin/cost percentage 4%->30%.
- Dates: 2023->2031.
- Type: EXTEND / REFORM (INCREASE in allowed admin share).
- Affected: Sun grant centers/regional bioproduct research.
- Flag: NOTABLE - large 4%->30% jump (likely a center-share/distribution figure; verify exact subsec (c)(2) meaning).

Sec. 7404 - Repeals

- Does: Repeals 2008 farm bill §7521 (7 U.S.C. 3202) and §7525 (7 U.S.C. 5937).
- Amends: 2008 farm bill - two repeals.
- Type: REPEAL.
- Affected: Programs under repealed sections.
- Flag: -

Subtitle E - Amendments to Other Laws

Sec. 7501 - Equity in Educational Land-Grant Status Act of 1994 (1994 Tribal land-grant institutions)

- Does: Reauthorizes §533(b); changes §534(a)(1) endowment-payment language from "equal to" to "that is not less than" (a floor, not a fixed amount); reauthorizes §535(b)(1) and (c); amends §536 to allow funds also to acquire/alter/repair/maintain/operate equipment needed to strengthen research capacity, strikes subsection (b), redesignates (c)->(b), and reauthorizes.
- Amends: Equity in Educational Land-Grant Status Act of 1994 (7 U.S.C. 301 note; P.L. 103-382), §§533-536.
- Dates: 2023->2031 (multiple).
- Type: EXTEND / REFORM.
- Affected: 1994 Institutions (Tribal colleges) - winners (equipment authority + "not less than" floor).
- Flag: NOTABLE - "equal to"->"not less than" raises the 1994 endowment floor.

Sec. 7502 - Research Facilities Act

- Does: Reauthorization only.
- Amends: Research Facilities Act §6(a) (7 U.S.C. 390d(a)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Research-facility grant recipients.
- Flag: -

Sec. 7503 - Agriculture and Food Research Initiative (AFRI)

- Does: Amends the Competitive, Special, and Facilities Research Grant Act §3157(b). Plant-breeding priorities: adds "regionally adapted" cultivar and "breeding for environmental resilience." Animal: adds shellfish survival/adaptability methods to aquaculture. Adds controlled-environment ag (hydroponics, aquaponics, aeroponics, other production technologies). Markets/trade: adds supply-chain coordination and capacity building; adds (ix) workforce training and development - including meat and poultry processing (incl. rendering) and precision agriculture - and (x) reducing food loss and food waste. Adds "area career and technical education schools" to the list of eligible entities (subsec (b)(7)). Reauthorizes (b)(11)(A).
- Amends: Competitive, Special, and Facilities Research Grant Act (7 U.S.C. 3157(b)).
- Dates: 2023->2031.
- Type: EXTEND / REFORM.
- Affected: AFRI grantees; area CTE schools (newly eligible); controlled-environment ag, precision ag, meat/poultry processing workforce (winners).
- Flag: NOTABLE - AFRI is USDA's flagship competitive grants program; new precision-ag and food-loss priorities.

Sec. 7504 - Extension design and demonstration initiative

- Does: Reauthorization only.
- Amends: Competitive, Special, and Facilities Research Grant Act (7 U.S.C. 3157(d)(6)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Extension design/demonstration initiative.
- Flag: -

Sec. 7505 - Biomass research and development

- Does: Reauthorization only.
- Amends: Farm Security and Rural Investment Act of 2002 §9008(h)(2) (7 U.S.C. 8108(h)(2)).
- Dates: 2023->2031.
- Type: EXTEND.
- Affected: Biomass R&D.
- Flag: -

Sec. 7506 - Renewable Resources Extension Act of 1978

- Does: Reauthorizes §6 (16 U.S.C. 1675) and §8 (16 U.S.C. 1671 note).
- Amends: Renewable Resources Extension Act of 1978.
- Dates: 2023->2031 (both).

- Type: EXTEND.
- Affected: Forestry/renewable-resource extension.
- Flag: -

Sec. 7507 - National Aquaculture Act of 1980

- Does: Fixes a typo ("acquaculture"->"aquaculture"); requires periodic reviews and continuing assessment "not less than once every 3 years"; adds to the continuing assessment a catalog of capital constraints and a catalog of Federal/State regulatory barriers. Replaces §5(d) with a new Aquaculture Advisory Committee (established within 180 days of enactment; advises on program oversight, technical assistance for shellfish/algae/land-based systems, implementation): 14 non-Federal members, staggered initial terms (5 at 3 yrs, 5 at 2 yrs, 4 at 1 yr), meets >=3 times/yr, members uncompensated (travel allowed), terminates 5 years after appointment (renewable for 2-year periods). Adds new annual report (subsec (e)) on aquaculture status (within 1 yr of enactment and yearly), coordinated with Commerce and Interior. Reauthorizes §10(1),(2),(3).
- Amends: National Aquaculture Act of 1980 (16 U.S.C. 2801 et seq.), §§4, 5, 10.
- Numbers: 14-member committee; reviews >= every 3 years.
- Dates: 2023->2031; committee within 180 days; annual report within 1 yr.
- Type: EXTEND / REFORM / NEW (advisory committee + report).
- Affected: Aquaculture industry (shellfish, algae, land-based).
- Flag: -

Sec. 7508 - Reports on disbursement of funds for ag research/extension at 1862 and 1890 colleges (incl. Tuskegee)

- Does: Restructures §7116 of the 2018 farm bill into subsec (a); adds (b) OUTREACH (by Feb 1 each FY, Secretary must give each State's Governor and legislature info on every matching requirement applicable under the 1862/1890 programs); adds (c) ATTESTATIONS (at least annually, each Governor must attest whether the State can fulfill each matching requirement; by Dec 31 each year the Secretary reports to Congress and publishes the attestations received).
- Amends: Agriculture Improvement Act of 2018 §7116 (7 U.S.C. 2207d).
- Dates: Outreach by Feb 1 annually; Secretary's report by Dec 31 annually.
- Type: REFORM / STUDY-OR-REPORT.
- Affected: 1862/1890 institutions (transparency on state match); Governors/legislatures (must act/attest).
- Flag: NOTABLE - gubernatorial attestation + public reporting to enforce 1890 match (ties to §§7110/7114).

Sec. 7509 - Repeal

- Does: Repeals §1431 of the NARETPA Amendments of 1985 (title XIV of P.L. 99-198; 99 Stat. 1556).
- Amends: P.L. 99-198 - repeal.
- Type: REPEAL.
- Affected: Program under repealed section.
- Flag: -

Sec. 7510 - Amendment to Smith-Lever Act

- Does: Amends §3(b)(3) to let 1994 Institutions use extension funds to acquire/alter/repair/maintain/operate equipment needed to strengthen capacity for Smith-Lever §2 purposes.
- Amends: Smith-Lever Act §3(b)(3) (7 U.S.C. 343(b)(3)).
- Type: REFORM.
- Affected: 1994 Institutions (Tribal colleges) - winners (equipment authority).
- Flag: -

Subtitle F - Other Matters

Sec. 7601 - Foundation for Food and Agriculture Research (FFAR)

- Does: Amends §7601 of the 2014 farm bill. Reworks consultation requirements (strikes a clause; replaces reference to the 2008 "roadmap for agricultural research" with the national research policies/priorities in NARETPA §1402 (7 U.S.C. 3101)). Changes a

board-vetting reference from "National Academy of Sciences" to the NAREEE Advisory Board; changes "industry" to "national farm, producer, or research organizations." Strengthens transparency/disclosure: requires the annual report be posted online AND submitted to House/Senate Ag committees, and adds new required disclosures - the source and description of all gifts of real/personal property; source and amount of each gift of money (with any restrictions on use); source/amount of any Federal or State grant, contract, or cooperative agreement; accounting of funds under subsec (g)(1); description of outreach activities; and description of the consultation process with USDA. Strikes/renumbers related subclauses.

- Amends: Agricultural Act of 2014 §7601 (7 U.S.C. 5939).

- Type: REFORM / disclosure (STUDY-OR-REPORT-adjacent).

- Affected: FFAR (must disclose gifts/grants/contracts) - a gift/funding-transparency provision.

- Flag: NOTABLE - new gift/grant disclosure regime for FFAR (relevant to foreign-/outside-influence transparency in ag research).

Sec. 7602 - Agriculture innovation center demonstration program

- Does: Adds a WAIVER letting the Secretary waive the board-of-directors requirement if an eligible entity already has an adequate board; reauthorizes.

- Amends: Farm Security and Rural Investment Act of 2002 §6402 (7 U.S.C. 1632b).

- Dates: 2023->2031.

- Type: EXTEND / REFORM.

- Affected: Agriculture innovation centers.

- Flag: -

Sec. 7603 - Livestock insects laboratory

- Does: Renames "Knipling-Bushland Research Laboratory" to "Knipling-Bushland Research Center" everywhere it appears.

- Amends: P.L. 100-208 (101 Stat. 1439).

- Type: REFORM (renaming).

- Affected: Knipling-Bushland Research Center.

- Flag: -

Sec. 7604 - U.S. Abit Massey National Poultry Research Center

- Does: Designates the U.S. National Poultry Research Center (Athens, GA) as the "U.S. Abit Massey National Poultry Research Center"; deems all legal references accordingly.

- Amends: New freestanding designation.

- Type: NEW (naming).

- Affected: USDA poultry research center.

- Flag: -

Sec. 7605 - Hatch Act of 1887

- Does: Updates terminology - "director"->"experiment station director"; removes references to "or other officer appointed by the governing board of the station" and "the authorized receiving officer"->"the experiment station director."

- Amends: Hatch Act of 1887 §5 (7 U.S.C. 361e).

- Type: REFORM (technical/governance).

- Affected: State agricultural experiment stations.

- Flag: -

Sec. 7606 - Commission on National Agricultural Statistics Service Modernization

- Does: NEW freestanding commission to study NASS and recommend modernizing/streamlining data collection (improve quality, account for production differences, adopt new technologies to reduce surveys, improve response rates/reduce survey fatigue, increase transparency, use real-time data, improve specialty-crop data) and implementation/cost. 11 members (NASS Administrator, ERS Administrator, USDA Chief Economist, Chair of World Ag Outlook Board, a BLS representative, 3 appointed by Senate Ag, 3 by House Ag). Appointments within 60 days; initial meeting within 60 days of full appointment; report within 3 years to the President and both Ag committees. Terminates Sept 30, 2031. Funding: of CCC funds, the Secretary shall use \$1,000,000 for FY2026, to remain available until expended.

- Amends: New freestanding provision.

- Numbers: 11 members; \$1,000,000 (FY2026, CCC).
- Dates: Appointments within 60 days; report within 3 years; terminates Sept 30, 2031.
- Type: NEW / STUDY-OR-REPORT.
- Affected: NASS, ag-data stakeholders.
- Flag: -

Sec. 7607 - Restoration of 4-H name and emblem authority

- Does: NEW freestanding provision restoring Federal protection of the 4-H emblem/name (undoing the 2019 "Clean Up the Code Act" repeal). Defines 4-H club/emblem/program and land-grant college/university; ratifies civil acts taken May 8, 1914-enactment as if the 2019 repeal had not occurred (no effect on criminal law). Authorizes the Secretary to use and license the 4-H emblem/name (with or without fee; fees deposited in a special account available without further appropriation for the 4-H Program). Prohibits unauthorized commercial use, enforceable via civil action by the Attorney General (or contract counsel) under the Lanham Act. Savings clauses preserve prior lawful uses.
- Amends: New freestanding provision (references repeal of §1002(3) of Clean Up the Code Act of 2019, P.L. 116-260).
- Type: NEW / REFORM (restoration).
- Affected: 4-H Program, land-grant cooperative extension, USDA.
- Flag: -

Sec. 7608 - Under Secretary of Agriculture for Research, Education, and Economics

- Does: Amends §251 of the USDA Reorganization Act of 1994. Adds Under Secretary duty to coordinate research with other Federal agencies; reduces a tenure/experience requirement "not less than 3 years" to "not less than 1 year." Adds new subsec (h) INTERAGENCY COORDINATION: Secretary shall carry out cross-cutting collaborative R&D advancing USDA + other-agency missions, via memoranda of understanding (MOUs) with DOE, NSF, DOD, and HHS (each within 1 year of enactment; competitive, merit-reviewed where appropriate). Lists collaboration mechanisms (collaborative research, data integration, public/private and lab/university partnerships, research infrastructure/workforce). DOD focus areas: water/energy/soil/forest/food scarcity for military ops; defense-applicable innovations beneficial to rural ag (precision agriculture, drones, remote sensing, PNT); PFAS mitigation on farmland near military bases. HHS focus: natural color additives / crops for natural colors, genetics, scale barriers, infrastructure. Requires MOUs with other agencies as appropriate. Report within 2 years on interagency coordination. Research-security clause: activities must comply with subtitle D of title VI of the Research and Development, Competition, and Innovation Act (CHIPS Act of 2022; 42 U.S.C. 19231 et seq.).
- Amends: USDA Reorganization Act of 1994 §251 (7 U.S.C. 6971).
- Dates: MOUs within 1 year; report within 2 years.
- Type: REFORM / NEW (interagency coordination).
- Affected: USDA REE mission area; DOE/NSF/DOD/HHS; national labs; universities.
- Flag: NOTABLE - broad new interagency R&D authority with an explicit CHIPS-Act research-security tie-in (foreign-influence safeguard).

Sec. 7609 - Agricultural Innovation Corps (Ag I-Corps)

- Does: NEW freestanding program. Secretary establishes Ag I-Corps to promote tech transfer/commercialization of federally funded research via a standardized entrepreneurial training program for ag researchers/students/IHes and ARS-researcher/university regional collaboration. Eligibility: ag researchers/students/IHes receiving USDA funds. Follow-on grants: Secretary may use Small Business Innovation Research (SBIR) Program funds for competitive grants for prototype/proof-of-concept and infrastructure (limited to participants too early-stage for SBIR/STTR). Allows partnerships with other Federal agencies, state/local governments, economic-development and nonprofit orgs. Report to Ag committees by Sept 30, 2027, then at least biennially, on efficacy/metrics.
- Amends: New freestanding provision.
- Dates: Report by Sept 30, 2027, then biennial.
- Type: NEW / STUDY-OR-REPORT (reporting).
- Affected: Ag researchers, students, IHes, ARS (winners - commercialization support).
- Flag: -

Sec. 7610 - Study on technical assistance for transfer of agricultural land and assets

- Does: Within Sept 30, 2026, the Secretary shall study and report to Congress on increasing opportunities for 1890 Institutions to conduct educational programs and provide technical assistance on agricultural land/asset transfers - including heirs property - to the next generation of farmers/ranchers. Defines "heirs property" (tenancy-in-common tests: no recorded partition agreement; title acquired from a relative; 20%+ thresholds for relative-held interests/co-tenants).
- Amends: New freestanding study.
- Dates: By Sept 30, 2026.
- Type: STUDY-OR-REPORT.
- Affected: 1890 Institutions; heirs-property/next-gen farmers.
- Flag: -

Sec. 7611 - Sense of Congress on importance of community colleges to U.S. agriculture

- Does: Sense of Congress that 2-year/community/junior colleges are at the forefront of ag workforce development (esp. conservation), have a proven record, and that investing in them is crucial to the ag industry/economy/environment.
- Amends: Sense of Congress (non-binding).
- Type: NEW (non-operative).
- Affected: Community colleges (rhetorical support).
- Flag: - (note: section header has a typo "United Sates").

Sec. 7612 - Limitation on certain research involving dogs and cats

- Does: Secretary (through Under Secretary for REE) must ensure no REE-mission research/education/extension involves domestic dogs (*Canis familiaris*) or cats (*Felis catus*) subjected to pain/distress not alleviated by appropriate sedation/analgesia/anesthesia (per Animal Welfare Act pain categories 5-7 of 9 CFR 2.36(b)). EXCEPTION for dog training/use to safeguard ag/natural resources from foreign/invasive pests/diseases (incl. Beagle Brigade Act of 2023, P.L. 118-191). Waiver: only the Under Secretary may waive, case-by-case, if research is necessary for national security/animal-crop-public health and no reasonable alternative exists. Congressional notification ≥ 30 days before a waiver (justification, research description/number-and-species, projected taxpayer cost, why alternatives infeasible, expected duration).
- Amends: New freestanding provision (references Animal Welfare Act, 7 U.S.C. 2131 et seq.).
- Dates: Notification ≥ 30 days before waiver.
- Type: NEW / REFORM (research limitation).
- Affected: USDA REE animal researchers (constrained); animal-welfare interests (winners).
- Flag: NOTABLE - animal-welfare restriction with narrow waiver + congressional notification.

Sec. 7613 - Report on national grape production

- Does: Secretary (through NASS Administrator) shall, within 1 year of enactment, conduct and publish a survey of grape production in each State (total acreage; production/utilization/acreage by type, variety, county, year planted); and within 2 years and annually thereafter for 3 years, survey the 5 highest-grape-production States.
- Amends: New freestanding provision.
- Dates: Initial survey within 1 year; top-5-state surveys within 2 years then annually for 3 years.
- Type: STUDY-OR-REPORT.
- Affected: Grape/wine industry; NASS.
- Flag: -

Sec. 7614 - Limitation on certain research in countries of concern

- Does: Secretary (through Under Secretary for REE) shall prohibit REE-mission research/education/extension involving vertebrate animals from being conducted in, or in collaboration with, the People's Republic of China, the Russian Federation, or other foreign countries of concern (as defined in §10638(2) of the CHIPS Act of 2022, 42 U.S.C. 19237(2)). Waiver: only the Under Secretary may waive case-by-case if research is necessary to protect national security or animal/crop/public health/safety/welfare. Congressional notification ≥ 30 days before a waiver (justification; research description incl. location, collaborators, number/species of animals; projected taxpayer cost; expected duration).
- Amends: New freestanding provision (references CHIPS Act of 2022, 42 U.S.C. 19237(2)).
- Dates: Notification ≥ 30 days before waiver.
- Type: NEW (research restriction / foreign-influence safeguard).

- Affected: USDA REE researchers; bars China/Russia/countries-of-concern collaboration on vertebrate-animal research.
- Flag: NOTABLE - explicit foreign-adversary research prohibition; complements §7608(h)(4) CHIPS-Act research-security clause.

Cross-cutting flags for this title

- Universal reauthorization to FY2031: the dominant mechanic is "strike 2023, insert 2031." The vast majority of sections are pure extensions; the substance is concentrated in a minority of reform/new sections.
- 1890 land-grant institutions are major winners: §7110 raises the extension floor 20%→40% and the Evans-Allen research floor 30%→40%; §7114 rewrites the 1:1 state match requirement; §7508 adds gubernatorial attestation + public reporting to enforce the match. These four sections interlock.
- 1994 Tribal institutions gain equipment/capacity authority: §7501 ("equal to"→"not less than" endowment floor + equipment use) and §7510 (Smith-Lever equipment authority); §7115 carves 1994s out of certain definitions.
- Precision agriculture is a recurring theme: defined and embedded in AGARDA (§7125), Centers of Excellence (§7208), AFRI (§7503), and the DOD MOU focus areas (§7608); also specialty-crop mechanization/automation appears in §7204(25), §7305 (\$30M/yr), and §7208.
- Foreign-influence / research-security: §7614 prohibits REE vertebrate-animal research with China/Russia/countries-of-concern (CHIPS Act definition); §7608(h)(4) requires CHIPS-Act research-security compliance for all new interagency activities; §7601 imposes new gift/grant/contract disclosure on FFAR. (No general "foreign-gift disclosure for ag research universities" section appears in this title - the foreign-nexus provisions are these three.)
- New freestanding programs/initiatives: Researching the Transition to Organic (\$7.5M/yr, §7213); Veteran ag education grants (\$3M/yr, §7306); Ag I-Corps (§7609); NASS Modernization Commission (\$1M CCC, §7606); 4-H emblem restoration (§7607); interagency R&D MOUs (§7608).
- Biosecurity + cybersecurity pairing: §7128 adds cybersecurity to the ag/food protection mission; cybersecurity recurs in the §7208 Centers of Excellence focus areas.
- PFAS / microplastics: appear as research priorities in §7204(19), §7208(I) food quality, and §7608 DOD focus (PFAS near military bases).
- Several explicit dollar figures (quote exact): \$7,500,000/yr organic transition (§7213); \$3,000,000/yr veteran grants FY2025-2031 (§7306); ≥\$30,000,000/yr SCRI mechanization reserve FY2027-2031 (§7305); \$1,000,000 CCC FY2026 for NASS Commission (§7606). The ag/food protection program (§7128) is authorized FY2027-2031 (no dollar figure stated in text). AGARDA lifespan 5→13 years (§7125).
- Animal welfare: §7612 limits painful dog/cat research (Beagle Brigade exception); §7614 limits foreign-country vertebrate research - both restrict the same REE mission area with the same Under-Secretary-only waiver + 30-day congressional notification structure.
- Several drafting typos in the engrossed text: §7126 ("insert" for "inserting"), §7611 header ("United Sates").
- Section numbering is complete and continuous: 7101-7131, 7201-7213, 7301-7310, 7401-7404, 7501-7510, 7601-7614 (no gaps).

Title VIII - Forestry - Notes

Title-level summary

Title VIII reauthorizes core USDA Forest Service / cooperative-forestry programs through FY2031 (most "2023->2031" date strikes) and substantially expands forest-management and wildfire authorities. Its most consequential and controversial provisions cluster in Subtitle D (Forest Management): multiple new and enlarged NEPA categorical exclusions (high-priority hazard trees, electric utility ROW, fuel-reduction activities), tripling of several existing CE acreage caps from 3,000 to 10,000 acres, an ESA Section 7 reconsultation carve-out for land/use management plans, and an electric-utility CE that exempts activities from ESA Section 7 and National Historic Preservation Act review entirely. Subtitle F (White Oak Resilience Act) and Subtitle G (Save Our Sequoias Act) create new freestanding programs; SOS declares a statutory 7-year "emergency" across named Sierra Nevada forests/parks with its own categorical exclusion (2,000-acre grove / 3,000-acre adjacent caps). Other subtitles touch agroforestry, forest inventory/carbon accounting, timber innovation/biochar, grazing-for-fuels, good-neighbor authority expansion, and a \$220M timber-mill loan-guarantee program. The recurring environmental-law flags are NEPA CE expansions, ESA reconsultation/consultation waivers, and the statutory emergency designation.

Section-by-section

Subtitle A - Cooperative Forestry Assistance Act of 1978

Sec. 8101 - Support for State assessments and strategies for forest resources

- Does: Reauthorizes State forest-resource assessment/strategy program; revises funding language so Secretary may use any other Act funds, capped at \$10,000,000/fiscal year combined for developing/implementing State-wide assessment and strategy.
- Amends: Sec. 2A(f), Cooperative Forestry Assistance Act of 1978 (16 U.S.C. 2101a(f)).
- Numbers: \$10,000,000/yr cap.
- Dates: 2023 -> 2031.
- Type: EXTEND/REFORM
- Affected: State forestry agencies.
- Flag: -

Sec. 8102 - Forest legacy program technical correction

- Does: Strikes "the State of Vermont"/"of Vermont" and generalizes to "a State"/"involved" (removes Vermont-specific limitation in Forest Legacy provision).
- Amends: Sec. 7(l)(3), Cooperative Forestry Assistance Act of 1978 (16 U.S.C. 2103c(l)(3)).
- Type: REFORM (technical)
- Affected: All States (previously Vermont only).
- Flag: -

Sec. 8103 - State and private forest landscape-scale restoration program

- Does: Reauthorization date strike.
- Amends: Sec. 13A(l)(3), CFAA 1978 (16 U.S.C. 2109a(l)(3)).
- Dates: 2023 -> 2031.
- Type: EXTEND
- Flag: -

Sec. 8104 - Rural fire prevention and control

- Does: Allows Secretary to waive Federal-share (cost-share) requirements for funds to rural volunteer fire departments; broadens eligible fire orgs to include those organized by local-government authority; raises community population threshold from 10,000 to 15,000; lowers a percentage from 80 to 70.
- Amends: Sec. 10, CFAA 1978 (16 U.S.C. 2106), subsections (e)(2)(B) and (g)(1).

- Numbers: population 10,000 -> 15,000; "80" -> "70" percent.
- Type: REFORM/INCREASE (eligibility/flexibility)
- Affected: Rural volunteer fire departments (winners).
- Flag: -

Subtitle B - Healthy Forests Restoration Act of 2003

Sec. 8201 - Promoting cross-boundary wildfire mitigation

- Does: Reauthorization date strike.
- Amends: Sec. 103(e)(5), HFRA 2003 (16 U.S.C. 6513(e)(5)).
- Dates: 2023 -> 2031.
- Type: EXTEND
- Flag: -

Sec. 8202 - Authorization of appropriations for hazardous fuel reduction on Federal land

- Does: Reauthorization date strike.
- Amends: Sec. 108, HFRA 2003 (16 U.S.C. 6518).
- Dates: 2023 -> 2031.
- Type: EXTEND
- Flag: -

Sec. 8203 - Water source protection program

- Does: Major expansion of Water Source Protection Program. Adds "adjacent land" definition (non-Federal land adjacent to/within same watershed as NFS land). Adds new eligible partners (acequia association; stormwater/wastewater public entity; land-grant mercedes; private water-delivery entity). Adds project requirements (protect/restore watershed health, water supply, forest health from insects/disease/wildfire) and priorities (drought/wildfire/post-wildfire/climate resilience, aquatic restoration, nature-based solutions). Authorizes projects on adjacent land only with written willing-partner consent (no ownership/management change). Adds good-neighbor-agreement basis; allows existing watershed plans to serve as water-source management plans; ties to ecological-integrity definition (36 CFR 219.19). Sets matching-funds requirement at not less than 50% non-Federal, waivable at Secretary's discretion. Caps non-Federal partner planning/TA at 10% of funds.
- Amends: Sec. 303, HFRA 2003 (16 U.S.C. 6542).
- Numbers: matching $\geq 50\%$ (waivable); $\leq 10\%$ set-aside for partner planning/TA.
- Dates: appropriations 2019-2023 -> 2027-2031.
- Type: REFORM/INCREASE (program expansion)
- Affected: Municipal/agricultural water utilities, acequias, non-Federal watershed partners (winners).
- Flag: - (adjacent-land work requires written landowner consent; safeguards present)

Sec. 8204 - Watershed condition framework technical corrections

- Does: Strikes "protection and" in two paragraphs.
- Amends: Sec. 304(a)(3),(5), HFRA 2003 (16 U.S.C. 6543(a)).
- Type: REFORM (technical)
- Flag: -

Sec. 8205 - Authorization of appropriations to combat insect infestations and related diseases

- Does: Reauthorization date strike.
- Amends: Sec. 406, HFRA 2003 (16 U.S.C. 6556).
- Dates: Oct 1, 2023 -> Oct 1, 2031.
- Type: EXTEND
- Flag: -

Sec. 8206 - Insect and disease infestation

- Does: Reauthorization date strike.
- Amends: Sec. 602(d)(2), HFRA 2003 (16 U.S.C. 6591a(d)(2)).
- Dates: 2023 -> 2031.
- Type: EXTEND
- Flag: - (Note: HFRA Sec. 602 is the insect-and-disease CE authority; this only extends a date.)

Sec. 8207 - Stewardship end result contracting projects

- Does: Adds authority to retain/expand existing forest-products infrastructure; extends max stewardship-contract term from 10 to 20 years; adds special rule for multiyear (≥ 5 -yr) long-term stewardship contracts requiring cancellation/termination payment equal to lesser of 10% of contract value or unrecovered amortized costs.
- Amends: Sec. 604, HFRA 2003 (16 U.S.C. 6591c), subsections (b),(d)(3)(B),(h).
- Numbers: contract term 10 -> 20 years; termination payment cap 10% of contract.
- Type: REFORM/INCREASE
- Affected: Forest-products contractors (winners).
- Flag: -

Subtitle C - Other Forestry Programs

Sec. 8301 - National and regional agroforestry centers

- Does: Renames "Semiarid" center to "National Agroforestry Center"; adds agroforestry definition; directs establishment of 1+ regional agroforestry centers with a Director; broadens research mandate beyond semiarid lands (soil health, carbon sequestration, silvopasture, alley cropping, etc.); adds barriers-to-adoption research; adds national Agroforestry Producers Survey every 5 years; adds regional support.
- Amends: Sec. 1243, Food, Agriculture, Conservation, and Trade Act of 1990 (16 U.S.C. 1642 note; PL 101-624).
- Numbers: authorization \$5,000,000 (2019-2023) -> \$7,000,000 (2027-2031).
- Dates: survey within 5 yrs and every 5 yrs.
- Type: REFORM/INCREASE
- Affected: Agroforestry producers, research institutions (winners).
- Flag: -

Sec. 8302 - National Forest Foundation Act

- Does: Reauthorizes matching-funds and appropriations provisions; creates White Oak Restoration Fund (Foundation may accept gifts/devise/bequests) for re-establishing/improving white oak forests, nursery stock, seedlings; adds annual budget-justification summary.
- Amends: Secs. 405(b), 409, 410(b), National Forest Foundation Act (16 U.S.C. 583j-3(b), 583j-7, 583j-8(b)).
- Dates: 2023 -> 2031 (two places).
- Type: EXTEND/NEW (white oak fund)
- Flag: -

Sec. 8303 - Conveyances and leases of forest service administrative sites

- Does: Extends authority to convey FS administrative sites and to lease FS sites.
- Amends: Sec. 503(f), FS Facility Realignment and Enhancement Act of 2005 (PL 109-54); Sec. 8623(i), Agriculture Improvement Act of 2018 (PL 115-334).
- Dates: Sept 30, 2019 -> Sept 30, 2031; 2023 -> 2031.
- Type: EXTEND
- Flag: -

Sec. 8304 - Forest inventory and analysis

- Does: Expands Forest Inventory and Analysis (FIA) program to include forest carbon; mandates national timber products output survey and national woodland owner survey; requires carbon-data collection methods (incl. soil/below-ground carbon); requires clear "forest" definition in reporting; updates strategic plan (within 180 days) with remote sensing, sub-State precision,

biomass/carbon stocks; biennial public compilations; external complex-data-request office with fee authority; annual progress reports; data accessibility with confidentiality protections (per 7 U.S.C. 2276). Updates remote-sensing language to name microwave, LiDAR, hyperspectral, high-resolution data.

- Amends: Sec. 3(e), Forest and Rangeland Renewable Resources Research Act of 1978 (16 U.S.C. 1642(e)); Sec. 8632(1), Agriculture Improvement Act of 2018 (16 U.S.C. 1642 note).
- Dates: strategic-plan update within 180 days of enactment; further updates every 5 yrs.
- Type: REFORM/STUDY-OR-REPORT (carbon-accounting expansion)
- Affected: Forest Service FIA program; data users; woodland owners (confidentiality protected).
- Flag: - (notable: builds forest-carbon accounting into FIA)

Sec. 8305 - Reforestation, nursery, and seed orchard support

- Does: Directs FS partnerships/technical assistance/research for nurseries and tree establishment (domestic and international); establishes (within 2 yrs) a grant program for nurseries/seed orchards (production capacity, equipment, quality control, workforce). Defines eligible recipients (State forestry agency, Indian Tribe, private nursery, IHE, county/local govt).
- Amends: New freestanding provision.
- Numbers: Authorization \$5,000,000/yr FY2027-2031.
- Dates: grant program within 2 yrs of enactment.
- Type: NEW
- Affected: Nurseries, seed orchards, Tribes, States (winners).
- Flag: -

Subtitle D - Forest Management - Part I (National Forest System Management)

Sec. 8401 - Categorical exclusion for high priority hazard trees

- Does: Directs Secretary (within 1 yr) to develop a NEPA categorical exclusion for "high-priority hazard tree activities" (pruning, felling, disposal). Must comply with NEPA and apply 36 CFR 220.6 extraordinary-circumstances procedures.
- Amends: New freestanding CE; references NEPA Sec. 111 (42 U.S.C. 4336e) and NEPA generally (42 U.S.C. 4321 et seq.).
- Numbers: Project size cap 6,000 acres. High-priority hazard tree must be within 300 feet of NFS road (maintenance level 3/4/5), along an NFS trail, or in a developed recreation site.
- Dates: CE developed within 1 yr of enactment.
- Type: NEW (NEPA categorical exclusion)
- Affected: Forest Service; recreation/road users; environmental litigants.
- Flag: NOTABLE - new NEPA CE, 6,000-acre cap. Excludes wilderness/wilderness study areas, permanent road/trail construction, congressionally/proclamation-restricted lands, inventoried roadless areas, and uses inconsistent with forest plan.

Sec. 8402 - Collaborative restoration projects

- Does: Triples acreage cap for the HFRA collaborative-restoration CE.
- Amends: Sec. 603(c)(1), HFRA 2003 (16 U.S.C. 6591b(c)(1)).
- Numbers: 3,000 acres -> 10,000 acres.
- Type: INCREASE (CE cap expansion)
- Flag: NOTABLE - CE acreage cap tripled to 10,000 acres (HFRA Sec. 603 insect-and-disease collaborative CE).

Sec. 8403 - Wildfire resilience project size

- Does: Triples acreage cap for HFRA wildfire-resilience CE.
- Amends: Sec. 605(c)(1), HFRA 2003 (16 U.S.C. 6591d(c)(1)).
- Numbers: 3,000 acres -> 10,000 acres.
- Type: INCREASE (CE cap expansion)
- Flag: NOTABLE - CE acreage cap tripled to 10,000 acres (wildfire-resilience CE).

Sec. 8404 - Fuel breaks in forests and other wildland vegetation

- Does: Triples acreage cap for the fuel-break CE.

- Amends: Sec. 40806(d)(1), Infrastructure Investment and Jobs Act (16 U.S.C. 6592b(d)(1)).
- Numbers: 3,000 acres -> 10,000 acres.
- Type: INCREASE (CE cap expansion)
- Flag: NOTABLE - fuel-break CE acreage cap tripled to 10,000 acres.

Sec. 8405 - Greater sage-grouse and mule deer habitat

- Does: Amends the sage-grouse/mule deer vegetation-management CE: removes a clause, decouples requirement (allows projects for sage-grouse OR mule deer, previously "concurrently for both"), strikes "in a sagebrush steppe ecosystem"; revises acreage limitation.
- Amends: Sec. 606, HFRA 2003 (16 U.S.C. 6591e).
- Numbers: CE limitation set to not more than 4,500 acres in a forested ecosystem or 7,500 acres in a rangeland ecosystem.
- Type: REFORM/INCREASE (CE expansion)
- Affected: Forest Service; sage-grouse/mule deer habitat.
- Flag: NOTABLE - broadens sage-grouse/mule deer CE (single-species sufficient; 4,500/7,500-acre caps).

Sec. 8406 - Categorical exclusion for electric utility lines rights-of-way

- Does: Establishes new NEPA CE (from EA/EIS under NEPA Sec. 102) for development/approval and routine implementation of vegetation-management/facility-inspection/O&M plans under FLPMA Sec. 512(c)(1). No acreage cap stated. Prohibits permanent-road establishment (allows maintenance of existing; temporary roads decommissioned within 3 yrs).
- Amends: New freestanding CE; references NEPA Sec. 102 (42 U.S.C. 4332), FLPMA Sec. 512(c)(1) (43 U.S.C. 1772(c)(1)).
- Dates: Temporary-road decommission within 3 yrs of completion.
- Type: NEW (NEPA categorical exclusion)
- Affected: Electric utilities (winners); environmental/historic-preservation review process (losers).
- Flag: HIGHLY NOTABLE - CE activities are NOT subject to ESA Section 7 (16 U.S.C. 1536) OR Section 106 of the National Historic Preservation Act. Excludes Wilderness System components and congressionally-restricted vegetation-removal lands.

Sec. 8407 - Forest management activities on National Forest System lands

- Does: Broad freestanding authority for Secretary to conduct forest management activities on NFS land for multiple ecosystem benefits. Establishes a NEPA categorical exclusion for fuel-reduction forest management activities, subject to size/coordination/forest-plan limits. Adds cooperative-authority for contracts/agreements on Federal and non-Federal land.
- Amends: New freestanding provision; references NEPA (42 U.S.C. 4321 et seq.); FRRRPA (16 U.S.C. 1406, 1609(a)).
- Numbers: CE limited to <=10,000 acres, including not more than 3,000 acres of mechanical thinning.
- Type: NEW (forest-management authority + NEPA CE)
- Affected: Forest Service; local governments (coordination partners).
- Flag: HIGHLY NOTABLE - new fuel-reduction NEPA CE up to 10,000 acres (3,000 acres mechanical thinning). No express extraordinary-circumstances or wilderness/roadless carve-out stated in CE text.

Sec. 8408 - Suppression of wildfires

- Does: On specified high-risk NFS lands, directs Secretary (through FS Chief) to use available resources to contain detected wildfires within 24 hours of detection; bars inhibiting State/local suppression; restricts use of fire as resource tool to compliant prescribed fire; limits backfires/burnouts to incident-commander order or firefighter safety; requires updating prescribed-fire policy per Sept 2022 "National Prescribed Fire Program Review."
- Amends: New freestanding provision; references FRRRPA (16 U.S.C. 1609(a)).
- Numbers/criteria: Applies to lands at National Wildland Fire Preparedness Level 5; D2/D3/D4 drought intensity; or firesheds in top 10% of wildfire exposure.
- Type: NEW/REFORM (suppression mandate)
- Affected: Forest Service fire management (constrains managed/let-burn fire on covered lands).
- Flag: NOTABLE - statutory 24-hour suppression mandate; limits use of "let-burn"/managed fire on high-risk lands.

Sec. 8409 - Kaibab National Forest restoration

- Does: Authorizes emergency acquisition/contracting flexibilities (48 CFR part 18) for White Sage Fire response in Kaibab NF (management/restoration, rebuilding, grounds/structure improvements, recovery), notwithstanding

emergency/disaster-declaration prerequisites. Requires 180-day periodic reports on expenditures/contractors/conflicts/waste-fraud-abuse. Allows 12-month extension (subject to congressional approval) if a new wildfire impacts recovery.

- Amends: New freestanding provision.
- Dates: Authority expires earlier of 5 yrs after enactment or completion of recovery.
- Type: NEW (site-specific emergency contracting)
- Affected: Kaibab NF / White Sage Fire area.
- Flag: - (transparency reporting built in)

Subtitle D - Part II (Forest Management Activities)

Sec. 8411 - No additional consultation required

- Does: Provides that Secretary shall NOT be required to reinitiate ESA Section 7(a)(2) consultation (or 50 CFR 402.16) on a land/resource management plan (FS) or land use plan (BLM) when (a) a new species is listed/critical habitat designated, or (b) new information reveals plan effects on listed species/critical habitat not previously considered.
- Amends: Sec. 6(d)(2), FRRRPA (16 U.S.C. 1604(d)(2)) [Forest Service]; Sec. 202, FLPMA (43 U.S.C. 1712) - adds new subsection (g) [BLM].
- Type: REFORM (ESA consultation carve-out)
- Affected: Forest Service, BLM (relieved of reconsultation); listed species (potential losers).
- Flag: HIGHLY NOTABLE / CONTROVERSIAL - ESA Section 7 reconsultation waiver for land-use/management plans upon new listings or new information ("notwithstanding any other provision of law").

Sec. 8412 - Good neighbor authority

- Does: Expands Good Neighbor Authority to add Indian Tribe, special district, and county as eligible cooperators (special district newly defined). Adds authority to use retained receipts to construct new permanent roads on Federal lands (if necessary to authorized restoration and approved via environmental analysis or CE), and to replace/decommission existing roads harming forest/rangeland/watershed health. Extends a sunset (2028 -> 2030). Strikes paragraph (4). Applies retroactively to projects initiated after the 2018 Farm Bill enactment.
- Amends: Sec. 8206, Agricultural Act of 2014 (16 U.S.C. 2113a).
- Dates: receipts-use authority 2028 -> 2030.
- Type: REFORM/INCREASE (expanded GNA authority)
- Affected: Tribes, special districts, counties (winners); enables new permanent-road construction.
- Flag: NOTABLE - new authority to build new permanent roads on Federal land using GNA receipts (CE/environmental-analysis approval required).

Sec. 8413 - Collaborative forest landscape restoration program

- Does: Amends CFLRP selection criteria to add pathogens, standardized monitoring questions, innovative implementation (good neighbor agreements), cross-ownership/WUI wildfire-risk reduction, watershed/drinking-water proposals. Changes selection cap to 4 proposals per region per fiscal year (strikes prior subparagraph). Reauthorizes.
- Amends: Sec. 4003, Omnibus Public Land Management Act of 2009 (16 U.S.C. 7303).
- Numbers: 4 proposals per region per fiscal year.
- Dates: appropriations 2019-2023 -> 2027-2031.
- Type: REFORM/EXTEND
- Flag: -

Sec. 8414 - Public-private wildfire technology deployment and testbed partnership

- Does: Directs Secretaries of Agriculture and Interior (within 1 yr) to establish a deployment/testbed pilot program for wildfire prevention/detection/communication/mitigation technologies across covered agencies; prioritizes emerging tech (AI, quantum sensing, AR, 5G/mesh networks). Annual reports to committees.
- Amends: New freestanding provision.
- Dates: Pilot established within 1 yr; program terminates Sept 30, 2031.
- Type: NEW (pilot program)

- Affected: Private/nonprofit/academic tech developers (winners).
- Flag: -

Sec. 8415 - Forest service participation in experienced services program

- Does: Renames "ACES" to "experienced services" program; broadens covered services to professional/administrative; strikes subsection (b).
- Amends: Sec. 8302, Agricultural Act of 2014 (16 U.S.C. 3851a).
- Type: REFORM
- Flag: -

Sec. 8416 - Timber sales on National Forest System land

- Does: Raises the dollar threshold for certain timber-sale procedures from \$10,000 to \$55,000; adds new authority allowing Secretary, in event of extreme risks (catastrophic wildfire, insect/disease, wind, hurricane, flood, drought, or to avoid such impacts), to dispose of trees/forest products by sale or otherwise without an appraisal.
- Amends: Sec. 14, National Forest Management Act of 1976 (16 U.S.C. 472a), subsection (d) and new (j).
- Numbers: \$10,000 -> \$55,000.
- Type: REFORM/INCREASE
- Affected: Forest Service; timber purchasers.
- Flag: NOTABLE - no-appraisal timber disposal authority during/avoiding extreme-risk events.

Sec. 8417 - Permits and agreements with electrical utilities

- Does: Allows special-use permits/easements to electric utilities to authorize cutting/removal of trees/vegetation (incl. fire-risk hazardous vegetation) near distribution/transmission lines without a separate timber sale, if consistent with land management plan. Requires utility to remit sale proceeds (less transport costs) if it sells removed material; does not require sale.
- Amends: New freestanding provision; references Energy Policy Act 2005 Sec. 1262 (42 U.S.C. 16451).
- Type: NEW/REFORM
- Affected: Electric utilities (winners).
- Flag: -

Sec. 8418 - Utilizing grazing for wildfire risk reduction

- Does: Directs Secretary concerned (within 18 months) to develop/implement strategy using livestock grazing as a wildfire-risk-reduction tool on Federal land (incl. NEPA reviews for grazing on vacant allotments during drought/wildfire/disaster, targeted grazing, temporary permits, invasive-grass eradication, post-fire recovery, advanced tech for livestock placement). Preserves existing grazing programs.
- Amends: New freestanding provision; references NEPA.
- Dates: strategy within 18 months.
- Type: NEW (strategy)
- Affected: Grazing permittees (winners).
- Flag: -

Sec. 8419 - Joint chiefs landscape restoration partnership program

- Does: Adds reporting frequency (at least once every 2 fiscal years) and extends authorization.
- Amends: Sec. 40808, Infrastructure Investment and Jobs Act.
- Dates: "and 2023" -> "through 2031."
- Type: EXTEND/REFORM
- Flag: -

Sec. 8420 - Tribal forest management program technical correction

- Does: Converts Tribal forest management "demonstration project" into a "program."
- Amends: Sec. 8703, Agriculture Improvement Act of 2018.
- Type: REFORM (technical)

- Affected: Indian Tribes.
- Flag: -

Sec. 8421 - Timber production expansion guaranteed loan program

- Does: Establishes a guaranteed loan program (Timber Production Expansion Guaranteed Loan Program) for sawmills/wood-processing facilities in rural areas located within a 250-mile radius of eligible Federal land identified as high/very-high priority for ecological restoration involving vegetation removal. Requires identification of eligible Federal land within 1 yr and at least every 5 yrs.
- Amends: New freestanding provision; references Consolidated Farm and Rural Development Act (7 U.S.C. 1991(a)).
- Numbers: 250-mile radius; maximum total \$220,000,000 in loan guarantees.
- Dates: land identification within 1 yr; every 5 yrs.
- Type: NEW
- Affected: Sawmills/wood-processing facilities, rural areas (winners).
- Flag: NOTABLE - explicitly ties mill loan guarantees to expanding vegetation-removal/timber capacity near Federal land.

Subtitle D - Part III (Timber Innovation)

Sec. 8431 - Community wood facilities program

- Does: Renames Community Wood Energy and Wood Innovation Program to "Community Wood Facilities Program"; shifts focus to forest biomass/processing residuals; sets grant cap; broadens to forest-products manufacturing facilities (not just sawmills); raises thermal/combined-energy threshold from 5 to 15 MW; raises a percentage from 25% to 50%; reauthorizes.
- Amends: Sec. 9013, Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8113).
- Numbers: grant cap \$5,000,000; 5 MW -> 15 MW; 25% -> 50%.
- Dates: 2023 -> 2031.
- Type: REFORM/INCREASE/EXTEND
- Flag: -

Sec. 8432 - Wood innovation grant program

- Does: Adds transportation costs (incl. new facility construction; hauling fuel-reduction material) to eligible costs; rewrites targeting criteria (high-unemployment counties, carbon-reduction building design, forest-management benefit analysis); sets matching requirement at 50% of the amount.
- Amends: Sec. 8643(b)(1),(c),(d), Agriculture Improvement Act of 2018 (7 U.S.C. 7655d).
- Numbers: matching 50%.
- Type: REFORM
- Flag: -

Sec. 8433 - Forest and wood products data tracker

- Does: Directs Secretary (through FS Chief, within 2 yrs) to establish a publicly available platform for measurement/monitoring/verification/reporting of carbon emissions, sequestration, storage, and atmospheric impacts of forest management and wood products, sourcing FIA/TPO, soil carbon, Forest Products Lab, Federal LCA Commons data. Provides carbon-stock, embodied-carbon, stored-carbon, and displacement (substitution-factor) tools.
- Amends: New freestanding provision.
- Dates: platform within 2 yrs.
- Type: NEW (data platform)
- Flag: - (Rule of construction: confers no authority over carbon/environmental credit generation/trading from NFS lands in any market.)

Sec. 8434 - Biochar application demonstration project

- Does: Directs covered Secretaries (Agriculture/FS, Interior/BLM, Energy/Office of Science) to establish (within 2 yrs, subject to appropriations) a partnership program for biochar demonstration projects (≥ 1 per FS region and per BLM region); funds feedstock testing, production units, forest-residue-to-biochar, forest-health uses, facilities; priorities for jobs/innovation/high-need

areas. Establishes Interior biochar R&D grant program for land-grant institutions. Reports to Congress.

- Amends: New freestanding provision; references Energy Policy Act 2005 (42 U.S.C. 15801).
- Numbers: >=50% feedstock from forest thinning/management on NFS/public lands (to max extent practicable); facility funding <=35% of capital cost.
- Dates: program within 2 yrs; report within 2 yrs; sunset 7 yrs after enactment.
- Type: NEW (demonstration + grant program)
- Affected: Land-grant institutions, biochar producers, rural areas (winners).
- Flag: -

Subtitle E - Other Matters

Sec. 8501 - Rural revitalization technologies

- Does: Reauthorization date strike.
- Amends: Sec. 2371(d)(2), FACTA 1990 (7 U.S.C. 6601(d)(2)).
- Dates: 2023 -> 2031.
- Type: EXTEND
- Flag: -

Sec. 8502 - Resource advisory committees

- Does: Allows Secretary to make RAC appointments through regional foresters (after required review/analysis); extends authority; strikes subsection (g).
- Amends: Sec. 205, Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7125).
- Dates: Oct 1, 2026 -> Oct 1, 2031.
- Type: REFORM/EXTEND
- Flag: -

Sec. 8503 - Accurate hazardous fuels reduction reports

- Does: Requires Secretary concerned to report (in President's budget materials, annually) acres of hazardous-fuels-reduction activity using both old methodology and a new no-double-count methodology (each acre counted once); requires WUI/hazard-level/cost/effectiveness data; standardized data-collection procedures (within 90 days); GAO study (within 2 yrs). No additional funds authorized.
- Amends: New freestanding provision.
- Dates: standardized procedures within 90 days; report within 45 days after; GAO study within 2 yrs.
- Type: STUDY-OR-REPORT/REFORM (accountability)
- Affected: Forest Service / DOI reporting.
- Flag: - (notable: addresses past double-counting of fuels-reduction acres)

Sec. 8504 - Special use authorization rental fee waiver

- Does: Authorizes Secretary (through FS Chief) to waive programmatic administrative and special-use fees when equitable/in public interest for: State/local government holders (excluding revenue-funded municipal utilities/co-ops); 501(c)(3) public-benefit nonprofits; amateur radio operators/stations; other circumstances.
- Amends: New freestanding provision; references IRC 501(c)(3).
- Type: NEW/REFORM (fee waiver)
- Flag: -

Sec. 8505 - Charges and fees for harvest of forest botanical products

- Does: Directs FS to establish fair-market-value fee program for forest botanical products harvested on NFS land; requires sustainable-harvest-level analysis (cannot permit harvest above sustainable levels per Multiple-Use Sustained-Yield Act); personal-use waiver; special-account deposit (available until expended without further appropriation) for inventory/monitoring/restoration; exempts collected funds from numerous revenue-allocation laws; annual reporting.
- Amends: New freestanding provision; references Multiple-Use Sustained-Yield Act of 1960 (16 U.S.C. 531) and numerous

revenue statutes.

- Type: NEW (fee program)
- Affected: Commercial botanical-product harvesters; FS special account.
- Flag: - (sustainability cap included)

Sec. 8506 - Forest service legacy road and trail remediation program transparency

- Does: Adds regional public-input requirements (annual project lists, public comment, consideration) and publication requirements for the Legacy Roads and Trails program; defines "region" as one of the 9 FS regions.
- Amends: Sec. 8, Public Law 88-657 (16 U.S.C. 538a).
- Type: REFORM (transparency)
- Flag: -

Sec. 8507 - Direct hire authority

- Does: For FY2026 onward, authorizes Secretary to directly appoint Job Corps graduates to competitive-service FS positions (bypassing most of 5 U.S.C. chapter 33 subchapter I, except secs. 3303, 3328).
- Amends: New freestanding provision; references WIOA (29 U.S.C. 3192(5)).
- Dates: FY2026 and each fiscal year thereafter.
- Type: NEW (hiring authority)
- Affected: Job Corps graduates (winners).
- Flag: -

Sec. 8508 - Improving the emergency forest restoration program

- Does: Adds advance-payment option: Secretary shall give nonindustrial private forest landowners option to receive up to 75% of emergency-measure costs in advance; unspent funds returned after 180 days.
- Amends: Sec. 407, Agricultural Credit Act of 1978 (16 U.S.C. 2206).
- Numbers: up to 75% advance; 180-day return window.
- Type: REFORM/INCREASE
- Affected: Nonindustrial private forest landowners (winners).
- Flag: -

Sec. 8509 - Exemption for previously analyzed areas of National Forest System Lands

- Does: Provides that NEPA and National Historic Preservation Act ("division A of subtitle 54" - i.e., 54 U.S.C.) requirements shall NOT apply to a communications-use authorization application on NFS lands if equipment is on existing infrastructure or the facility is on previously analyzed areas; bars reinitiating NEPA/NHPA review on such applications even if new information becomes available.
- Amends: New freestanding provision; references Agriculture Improvement Act of 2018 Sec. 8705 (43 U.S.C. 1761a).
- Type: NEW/REFORM (NEPA/NHPA exemption)
- Affected: Telecom/communications-use applicants (winners); environmental/historic review (losers).
- Flag: NOTABLE - full NEPA + National Historic Preservation Act exemption for communications-use authorizations in previously analyzed areas; bars reconsideration on new information.

Sec. 8510 - Release of reversionary interest in Black River State Forest

- Does: Conditionally releases U.S. reversionary interest (under Bankhead-Jones Farm Tenant Act Sec. 32(c), 7 U.S.C. 1011(c)) in ~31.83 acres of Black River State Forest (Wisconsin) if Wisconsin conveys it to Deli, Inc. (sphagnum moss business) in exchange for ~37.27 acres of "Deli land" added to the State Forest. Secretary issues quitclaim deed.
- Amends: New freestanding provision; references Bankhead-Jones Farm Tenant Act.
- Numbers: ~31.83 acres (State forest land) released; ~37.27 acres (Deli land) acquired.
- Type: NEW (site-specific land transaction)
- Affected: Wisconsin, Deli, Inc.
- Flag: - (note: land swap effectively releases a perpetual public-purpose restriction)

Sec. 8511 - Doug LaMalfa Secure Rural Schools Act

- Does: Adds alternate short title "Doug LaMalfa Secure Rural Schools Act" to SRS Act of 2000.
- Amends: Sec. 1, SRS Act 2000 (16 U.S.C. 7101 note).
- Type: REFORM (naming)
- Flag: -

Sec. 8512 - Minor range improvements under Forest Service grazing permits

- Does: Directs Secretary (within 1 yr) to issue regulations allowing permittees to carry out "minor range improvements" (existing fences/fence lines, wells, water pipelines, stock tanks) on permitted lands with 30-day prior notice if district ranger approves OR does not respond. Secretary-performed improvements: 30-day response deadline, expedited (may use CEs).
- Amends: New freestanding provision; references 36 CFR 222.1.
- Numbers: 30-day notice/response.
- Type: NEW/REFORM
- Affected: Grazing permittees (winners).
- Flag: - (note: non-response = de facto approval).

Sec. 8513 - Eligibility of national grasslands for grazing leases and permits

- Does: Extends FLPMA grazing-lease/permit eligibility from "lands within National Forests in the sixteen contiguous Western States" to all "National Forest System land" (incl. national grasslands).
- Amends: Sec. 402(a), FLPMA (43 U.S.C. 1752(a)).
- Type: REFORM (expanded eligibility)
- Affected: National grasslands grazing permittees.
- Flag: -

Subtitle F - White Oak Resilience (White Oak Resilience Act)

Sec. 8601 - Short title

- Does: Cites subtitle as "White Oak Resilience Act."
- Type: NEW (title)
- Flag: -

Sec. 8602 - White oak restoration initiative coalition

- Does: Establishes White Oak Restoration Initiative Coalition (voluntary Fed/State/Tribal/local/private/NGO group per existing 2023 charter) to coordinate white oak restoration and make policy recommendations (addressing policies impeding white oak regeneration, cross-boundary projects, research gaps, nursery quality). Interior and Agriculture Secretaries provide staff support.
- Amends: New freestanding provision.
- Type: NEW (coalition)
- Flag: -

Sec. 8603 - Forest service pilot program

- Does: Directs FS Chief to establish 5 pilot projects in national forests to restore white oak via restoration/natural regeneration; at least 3 on forests reserved/withdrawn from public domain. Cooperative agreements allowed.
- Amends: New freestanding provision.
- Numbers: 5 pilots; ≥ 3 on public-domain forests.
- Dates: sunset 7 yrs after enactment.
- Type: NEW (pilot)
- Flag: -

Sec. 8604 - White oak regeneration and upland oak habitat

- Does: Directs Secretary (within 180 days) to establish nonregulatory White Oak and Upland Oak Habitat Regeneration Program

(best-available-science restoration, no net gain of FTEs, voluntary grant/TA program administered via cooperative agreement with National Fish and Wildlife Foundation with advance annual funding).

- Amends: New freestanding provision; references National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3701 et seq.).
- Dates: within 180 days; sunset 7 yrs after enactment.
- Type: NEW (program + grants)
- Flag: -

Sec. 8605 - Tree nursery shortages

- Does: Directs FS Chief (within 1 yr) to develop/implement national strategy to increase Federal/State/Tribal/private tree-nursery capacity addressing seedling shortages; coordinate with national reforestation strategy.
- Amends: New freestanding provision.
- Dates: within 1 yr.
- Type: NEW (strategy)
- Flag: -

Sec. 8606 - Shrubland wildfire mitigation study

- Does: Directs Secretary (within 1 yr) to study effectiveness of wildfire-mitigation methods in shrubland/dryland ("covered") ecosystems (chaparral, coastal sage scrub, sagebrush, shrub-steppe, xeric shrubland, etc.); fuel breaks, invasive-species control, ember-ignition policies, partnerships. Report within 90 days of completion.
- Amends: New freestanding provision; references HFRA Sec. 101 (16 U.S.C. 6511).
- Dates: study within 1 yr; report 90 days after.
- Type: STUDY-OR-REPORT
- Flag: -

Subtitle G - Save Our Sequoias (Save Our Sequoias Act)

Sec. 8701 - Short title; definitions

- Does: Cites subtitle "Save Our Sequoias Act"; defines key terms. Covered NFS lands = Sequoia NF & Giant Sequoia National Monument, Sierra NF, Tahoe NF; covered public lands = Case Mountain ERMA (BLM), Kings Canyon, Sequoia, Yosemite NPs. "Tribe" = Tule River Indian Tribe.
- Amends: New freestanding provision (Save Our Sequoias Act).
- Type: NEW (definitions)
- Flag: -

Sec. 8702 - Shared stewardship agreement for giant sequoias

- Does: Directs Secretary of the Interior (within 90 days of a request from CA Governor or Tribe) to enter/expand a shared-stewardship agreement with Agriculture Secretary, CA Governor, and Tribe for giant sequoia management; if no request within 90 days of enactment, Secretary enters the agreement with Agriculture and implements jointly; later requesters admitted.
- Amends: New freestanding provision.
- Dates: within 90 days.
- Type: NEW (agreement)
- Flag: -

Sec. 8703 - Giant sequoia lands coalition

- Does: Codifies Giant Sequoia Lands Coalition (per 2022 charter; NPS, FS, BLM, Tribe, State of CA, UC Berkeley, Tulare County members). Duties: produce Assessment, observe Protection Projects/Strategy, facilitate cross-jurisdiction collaboration, information sharing, education. Interior provides staff support. Annual public-observation meeting (with limited closed-session exceptions).
- Amends: New freestanding provision.
- Type: NEW (coalition)

- Flag: -

Sec. 8704 - Giant sequoia health and resiliency assessment

- Does: Directs Coalition (within 6 months) to submit Giant Sequoia Health and Resiliency Assessment (identifying disturbed/at-risk groves, adjacent lands, reforestation needs; analyzing resiliency to wildfire/insects/drought; examining fire-suppression/management history; recommendations) with annual updates and a public dashboard/searchable database tracking environmental reviews, costs, permitting timetables. Integrates with CA Wildfire/Forest Resilience Action Plan, FS 10-yr Wildfire Crisis Strategy, DOI Wildfire Risk plan.
- Amends: New freestanding provision; references Omnibus Public Land Management Act 2009 Sec. 4003(b)(2).
- Dates: within 6 months; annual updates.
- Type: NEW/STUDY-OR-REPORT
- Affected: Coalition; agencies.
- Flag: NOTABLE - development/submission of the Assessment is NOT subject to NEPA (42 U.S.C. 4321 et seq.). (Reporting trigger: if Secretary fails to reduce fuels in ≥ 3 groves/yr, written explanation required.)

Sec. 8705 - Giant sequoia emergency response

- Does: Congress declares a statutory emergency on all covered public/NFS lands making Protection Projects necessary against wildfire/insects/drought threats to giant sequoias. While in effect, responsible officials carry out Protection Projects (hazardous fuels management incl. mechanical thinning/mastication/prescribed burning; hazard/dead/dying tree removal; thinning for overstocking; insect/disease/invasive/encroachment treatment) under specified CFR provisions (frozen as of 2022 dates) and subject to HFRA Sec. 106 (16 U.S.C. 6516). Establishes a NEPA categorical exclusion (from EA/EIS under NEPA Sec. 102) for qualifying Protection Projects and reforestation/rehabilitation activities. Directs reducing fuels in ≥ 3 groves/yr.
- Amends: New freestanding provision; references NEPA Sec. 102 (42 U.S.C. 4332); HFRA Sec. 106 (16 U.S.C. 6516); IJA Sec. 40807 (16 U.S.C. 6592c(d),(e)); 36 CFR 220.4(b), 43 CFR 46.150, 50 CFR 402.05, 36 CFR 800.12.
- Numbers: CE size cap $\leq 2,000$ acres within giant sequoia groves; $\leq 3,000$ acres on adjacent lands identified under Sec. 8704(a)(1)(C). Extraordinary-circumstances procedures (7 CFR 1b.3(e)-(g)) apply.
- Dates: Emergency determination expires 7 yrs after enactment.
- Type: NEW (statutory emergency + NEPA CE + expanded logging/fuels authority)
- Affected: Forest Service/NPS/BLM; giant sequoia groves; environmental litigants; Tule River Tribe (no added regulatory burden).
- Flag: HIGHLY NOTABLE / CONTROVERSIAL - statutory congressional "emergency" determination across named Sierra Nevada forests and national parks; new NEPA categorical exclusion (2,000-acre grove / 3,000-acre adjacent caps); references frozen-date ESA consultation regs (50 CFR 402.05) and NHPA (36 CFR 800.12); incorporates IJA Sec. 40807 emergency-action rules (which include litigation/judicial-review provisions).

Sec. 8706 - Giant sequoia reforestation and rehabilitation strategy

- Does: Directs Secretary (within 6 months, with Coalition) to develop/implement Giant Sequoia Reforestation and Rehabilitation Strategy (prioritizing stand-replacing-disturbance groves; addressing regulatory/funding barriers, seedling/nursery/labor shortages, genetic diversity; 10-yr backlog timeline). Amends FRRRPA to include SOS reforestation/rehabilitation in priority reforestation projects.
- Amends: New freestanding provision; amends Sec. 3(e)(4)(C)(ii)(I), FRRRPA (16 U.S.C. 1601(e)(4)(C)(ii)(I)).
- Dates: within 6 months.
- Type: NEW (strategy)
- Flag: -

Sec. 8707 - Giant sequoia strike teams

- Does: Directs each Secretary concerned to establish a Giant Sequoia Strike Team (≤ 10 members each; FS/DOI employees, contractors, volunteers) to assist with reviews (incl. NEPA, NHPA, ESA consultations), site prep, Protection Projects (Sec. 8705) and reforestation/rehabilitation (Sec. 8706).
- Amends: New freestanding provision; references NEPA, NHPA (54 U.S.C. subtitle III div. A), ESA (16 U.S.C. 1531 et seq.).
- Numbers: ≤ 10 members per team.
- Type: NEW (implementation teams)

- Flag: -

Sec. 8708 - Giant sequoia collaborative restoration grants

- Does: Directs Secretary to establish/expand grant program to nonprofits/Tribal/local/academic/private entities to advance giant sequoia health/resiliency (markets for removed fuels/biomass/biochar, hazardous-fuel removal/transport, storage/processing facilities, nursery capacity, Tribal management incl. historic preservation officers); priority to highest-impact and small-business/Tribal/rural-jobs applicants.
- Amends: New freestanding provision.
- Type: NEW (grants)
- Flag: -

Sec. 8709 - Giant sequoia insect monitoring and technology

- Does: Directs Secretary concerned (within 1 yr) to develop/implement insect-monitoring strategy for high-risk groves and pursue public-private tech partnerships; report within 2 yrs.
- Amends: New freestanding provision.
- Dates: strategy within 1 yr; report within 2 yrs.
- Type: NEW/STUDY-OR-REPORT
- Flag: -

Sec. 8710 - Stewardship contracting for giant sequoias

- Does: Extends HFRA stewardship-contracting authority to National Park Service lands within Kings Canyon, Sequoia, and Yosemite NPs (redefines "Director" to include NPS Director); adds "promoting the health and resiliency of giant sequoias" as an authorized purpose; NPS stewardship projects follow NPS law (incl. 54 U.S.C. 100753).
- Amends: Sec. 604, HFRA 2003 (16 U.S.C. 6591c), subsections (a)(2),(b),(c).
- Type: REFORM/INCREASE (extends stewardship contracting to NPS lands)
- Affected: National Park Service.
- Flag: NOTABLE - extends Forest Service-style stewardship (commercial-tied) contracting into three national parks.

Sec. 8711 - Giant sequoia emergency protection program and fund

- Does: Adds new 54 U.S.C. 101123 creating a Giant Sequoia Emergency Protection Program and Fund administered by the National Park Foundation (with National Forest Foundation and Foundation for America's Public Lands) from gifts/devises/bequests, supporting giant sequoia management/conservation/reforestation; $\geq 15\%$ of funds for Tribal management/conservation (incl. Tribal historic preservation officers). Annual reporting.
- Amends: Chapter 1011, title 54, U.S.C. (new Sec. 101123 + conforming table amendment).
- Numbers: $\geq 15\%$ Tribal set-aside.
- Dates: terminates 7 yrs after enactment of Save Our Sequoias Act.
- Type: NEW (foundation fund)
- Flag: -

Cross-cutting flags for this title

- NEPA categorical-exclusion expansions (acreage caps):
 - Sec. 8401 - new high-priority hazard tree CE: 6,000 acres.
 - Sec. 8402 - collaborative restoration CE: 3,000 -> 10,000 acres.
 - Sec. 8403 - wildfire resilience CE: 3,000 -> 10,000 acres.
 - Sec. 8404 - fuel-break CE: 3,000 -> 10,000 acres.
 - Sec. 8405 - sage-grouse/mule deer CE: 4,500 acres (forested) / 7,500 acres (rangeland); single-species sufficient.
 - Sec. 8406 - new electric-utility ROW CE: no acreage cap stated.
 - Sec. 8407 - new fuel-reduction CE: $\leq 10,000$ acres ($\leq 3,000$ acres mechanical thinning).
 - Sec. 8705 (SOS) - new Protection Project CE: 2,000 acres in groves / 3,000 acres adjacent.
- ESA Section 7 consultation changes:
 - Sec. 8411 - reconsultation NOT required on FS land-management or BLM land-use plans on new listings/critical-habitat

designations or new information ("notwithstanding any other provision of law").

- Sec. 8406 - utility-ROW CE activities NOT subject to ESA Section 7.
- Sec. 8705 - incorporates frozen-date ESA consultation regs (50 CFR 402.05 as of July 21, 2022).
- National Historic Preservation Act waivers/exemptions:
 - Sec. 8406 - utility-ROW CE NOT subject to NHPA Sec. 106.
 - Sec. 8509 - communications-use authorizations in previously analyzed areas fully exempt from NEPA and NHPA; no reconsideration on new information.
- NEPA exemptions (beyond CEs):
 - Sec. 8704 - Giant Sequoia Assessment exempt from NEPA.
 - Sec. 8509 - communications-use exemption from NEPA.
- Judicial-review / litigation linkage: Sec. 8705 incorporates IJA Sec. 40807(d),(e) emergency-action rules (which contain litigation/judicial-review provisions) into giant sequoia Protection Projects - captured by cross-reference; the text itself does not restate explicit litigation limits.
- Statutory "emergency" designation: Sec. 8705 - Congress legislatively declares a 7-year emergency across named Sierra Nevada national forests, monuments, and parks to expedite logging/fuels work.
- Expanded logging / forest-management authorities: Sec. 8416 (no-appraisal timber disposal during extreme-risk events), Sec. 8417 (utility cutting without separate timber sale), Sec. 8421 (\$220M mill loan guarantees tied to Federal-land vegetation removal), Sec. 8407 (broad forest-management authority), Sec. 8412 (new permanent-road construction via Good Neighbor Authority receipts), Sec. 8710 (stewardship contracting extended into national parks).
- Reauthorization year: Most extended programs run through FY2031 (typical date strike 2023->2031); several new programs/authorities sunset 7 years after enactment (Secs. 8434, 8603, 8604, 8705 emergency, 8711) or Sept 30, 2031 (Sec. 8414).
- Dollar figures: \$10M/yr State assessment cap (8101); \$7M/yr agroforestry (8301); \$5M/yr nurseries (8305); \$55,000 timber-sale threshold (8416); \$220,000,000 mill loan guarantees (8421); \$5M Community Wood grant cap (8431); 75% advance / 35% biochar facility / 50% matching figures across various sections; >=15% Tribal set-aside (8711).
- Winners: Forest Service/timber industry, electric utilities, grazing permittees, sawmills/wood-processing, Tribes (esp. Tule River), rural fire departments, nurseries. Potential losers: ESA-listed species, environmental/historic-preservation review processes, parties relying on NEPA/judicial review.

Title IX - Energy - Notes

Title-level summary

Title IX (Energy) of H.R. 7567 EH reauthorizes the USDA energy programs created under Title IX of the Farm Security and Rural Investment Act of 2002 (FSRIA, 7 U.S.C. 8101-8115), extending sunset/funding dates from 2023/2024/2026 to 2031 across most surviving programs. The four flagship programs are treated unevenly: Biorefinery Assistance (Sec. 9003) and the Bioenergy Program for Advanced Biofuels (Sec. 9005) keep their existing mandatory funding ("such sums" / continued CCC funding) but the source text does NOT restate a specific mandatory dollar amount for either - it only extends the funding-authorization year to 2031 (and Sec. 9003 raises a per-project loan-guarantee cap and rescinds \$18M). REAP/Rural Energy for America Program (Sec. 9007) is extended to 2031, restructured with a new reserve fund, streamlined applications, and a higher grant cap, but again the source text shows only the year change (striking 2023, inserting 2031), not a restated annual mandatory figure. The BioPreferred/Biobased Markets program (Sec. 9002) is extended to 2031 and given new procurement-accountability and NAICS/NAPCS-code reporting duties. The title repeals three programs (Biodiesel Fuel Education, Carbon Utilization and Biogas Education, and effectively replaces program slots), and adds substantial NEW freestanding provisions on solar-on-farmland (a study plus a hard funding limitation with foreign-entity-of-concern sourcing bans), sustainable aviation fuels, pumping-system efficiency, second-use batteries, and a tree-planting grant program. Net thrust: extend-and-reform the bioeconomy programs while erecting new guardrails against converting farmland to ground-mounted solar.

Section-by-section

Sec. 9001 - Definition of advanced biofuel

- Does: Adds "and sustainable aviation fuel" after "diesel-equivalent fuel" in the definition of "advanced biofuel," expanding what counts as advanced biofuel to include SAF.
- Amends: Sec. 9001(3)(B)(iv) of FSRIA 2002 (7 U.S.C. 8101(3)(B)(iv)).
- Numbers: None.
- Dates: None.
- Type: REFORM (definitional expansion).
- Affected: SAF producers (winners - newly eligible across Title IX programs keyed to the advanced-biofuel definition).
- Flag: Threads SAF through the whole title's eligibility; pairs with Sec. 9013 SAF strategy.

Sec. 9002 - Biobased markets program (BioPreferred)

- Does: (1) Adds new subsec. (a)(2)(G): OFPP, with the Secretary, must give procuring agencies educational materials to weigh product longevity, economic savings, efficacy and performance. (2) Overhauls reporting in (a)(4): strikes old clause (ii) and redesignates; converts agency reporting into "a report that describes, for the year covered" including actions taken to establish/implement biobased procurement programs; adds new items (VI) listing biobased-product categories unavailable to meet procurement needs plus desired performance characteristics, and (VII) explanation of procurement requirements agencies failed to meet and reasons. (3) Adds new (a)(4)(D) "Accountability": OFPP, in consultation with Secretary, must annually collect and publicly post the reported information, document which agencies have established procurement programs, and make it public subject to FOIA exemptions (5 U.S.C. 552(b)). (4) In subsec. (f): adds "and NAPCS" codes / North American Product Classification System codes alongside NAICS; replaces (f)(1)(A)/(B) with "renewable chemicals manufacturers and biobased products manufacturers" and "renewable chemicals and biobased products"; adds new (f)(2) report (due within 90 days of enactment of the paragraph) to House/Senate Ag committees on bioeconomy data in NAICS/NAPCS codes, recommendations for the 2027 NAICS/NAPCS revisions, and impact assessment.
- Amends: Sec. 9002 of FSRIA 2002 (7 U.S.C. 8102).
- Numbers: No dollar authorization changes shown.
- Dates: Subsec. (k)(1): strike "2024" -> insert "2031"; subsec. (k)(2): strike "2023" -> insert "2031" (reauthorization to FY2031). New (f)(2) report due 90 days after enactment; 2027 NAICS/NAPCS revision cycle referenced.
- Type: EXTEND + REFORM + STUDY-OR-REPORT.
- Affected: OFPP and federal procuring agencies (must report and act); biobased/renewable-chemical manufacturers (winners - better data classification and procurement visibility).

- Flag: New public-accountability/naming-and-shaming mechanism for agencies that fail biobased procurement requirements.

Sec. 9003 - Biorefinery assistance

- Does: (1) In (b)(1): inserts "or innovative" before "commercial-scale" and adds ", renewable chemicals, or biobased products" after "end-user products" - broadening eligible projects. (2) In (d)(1): restructures the feasibility paragraph (B) and adds a WAIVER letting the Secretary waive the commercial-viability demonstration for projects adopting commercially available technology; redesignates (C)/(D) as (D)/(E); inserts new (C) "Technical review agreement" requiring the Secretary to enter an agreement with each applicant defining objectives/outcomes/conditions for technical feasibility, with detailed conditions (integrated demonstration unit timeline, evaluation criteria/third-party assessments, feedstock-yield criteria, operation duration/quality/quantity specs), a noncompliance-notice process, a corrective-action period of not more than 90 days, and a technical-feasibility approval step. (3) In (d)(2)(A): strikes "\$250,000,000" and inserts "\$400,000,000" - raising the maximum loan-guarantee amount per project (or aggregate cap) from \$250M to \$400M. (4) In subsec. (g) Funding: restructures to "(g) Funding. There ... is authorized" and strikes "2023" -> "2031." (5) RESCISSION: rescinds \$18,000,000 of unobligated balances under section 9003.
- Amends: Sec. 9003 of FSRIA 2002 (7 U.S.C. 8103).
- Numbers: Loan-guarantee cap \$250,000,000 -> \$400,000,000 (INCREASE). Rescission of \$18,000,000 unobligated balances (DECREASE). NOTE: the source text does not restate the program's underlying mandatory CCC funding amount; only the funding-year is changed to 2031.
- Dates: Funding reauthorized through 2031; 90-day corrective-action period.
- Type: EXTEND + REFORM + INCREASE (per-project cap) + partial RESCISSION.
- Affected: Biorefinery/renewable-chemical/biobased-product project developers (winners - bigger guarantees, waiver, innovative projects newly eligible); applicants face new technical-review-agreement compliance burden.
- Flag: \$18M rescission of unobligated balances is the only hard cut; per-project cap jump to \$400M is notable.

Sec. 9004 - Bioproduct labeling terminology

- Does: Creates a NEW freestanding section 9004 (inserted after sec. 9003 of FSRIA). Within 1 year of enactment the Secretary must issue rules setting national uniform labeling standards for proper use of: "bio-attributed plastic," "bio-attributed product," "biobased plastic," and "plant-based product." Must include the section-9001-defined terms biobased product, intermediate ingredient or feedstock, renewable biomass, and renewable chemical. Requires consultation with biomanufacturers, R&D entities, feedstock growers, and other industry stakeholders.
- Amends: Title IX of FSRIA 2002 (7 U.S.C. 8101-8115) - NEW freestanding provision (new sec. 9004).
- Numbers: None.
- Dates: Rules due within 1 year of enactment.
- Type: NEW.
- Affected: Biomanufacturers, plastics/bioproduct marketers (new labeling rules); USDA must rulemake.
- Flag: Anti-greenwashing labeling standardization for "plant-based"/"biobased plastic" claims.

Sec. 9005 - Bioenergy program for advanced biofuels

- Does: Extends the program's funding authorization year only.
- Amends: Sec. 9005(g)(2) of FSRIA 2002 (7 U.S.C. 8105(g)(2)) - strike "2023" -> insert "2031."
- Numbers: No dollar figure restated in source; underlying mandatory CCC funding continues by virtue of the date extension (amount not shown).
- Dates: Reauthorized through FY2031.
- Type: EXTEND.
- Affected: Advanced-biofuel producers (winners - continued payments).
- Flag: - (one-line date extension; mandatory funding preserved by extending the funding year rather than converting to discretionary).

Sec. 9006 - Biodiesel Fuel Education Program

- Does: Repeals the program entirely.
- Amends: Sec. 9006 of FSRIA 2002 (7 U.S.C. 8106) - REPEALED.
- Numbers: Eliminates program funding (prior law provided mandatory funding for biodiesel education; amount not restated here).

- Dates: None.
- Type: REPEAL.
- Affected: Biodiesel education grantees/cooperators (losers).
- Flag: One of three outright repeals in this title.

Sec. 9007 - Rural Energy for America Program (REAP)

- Does: Major reform package. (1) Adds shorthand "(referred to in this section as the Program)." (2) In (b)(3) feasibility-study factors: inserts ", cost savings," after "savings" and adds new (G) - potential to "meaningfully improve the financial conditions" of the producer/rural small business. (3) In (c): adds "agricultural cooperatives with less than 2,500 employees" as eligible for loan guarantees/grants under (c)(1)(A)(i); adds new (c)(2)(G) financial-condition-improvement factor; and in (c)(3)(B) strikes "\$25,000,000" -> inserts "\$50,000,000" (doubling that cap). (4) Redesignates (d)/(e)/(f) -> (e)/(f)/(g) and inserts NEW (d) "Streamlined application process" (including within each tier, with bundled applications for combined grant+financial-assistance projects). (5) In renumbered (e): retitles "Outreach" -> "Outreach, technical assistance, and education," restructures to add (2) technical assistance for applicants and (3) outreach/technical assistance/education to recipients on integrating renewable energy on land shared with crops or livestock (agrivoltaics). (6) In renumbered (g): strike "2023" -> "2031" (funding through FY2031); adds NEW (g)(4) "Reserve fund" - not less than 10% of funds obligated each fiscal year deposited in a Treasury reserve fund for grants supporting "underutilized renewable energy technologies," grant capped at 25% of installation/maintenance costs, at least 2 solicitations per fiscal year, unobligated reserve funds reallocated to the program after 1 year; "underutilized" defined as technologies receiving <=20% of the average total amounts made available under the section over the 5 most recent fiscal years. (7) Adds NEW (h) "Project diversity" - Secretary must ensure diversity of technologies/products/approaches in approvals. (b) Conforming: strike "subsection (f)" -> "subsection (g)" each place.
- Amends: Sec. 9007 of FSRIA 2002 (7 U.S.C. 8107).
- Numbers: Grant cap (c)(3)(B): \$25,000,000 -> \$50,000,000 (INCREASE). New reserve-fund set-aside: >=10% of obligated funds; reserve grants <=25% of project install/maintenance cost; "underutilized" threshold = <=20% of 5-year average. NOTE: source text shows only the funding-year change ("2023"->"2031"); it does NOT restate REAP's underlying mandatory annual funding amount.
- Dates: Reauthorized/funded through FY2031; >=2 solicitations per fiscal year; reserve reallocation 1 year after fiscal year.
- Type: EXTEND + REFORM + INCREASE.
- Affected: Agricultural producers, rural small businesses, now agricultural cooperatives (<2,500 employees) - winners. New reserve fund favors underutilized/emerging renewable technologies. Agrivoltaics (shared crop/livestock + renewable) explicitly supported.
- Flag: Mandatory funding preserved via date extension (not converted to discretionary); doubled grant cap and new 10% emerging-tech reserve are the headline reforms.

Sec. 9008 - Feedstock flexibility

- Does: Extends the Feedstock Flexibility Program for bioenergy producers (sugar-to-ethanol) sunset years.
- Amends: Sec. 9010(b) of FSRIA 2002 (7 U.S.C. 8110(b)) - (b)(1)(A): strike "2026" -> "2031"; (b)(2)(A): strike "2026" -> "2031."
- Numbers: None restated.
- Dates: Extended through FY2031.
- Type: EXTEND.
- Affected: Sugar program / bioenergy producers.
- Flag: -

Sec. 9009 - Biomass Crop Assistance Program (BCAP)

- Does: Extends BCAP funding-authorization year.
- Amends: Sec. 9011(f)(1) of FSRIA 2002 (7 U.S.C. 8111(f)(1)) - strike "2023" -> "2031."
- Numbers: None restated.
- Dates: Reauthorized through FY2031.
- Type: EXTEND.
- Affected: Biomass crop producers.
- Flag: -

Sec. 9010 - Carbon utilization and biogas education program

- Does: Repeals the program.
- Amends: Sec. 9014 of FSRIA 2002 (7 U.S.C. 8115) - REPEALED.
- Numbers: Eliminates program funding (amount not restated).
- Dates: None.
- Type: REPEAL.
- Affected: Carbon-utilization/biogas education grantees (losers).
- Flag: Second of the three repeals; frees the "9014" slot.

Sec. 9011 - Study on effects of solar panel installations on covered farmland

- Does: Creates NEW freestanding sec. 9015. Secretary (with Secretary of Energy) must study effects of solar installations on conversion of covered farmland out of ag production: economic effects (crop yields, land values incl. adjacent, land access/tenure, local economies, food security); soil/water/wildlife/vegetation/drainage/air-quality impacts of installation, operation, decommissioning + best practices; shared solar+ag (agrivoltaics) best practices incl. reducing nonfarmer ownership and enhancing biodiversity; land best/worst suited; livestock-panel compatibility (height, spacing, manure, fencing); crop-panel compatibility (height, spacing, equipment, yield); degree to which existing tax incentives drive farmland development; incentives to shift solar to built environment/brownfields/contaminated sites; effectiveness of federal programs; and estimate of agricultural-production loss. Consult Energy plus farmers, ranchers, landowners, ag organizations, State ag/energy departments, local governments, conservation organizations, land-grant colleges, solar developers.
- Amends: Title IX of FSRIA 2002 - NEW freestanding provision (new sec. 9015).
- Numbers: None.
- Dates: Report due within 2 years of enactment to House Ag + Energy & Commerce and Senate Ag + Energy & Natural Resources committees.
- Type: STUDY-OR-REPORT (NEW).
- Affected: USDA/DOE; solar developers and farmland owners (subject of study).
- Flag: Defines "covered farmland" (Farmland Protection Policy Act 7 U.S.C. 4201(c)(1) + nonindustrial private forest land 16 U.S.C. 3801(a)(18)); pairs directly with the hard limitation in Sec. 9012.

Sec. 9012 - Limitation on USDA funding for ground-mounted solar energy systems

- Does: Creates NEW freestanding sec. 9016. (b) Secretary MAY NOT provide financial assistance for a project that would result in conversion of covered farmland for solar energy production. (c) Exception if the project converts <5 acres, OR converts <50 acres with the majority of energy for on-farm use AND a resolution of approval/support from each county and municipality where sited. (d) For (c)(2) projects: applicant must develop a farmland conservation plan (best practices to protect soil health, mitigate erosion/compaction during construction/operation/decommissioning; remediate/restore soil health) and ensure sufficient decommissioning/remediation funds; Secretary may obligate but not disburse until compliance verified; plan must be carried out during production and on cessation; noncompliance requires repayment of the full amount of financial assistance. (e) Additional limitation: no financial assistance for a project procuring a solar energy component (defined 26 U.S.C. 45x(c)(3)) produced/manufactured/assembled in a foreign country of concern (CHIPS Act 2022 sec. 10638(2), 42 U.S.C. 19237(2)) or by an entity domiciled/controlled by such a country or a foreign entity of concern (sec. 10638(3), 42 U.S.C. 19237(3)).
- Amends: Title IX of FSRIA 2002 - NEW freestanding provision (new sec. 9016).
- Numbers: Acreage thresholds: <5 acres; <50 acres (with conditions); decommissioning-fund and full-repayment requirements.
- Dates: None specific.
- Type: NEW (REFORM/restriction on existing programs incl. REAP funding).
- Affected: Solar developers and farmers seeking USDA solar funding (losers - major new restriction); domestic solar-component makers (relative winners); Chinese/foreign-entity-of-concern solar supply chains (excluded).
- Flag: Hard funding prohibition + foreign-entity-of-concern sourcing ban; this is the most consequential policy shift in the title. Effectively limits how REAP and other USDA programs can fund ground-mounted solar on farmland.

Sec. 9013 - Sustainable aviation fuels strategy

- Does: Secretary must establish a Department-wide strategy to advance SAF production by: facilitating cross-mission-area collaboration on the SAF supply chain (incl. crops grown for SAF); identifying opportunities to maximize SAF development/deployment/commercialization; leveraging farmers/ranchers/foresters/producers; supporting rural economic

development via SAF; promoting public-private partnerships.

- Amends: Freestanding provision (not codified into FSRIA; directive to the Secretary).
- Numbers: None.
- Dates: None specified.
- Type: NEW (strategy/directive).
- Affected: USDA mission areas; SAF feedstock growers and producers (winners).
- Flag: Complements Sec. 9001 SAF definitional inclusion.

Sec. 9014 - Leveraging efficiency awareness for pumping systems

- Does: Findings on irrigation/pumping energy (600,000+ irrigation pumping systems; potential 22 billion kWh/yr and 8.3 million metric tons CO2 savings; >\$1.8 billion/yr savings; \$2.3 billion aquaculture industry; etc.). (b) Within 180 days of enactment, Secretary (consulting pumping experts) must publish accessible info on cost/energy/water/carbon savings from efficient pumping systems, including pumps/pipes/motors/drives/controls and USDA programs (EQIP, REAP, CSP) that fund them. (c) Within 180 days, develop a public energy-efficiency preassessment tool (user inputs pump type, flow, pressure, speed ratings/actuals; outputs projected savings). (d) Within 180 days, establish a process to educate USDA energy auditors on pumping-system efficiency. (e) Amends Sec. 1240I(2)(B)(i) of the Food Security Act of 1985 (16 U.S.C. 3839aa-21(2)(B)(i)) to insert "and energy-efficient pumping systems." (f) Defines "pumping system."
- Amends: Mostly freestanding directives; (e) amends 16 U.S.C. 3839aa-21 (Conservation Stewardship Program).
- Numbers: Findings figures only (not authorizations).
- Dates: Three 180-day deadlines after enactment.
- Type: NEW (education/tools) + REFORM (CSP eligibility).
- Affected: Farmers/ranchers/aquaculture operators (winners - new tools and CSP coverage); USDA must build tools and train auditors.
- Flag: Adds energy-efficient pumping systems to CSP activities - small but concrete program change buried in an awareness section.

Sec. 9015 - Adding waste energy recovery to the Rural Energy for America Program

- Does: Expands the definition of "renewable energy" to include "waste energy recovery."
- Amends: Sec. 9001(15)(A) of FSRIA 2002 (7 U.S.C. 8101(15)(A)) - strike "or hydroelectric" and insert "hydroelectric, or waste energy recovery."
- Numbers: None.
- Dates: None.
- Type: REFORM (definitional expansion).
- Affected: Waste-energy-recovery projects (winners - now REAP-eligible renewable energy).
- Flag: Title-numbering quirk - this is "Sec. 9015" of the bill but amends the section-9001 definition; do not confuse with the new FSRIA sec. 9015 created by bill Sec. 9011.

Sec. 9016 - Study on utilization of second-use batteries for agricultural purposes

- Does: Creates NEW freestanding sec. 9017 (FSRIA). Secretary (with Secretary of Energy) studies feasibility/costs/benefits/barriers to deploying second-use EV batteries on farms/ranches: potential to support ag during power outages; availability/projected supply of retired EV batteries; cost-effectiveness vs. new storage; safety standards and liability; adequacy of federal programs; recommendations for federal actions incl. potential grant or cost-share programs.
- Amends: Title IX of FSRIA 2002 - NEW freestanding provision (new sec. 9017).
- Numbers: None.
- Dates: Report due within 1 year of enactment to House Ag + Energy & Commerce and Senate Ag + Energy & Natural Resources committees.
- Type: STUDY-OR-REPORT (NEW).
- Affected: USDA/DOE; agricultural producers (potential future beneficiaries).
- Flag: Defines "electric drive vehicle" (sec. 641(b)(3) of the U.S. Energy Storage Competitiveness Act of 2007) and "second-use battery." Note: subsections jump (a),(b),(d),(e) - no (c) in the engrossed text.

Sec. 9017 - Tree planting grant program

- Does: Creates a NEW freestanding grant program (not codified into FSRIA). Within 90 days of enactment, Secretary establishes a program to award grants to eligible entities for "covered projects" (tree planting to reduce residential energy consumption), consulting Secretary of Energy. Applications must describe energy-consumption reduction, estimated reduction, eligible costs/other funding, community engagement, and tree species/suitability. Priority to projects: largest energy reduction for high-energy-burden households; max shade/wind protection; low-canopy neighborhoods; high senior/children populations; below-regional-median income areas; community engagement; local (esp. unemployed/underemployed) workforce. Tree-planting goal: $\geq 300,000$ trees each year (subject to appropriations). Federal share 90%. Defines covered project, eligible cost (planning/design, nurseries, purchasing/site prep/planting trees; maintenance/monitoring up to 3 years; training; other), eligible entity (State/local gov, Indian Tribe, nonprofit 501(c)(3), retail power provider), energy burden, etc.
- Amends: Freestanding provision (new standalone program; not inserted into FSRIA Title IX).
- Numbers: Authorization of appropriations: \$50,000,000 for each of fiscal years 2027 through 2030 (DISCRETIONARY - "authorized to be appropriated," not mandatory). Federal share 90%. Goal $\geq 300,000$ trees/year. Maintenance/monitoring up to 3 years.
- Dates: Program established within 90 days of enactment; appropriations FY2027-FY2030.
- Type: NEW.
- Affected: State/local governments, Tribes, nonprofits, retail power providers (eligible grantees); high-energy-burden/low-canopy communities (intended beneficiaries).
- Flag: The only program in the title with an explicit new dollar authorization, and it is DISCRETIONARY (authorization of appropriations), capped at \$50M/yr for FY2027-2030 (note: no FY2031, unlike the rest of the title's 2031 reauthorizations).

Cross-cutting flags for this title

- 2031 reauthorization sweep: Nearly every surviving FSRIA Title IX program is extended by striking 2023/2024/2026 and inserting 2031 (Secs. 9002 BioPreferred, 9003 Biorefinery, 9005 Bioenergy/Advanced Biofuels, 9008 Feedstock Flexibility, 9009 BCAP, 9007 REAP).
- Mandatory vs. discretionary: The four flagship bioeconomy programs (REAP, Bioenergy for Advanced Biofuels, Biorefinery, BioPreferred) are kept on their existing CCC/mandatory-funding footing by extending the funding-authorization year rather than converting them to "authorization of appropriations." IMPORTANT: the engrossed text supplied here does NOT restate specific mandatory annual dollar amounts for these programs - it shows only the date changes (and, for Sec. 9003, a per-project cap and an \$18M rescission). The only NEW explicit dollar authorization in the title is the discretionary \$50M/yr (FY2027-2030) tree-planting program (Sec. 9017).
- Three repeals: Biodiesel Fuel Education (Sec. 9006 / 7 U.S.C. 8106) and Carbon Utilization and Biogas Education (Sec. 9010 / 7 U.S.C. 8115) are repealed outright.
- Hard dollar cuts: \$18,000,000 rescission of unobligated Biorefinery (9003) balances is the only affirmative rescission.
- Dollar increases: Biorefinery per-project loan-guarantee cap \$250M $\rightarrow$ \$400M (Sec. 9003); REAP grant cap (c)(3)(B) \$25M $\rightarrow$ \$50M (Sec. 9007).
- Solar-on-farmland is the dominant new policy thrust: A 2-year study (Sec. 9011) plus a binding funding prohibition (Sec. 9012) with acreage exceptions (< 5 acres; < 50 acres w/ on-farm-use + local approval), farmland conservation plans, full-repayment penalty, and a foreign-entity-of-concern (CHIPS Act) component-sourcing ban. This materially constrains how REAP and other USDA programs fund ground-mounted solar.
- Agrivoltaics encouraged but farmland-conversion restricted: REAP outreach (Sec. 9007(e)) and the solar study (Sec. 9011) promote shared crop/livestock + renewable energy on the same land, while Sec. 9012 bars funding that converts farmland - a deliberate push toward co-location over conversion.
- SAF mainstreaming: SAF added to the advanced-biofuel definition (Sec. 9001) and given a Department-wide strategy (Sec. 9013).
- Section-numbering caution: Bill section numbers (9001-9017) differ from the FSRIA section numbers they create/amend. Bill Sec. 9011 creates FSRIA sec. 9015; bill Sec. 9015 amends FSRIA sec. 9001(15)(A); bill Sec. 9012 creates FSRIA sec. 9016; bill Sec. 9016 creates FSRIA sec. 9017.
- New studies/reports: Solar-on-farmland (2 yr), second-use batteries (1 yr), BioPreferred NAICS/NAPCS report (90 days), plus pumping-system tools/education (180 days each).

Title X - Horticulture, Marketing, and Regulatory Reform - Notes

Title-level summary

Title X reauthorizes USDA horticulture, marketing, and regulatory programs through FY2031 and pairs the extensions with substantive policy reforms. On horticulture, it extends Specialty Crop Block Grants (and bars cost-sharing/matching requirements), the urban agriculture office (converting its pilot into a permanent program), and-most significantly-overhauls hemp regulation by creating an "industrial hemp" production designation with relaxed sampling/testing and shifting the THC test to total tetrahydrocannabinol (including THCA). A new freestanding APHIS pilot program lets up to 75 vetted "responsible parties" move genetically engineered microorganisms in interstate commerce without permits. The Marketing subtitle expands the Local Agriculture Market Program (adds "food hub" definition, simplified small-grant applications) and makes multiple reforms to organic programs-organic milk cost data, organic technical assistance, modernized inspection rules allowing virtual inspections every three years for lower-risk U.S. operations, and a study to build risk-based National Organic Program oversight. The Regulatory Reform subtitle reshapes FIFRA by excluding plant biostimulants/nutritional chemicals/certain plant-incorporated protectants from pesticide regulation, mandating EPA-USDA coordination and economic analysis on risk-mitigation and Endangered Species Act measures, plus a 5-year safe harbor for aerial wildfire-retardant discharges and a new USDA Office of Biotechnology Policy. Notably, this title contains no California Proposition 12 / state-law preemption provision.

Section-by-section

Sec. 10001 - Specialty crop block grants

- Does: Extends Specialty Crop Block Grant authority from 2023 to 2031; reframes grants to be made "through priorities established annually by State program administrators in consultation with specialty crop producers and producer groups"; restructures subsection (c) and adds a flat prohibition on any cost-sharing or matching requirement on awards or sub-awards; rewrites subsection (e) State plan requirements (must identify lead agency and indicate how funds enhance competitiveness and how producer outreach/consultation is achieved).
- Amends: Section 101 of the Specialty Crops Competitiveness Act of 2004 (7 U.S.C. 1621 note; Pub. L. 108-465).
- Numbers: No new dollar figure stated; new bar on cost-share/match (effectively 0% match).
- Dates: Reauthorization year changed 2023 -> 2031.
- Type: EXTEND / REFORM.
- Affected: Specialty crop producers and producer groups (winners - bigger consultative role, no match burden); State departments of agriculture (must run annual priority-setting and update plans).
- Flag: Explicit ban on any cost-sharing or matching requirement is a notable producer-friendly change.

Sec. 10002 - Specialty crops market news allocation

- Does: Extends the specialty crops market news allocation authorization.
- Amends: Section 10107(b) of the Food, Conservation, and Energy Act of 2008 (7 U.S.C. 1622b(b)).
- Numbers: -
- Dates: 2023 -> 2031.
- Type: EXTEND.
- Affected: Specialty crop sector / AMS market news.
- Flag: -

Sec. 10003 - Office of Urban Agriculture and Innovative Production

- Does: Adds "production" to "emerging agricultural"; adds "controlled-environment agriculture" before "hydroponic"; adds new duties (technical assistance for business incorporation, zoning, farm tract numbers for small noncontiguous parcels; urban-specific conservation incl. stormwater runoff and impacted urban land/subsurface; help navigating Federal/State/Tribal/local policy). Extends advisory committee/authorization dates and sets committee termination to Sept. 30, 2031. Rewrites subsection (c) into a formal Grants and Cooperative Agreements structure (competitive grants, subgrants to producers; eligible entities = nonprofit, local government, Tribal organization, agricultural cooperative/business or producer network/association, K-12 school). Removes "pilot" throughout subsection (d) - converts the composting/food-waste pilot into a

continuing program; adds authority to construct at-scale composting, food-to-feed, or anaerobic digestion food waste-to-energy projects; adds Tribal governments and "develop food waste-to-energy operations."

- Amends: Section 222 of the Department of Agriculture Reorganization Act of 1994 (7 U.S.C. 6923).
- Numbers: No new dollar figure stated.
- Dates: Multiple 2023 -> 2031; committee sunset -> September 30, 2031.
- Type: EXTEND / REFORM (pilot -> permanent program).
- Affected: Urban/innovative producers, Tribal governments, K-12 schools, nonprofits, local governments (winners).
- Flag: Pilot-to-permanent conversion of the urban ag/composting program is notable.

Sec. 10004 - National Plant Diagnostics Network

- Does: Extends authorization.
- Amends: Section 12203(c)(5) of the Agriculture Improvement Act of 2018 (7 U.S.C. 8914(c)(5)).
- Numbers: -
- Dates: 2023 -> 2031.
- Type: EXTEND.
- Affected: Plant diagnostic labs/network.
- Flag: -

Sec. 10005 - Hemp production

- Does: Major hemp regulatory overhaul.
 - State/Tribal plans (7 U.S.C. 1639p): adds a required procedure for producers to designate production type as "only industrial hemp" or "hemp grown for any purpose other than industrial hemp." Switches the testing standard from "delta-9 tetrahydrocannabinol concentration" to "total tetrahydrocannabinol concentration (including tetrahydrocannabinolic acid)." Allows plans to include (notwithstanding standard sampling): visual inspections, performance-based sampling, certified seed, or similar procedures for producers electing "only industrial hemp"; and to eliminate the 10-year felony-drug-conviction ineligibility period for such producers. Adds inspection-of-industrial-hemp-producer rules: producers using reduced sampling must provide documentation of clear intent to produce only industrial hemp (seed tag, sales contract, FSA report, harvest technique/inspection); failure triggers testing.
 - Sets the THC limit at total tetrahydrocannabinol (including THCA) of not more than 0.3 percent in the plant (replacing delta-9 ... 0.3 percent).
 - Reporting/enforcement: requires immediate report to the Attorney General (and State/Tribal chief law enforcement) if a producer violated the plan with culpable mental state greater than negligence, OR produced a crop inconsistent with the "only industrial hemp" designation. Adds a 5-year program ineligibility for any person who knowingly produces a crop inconsistent with the "only industrial hemp" designation.
 - USDA plan (7 U.S.C. 1639q): mirrors the same designation procedure, total-THC testing standard, optional reduced-sampling and felony-ineligibility-elimination procedures, and industrial hemp inspection requirements at the federal level; adds reporting of production-type designation and requires laboratory certificate of analysis for disposed hemp.
 - Administration (7 U.S.C. 1639r): renames section heading to "Administration, Regulations, and Guidelines"; directs the Secretary, in consultation with the DEA Administrator, to establish a process for USDA to issue certificates of accreditation to hemp-testing laboratories.
- Amends: Sections 297B, 297C, and 297D of the Agricultural Marketing Act of 1946 (7 U.S.C. 1639p, 1639q, 1639r).
- Numbers: Total THC (incl. THCA) limit 0.3 percent; 10-year felony ineligibility period eliminable for industrial-hemp producers; new 5-year ineligibility for knowingly misdesignated crops.
- Dates: No single reauth year (structural reform).
- Type: REFORM.
- Affected: Industrial hemp (fiber/grain) producers (winners - reduced sampling/testing, eased felony bar); cannabinoid-purpose hemp growers stay under full testing; State/Tribal/USDA regulators and testing labs (must act); DEA (consulted on lab accreditation).
- Flag: Controversial/notable - creates a two-track hemp regime; shifts to "total THC including THCA" (a stricter chemical definition closing the THCA loophole) while simultaneously loosening field oversight for industrial hemp; eases the lifetime/10-year drug-felony bar.

Sec. 10006 - Pilot program for the intra-organizational movement of genetically engineered

microorganisms by certain authorized parties

- Does: Creates a new freestanding APHIS pilot. The Secretary must, within 100 days of enactment, establish a pilot authorizing not more than 75 "responsible parties" to move "covered microorganisms" (genetically engineered microorganisms that are plant pests or may pose plant pest risk; excludes select agents/toxins) in interstate commerce between their own biocontainment facilities without a permit, and to control/dispose of them. Sets responsible-party eligibility criteria (U.S. physical address; not owned/affiliated with a "country of concern" per 42 U.S.C. 19237; >1 biocontainment facility; qualified QC personnel; 3 years of prior permitted plant-pest movement; compliance capacity; no unauthorized release/material permit failure/violation in prior 5 years). Establishes a 45-day application window, first-come evaluation, approve/deny within 45 days after the window, appeal rights, supplemental applications (30-day decisions), and detailed containment/packaging requirements, recordkeeping, USDA access/inspection, anti-discrimination against GE microorganisms, quarterly reporting, 48-hour notice + 5-business-day written statement on unauthorized release, disenrollment provisions. Program terminates 3 years after selection completes; report to Congress due 6 months after termination with recommendations on permanence.
- Amends: New section 420A added to Subtitle A of the Plant Protection Act (7 U.S.C. 7711 et seq.). New freestanding provision (within PPA).
- Numbers: Cap of 75 responsible parties; 100-day establishment; 45-day application period; 45-day decision; 30-day supplemental decision; 10-day appeal window; 48-hour release notice; 5-business-day written statement; quarterly reports.
- Dates: Pilot terminates 3 years after application selection completes; report due 6 months after termination.
- Type: NEW / STUDY-OR-REPORT (pilot with congressional report).
- Affected: Biotech/synthetic biology firms with multiple biocontainment sites (winners - permit-free interstate movement); APHIS (administers/inspects); excludes firms tied to "countries of concern."
- Flag: Notable - deregulatory permit waiver for GE microorganisms; explicit national-security screen barring foreign-adversary-affiliated entities; mandates no less-favorable treatment of GE vs non-GE microorganisms.

Sec. 10101 - Marketing orders

- Does: Expands Section 8e import-parity coverage by adding "mandarin oranges" (after oranges) and "almonds" (after onions), and strikes ", other than dates for processing" wherever it appears (bringing processing dates within coverage).
- Amends: Section 8e(a) of the Agricultural Adjustment Act (7 U.S.C. 608e-1(a)), reenacted by the Agricultural Marketing Agreement Act of 1937.
- Numbers: -
- Dates: -
- Type: REFORM (expands commodity coverage).
- Affected: Mandarin orange and almond producers, date-for-processing handlers; importers of these commodities (now subject to import grade/size/quality parity requirements).
- Flag: -

Sec. 10102 - Local agriculture market program

- Does: Amends the Local Agriculture Market Program (LAMP). Adds a statutory definition of "food hub" (business/organization actively managing aggregation, distribution, and marketing of source-identified food products to multiple buyers from multiple, primarily local/regional producers). Adds "regional food chain coordination" to collaboration; requires stakeholder consultation before and after providing grants; extends program to 2031; adds "support the purchase of special purpose equipment" as an eligible use; adds "food hub" to eligible entities. Adds outreach and technical assistance and a geographic-balance priority to application review. Creates simplified applications for entities requesting less than \$100,000 with predefined project categories (direct-to-consumer: outreach/promotion, farmers market manager staff time, vendor training, planning/design, data collection/evaluation; local/regional food markets and enterprise: food hub feasibility study, regional food chain coordination staff time, technical assistance, data collection/evaluation, special purpose equipment). Updates partnership funding language from "2019 through 2023" to "2026 through 2031" supporting local/regional food system planning, implementation, regional food chain coordination, and outreach/TA/evaluation projects. Requires that not less than 10 percent and not more than 50 percent of subsection (d)(6) grant funds go to simplified-application grantees.
- Amends: Section 210A of the Agricultural Marketing Act of 1946 (7 U.S.C. 1627c).
- Numbers: Simplified application threshold < \$100,000; simplified-application set-aside >= 10% and <= 50% of (d)(6) funds.
- Dates: 2023 -> 2031; partnership funding "2026 through 2031."
- Type: EXTEND / REFORM.

- Affected: Food hubs, farmers markets, local/regional food enterprises, small applicants (winners - simplified <\$100k applications, set-aside); geographically underserved regions (priority).
- Flag: Notable - new "food hub" statutory definition and a 10-50% funding set-aside for simplified small grants.

Sec. 10103 - Acer access and development program

- Does: Redesignates subsections; adds a new "Consultations" subsection requiring the Secretary, beginning with the first application request occurring at least 1 year after enactment and not later than 6 months before such request, to solicit input from maple syrup industry stakeholders on research/education priorities and consider that input when making grants; extends authorization (to remain available until expended).
- Amends: Section 12306 of the Agricultural Act of 2014 (7 U.S.C. 1632c).
- Numbers: -
- Dates: 2023 -> 2031, to remain available until expended; consultation timing tied to enactment + 1 year, 6 months before requests.
- Type: EXTEND / REFORM.
- Affected: Maple syrup (Acer) producers/industry (winners - stakeholder consultation role).
- Flag: -

Sec. 10104 - Organic production and market data initiative

- Does: Adds a new mandate to collect and publish cost-of-production data for organic milk, including organic feedstuff costs (domestic and imported prices and other production costs); establishment of an "Organic All Milk Prices Survey" analogous to the existing All Milk Prices Survey (monthly data on what organic dairy farmers are paid and prices received for organic dairy cows; national plus at least the 6 regions with greatest organic dairy production); and periodic organic milk reporting equivalent to conventional-milk data using NASS/ERS/AMS data. Extends authorization.
- Amends: Section 7407 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 5925c).
- Numbers: At least 6 regions of organic dairy production.
- Dates: 2023 -> 2031.
- Type: EXTEND / NEW (organic milk data) / STUDY-OR-REPORT.
- Affected: Organic dairy farmers (winners - new price transparency); NASS/ERS/AMS (must act).
- Flag: -

Sec. 10105 - Organic certification

- Does: Extends organic certification reports authorization (2123(d)(1)... actually 2122(d)(1)) to 2031. Adds new section 2122B "Organic technical assistance" authorizing the Secretary to provide technical assistance, outreach, and education for organic production through existing programs of listed "covered agencies" (AMS, ARS, NIFA, FSA, RMA, NRCS, Rural Business-Cooperative Service, FNS, and others as determined). Extends funding from "for fiscal year 2023" to "for each of fiscal years 2023 through 2031."
- Amends: Sections 2122(d)(1), 2123(b)(6), and new section 2122B of the Organic Foods Production Act of 1990 (7 U.S.C. 6521(d)(1), 6522(b)(6), new after 6521a).
- Numbers: Funding extended through FY2031 (level not restated here).
- Dates: 2023 -> 2031; funding FY2023 through FY2031.
- Type: EXTEND / NEW (organic technical assistance section).
- Affected: Organic producers (winners - cross-agency TA); multiple USDA agencies (may act).
- Flag: -

Sec. 10106 - Report on procurement

- Does: Requires the Secretary, within 1 year of enactment, to report to House Agriculture and Senate Agriculture, Nutrition, and Forestry Committees on the process for procuring domestic commodities/products (per 7 C.F.R. 220.16), including solicitation; barriers to entry for nontraditional, culturally relevant, or local/regional commodities; diet quality and accessibility of procured products; and recommendations for administrative, regulatory, and legislative improvements.
- Amends: New freestanding provision (no U.S.C. amendment).
- Numbers: -
- Dates: Report due 1 year after enactment.

- Type: STUDY-OR-REPORT.
- Affected: Local/regional and culturally relevant food suppliers (potential winners); USDA procurement.
- Flag: -

Sec. 10107 - Definitions of risk to organic integrity and oversight protocols

- Does: Adds two definitions to OFPA: "oversight protocols" (regulations, policies, procedures issued under sections 2104, 2107, 2114, 2115, 2116, 2120) and "risk to organic integrity" (likelihood that a product marketed as organic is/contains a product not produced/processed in organic compliance). Redesignates existing paragraphs to accommodate insertions.
- Amends: Section 2103 of the Organic Foods Production Act of 1990 (7 U.S.C. 6502).
- Numbers: -
- Dates: -
- Type: REFORM (definitional groundwork for risk-based oversight).
- Affected: Sets up Secs. 10108-10109 risk-based regime; certifying agents and certified operations.
- Flag: -

Sec. 10108 - Modernization of inspection requirements

- Does: Rewrites the annual inspection requirement. Inspections of certified farms/handling operations must be: (A) on-site for sites located outside the United States; (B) for U.S. sites, on-site once every three years with intervening annual inspections conducted on-site OR virtually based on the operation's risk to organic integrity as determined by the Secretary; (C) for handling operations that acquire but do not physically receive/process/package/store organic products, via inspection methods including virtual that provide sufficient assurance of compliance.
- Amends: Section 2107(a)(5) of the Organic Foods Production Act of 1990 (7 U.S.C. 6506(a)).
- Numbers: On-site once every three years (U.S. operations).
- Dates: -
- Type: REFORM.
- Affected: Domestic certified organic operations (winners - fewer mandatory on-site inspections, virtual allowed); foreign operations still on-site annually; certifying agents (must adjust).
- Flag: Notable - domestic operations get on-site only once every 3 years (virtual in between) while foreign operations keep annual on-site; a risk-based loosening of inspection frequency.

Sec. 10109 - Study and reform of National Organic Program oversight protocols

- Does: Adds new OFPA section 2122C. Requires the Secretary, within 12 months of enactment, to conduct a comprehensive study on whether risk-based oversight protocols and related reforms are necessary/appropriate (examining feasibility of: risk-based protocols; differential treatment of noncompliance by risk; standardized organic plans under section 2114 aligned with risk; multi-tiered certification by risk and operation scale; increased NOP guidance/interpretation). Must consider scope, scale/complexity, domestic/international location, compliance history, and other factors. Report to House/Senate Ag committees and public posting within 18 months. Consultation with the National Organic Standards Board, certifying agents, certified operations, organic consumers, and other stakeholders. Authorizes the Secretary, based on findings and after consultation with the committees, to issue regulations establishing/modifying oversight protocols (provided they maintain strong organic integrity, support a resilient domestic organic sector, and are consistent with the title), potentially to reduce oversight costs for lower-risk operations or prioritize resources for higher-risk ones. Rule of construction preserves the Secretary's enforcement authority.
- Amends: New section 2122C of the Organic Foods Production Act of 1990 (7 U.S.C. 6501 et seq.), inserted after 2122B.
- Numbers: -
- Dates: Study within 12 months of enactment; report within 18 months of enactment.
- Type: STUDY-OR-REPORT / REFORM (with grant of rulemaking authority).
- Affected: Lower-risk certified operations (potential winners - reduced cost/burden); NOSB, certifying agents, organic consumers (consulted).
- Flag: Notable - grants the Secretary new rulemaking authority to build a risk-based, multi-tiered organic oversight system off the study findings.

Sec. 10201 - Exclusion of certain substances

- Does: Amends FIFRA definitions. Rewrites "plant regulator" to exclude substances intended to be produced/used within a plant;

substances intended as plant nutrients/trace elements/nutritional chemicals/plant inoculants/soil amendments/vitamin hormone products; and plant biostimulants that have a low-risk profile and are of biological origin (or synthetically derived but structurally similar and functionally identical to biological-origin substances). Amends the "pest" exclusion list (subsection (hh)) to add plant biostimulant and nutritional chemical. Adds new defined terms: "plant biostimulant," "nutritional chemical," "vitamin hormone product," and "plant-incorporated protectant" (PIP, including inert ingredients per 40 C.F.R. 174.3). Rewrites FIFRA section 25(b): allows exemption by rule for pesticides adequately regulated by another agency or unnecessary to regulate; and creates an exemption for plant-incorporated protectants "resulting from endogenous genetic material found within or that could arise from the plant's gene pool" upon issuance of EPA guidance (due 1 year after enactment), with an exception where the Administrator determines regulation is necessary (via order to owner or Federal Register), and a corresponding pesticide-residue tolerance exemption under FFDCA section 408 (21 U.S.C. 346a). Conforming amendments to FIFRA section 17(c) (7 U.S.C. 136o(c)) re inert ingredients/PIP exemption.

- Amends: Sections 2, 25(b), and 17(c) of FIFRA (7 U.S.C. 136, 136w(b), 136o(c)); cross-references FFDCA 408 (21 U.S.C. 346a) and 40 C.F.R. parts 174.3, 174.

- Numbers: -

- Dates: EPA PIP guidance due 1 year after enactment.

- Type: REFORM (deregulatory - excludes substances from pesticide regulation).

- Affected: Plant biostimulant, nutritional chemical, vitamin hormone product makers and developers of plant-bred/endogenous-PIP crops (winners - out from under FIFRA); EPA (issues guidance/orders).

- Flag: Notable - broadly exempts plant biostimulants and gene-pool-derived plant-incorporated protectants from pesticide regulation, including tolerance exemption.

Sec. 10202 - Coordination

- Does: Adds FIFRA section 3(i). Requires that any pesticide risk mitigation measures be developed in coordination with the Secretary of Agriculture and that EPA conduct and publish in the docket an economic analysis of implementation cost. Requires EPA to coordinate with USDA (through the Director of the Office of Pest Management Policy) to obtain and consider agronomic use data (from USDA and industry) and information on availability/economic viability of alternatives for registration/registration review and FFDCA 408 determinations, and to publish how it used (or why it did not use) USDA-provided data. Requires coordination with USDA, Interior, and Commerce on "reasonable and prudent actions and measures" arising from consultations, including feedback to Interior/Commerce on effects to end users. Permits waiver/modification of coordination for a specific action if agreed by EPA, USDA, and the registrant and published in the docket.

- Amends: Section 3 of FIFRA (7 U.S.C. 136a).

- Numbers: -

- Dates: -

- Type: REFORM.

- Affected: USDA/Office of Pest Management Policy (new role); pesticide registrants (winners - economic-cost analysis, alternatives consideration, waiver option); EPA (new procedural burdens).

- Flag: Notable - inserts USDA and economic-cost analysis into EPA pesticide risk-mitigation and ESA-related decision-making.

Sec. 10203 - Interagency working group

- Does: Amends FIFRA section 3(c)(11). Requires the Secretary of Agriculture to include the Director of the Office of Pest Management Policy in all interagency working group meetings. Changes reporting from every 180 days to each year (and removes the 5-year period limitation). Requires reports be published on EPA's website. Rewrites the consultation provision: working group must consult (including public meetings) with industry stakeholders and NGOs at least once a year and weigh their differing interests; and before EPA implements any policy/strategy/workplan/pilot applying the Endangered Species Act to pesticide registration/review, EPA must consult covered agencies and publish input received in the docket.

- Amends: Section 3(c)(11) of FIFRA (7 U.S.C. 136a(c)(11)).

- Numbers: Reports annual (was every 180 days); consult stakeholders >= once/year.

- Dates: Removes "5-year period" limitation on reporting.

- Type: REFORM.

- Affected: Office of Pest Management Policy, industry stakeholders/NGOs (more input); EPA (transparency/consultation duties on ESA-pesticide policy).

- Flag: -

Sec. 10204 - Registration review

- Does: Amends FIFRA registration-review deadline language: changes "registration review of" to "interim registration review decision of" and changes the deadline year from 2022 to 2031. Adds new "Interim Registration Review Decision Requirements" requiring any "covered interim registration review decision" to include, where applicable, measures to reduce a pesticide's effects on ESA-listed species or designated critical habitat, taking USDA/interagency-working-group input into account. Defines "covered interim registration review decision" (associated with an initial registration review; noticed in the Federal Register between enactment and October 1, 2031; for which EPA has not yet made effects determinations or completed ESA section 7(a)(2) consultation). Repeals section 711 of the Pesticide Registration Improvement Act of 2022 (conforming).
- Amends: Section 3(g)(1)(A) of FIFRA (7 U.S.C. 136a(g)(1)(A)); cross-references ESA (16 U.S.C. 1531 et seq., 1536(a)(2)); repeals PRIA 2022 §711 (title VI of div. HH of Pub. L. 117-328).
- Numbers: -
- Dates: Deadline 2022 -> 2031; covered decisions noticed through October 1, 2031.
- Type: EXTEND / REFORM / REPEAL (conforming repeal of PRIA 2022 §711).
- Affected: EPA registration-review program; pesticide registrants; ESA-listed species (interim-decision ESA measures).
- Flag: -

Sec. 10211 - Multiple crop and pesticide use survey

- Does: Rewrites the administration subsection. Requires the Secretary to submit the crop/pesticide use survey to the EPA Administrator and make it publicly available; requires the Secretary (through the Office of Pest Management Policy Director) to obtain commercial pesticide-use data to inform/enhance the survey; and exempts administration of the section from the Paperwork Reduction Act (chapter 35 of title 44).
- Amends: Section 10109(b) of the Agriculture Improvement Act of 2018 (Pub. L. 115-334; 132 Stat. 4906).
- Numbers: -
- Dates: -
- Type: REFORM.
- Affected: USDA/Office of Pest Management Policy, EPA (data recipient).
- Flag: Notable - explicit Paperwork Reduction Act waiver.

Sec. 10212 - Safe harbor for certain discharges of wildland fire chemicals

- Does: Bars any court from enjoining, under the Clean Water Act (33 U.S.C. 1251 et seq.), a "covered entity" from conducting aerial application of a covered fire retardant/water enhancer for wildfire suppression/control/prevention that results in a discharge, if conducted per the Feb. 16, 2023 EPA-Forest Service Federal Facility Compliance Agreement. Applies only to applications conducted before the effective date of a CWA section 402 (33 U.S.C. 1342) permit authorizing such discharge. Preserves court authority over noncompliant applications. Defines covered entity (Federal/State/local/Tribal agencies authorized for such aerial application, plus their contractors/agents) and covered fire retardant/water enhancer (evaluated, qualified, approved by the Secretary and on the current Forest Service Qualified Products List). Sunsets 5 years after enactment.
- Amends: New freestanding provision; operates against the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.; 1342; 1362).
- Numbers: -
- Dates: Sunsets 5 years after enactment.
- Type: NEW (litigation safe harbor).
- Affected: Forest Service / firefighting agencies and contractors (winners - shielded from injunctions); CWA plaintiffs/citizen-suit enforcement (losers).
- Flag: Notable/controversial - strips courts of injunction authority over aerial fire-retardant discharges pending a CWA permit.

Sec. 10213 - Office of Biotechnology Policy

- Does: Adds new section 220A to the Department of Agriculture Reorganization Act of 1994 establishing an Office of Biotechnology Policy to coordinate USDA policy on biotechnology, biomanufacturing, synthetic biology, and related emerging technologies. Headed by a Director appointed by the Secretary reporting directly to the Secretary/designee. Duties: develop/coordinate Department biotech policy; coordinate activities (R&D, extension/education, communication, regulation/labeling, commercialization/use/trade); assist other USDA offices; interagency coordination with EPA, FDA, and other Federal/State agencies; outreach to biotech developers, academics, producers, and affected entities. Authorizes \$1,000,000 for

each of fiscal years 2027 through 2031.

- Amends: New section 220A added to Subtitle A of the Department of Agriculture Reorganization Act of 1994 (7 U.S.C. 6912 et seq., after 7 U.S.C. 6920).
- Numbers: \$1,000,000 for each of FY2027 through FY2031.
- Dates: Appropriations FY2027-FY2031.
- Type: NEW.
- Affected: Biotech/synthetic biology developers, USDA agencies, EPA/FDA coordination.
- Flag: -

Cross-cutting flags for this title

- No California Proposition 12 / interstate-commerce preemption provision. Despite the assignment's emphasis, this engrossed Title X contains no provision preempting state agricultural laws on production standards (e.g., a Prop 12 response). The only state-law-effect provisions are the FIFRA changes and the CWA wildfire-retardant litigation safe harbor.
- Uniform reauthorization to FY2031: Specialty Crop Block Grants, market news, urban ag, plant diagnostics, LAMP, Acer/maple, organic data, organic certification reports and funding, and FIFRA registration-review deadlines all extended from 2023 (or 2022) to 2031.
- Strong deregulatory / USDA-empowerment theme in the Regulatory Reform subtitle: excludes biostimulants, nutritional chemicals, and gene-pool-derived plant-incorporated protectants from FIFRA; mandates EPA-USDA coordination and economic-cost analysis on risk-mitigation and ESA measures; Paperwork Reduction Act waiver; and a litigation safe harbor for fire-retardant discharges.
- Organic reform cluster (Secs. 10104, 10105, 10107, 10108, 10109): builds a "risk to organic integrity" framework, allows virtual/triennial inspections for domestic operations (foreign stays annual on-site), adds organic milk data and cross-agency technical assistance, and grants the Secretary new rulemaking authority to create risk-based, multi-tiered oversight.
- Hemp two-track regime (Sec. 10005): new "only industrial hemp" designation with relaxed sampling/testing and eased drug-felony bar, paired with a stricter "total THC including THCA" standard and new lab-accreditation process (DEA-consulted).
- Biotechnology emphasis: new APHIS GE-microorganism interstate-movement pilot (cap 75; national-security screen on foreign-adversary-affiliated entities) and a new USDA Office of Biotechnology Policy (\$1M/yr FY2027-FY2031).
- National-security hooks: GE-microorganism pilot bars entities owned/affiliated with a "country of concern" (per 42 U.S.C. 19237, CHIPS Act of 2022) - consistent with the bill's "National Security" title.
- Several mandates to act on tight clocks: GE-microorganism pilot within 100 days; FIFRA PIP guidance and procurement report within 1 year; organic oversight study within 12 months / report within 18 months.
- Funding figures are largely reauthorizations rather than new appropriations; the only explicit new dollar authorization in the title text is \$1,000,000/year (FY2027-FY2031) for the Office of Biotechnology Policy.

Title XI - Crop Insurance - Notes

Title-level summary

Title XI amends the Federal Crop Insurance Act (FCIA, 7 U.S.C. 1501 et seq.) to expand and refine the Federal crop insurance program, with a heavy emphasis on specialty crops, new/expanded subsidized products, and program-integrity reforms to the relationship between USDA's Risk Management Agency (RMA)/Federal Crop Insurance Corporation (FCIC) and approved insurance providers (AIPs). Notably, this title is built primarily around governance, research-and-development mandates, studies, and process reforms rather than across-the-board premium subsidy rate increases - there is no general statutory subsidy-percentage hike in the engrossed text. The most concrete benefit increase is to beginning AND veteran farmers/ranchers (Sec. 11007), which extends existing beginning-farmer subsidy assistance to veteran farmers/ranchers and lengthens the veteran-farmer eligibility window from 5 to 10 years. A large research push (Sec. 11014) directs FCIC to develop and, in several cases, make available new revenue and index-based policies for oilseeds, alfalfa, pulses, sugarbeets, sugarcane, blueberries, wine grapes (smoke), mushrooms, frost/cold, hurricanes, and swine. Many provisions are STUDY-OR-REPORT mandates with statutory deadlines tied to enactment or crop years through 2031; reimbursement rates for AIP administrative/operating (A&O) costs are frozen at the 2026 level for 2027 and beyond (Sec. 11009).

Section-by-section

Sec. 11001 - Specialty Crop Advisory Committee

- Does: Creates a new Specialty Crop Advisory Committee; adds its Chairperson to the FCIC Board of Directors membership; adds Committee members to the Board's compensation/expense provisions; redesignates an existing Board member category from "specialty crop" to "livestock"; revises the Specialty Crops Coordinator's responsibilities; and requires the FCIC's annual review of new/specialty crops to be done in consultation with the new Committee.
- Amends: FCIA sec. 505 (7 U.S.C. 1505) - adds new subsection (f); sec. 507(g)(2) (7 U.S.C. 1507(g)(2)) - rewritten; sec. 508(a)(6)(A) (7 U.S.C. 1508(a)(6)(A)).
- Numbers: Committee = not fewer than 5 producers, not more than 10 total members; at least 1 producer from each of the West, Midwest, South, and Northeast regions (Census); meets not less than 2 times per year.
- Dates: Committee must be established not later than 180 days after enactment of the subsection.
- Type: NEW (governance body) / REFORM.
- Affected: Winners - specialty crop producers (new dedicated advisory voice on the Board and to the Manager). Who must act - Secretary (establish/appoint Committee), FCIC Board, Specialty Crops Coordinator.
- Flag: Heading change strikes "specialty crop" and inserts "livestock" for the redesignated Board member subparagraph (H) - shifts an existing Board seat description toward livestock while the specialty-crop role is now filled by the new Committee Chairperson.

Sec. 11002 - Identification of holders of substantial interests

- Does: Lets the FCIC Manager require policyholders to report names of individuals/entities holding a substantial beneficial interest; grants an extension allowing late submission any time during the crop year, except where an AIP determines the policyholder would get disproportionate benefits from non-reporting or withheld info to evade a State/Federal-law obligation; raises the threshold defining a "substantial beneficial interest."
- Amends: FCIA sec. 506(m) (7 U.S.C. 1506(m)) - rewrites paragraph (3); amends paragraph (4).
- Numbers: Substantial beneficial interest threshold raised from 5 percent to 10 percent.
- Dates: -
- Type: REFORM (eases reporting via extension; raises disclosure threshold).
- Affected: Winners - policyholders/larger ownership structures (higher 5%->10% threshold, late-filing grace). Who must act - FCIC Manager, AIPs (disproportionate-benefit/evasion determinations).
- Flag: Raising the disclosure threshold to 10% reduces transparency on ownership while the extension softens enforcement timing.

Sec. 11003 - Actuarial soundness of certain new products

- Does: Requires FCIC to periodically review each policy/product developed under sec. 508(h) for actuarial soundness and to take actions (in consultation with submitters) to improve soundness.
- Amends: FCIA sec. 506(n) (7 U.S.C. 1506(n)) - adds new paragraph (4).
- Numbers: -
- Dates: "periodically" (no fixed interval).
- Type: REFORM (oversight requirement).
- Affected: FCIC must act; affects holders of 508(h) submitted products.
- Flag: -

Sec. 11004 - Coverage of revenue losses

- Does: Expands the scope of insurable loss to include a decline in the market price of the insured commodity, so long as the decline was not directly caused by the producer (as determined by the Secretary).
- Amends: FCIA sec. 508(a)(1) (7 U.S.C. 1508(a)(1)) - adds language to the second sentence.
- Numbers: -
- Dates: -
- Type: REFORM/INCREASE (broadens insurable cause-of-loss to market-price declines).
- Affected: Winners - producers seeking revenue/price-decline protection. Who must act - Secretary (determinations).
- Flag: Statutory authorization for price-decline (revenue) coverage; pairs with Sec. 11014's revenue-policy expansions.

Sec. 11005 - Limitation on farm program participation

- Does: Strikes "crops and" from a heading in sec. 508(c)(4)(C)(iv); sunsets the STAX (Stacked Income Protection Plan for upland cotton) effective-date provision to cover only the 2019-2025 crop years; and adds a conforming limitation barring a farm with STAX coverage from also receiving seed cotton PLC/ARC payments beginning with the 2026 crop year.
- Amends: FCIA sec. 508(c)(4)(C)(iv) and sec. 508B(f) (7 U.S.C. 1508b); conforming amendment to sec. 1115 of the Agricultural Act of 2014 (7 U.S.C. 9015) - adds new subsection (j).
- Numbers: -
- Dates: STAX effective window changed from "beginning with the 2019 crop year" to "2019 through 2025 crop years"; new STAX/seed-cotton payment limitation begins with the 2026 crop year.
- Type: REFORM (anti-double-dipping limitation).
- Affected: Losers - upland cotton/seed cotton producers who would otherwise stack STAX with PLC (sec. 1116) or ARC (sec. 1117) on the same farm. Who must act - producers (must choose).
- Flag: Hard no-double-dip rule between STAX and seed cotton PLC/ARC.

Sec. 11006 - Limitation on interest accrual

- Does: Caps the interest an AIP may charge a producer delinquent on a premium or administrative fee.
- Amends: FCIA sec. 508(d) (7 U.S.C. 1508(d)) - adds new paragraph (5).
- Numbers: Interest limited to ≤ 1 percent of the simple interest of the delinquent amount per month, for not more than 60 consecutive months of delinquency.
- Dates: Effective beginning with the 2026 reinsurance year.
- Type: REFORM (caps/limits charges - benefits delinquent producers).
- Affected: Winners - delinquent producers (interest cap). Who must act - AIPs.
- Flag: -

Sec. 11007 - Crop insurance support for beginning and veteran farmers and ranchers

- Does: Lengthens the period a producer can qualify as a "veteran farmer or rancher," and extends the enhanced premium-assistance benefit currently provided to beginning farmers/ranchers so it also covers veteran farmers/ranchers.
- Amends: FCIA sec. 502(b)(14)(B) (7 U.S.C. 1502(b)(14)(B)) - clauses (ii) and (iii); sec. 508(e)(9) (7 U.S.C. 1508(e)) - inserts "or veteran farmer or rancher" after "beginning farmer or rancher" each place it appears.
- Numbers: Veteran-farmer qualifying window extended from 5 years to 10 years (and "5-year" -> "10-year"). The dollar/percentage value of the beginning-farmer assistance itself is set by existing sec. 508(e)(9) (the additional premium subsidy / extra 10 percentage points historically afforded beginning farmers) and is here extended to veterans; the text does not restate a new percentage.

- Dates: -
- Type: INCREASE (expands subsidy assistance to a new class; lengthens eligibility).
- Affected: Winners - veteran farmers/ranchers (now get the beginning-farmer premium assistance) and veterans in years 6-10 of operation (now still "veteran" eligible). Who must act - RMA/FCIC.
- Flag: Key beginning/veteran-farmer subsidy boost in this title - extends enhanced premium assistance to veterans and doubles the veteran eligibility window.

Sec. 11008 - Marketability

- Does: Revises the 508(h) submission process around marketability: clarifies confidentiality timing; allows an AIP that submits a letter of support to access product-development data (not treated as "the public") subject to confidentiality; adds a marketability deadline barring late-approved products (after the July 1 SRA closing date) from being implemented that reinsurance year unless training/handbook materials are released at least 90 days before the sales closing date; adds a marketability-determination process under which a product is "deemed marketable" if at least one AIP expresses support; and bars the Board from requiring an AIP letter of support to review/approve a product.
- Amends: FCIA sec. 508(h)(4) (7 U.S.C. 1508(h)(4)) - amends subparagraph (A)(iii), adds (D)(iv), adds new subparagraph (F).
- Numbers: Materials must be made available at least 90 days before the sales closing date; SRA closing date referenced as July 1.
- Dates: Tied to reinsurance year / SRA July 1 closing date.
- Type: REFORM.
- Affected: Winners - AIPs/product submitters (easier marketability path; data access; one supporting AIP can deem a product marketable). Who must act - FCIC Board, AIPs.
- Flag: "Deemed marketable" if a single AIP supports it - a notably low bar that could accelerate new-product approvals.

Sec. 11009 - Reimbursement rates for administrative and operating costs

- Does: Restructures the A&O cost-reimbursement rate caps; for the 2027 and subsequent reinsurance years sets the A&O reimbursement rate equal to the rate in effect for the 2026 reinsurance year.
- Amends: FCIA sec. 508(k)(4) (7 U.S.C. 1508(k)(4)) - amends subparagraph (A) (adds clause (iii)) and rewrites subparagraph (F).
- Numbers: No new percentage; rate for 2027+ = the 2026 reinsurance-year rate (freeze/peg).
- Dates: Applies to 2027 and subsequent reinsurance years (2026 is the reference year; prior cap language "through 2026").
- Type: REFORM (freezes/pegs A&O reimbursement rate at 2026 level - effectively caps future growth).
- Affected: AIPs and agents (reimbursement pegged to 2026; no inflationary growth). Who must act - FCIC Board.
- Flag: Locks A&O reimbursement at 2026 levels indefinitely - a real-terms decline over time for AIPs/agents.

Sec. 11010 - Quality loss adjustment coverage

- Does: Replaces the one-time quality-loss-adjustment (QLA) review with a recurring review cycle; requires regionally diverse stakeholder engagement; requires implementation of changes based on each review; and adds a congressional reporting requirement.
- Amends: FCIA sec. 508(m)(3) (7 U.S.C. 1508(m)(3)) - rewrites (A), amends (B), redesignates (B)-(C), inserts new (B), adds new (D).
- Numbers: Review once every 5 years; each review completed within 1 year of initiation.
- Dates: Recurring reviews begin in calendar year 2027 (and every 5 years thereafter).
- Type: STUDY-OR-REPORT / REFORM (recurring review + reporting).
- Affected: Winners - producers in regions with unique quality-loss issues. Who must act - FCIC (contract reviewer, report to House/Senate Ag Committees).
- Flag: Report must include plans for region-specific QLA procedures.

Sec. 11011 - Pilot program to review effectiveness of coverage penalty

- Does: Creates a new freestanding FCIA section establishing a pilot program to evaluate the late-planting-period reduction-in-benefits penalty for corn and other crops; suspends the late-planting guarantee reduction within the pilot; analyzes whether days past final plant date correlate with yield decline; and studies whether late planting reduces Ogallala Aquifer irrigation use.

- Amends: FCIA (7 U.S.C. 1501 et seq.) - inserts new sec. 508E after sec. 508D ("New freestanding provision" within FCIA).
- Numbers: Conducted in not fewer than 10 counties in/adjacent to the North Plains or Panhandle Groundwater Conservation Districts (Texas); operate for not fewer than 4 crop years; up to \$200,000 (from sec. 522(e)(2)(A)(ii) funds) for a partnership/cooperative agreement.
- Dates: Effective beginning with the 2027 crop year; report not later than 90 days after the last day of crop year 2031.
- Type: NEW (pilot program) / STUDY-OR-REPORT.
- Affected: Winners - Texas High Plains producers planting in the late period (suspended penalty during pilot). Who must act - RMA and FCIC; report to House Ag Committee and Senate Committee on Agriculture, Forestry, and Nutrition (note: bill's wording orders the words differently).
- Flag: Geographically targeted (Texas Panhandle/Ogallala Aquifer); ties crop insurance penalty to groundwater conservation.

Sec. 11012 - Whole farm improvements

- Does: Requires FCIC to annually review the insurable-revenue limitations under Whole-Farm Revenue Protection (including overall and animal/animal-product/greenhouse-nursery/aquaculture-specific limits) to ensure adequacy for high-value products, and to report on each review and expected policy changes.
- Amends: FCIA sec. 522(c)(7)(E) (7 U.S.C. 1522(c)(7)(E)) - adds new clause (iii).
- Numbers: -
- Dates: First review not later than 12 months after enactment of the clause, and annually thereafter.
- Type: STUDY-OR-REPORT / REFORM.
- Affected: Winners - high-value/diversified, livestock, nursery, and aquaculture producers using Whole-Farm Revenue Protection. Who must act - FCIC (report to House/Senate Ag Committees).
- Flag: Annual cadence could lead to raised Whole-Farm revenue limits over time.

Sec. 11013 - Program compliance and integrity

- Does: Builds a structured multi-stage notification/appeal/determination process for compliance findings against AIPs (initial finding -> AIP appeal -> final finding -> request for final administrative determination -> final determination -> appeal to Civilian Board of Contract Appeals); ties debt relief to FCIC's compliance with timing rules (with an OIG/DOJ exception); and makes a "final agency determination" on certain inquiries "binding."
- Amends: FCIA sec. 515(b) (7 U.S.C. 1515(b)) - heading and paragraphs (1)-(3); sec. 506(r)(1) (7 U.S.C. 1506(r)(1)) - inserts "binding."
- Numbers: Each stage governed by 90-day windows (90-day AIP appeal; FCIC final finding within 90 days; 90 days to request final administrative determination; FCIC final determination within 90 days unless substantial new info; 90 days to appeal to the Civilian Board of Contract Appeals).
- Dates: -
- Type: REFORM (due-process/appeals structure for AIPs).
- Affected: Winners - AIPs (clear appeal rights; debt relief if FCIC misses deadlines). Who must act - FCIC (must meet 90-day deadlines or forgive debt, except OIG/DOJ matters).
- Flag: Failure of FCIC to timely notify relieves AIP of debt owed - a strong incentive on the agency, weakening recovery of overpayments.

Sec. 11014 - Research and development priorities

- Does: Adds eight new R&D mandates (paragraphs (20)-(28)) directing FCIC to research/develop - and in several cases make available - new policies. Subsections: (a) expansion of revenue policies; (b) wine grape smoke-exposure losses; (c) mushrooms; (d) hurricane/tropical-storm standalone study; (e) frost/cold-weather index policy; (f) double/rotational cropping of oilseeds study; (g) harvest incentives; (h) prevented planting for non-perennial specialty crops; (i) swine catastrophic-event policy.
- Amends: FCIA sec. 522(c) (7 U.S.C. 1522(c)) - adds paragraphs (20), (21), (22), (23), (24), (25), (26), (27), (28).
- Numbers/Crops: (20) revenue policies for oilseeds (camelina, carinata, pennycress), alfalfa, pulse crops (incl. dry edible beans), sugarbeets, sugarcane, blueberries, plus other yield-only crops; (21) wine grapes incl. CA/OR/WA; (24) frost/cold index - table/wine/juice grapes, tomatoes, peppers, sugarcane, strawberries, melons, citrus, peaches, blueberries, etc.; (25) covered oilseed crops = rapeseed, canola, camelina, others. Several "make available" mandates notwithstanding the last sentence of sec. 508(a)(1) and sec. 508(a)(2).
- Dates (deadlines after enactment of each paragraph): (20) report <=18 months; (21) R&D <=1 year, make available <=18

months, report <=2 years; (22) report <=2 years; (23) report <=1 year; (24) report <=1 year; (25) report <=13 months; (26) R&D <=1 year, make available <=24 months, report <=1 year; (27) R&D <=1 year, report <=18 months; (28) report <=1 year.

- Type: NEW / INCREASE (expansion of subsidized products) / STUDY-OR-REPORT.

- Affected: Winners - producers of the named specialty/oilseed/livestock commodities; wine grape growers in fire-prone West; mushroom growers; swine producers. Who must act - FCIC (R&D, mandatory make-available where specified, reports to House/Senate Ag Committees; (21)/(26) also Appropriations Committees).

- Flag: Largest expansion of subsidized product availability in the title; several paragraphs MANDATE that FCIC make the new policy available (not merely study it), overriding the usual sec. 508(a)(1)/(a)(2) constraints - revenue coverage for oilseeds/alfalfa/pulses/sugar/blueberries, wine-grape smoke, mushrooms, and harvest incentives.

Sec. 11015 - Report on Standard Reinsurance Agreement

- Does: Requires FCIC to report on the Standard Reinsurance Agreement (SRA), analyzing modifications to expand availability of policies/plans, including additional reinsurance funds for high-loss-ratio States and for area-plan AIPs, A&O fund obligation methods, and agent compensation consistent with historical norms.

- Amends: New freestanding provision (references FCIA sec. 508(k)(8)(F) budget-neutrality requirement and sec. 507(c) A&O reimbursements).

- Numbers: -

- Dates: Report not later than 90 days after enactment.

- Type: STUDY-OR-REPORT.

- Affected: AIPs, agents, producers in high-loss-ratio States and area-plan markets. Who must act - FCIC (consult producers, agents, AIPs, House/Senate Ag Committees; report).

- Flag: Explores additional reinsurance funds for area-plan (e.g., SCO/area-based) AIPs and high-loss-ratio States - could reshape risk-sharing economics.

Sec. 11016 - Hurricane insurance protection-wind index report

- Does: Requires FCIC to report on the Hurricane Insurance Protection-Wind Index (HIP-WI), analyzing NOAA weather-radio-station outages in the preceding 5 years that caused producers to lose coverage, and a contingency plan to obtain data from land-grant institutions or other third parties.

- Amends: New freestanding provision (references National Agricultural Research, Extension, and Teaching Policy Act of 1977 sec. 1404, 7 U.S.C. 3103).

- Numbers: 5-year lookback period.

- Dates: Report not later than 1 year after enactment.

- Type: STUDY-OR-REPORT.

- Affected: Winners - hurricane-exposed producers relying on HIP-WI. Who must act - FCIC (consult NOAA Administrator; report to House/Senate Ag Committees).

- Flag: Addresses single-point-of-failure dependence on NOAA weather-radio data for triggering index payouts.

Sec. 11017 - Risk management study for lamb

- Does: Directs the Secretary to study modifications to existing livestock protection/risk-management programs to enhance protection for domestic lamb producers, accounting for market access, feed sourcing/costs, imports, demand/trends, labor costs, and market-data availability/accuracy.

- Amends: New freestanding provision (references existing programs incl. dairy margin coverage, livestock risk protection).

- Numbers: -

- Dates: Report not later than 1 year after enactment.

- Type: STUDY-OR-REPORT.

- Affected: Winners - domestic lamb producers. Who must act - Secretary (report to House/Senate Ag Committees).

- Flag: -

Sec. 11018 - Study on livestock risk protection policy (feeder cattle / adverse weather)

- Does: Directs the Secretary to study modifications to the Livestock Risk Protection (LRP) policy under FCIA sec. 523(b) to improve flexibility for feeder-cattle producers affected by adverse weather (drought, wildfire), including whether current penalty/endorsement structures deter early marketing and whether to provide flexibility/exemptions.

- Amends: New freestanding provision (references FCIA sec. 523(b), 7 U.S.C. 1523(b)).
- Numbers: Focus on producers marketing feeder cattle more than 60 days prior to a coverage-endorsement end date.
- Dates: Report not later than 1 year after enactment.
- Type: STUDY-OR-REPORT.
- Affected: Winners - feeder-cattle producers facing drought/wildfire forced-marketing decisions. Who must act - Secretary (report to House/Senate Ag Committees).
- Flag: -

Cross-cutting flags for this title

- No general/across-the-board statutory premium-subsidy percentage increase appears in the engrossed text. The one concrete subsidy-assistance expansion is extending the existing beginning-farmer premium assistance (sec. 508(e)(9)) to veteran farmers/ranchers and lengthening veteran eligibility from 5 to 10 years (Sec. 11007). There is no SCO/area-plan subsidy-rate hike or coverage-level raise stated in the text; Sec. 11015 only studies area-plan reinsurance funds.
- Specialty crops are the dominant theme: new advisory committee (11001), revised Specialty Crops Coordinator (11001), prevented-planting R&D for specialty crops (11014(h)), and numerous specialty-crop product R&D mandates (11014).
- Expansion of subsidized products is concentrated in Sec. 11014, where several paragraphs MANDATE that FCIC make new policies available (oilseeds/alfalfa/pulses/sugarbeets/sugarcane/blueberries revenue; wine-grape smoke; mushrooms; harvest incentives), overriding sec. 508(a)(1)/(a)(2) limits.
- Revenue/price-decline coverage is broadened generally (Sec. 11004) and specifically (Sec. 11014(20)).
- AIP-favorable process reforms: marketability "deemed marketable" on a single AIP's support (11008); structured 90-day appeal chain with debt relief if FCIC misses deadlines (11013); interest-accrual cap protecting delinquent producers (11006).
- A&O reimbursement frozen at 2026 levels for 2027+ (11009) - a cost-control/AIP-revenue-constraining measure that cuts against the otherwise AIP-friendly tone.
- Reauthorization horizon: program elements run through FY2031 (e.g., pilot report tied to crop year 2031 in Sec. 11011); recurring QLA reviews begin CY2027 (11010).
- Heavy reliance on STUDY-OR-REPORT mandates (11010-11018 and most of 11014), nearly all reporting to the House Committee on Agriculture and the Senate Committee on Agriculture, Nutrition, and Forestry (Sec. 11011 uniquely names the Senate committee as "Agriculture, Forestry, and Nutrition"; Secs. 11014(b),(g) also loop in Appropriations Committees).
- Disclosure threshold for substantial beneficial interest raised 5%->10% (11002) reduces ownership transparency.
- Targeted/geographic provisions: Texas High Plains late-planting/Ogallala pilot (11011); wine-grape smoke focus on CA/OR/WA (11014(b)).

Title XII - Miscellaneous Provisions - Notes

Title-level summary

Title XII is the catch-all title of H.R. 7567 EH, organized into five subtitles: (A) Livestock and Other Animals - split into Part I (Animal Health and Production) and Part II (Meat and Poultry Processing and Inspection); (B) Department of Agriculture Reorganization Act of 1994; (C) National Security; (D) Other Miscellaneous Provisions; and (E) United States Grain Standards Reauthorization. It reauthorizes core animal-health programs (NAHLN, NADPRP, the vaccine/countermeasures bank) at FY2027-2031, and contains several high-profile substantive policy moves: a federal preemption of state "patchwork" production standards for livestock-derived products (the Proposition 12 response), a federal ban on commercial greyhound racing, a near-total rebuild of foreign agricultural land disclosure/enforcement (AFIDA overhaul, CFIUS membership for USDA, a prohibition on purchases by foreign adversaries), and expansion of USDA farm loans to commercial fishing and fish processing. The title also creates new offices (Office of Seafood), numerous studies/reports, and reauthorizes the U.S. Grain Standards Act through FY2033. Many provisions are freestanding (studies, working groups), while the substantive ones amend the Animal Health Protection Act, Animal Welfare Act, AFIDA, the Defense Production Act (CFIUS), the Consolidated Farm and Rural Development Act, and the Grain Standards Act. Notable controversies: livestock interstate-commerce preemption (Prop 12), greyhound racing ban, farm-equipment Clean Air Act exemption, and qualified renewable biomass carbon-neutrality treatment.

Section-by-section

Sec. 12001 - Animal disease prevention and management

- Does: Amends NADPRP activities to add "improving animal disease traceability" as an eligible activity; clarifies that "other activities approved by the Secretary as of enactment" qualify. Reauthorizes NAHLN, NADPRP, and the National Animal Vaccine and Veterinary Countermeasures Bank. Expands the administrative-cost set-aside to cover both NAHLN (subsection (a)) and NADPRP (subsection (b)) and raises the admin cap from 10% to 15%.
- Amends: Animal Health Protection Act sec. 10409A(b)(2)(F),(I), (d)(2)(A), (d)(2)(B), (d)(3)(B), (e)(1) (7 U.S.C. 8308a)
- Numbers: Admin cost cap raised 10% -> 15%
- Dates: Reauthorizations changed "2019 through 2023" -> "2027 through 2031" (multiple subsections)
- Type: EXTEND/REFORM/INCREASE
- Affected: APHIS; state/animal-health labs; livestock producers (FMD vaccine bank funding continues)
- Flag: FMD/vaccine bank and NAHLN funding continuity; admin cap increase is a 50% relative bump

Sec. 12002 - Cattle Fever Tick Eradication Program review and report

- Does: Directs Secretary to contract (within 1 year) with a land-grant/non-land-grant ag college to review the Cattle Fever Tick Eradication Program (APHIS + Texas Animal Health Commission); report to Ag Committees within 1 year of contract, with recommendations to reduce compliance burden on cattle producers.
- Amends: New freestanding provision (uses funding from NARETPA sec. 1419A, 7 U.S.C. 3155)
- Numbers: -
- Dates: Contract within 1 yr of enactment; report within 1 yr of contract
- Type: STUDY-OR-REPORT
- Affected: Texas cattle producers; APHIS; ag policy research centers (funding source)
- Flag: -

Sec. 12003 - Additional training facilities for National Detector Dog Training Center

- Does: Authorizes Secretary to establish additional dog training facilities ("Beagle Brigade") beyond the existing Center and to enter cooperative agreements with state ag departments for off-site training. Considerations: ports of entry location, passenger/cargo volume, regional pest/disease threats.
- Amends: Beagle Brigade Act of 2023 (Pub. L. 118-191) - adds new sec. 4
- Numbers: -
- Dates: -
- Type: NEW/EXPAND

- Affected: APHIS; states; border/port biosecurity
- Flag: -

Sec. 12004 - Regionalization, zoning, and compartmentalization agreements

- Does: Authorizes Secretary (via APHIS Administrator, Under Secretary for Trade/FAS, FSIS Administrator, in consultation with USTR) to pre-negotiate regionalization/zoning/compartmentalization and other agreements with foreign trading partners to limit export impact of animal disease outbreaks. Rule of construction preserves USTR's authority.
- Amends: Animal Health Protection Act sec. 10405 (7 U.S.C. 8304) - redesignates (d) as (e), inserts new (d)
- Numbers: -
- Dates: -
- Type: NEW/REFORM
- Affected: Livestock/animal-product exporters; USTR; APHIS/FSIS
- Flag: -

Sec. 12005 - Importation of live dogs

- Does: Adds new sec. 10404A to the Animal Health Protection Act governing dog imports. Requires electronic documentation before transport showing dog is healthy, vaccinated/parasite-treated with negative tests (vet certificate), permanently identified, and (if for transfer) at least 6 months old and accompanied by an import permit. Lists exceptions (returning US-origin pets, military working dogs, research, veterinary treatment then re-export, and under-6-month dogs imported to Hawaii from British Isles/Australia/Guam/New Zealand). Requires regulations within 18 months; centralized database; data-sharing with state veterinarians within 3 days; annual public reporting on countries of origin/purposes; fee authority. Enforcement via sec. 10414 penalties; importers bear cost of care/forfeiture/quarantine/removal/return. Transfers regulatory authority from the Animal Welfare Act to APHIS.
- Amends: Animal Health Protection Act (inserts sec. 10404A after 7 U.S.C. 8303); REPEALS sec. 18 of Animal Welfare Act (7 U.S.C. 2148); transitional savings clause for old AWA regs
- Numbers: Transfer-dog minimum age = 6 months; state-vet data share within 3 days
- Dates: Regulations within 18 months of enactment
- Type: NEW/REFORM/REPEAL
- Affected: Dog importers/transporters; rescue/adoption importers; HHS/Commerce/DHS/DOT (consulted); state veterinarians
- Flag: Moves live-dog import authority from AWA to AHPA; fee-funded; broad documentation/database regime

Sec. 12006 - Ensuring the free movement of livestock-derived products in interstate commerce

- Does: Declares a federal right for covered-livestock producers to raise and market in interstate commerce, and bars any State (or subdivision) from enacting or enforcing - directly or indirectly - any production condition/standard on covered livestock not physically raised in that state, or any production condition/standard (as a condition of sale or consumption) on products derived from covered livestock not raised in that state that is "in addition to, or different from" the producing state's standards. "Covered livestock" = domestic animals raised for slaughter for human consumption or for milk/dairy products; EXCLUDES animals raised primarily for egg production. "Production" = raising/breeding, not movement/harvest/processing.
- Amends: New freestanding provision (federal preemption)
- Numbers: -
- Dates: -
- Type: NEW/REFORM (preemption)
- Affected: WINNERS: out-of-state livestock/pork/dairy producers, packers. LOSERS: states with animal-welfare production mandates (e.g., California Prop 12, Massachusetts Question 3) and the standards they impose on imported products.
- Flag: CONTROVERSIAL - this is the bill's Proposition 12 / EATS-Act-style preemption. Notably excludes eggs from "covered livestock" (so Prop 12 egg provisions are not directly reached). Targets dairy and slaughter livestock (pork especially).

Sec. 12007 - Report on support for livestock and poultry producers during a foreign animal disease outbreak

- Does: Requires report (within 6 months) on USDA preparedness to support producers/growers facing economic losses from a foreign animal disease outbreak: assessment of existing programs (catastrophic risk tools, indemnity, direct payments, biosecurity assistance, herd buyouts), capacity gaps, and recommendations for legal/regulatory changes. Named Under

Secretaries must feed information to Secretary within 90 days.

- Amends: New freestanding provision
- Numbers: -
- Dates: Report within 6 months; official inputs within 90 days
- Type: STUDY-OR-REPORT
- Affected: Livestock/poultry producers; multiple USDA Under Secretaries
- Flag: -

Sec. 12008 - Protection of greyhounds

- Does: Adds new sec. 30 to the Animal Welfare Act making it unlawful to: engage in commercial greyhound racing involving interstate/foreign commerce; conduct racing/meetings with betting; engage in/facilitate simulcast betting in interstate/foreign commerce; or sell/buy/possess/train/transport/deliver/receive a greyhound for commercial racing. Secretary investigates (may use FBI, Treasury, other LE). Rule of construction preserves state gambling/animal-welfare laws and the Interstate Horseracing Act.
- Amends: Animal Welfare Act (7 U.S.C. 2131 et seq.) - new sec. 30
- Numbers: Penalty: fine + imprisonment up to 7 years per violation
- Dates: Applies to conduct on/after October 1, 2027
- Type: NEW (federal prohibition)
- Affected: Greyhound racing industry (effectively a national ban); simulcast/betting operators
- Flag: CONTROVERSIAL/NOTABLE - federal criminal ban on commercial greyhound racing. (Note: penalty clause references "paragraphs (1) through (5)" of (a) though (a) has only paragraphs (1)-(4) - apparent drafting inconsistency.)

Sec. 12009 - Animal fighting

- Does: Rewrites AWA sec. 26 heading and adds a new prohibition on gambling on an animal fighting venture (in-person or broadcast); reorganizes the "attending / causing a minor under 16 to attend" provisions.
- Amends: Animal Welfare Act sec. 26 (7 U.S.C. 2156)
- Numbers: Age threshold: under 16
- Dates: -
- Type: NEW/REFORM
- Affected: Animal-fighting participants/spectators/gamblers
- Flag: New gambling-on-animal-fighting prohibition

Sec. 12010 - Placement of animals used in Federal research

- Does: Rewrites AWA sec. 14 ("Standards for Federal facilities"). Federal research facilities must (within 1 year) promulgate standards facilitating adoption/non-laboratory placement of eligible research animals no longer needed and suitable for release to rescue organizations, sanctuaries, shelters, or individuals. Defines animal rescue organization, animal sanctuary, animal shelter, eligible animal (dog, cat, nonhuman primate, guinea pig, hamster, rabbit), and "suitable for release" (vet certificate within 10 days).
- Amends: Animal Welfare Act sec. 14 (7 U.S.C. 2144)
- Numbers: Vet inspection within 10 days of release
- Dates: Standards within 1 year of enactment
- Type: NEW/REFORM
- Affected: Federal research facilities; lab animals; rescues/sanctuaries/shelters
- Flag: Research-animal retirement/adoption mandate

Sec. 12111 - Amplifying Processing of Livestock in the United States (A-PLUS)

- Does: Directs Secretary (within 1 year) to revise 9 C.F.R. 201.67 to allow market agencies to own/finance/manage a packer if the packer is below capacity thresholds: cattle/sheep < 2,000/day or < 700,000/year; hogs < 10,000/day or < 3,000,000/year. Requires disclosure of such ownership/financial relationships to livestock sellers. Savings clause preserves Packers & Stockyards authority.
- Amends: Directs revision of regulation (9 C.F.R. 201.67); under Packers and Stockyards Act, 1921 (7 U.S.C. 181 et seq.)
- Numbers: Cattle/sheep cap: 2,000/day or 700,000/yr; hogs: 10,000/day or 3,000,000/yr

- Dates: Within 1 year of enactment
- Type: REFORM
- Affected: Small/regional packers; livestock market agencies/auctions
- Flag: Loosens long-standing conflict-of-interest rule for small packers

Sec. 12112 - HACCP guidance and resources for small/very small poultry and meat establishments

- Does: Adds parallel new sections to FMIA (new sec. 26) and PPIA (new sec. 14A). Requires Secretary, within 18 months, to publish scientific-study lists, best-practice guidelines, and scale-appropriate model HACCP plans (slaughter-only, processing-only, combined). Within 2 years, publish a guidance document after notice-and-comment. Data confidentiality protected. "Small"/"very small" per 1996 HACCP final rule (61 Fed. Reg. 38806).
- Amends: Federal Meat Inspection Act (after 21 U.S.C. 625, new sec. 26); Poultry Products Inspection Act (after 21 U.S.C. 463, new sec. 14A)
- Numbers: -
- Dates: Studies/model plans within 18 months; guidance within 2 years
- Type: NEW/STUDY-OR-REPORT
- Affected: Small/very small meat & poultry processors; FSIS
- Flag: -

Sec. 12113 - Outreach on cooperative interstate shipment

- Does: Requires FSIS outreach (FY2027-2031) to states with state meat/poultry inspection programs that lack a "selected establishment" under the Cooperative Interstate Shipment (CIS) program; annual report to Ag and Appropriations Committees.
- Amends: FMIA sec. 501 (21 U.S.C. 683) new (k); PPIA sec. 31 (21 U.S.C. 472) new (j)
- Numbers: -
- Dates: FY2027 through FY2031
- Type: NEW/STUDY-OR-REPORT
- Affected: State inspection programs; small processors seeking interstate shipment
- Flag: -

Sec. 12114 - Pilot program to support custom slaughter establishments

- Does: Allows state ag departments (or USDA if state declines) to run a pilot letting custom-exempt facilities sell slaughtered meat directly to in-state consumers (not for resale), with detailed labeling (facility/owner name+address, raising location, slaughter date, "not federally inspected," "not for resale"). Caps: state may approve ≤ 5 facilities; Secretary ≤ 10 across all USDA-run programs; after 2 years with no emergency actions, an additional ≤ 5 (state) / ≤ 10 (Secretary). Requires compliance with Humane Methods of Slaughter Act, state/local law, FMIA sec. 23(d), sanitation/SRM rules; onsite USDA inspection and annual local inspection. Emergency action authority for adulteration. Reports required.
- Amends: New freestanding provision (interacts with FMIA, 21 U.S.C. 601 et seq.)
- Numbers: State cap 5 (+5 later); USDA cap 10 (+10 later)
- Dates: Guidance within 90 days; state reports begin 9/30/2026 annually through 9/30/2031; Secretary report within 2 years of initiation; SUNSET 9/30/2031
- Type: NEW (pilot)/STUDY-OR-REPORT
- Affected: Custom-exempt slaughterhouses; direct-to-consumer meat buyers; state ag departments
- Flag: Sunsets 9/30/2031; allows uninspected meat sale to consumers under conditions

Sec. 12201 - Office of Homeland Security

- Does: Adds duty of conducting annual cross-sector crisis simulation exercises for food-related emergencies. Authorizes detailing employees to/from the intelligence community. Requires biennial risk assessments of the food and agriculture critical infrastructure sector (covering natural/intentional threats, bioterrorism, state-owned enterprise influence, ag-data control, foreign IP/asset/land acquisition, input dependence, supply-chain disruption, etc.), with briefings + reports to Ag and Homeland Security Committees. Exempts these reports from the Access to Congressionally Mandated Reports Act.
- Amends: DOA Reorganization Act of 1994 sec. 221 (7 U.S.C. 6922)
- Numbers: -
- Dates: First risk assessment within 1 year, then $\geq$ every 2 years; briefing/report within 180 days of completion

- Type: NEW/REFORM/STUDY-OR-REPORT
- Affected: USDA Office of Homeland Security; intelligence community
- Flag: Intelligence-community detailees; report exempted from public-reports transparency act

Sec. 12202 - Office of Partnerships and Public Engagement

- Does: Reauthorizes the Office of Partnerships and Public Engagement.
- Amends: DOA Reorganization Act of 1994 sec. 226B(f)(3)(B) (7 U.S.C. 6934(f)(3)(B)) - "2023" -> "2031"
- Numbers: -
- Dates: Authorization extended to 2031
- Type: EXTEND
- Affected: OPPE; socially disadvantaged/underserved outreach grantees
- Flag: -

Sec. 12203 - Burden of proof for national appeals division hearings

- Does: Rewrites NAD burden-of-proof rule so the agency must prove by substantial evidence that its adverse decision was valid (shifts/clarifies burden onto the agency).
- Amends: DOA Reorganization Act of 1994 sec. 277(c)(4) (7 U.S.C. 6997(c)(4))
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: WINNERS: farmers/producers appealing adverse USDA decisions. LOSERS: USDA agencies (FSA, NRCS, etc.)
- Flag: Burden-of-proof shift to the agency - meaningful procedural change favoring appellants

Sec. 12204 - Termination of authority

- Does: Adds the authority to carry out the Reorganization-Act amendments made by this Act to the list of authorities the Secretary may terminate/reorganize under sec. 296(b).
- Amends: DOA Reorganization Act of 1994 sec. 296(b) (7 U.S.C. 7014(b)) - adds paragraph (11)
- Numbers: -
- Dates: -
- Type: REFORM (conforming)
- Affected: USDA reorganization authority
- Flag: -

Sec. 12205 - Functions of the Office of Tribal Relations

- Does: Restructures the Office of Tribal Relations' duties: advise Secretary on Indian-tribe policy; oversee self-determination contracts and self-governance compacts (per Indian Self-Determination and Education Assistance Act); other functions as appropriate.
- Amends: Federal Crop Insurance Reform and DOA Reorganization Act of 1994 sec. 309 (7 U.S.C. 6921)
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: Office of Tribal Relations; Indian tribes/tribal organizations
- Flag: -

Sec. 12301 - Agricultural foreign investment disclosure improvements

- Does: Requires MOU(s) between Secretary and CFIUS (within 1 year) to share all AFIDA foreign-land-ownership report info, including identity of foreign persons and submission dates. Requires updating the FSA "Foreign Investment Disclosure" handbook within 2 years, incorporating the January 18, 2024 GAO report recommendations, then every 10 years. Overhauls AFIDA civil penalties: distinguishes failure-to-file (cap 25%) from knowingly filing incomplete/misleading/false reports (not less than 5%, not more than 25%); requires public disclosure of the name of each person paying a civil penalty; and requires a nationwide outreach/education program on reporting requirements.
- Amends: AFIDA - sec. 3 (7 U.S.C. 3502) restructured (penalty tiers, public disclosure (d), outreach (e)); references AFIDA sec.

2 (7 U.S.C. 3501)

- Numbers: Penalty: failure-to-file $\leq 25\%$ of fair market value; false/incomplete reports $\geq 5\%$ but $\leq 25\%$
- Dates: CFIUS MOU within 1 year; handbook update within 2 years then every 10 years
- Type: REFORM/NEW
- Affected: Foreign owners of US ag land; FSA; CFIUS; county appraisers/auction/real-estate companies (outreach targets)
- Flag: NOTABLE - public naming of penalized filers; new minimum penalty for false filings; AFIDA-CFIUS info-sharing

Sec. 12302 - Report on ag land purchasing by state sponsors of terrorism and certain other countries

- Does: Requires annual report (first within 180 days) on national-security risks of ag-land purchase/management by "covered foreign persons" (citizens of / headquartered in a "foreign country of concern" per CHIPS Act sec. 10638). Contents: acreage owned/leased/managed by state, percentage of each state's acreage, threats to food/bio-security and environment, FSA farm-program support costs, industrial espionage/IP transfer, proximity-to-critical-infrastructure risks. Unclassified with optional classified annex. Reports to six committees including Intelligence and Homeland Security.
- Amends: New freestanding provision (uses AFIDA definitions, 7 U.S.C. 3508; CHIPS Act, 42 U.S.C. 19237)
- Numbers: -
- Dates: First report within 180 days, annually thereafter
- Type: STUDY-OR-REPORT
- Affected: Foreign (PRC etc.) ag-land owners; DHS; intelligence committees
- Flag: Targets "foreign countries of concern"

Sec. 12303 - Investigative actions

- Does: Rewrites AFIDA sec. 4 to create a Senior Executive Service "Chief of Operations of Investigative Actions" who hires staff to monitor AFIDA compliance, refer noncompliance, conduct investigations (with DOJ/FBI/DHS/Treasury/NSC/state-local LE) into malign efforts to steal ag knowledge/technology or disrupt the US ag base, annually audit the new sec. 12304 database, enter MOAs/MOUs, refer national-security-concern transactions to CFIUS, and publish annual report summaries. Adds AFIDA definitions of "foreign entity of concern" (per NDAA FY2021 sec. 9901, 15 U.S.C. 4651) and "malign effort." Provides classified spaces and security clearances.
- Amends: AFIDA sec. 4 (7 U.S.C. 3503) rewritten; sec. 9 (7 U.S.C. 3508) amended (new defs, redesignations)
- Numbers: -
- Dates: Annual audit/reports
- Type: NEW/REFORM
- Affected: New USDA SES enforcement office; foreign ag-land owners; CFIUS; LE/intelligence agencies
- Flag: Creates a dedicated counterintelligence-style ag-land enforcement chief

Sec. 12304 - Digitization and consolidation of foreign land ownership data

- Does: Requires Secretary, within 3 years, to build a database of ag land owned by foreign persons using AFIDA data. Each entry includes pertinent info but must NOT publicly disclose the filer's name or purchase/lease price for at least 30 days after filing. Chief of Operations audits the database within 180 days of operation and annually, reporting accuracy and compliance recommendations to Congress. Repeals sec. 773 of the Consolidated Appropriations Act, 2023.
- Amends: New freestanding provision; REPEALS sec. 773 of div. A, Consolidated Appropriations Act, 2023 (Pub. L. 117-328)
- Numbers: 30-day nondisclosure window
- Dates: Database within 3 years; audit within 180 days of operation, annually
- Type: NEW/REPEAL
- Affected: Public/researchers (transparency); foreign filers; FSA
- Flag: Repeals existing 2023 appropriations-act foreign-land provision

Sec. 12305 - CFIUS consideration of certain agricultural land transactions

- Does: Adds the Secretary of Agriculture as a CFIUS member for covered transactions involving ag land, ag biotechnology, or the ag industry (transport/storage/processing). Requires CFIUS, on USDA notification of a "reportable agricultural land transaction," to determine if it is a covered transaction and whether to review. "Reportable" = transaction USDA believes (via intelligence community) is covered, involving acquisition of an interest in ag land by a foreign person of the PRC, DPRK, Russia,

or Iran, and AFIDA-reportable. Sunsets per-country when that country is removed from the foreign-adversaries list (15 C.F.R. 791.4).

- Amends: Defense Production Act of 1950 sec. 721(k) (50 U.S.C. 4565(k)) new (8); sec. 721(b)(1) new (l)
- Numbers: -
- Dates: Per-country sunset upon removal from foreign-adversary list
- Type: NEW/REFORM
- Affected: CFIUS; USDA (new CFIUS seat); PRC/DPRK/Russia/Iran-linked ag-land buyers
- Flag: NOTABLE - formally seats USDA on CFIUS and channels foreign-adversary ag-land deals through CFIUS

Sec. 12306 - Prohibition on purchase of agricultural land by foreign adversaries and state sponsors of terrorism

- Does: Directs the President to have federal agency heads promulgate rules prohibiting purchase of US ag land by a foreign adversary, state sponsor of terrorism, their agents/instrumentalities, or persons owned/controlled by/affiliated with them. Defines foreign adversary, state sponsor of terrorism, and a broad "United States" (including territories).
- Amends: New freestanding provision (uses AFIDA sec. 9 definition, 7 U.S.C. 3508)
- Numbers: -
- Dates: -
- Type: NEW (prohibition)
- Affected: Foreign-adversary / terror-sponsor-linked buyers; all federal agencies (rulemaking)
- Flag: CONTROVERSIAL/NOTABLE - outright federal ban on ag-land purchases by foreign adversaries; "affiliated with" language is broad

Sec. 12401 - Commission on Farm Transitions-Needs for 2050

- Does: Reactivates/revises the 2018 Farm Bill Commission on Farm Transitions: Secretary must establish it within 60 days; broadens its mandate to make recommendations; adds study of apprenticeships/mentoring/business training, state+federal (not just federal tax) policies, heirs' property and succession, unique barriers faced by historically underserved and women farmers/ranchers, and leasing/ownership trends (including by foreign persons). Exempts the Commission from FACA (5 U.S.C. 1008, 1013).
- Amends: Agriculture Improvement Act of 2018 sec. 12609 (Pub. L. 115-334)
- Numbers: -
- Dates: Establish within 60 days; report deadline -> 2 years after enactment of 2026 Act; authorization "2023" -> "2031"
- Type: REFORM/EXTEND/STUDY-OR-REPORT
- Affected: Beginning/transitioning farmers; underserved & women farmers; heirs'-property holders
- Flag: Beginning-farmer / socially-disadvantaged & women-farmer focus; FACA exemption

Sec. 12402 - Report on personnel

- Does: Reauthorizes the personnel-report provision.
- Amends: Agriculture Improvement Act of 2018 sec. 12506 (Pub. L. 115-334) - "2023" -> "2031"
- Numbers: -
- Dates: Extended to 2031
- Type: EXTEND
- Affected: USDA
- Flag: -

Sec. 12403 - Improvements to United States Drought Monitor

- Does: Reauthorizes the Drought Monitor improvements provision.
- Amends: Agriculture Improvement Act of 2018 sec. 12512(d)(2) (7 U.S.C. 5856(d)(2)) - "2023" -> "2031"
- Numbers: -
- Dates: Extended to 2031
- Type: EXTEND
- Affected: USDA/NOAA drought monitoring; producers
- Flag: -

Sec. 12404 - Reports on land access and farmland ownership data collection

- Does: Requires the land-access report at least once every 2 years; adds a required catalog of existing federal/state/private programs that facilitate access to land, capital, and markets (real-property acquisition incl. closing costs, interest-rate/principal subsidies, down-payment assistance, heirs'-property title clearing, surveys, land/water/soil remediation, infrastructure, land-use planning, legal/financial planning, Tribal consultation, FSA farm-number acquisition, etc.).
- Amends: Agriculture Improvement Act of 2018 sec. 12607 (7 U.S.C. 2204i) - "2023" -> "2031"
- Numbers: -
- Dates: Biennial; extended to 2031
- Type: REFORM/EXTEND/STUDY-OR-REPORT
- Affected: Beginning/underserved farmers; heirs'-property owners; land-access program administrators
- Flag: Land-access / heirs'-property focus

Sec. 12405 - Increasing transparency regarding detention of imported plants

- Does: Requires guidance (within 180 days), coordinated with FWS and CBP, clarifying how importers of plants denied entry/detained under the Lacey Act can get more info: specific reasons + presentation date, anticipated detention length, nature of tests (replicable by importer), and info that would speed disposition.
- Amends: New freestanding provision (references Lacey Act Amendments of 1981, 16 U.S.C. 3371 et seq.)
- Numbers: -
- Dates: Guidance within 180 days
- Type: STUDY-OR-REPORT/REFORM
- Affected: Plant importers; APHIS/FWS/CBP
- Flag: -

Sec. 12406 - Enhancement of pet protections

- Does: Requires a report (within 2 years, extendable) on companion-animal AWA enforcement effectiveness/efficiency, dealer education, enforcement capacity, and recommendations/costs. Amends AWA "adequate veterinary care" to include visual dental examinations whenever practicable. Technical redesignation of duplicate subsection (f) and following subsections in AWA sec. 13.
- Amends: AWA sec. 13(a)(2)(A) and sec. 13 redesignations (7 U.S.C. 2143)
- Numbers: -
- Dates: Report within 2 years (or later)
- Type: REFORM/STUDY-OR-REPORT
- Affected: AWA-licensed dealers/breeders; companion animals; APHIS Animal Care
- Flag: Adds dental-exam requirement to "adequate veterinary care"

Sec. 12407 - Protecting animals with shelter

- Does: Reauthorizes the AWA shelter-standards provision.
- Amends: Agriculture Improvement Act of 2018 sec. 12502(b)(8) (Pub. L. 115-334) - "2023" -> "2031"
- Numbers: -
- Dates: Extended to 2031
- Type: EXTEND
- Affected: Licensed dog dealers; dogs (outdoor shelter standards)
- Flag: -

Sec. 12408 - Report on assistance to Texas producers harmed by Mexico's water non-delivery

- Does: Requires a report (within 180 days) listing all existing USDA authorities/programs available to help Texas ag producers who suffered economic losses from Mexico's failure to deliver water under the 1944 Water Treaty.
- Amends: New freestanding provision
- Numbers: -
- Dates: Within 180 days
- Type: STUDY-OR-REPORT

- Affected: Texas (Rio Grande Valley) producers
- Flag: -

Sec. 12409 - Qualified renewable biomass

- Does: Defines "qualified renewable biomass" (forest-products manufacturing residuals, harvest residues, downed/disaster wood, biowaste/landfill gas, untreated used wood products, timber-harvest residues; excludes stumps/roots/round wood suitable for industry and commonly-recycled paper). Requires Secretary, for any USDA agency action related to such biomass, to treat it as a renewable energy source and assign it (and facilities using it) a GHG emission rate and carbon intensity of "not greater than zero," provided its use does not cause forest-to-non-forest conversion. Petition mechanism (Secretary must act within 1 year); guidance within 180 days, in consultation with EPA and DOE.
- Amends: New freestanding provision (references APA, 5 U.S.C. 551)
- Numbers: Carbon intensity/GHG rate "not greater than zero"
- Dates: Guidance within 180 days; petition response within 1 year
- Type: NEW/REFORM
- Affected: Forest-products/biomass-energy industry; EPA/DOE (consulted)
- Flag: CONTROVERSIAL - statutorily declares forest biomass carbon-neutral for USDA purposes

Sec. 12410 - Whole milk under the school breakfast program

- Does: Extends the whole-milk allowance to breakfasts served under the school breakfast program (Child Nutrition Act sec. 4); conforming citations including adding 7 C.F.R. 220.8.
- Amends: Richard B. Russell National School Lunch Act sec. 9(a)(2) (42 U.S.C. 1758(a)(2))
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: Schools; dairy industry; students
- Flag: Whole milk in schools (dairy-industry priority)

Sec. 12411 - Spotted lanternfly awareness campaign

- Does: Requires a national public-awareness campaign on spotted lanternflies, including PSAs on TV/radio/billboards in high-incidence areas encouraging the public to kill the pest.
- Amends: New freestanding provision
- Numbers: -
- Dates: -
- Type: NEW (program)
- Affected: Public; agriculture in affected regions
- Flag: -

Sec. 12412 - Rio Grande Valley agricultural water interagency working group

- Does: Establishes a USDA-chaired interagency Working Group to coordinate a whole-of-government strategy protecting US ag producers affected by 1944 Water Treaty deliveries: analyze economic impact (incl. perennial crops), secure predictable deliveries, improve conservation/infrastructure, assess trade mechanisms, coordinate with Texas, and provide public engagement. Composed of USDA (Chair), State, Interior, IBWC, EPA, USTR, Army Corps, and the National Security Advisor. Meets >= annually, open to public; annual report to multiple House and Senate committees.
- Amends: New freestanding provision
- Numbers: -
- Dates: First report within 1 year, annually thereafter
- Type: NEW/STUDY-OR-REPORT
- Affected: South Texas producers/irrigation districts; multiple federal agencies
- Flag: -

Sec. 12413 - Cost-share grants for rollover protection structures

- Does: Establishes a cost-share grant program for purchasing/transporting/installing approved rollover protection structures

(ROPS, with seatbelt, meeting SAE J2194/J1194) on agricultural tractors. Eligible entities: ag producers and eligible schools (vocational, IHEs, secondary schools with ag instruction). Grants = 70% of costs; if documented costs exceed \$500, the grant percentage may be increased (Secretary's discretion). Secretary selects a nongovernmental Program Administrator by competitive bid to run applications, a website, and a phone hotline.

- Amends: New freestanding provision
- Numbers: Grant 70% of costs; threshold \$500; authorization \$725,000 for each of FY2027-2031; allocation: 70% to grants, 15% to website, 15% to hotline
- Dates: FY2027-2031
- Type: NEW (program)
- Affected: Farmers/ag schools (tractor safety); selected NGO administrator
- Flag: Small authorization (\$725K/yr); farm-safety program

Sec. 12414 - Report on barriers to accessing Federal programs

- Does: Requires a report (within 180 days), made public, on barriers to organic farms participating in federal programs under this Act, what USDA can do administratively, and what congressional action is needed.
- Amends: New freestanding provision
- Numbers: -
- Dates: Within 180 days
- Type: STUDY-OR-REPORT
- Affected: Organic farmers
- Flag: -

Sec. 12415 - Transparency of records of commodity boards

- Does: For each commodity-promotion order, requires USDA to publish on its website each commodity board's audit reports, approved activities/budgets, and periodic independent evaluation results. Must publish prior 5 fiscal years' info within 180 days, and each subsequent year within 365 days of fiscal year-end.
- Amends: Federal Agriculture Improvement and Reform Act of 1996 sec. 501 (7 U.S.C. 7401) - new (d), redesignations
- Numbers: 5 prior FYs; within 180 days / 365 days
- Dates: Initial publication within 180 days of enactment
- Type: NEW/REFORM (transparency)
- Affected: Commodity check-off boards; public
- Flag: Commodity check-off transparency (a recurring policy fight)

Sec. 12416 - Honey Standards and Definitions

- Does: Requires Secretary (within 180 days) to initiate consultation with FDA and CBP to develop a harmonized federal definition for honey (to promote honesty/fair dealing, consistent labeling/enforcement), coordinated with domestic honey-producer associations and land-grant universities with honey-authenticity expertise. Definition supports enforcement against adulteration, misbranding, false labeling, country-of-origin/import fraud. Consultation ceases if FDA publishes a honey standard of identity.
- Amends: Agricultural Marketing Act of 1946 sec. 203(h)(6) (7 U.S.C. 1622(h)(6))
- Numbers: -
- Dates: Consultation initiated within 180 days
- Type: NEW/REFORM
- Affected: Domestic honey producers; importers (anti-fraud); FDA/CBP
- Flag: Honey-fraud / authenticity policy

Sec. 12417 - Report on assistance to Arizona producers for certain losses

- Does: Requires a report (within 180 days) listing USDA authorities/programs available to help Arizona ag producers harmed by Colorado River water delivered to Mexico while Mexico failed to deliver water under the 1944 Water Treaty.
- Amends: New freestanding provision
- Numbers: -
- Dates: Within 180 days
- Type: STUDY-OR-REPORT

- Affected: Arizona producers
- Flag: -

Sec. 12418 - Precision agriculture satellite connectivity

- Does: Directs the FCC to review its fixed/mobile/earth-exploration satellite-service rules to identify changes promoting precision agriculture and develop recommendations; report to House Energy & Commerce and Senate Commerce Committees within 15 months.
- Amends: New freestanding provision (FCC, not USDA)
- Numbers: -
- Dates: Report within 15 months
- Type: STUDY-OR-REPORT
- Affected: FCC; precision-ag/satellite industry
- Flag: -

Sec. 12419 - Establishment of Office of Seafood in the Department of Agriculture

- Does: Establishes a USDA Office of Seafood to advise the Secretary on the seafood industry, integrate fishermen into USDA programs, and coordinate with Commerce to revitalize the American seafood industry. Technical correction redesignating the Food Access Liaison section (225 -> 224A).
- Amends: DOA Reorganization Act of 1994 subtitle A (7 U.S.C. 6912 et seq.) - new sec. 224B; redesignates sec. 225 -> 224A
- Numbers: -
- Dates: -
- Type: NEW (office)
- Affected: Seafood industry/fishermen; Commerce/NOAA coordination
- Flag: USDA expanding into seafood (traditionally Commerce/NOAA turf)

Sec. 12420 - USDA loans and grants for commercial fishing and fish processing businesses

- Does: Extends USDA farm ownership and operating loans (Consolidated Farm and Rural Development Act) to commercial fishing and fish processing. Redefines "farmer"/"farming" to include commercial fishing/fish processing; defines commercial fishing, commercial fishing vessel, fish, fish processing, fish processing facility. For farm-loan purposes, "farmer/rancher" includes those in commercial fishing/processing and "farm/ranch" includes a commercial fishing vessel and fish processing facility. Specifies allowable uses: fishing permits, vessels, capital improvements (ownership loans); operating/maintenance costs (operating loans). Requires implementation/integration within 1 year, with outreach, training, and NOAA coordination.
- Amends: Consolidated Farm and Rural Development Act - secs. 343(a) (7 U.S.C. 1991(a)), 302(a) (1922(a)), 303(a) (1923(a)), 311(a) (1941(a)), 312 (1942); references Magnuson-Stevens Act, 46 U.S.C. 2101
- Numbers: -
- Dates: Implementation within 1 year
- Type: NEW/REFORM (expands loan eligibility)
- Affected: WINNERS: commercial fishermen/fish processors (newly eligible for FSA loans). Potential competition for limited farm-loan funds.
- Flag: NOTABLE - major expansion of "farmer" definition to include wild-caught fishing/processing

Sec. 12421 - Honey testing standards

- Does: Requires that any sampling/analytical testing relied on to substantiate honey purity/floral-source/origin/grade/authenticity claims (including for imported honey) be conducted by a US-located laboratory using Secretary-recognized methods, and may not be satisfied solely by a foreign certificate of analysis, foreign government certification, or testing done outside the US.
- Amends: Agricultural Marketing Act of 1946 sec. 203(h)(6) (7 U.S.C. 1622(h)(6))
- Numbers: -
- Dates: -
- Type: NEW/REFORM
- Affected: Honey importers/packers/distributors; domestic testing labs; foreign honey suppliers
- Flag: Domestic-testing mandate (anti-import-fraud / protectionist tilt)

Sec. 12422 - Exemption of farm equipment from Clean Air Act emission standards

- Does: Adds a new CAA sec. 213(e) exempting from those emission standards new or in-use agricultural tractors (per 29 C.F.R. 1928.51) and self-propelled ag equipment used to spray/fertilize/harvest covered commodities (per Agricultural Act of 2014 sec. 1111(6), 7 U.S.C. 9011(6)).
- Amends: Clean Air Act sec. 213 (42 U.S.C. 7547)
- Numbers: -
- Dates: -
- Type: NEW (exemption)/REFORM
- Affected: WINNERS: farm-equipment makers/farmers. LOSERS: emissions/air-quality interests; EPA authority
- Flag: CONTROVERSIAL - carves agricultural equipment out of Clean Air Act nonroad-engine standards

Sec. 12501 - Declaration of policy (Grain Standards)

- Does: Adds policy that the Secretary shall prioritize adoption of improved grain-grading technology for efficient/accurate/consistent grading.
- Amends: U.S. Grain Standards Act sec. 2(b) (7 U.S.C. 74(b))
- Numbers: -
- Dates: -
- Type: REFORM
- Affected: Grain industry; FGIS
- Flag: -

Sec. 12502 - Official inspection authority and funding

- Does: Allows Secretary to provide that domestic non-export grain loaded/unloaded at an export port location be inspected per subsection (e) or (f) as best meets the Act's objectives. Renames the relevant fund a "trust fund." Extends authority "2025" -> "2033."
- Amends: U.S. Grain Standards Act sec. 7 (7 U.S.C. 79)
- Numbers: -
- Dates: Extended to 2033
- Type: REFORM/EXTEND
- Affected: Grain inspection agencies; exporters
- Flag: -

Sec. 12503 - Weighing authority

- Does: Adds "or official agency" to the weighing-authority delegation; "trust fund" renaming; extends "2025" -> "2033."
- Amends: U.S. Grain Standards Act sec. 7A (7 U.S.C. 79a)
- Numbers: -
- Dates: Extended to 2033
- Type: REFORM/EXTEND
- Affected: State/official weighing agencies
- Flag: -

Sec. 12504 - Testing of equipment

- Does: "trust fund" renaming.
- Amends: U.S. Grain Standards Act sec. 7B(a) (7 U.S.C. 79b(a))
- Numbers: -
- Dates: -
- Type: REFORM (conforming)
- Affected: FGIS
- Flag: -

Sec. 12505 - Limitation on administrative and supervisory costs

- Does: Expands the cost limitation language to include "equipment, and development of technology"; extends "2025" -> "2033."
- Amends: U.S. Grain Standards Act sec. 7D (7 U.S.C. 79d)
- Numbers: -
- Dates: Extended to 2033
- Type: REFORM/EXTEND
- Affected: FGIS
- Flag: -

Sec. 12506 - General authorities

- Does: Adds "and official agencies" to a provision; "trust fund" renaming.
- Amends: U.S. Grain Standards Act sec. 16 (7 U.S.C. 87e)
- Numbers: -
- Dates: -
- Type: REFORM (conforming)
- Affected: Official agencies
- Flag: -

Sec. 12507 - Registration requirements

- Does: "trust fund" renaming.
- Amends: U.S. Grain Standards Act sec. 17A(e) (7 U.S.C. 87f-1(e))
- Numbers: -
- Dates: -
- Type: REFORM (conforming)
- Affected: Registrants
- Flag: -

Sec. 12508 - Reporting requirements

- Does: Changes a discretionary report ("may, to the extent determined appropriate") to a mandatory annual report due December 1 each year; adds a required analysis of deficiencies in the technology-evaluation process plus recommendations to advance grading efficiency/accuracy/consistency and minimize costs.
- Amends: U.S. Grain Standards Act sec. 17B(e) (7 U.S.C. 87f-2(e))
- Numbers: -
- Dates: Report due December 1 annually
- Type: REFORM/STUDY-OR-REPORT
- Affected: FGIS; grain export industry
- Flag: -

Sec. 12509 - Funding (Grain Standards)

- Does: Reauthorizes appropriations "2021 through 2025" -> "2026 through 2033"; excludes grading services performed under the Agricultural Marketing Act of 1946 from the "other services" fee provision.
- Amends: U.S. Grain Standards Act sec. 19 (7 U.S.C. 87h)
- Numbers: -
- Dates: Reauthorized FY2026 through FY2033
- Type: EXTEND/REFORM
- Affected: FGIS; grain industry
- Flag: -

Sec. 12510 - Advisory committee

- Does: Allows an existing Grain Inspection Advisory Committee member (including one in a second successive term) to continue serving until a successor is appointed if the Secretary makes no new appointment; extends authority "2025" -> "2033."
- Amends: U.S. Grain Standards Act sec. 21 (7 U.S.C. 87j)
- Numbers: -

- Dates: Extended to 2033
- Type: REFORM/EXTEND
- Affected: Advisory committee
- Flag: -

Cross-cutting flags for this title

- Animal disease / biosecurity: NAHLN, NADPRP, and the National Animal Vaccine and Veterinary Countermeasures Bank (incl. FMD vaccine bank) reauthorized FY2027-2031; admin cap raised 10%->15% (Sec. 12001). Foreign-animal-disease export pre-negotiation authority (12004) and producer-support preparedness report (12007). USDA Office of Homeland Security gets biennial food/ag critical-infrastructure risk assessments and IC detailees (12201).
- Proposition 12 / interstate-commerce preemption: Sec. 12006 is a major EATS-Act-style federal preemption barring states from imposing production standards on out-of-state livestock-derived products - but it excludes eggs (covers slaughter livestock and dairy). High-controversy item.
- Foreign ownership of US ag land (the title's center of gravity): A coordinated package - AFIDA penalty/transparency overhaul + CFIUS info-sharing + public naming of penalized filers (12301); annual reports on foreign-country-of-concern purchases (12302); a new SES "Chief of Operations of Investigative Actions" counterintelligence office (12303); a foreign-ownership database with repeal of the 2023 appropriations-act provision (12304); USDA seated on CFIUS with adversary-deal referral and per-country sunsets (12305); and an outright presidential-directed ban on purchases by foreign adversaries/terror sponsors (12306).
- Animal welfare: Federal greyhound-racing ban (12008, effective 10/1/2027, up to 7 years' imprisonment); animal-fighting gambling ban (12009); research-animal retirement/adoption mandate (12010); dental-exam addition to "adequate veterinary care" + pet-protection report (12406); live-dog import regime moved from AWA to AHPA (12005).
- Beginning / socially-disadvantaged / underserved & women farmers: Commission on Farm Transitions-Needs for 2050 revived and broadened to heirs' property, succession, and barriers for historically underserved and women farmers (12401); biennial land-access reports with program catalog including heirs'-property title clearing (12404); Office of Partnerships and Public Engagement reauthorized to 2031 (12202); NAD burden-of-proof shifted onto the agency, aiding producer-appellants (12203).
- Small/local meat & poultry: A-PLUS market-agency/packer ownership liberalization with capacity caps (12111); small/very-small HACCP guidance (12112); cooperative interstate shipment outreach (12113); custom-slaughter direct-sale pilot sunset 9/30/2031 (12114).
- Seafood expansion: New USDA Office of Seafood (12419) and extension of FSA farm loans to commercial fishing/fish processing (12420) - a significant redefinition of "farmer."
- Studies/reports (numerous): Cattle fever tick (12002), FAD producer support (12007), Texas water (12408), Arizona water (12417), Rio Grande Valley working group (12412), organic-program barriers (12414), precision-ag satellite/FCC (12418), plant-detention transparency (12405), personnel/drought-monitor reauths (12402/12403). Multiple Water-Treaty-1944 items reflect a Texas/Arizona water-delivery focus.
- Environmental/regulatory carve-outs (controversial): Forest biomass declared carbon-neutral (≤ 0 GHG/carbon intensity) for USDA purposes (12409); farm equipment exempted from Clean Air Act emission standards (12422).
- Honey: Two anti-fraud sections - harmonized federal honey definition (12416) and a US-located-lab testing mandate barring sole reliance on foreign certificates (12421).
- Grain Standards (Subtitle E): USGSA reauthorized to FY2033, recurring "fund"->"trust fund" relabeling, "official agencies" added to several authorities, technology-adoption emphasis, and a discretionary report converted to a mandatory annual (Dec. 1) report (12501-12510).
- Drafting note: Sec. 12008(c) penalty clause references "paragraphs (1) through (5)" of subsection (a), but subsection (a) only contains paragraphs (1)-(4) - apparent cross-reference error.